

Abraham Lincoln: a History — Volume 01

John G. Nicolay and John Hay

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LINCOLN: A HISTORY — VOLUME 01 ***

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ABRAHAM LINCOLN: A HISTORY BY JOHN G. NICOLAY AND JOHN HAY

VOLUME ONE

**TO THE HONORABLE ROBERT TODD
LINCOLN**

THIS WORK IS DEDICATED IN TOKEN OF A LIFE-LONG FRIENDSHIP AND ESTEEM

AUTHORS' PREFACE

A generation born since Abraham Lincoln died has already reached manhood and womanhood. Yet there are millions still living who sympathized with him in his noble aspirations, who labored with him in his toilsome life, and whose hearts were saddened by his tragic death. It is the almost unbroken testimony of his contemporaries that by virtue of certain high traits of character, in certain momentous lines of purpose and achievement, he was incomparably the greatest man of his time. The deliberate judgment of those who knew him has hardened into tradition; for although but twenty-five years have passed since he fell by the bullet of the assassin, the tradition is already complete. The voice of hostile faction is silent, or unheeded; even criticism is gentle and timid. If history had said its last word, if no more were to be known of him than is already written, his fame, however lacking in definite outline, however distorted by fable, would survive undiminished to the latest generations. The blessings of an enfranchised race would forever hail him as their liberator; the nation would acknowledge him as the mighty counselor whose patient courage and wisdom saved the life of the republic in its darkest hour; and illuminating his proud eminence as orator, statesman, and ruler, there would forever shine around his memory the halo of that tender humanity and Christian charity in which he walked among his fellow- countrymen as their familiar companion and friend.

It is not, therefore, with any thought of adding materially to his already accomplished renown that we have written the work which we now offer to our fellow-citizens. But each age owes to its successors the truth in regard to its own annals. The young men who have been born since Sumter was fired on have a right to all their elders know of the important events they came too late to share in. The life and fame of Lincoln will not have their legitimate effect of instruction and example unless the circumstances among which he lived and found his opportunities are placed in their true light before the men who never saw him.

To write the life of this great American in such a way as to show his relations to the times in which he moved, the stupendous issues he controlled, the remarkable men by whom he was surrounded, has been the purpose which the authors have diligently pursued for many years. We can say nothing of the result of our labor; only those who have been similarly employed can appreciate the sense of inadequate performance with which we regard what we have accomplished. We claim for our work that we have devoted to it twenty years of almost unremitting assiduity; that we have neglected no means in our power to ascertain the truth; that we have rejected no authentic facts essential to a candid story; that we have had no theory to establish, no personal grudge to gratify, no unavowed objects to subserve. We have aimed to write a sufficiently full and absolutely honest history of a great man and a great time; and although we take it for granted that we have made mistakes, that we have fallen into such errors and inaccuracies as are unavoidable in so large a work, we claim there is not a line in all these volumes dictated by malice or unfairness.

Our desire to have this work placed under the eyes of the greatest possible number of readers induced us to accept the generous offer of "The Century Magazine" to print it first in that periodical. In this way it received, as we expected, the intelligent criticism of a very large number of readers,

thoroughly informed in regard to the events narrated, and we have derived the greatest advantage from the suggestions and corrections which have been elicited during the serial publication, which began in November, 1886, and closed early in 1890. We beg, here, to make our sincere acknowledgments to the hundreds of friendly critics who have furnished us with valuable information.

As "The Century" had already given, during several years, a considerable portion of its pages to the elucidation and discussion of the battles and campaigns of the civil war, it was the opinion of its editor, in which we coincided, that it was not advisable to print in the magazine the full narrative sketch of the war which we had prepared. We omitted also a large number of chapters which, although essential to a history of the time, and directly connected with the life of Mr. Lincoln, were still episodical in their nature, and were perhaps not indispensable to a comprehension of the principal events of his administration. These are all included in the present volumes; they comprise additional chapters almost equal in extent and fully equal in interest to those which have already been printed in "The Century." Interspersed throughout the work in their proper connection and sequence, and containing some of the most important of Mr. Lincoln's letters, they lend breadth and unity to the historical drama.

We trust it will not be regarded as presumptuous if we say a word in relation to the facilities we have enjoyed and the methods we have used in the preparation of this work. We knew Mr. Lincoln intimately before his election to the Presidency. We came from Illinois to Washington with him, and remained at his side and in his service—separately or together—until the day of his death. We were the daily and nightly witnesses of the incidents, the anxieties, the fears, and the hopes which pervaded the Executive Mansion and the National Capital. The President's correspondence, both official and private, passed through our hands; he

gave us his full confidence. We had personal acquaintance and daily official intercourse with Cabinet Officers, Members of Congress, Governors, and Military and Naval Officers of all grades, whose affairs brought them to the White House. It was during these years of the war that we formed the design of writing this history and began to prepare for it. President Lincoln gave it his sanction and promised his cordial cooperation. After several years' residence in Europe, we returned to this country and began the execution of our long-cherished plan. Mr. Robert T. Lincoln gave into our keeping all the official and private papers and manuscripts in his possession, to which we have added all the material we could acquire by industry or by purchase. It is with the advantage, therefore, of a wide personal acquaintance with all the leading participants of the war, and of perfect familiarity with the manuscript material, and also with the assistance of the vast bulk of printed records and treatises which have accumulated since 1865, that we have prosecuted this work to its close.

If we gained nothing else by our long association with Mr. Lincoln we hope at least that we acquired from him the habit of judging men and events with candor and impartiality. The material placed in our hands was unexampled in value and fullness; we have felt the obligation of using it with perfect fairness. We have striven to be equally just to friends and to adversaries; where the facts favor our enemies we have recorded them ungrudgingly; where they bear severely upon statesmen and generals whom we have loved and honored we have not scrupled to set them forth, at the risk of being accused of coldness and ingratitude to those with whom we have lived on terms of intimate friendship. The recollection of these friendships will always be to us a source of pride and joy; but in this book we have known no allegiance but to the truth. We have in no case relied upon our own memory of the events narrated, though they may have passed under our own eyes; we have seen too often the danger of such a reliance in the reminiscences of others. We have trusted only our diaries and

memoranda of the moment; and in the documents and reports we have cited we have used incessant care to secure authenticity. So far as possible, every story has been traced to its source, and every document read in the official record or the original manuscript.

We are aware of the prejudice which exists against a book written by two persons, but we feel that in our case the disadvantages of collaboration are reduced to the minimum. Our experiences, our observations, our material, have been for twenty years not merely homogeneous—they have been identical. Our plans were made with thorough concert; our studies of the subject were carried on together; we were able to work simultaneously without danger of repetition or conflict. The apportionment of our separate tasks has been dictated purely by convenience; the division of topics between us has been sometimes for long periods, sometimes almost for alternate chapters. Each has written an equal portion of the work; while consultation and joint revision have been continuous, the text of each remains substantially unaltered. It is in the fullest sense, and in every part, a joint work. We each assume responsibility, not only for the whole, but for all the details, and whatever credit or blame the public may award our labors is equally due to both.

We commend the result of so many years of research and diligence to all our countrymen, North and South, in the hope that it may do something to secure a truthful history of the great struggle which displayed on both sides the highest qualities of American manhood, and may contribute in some measure to the growth and maintenance throughout all our borders of that spirit of freedom and nationality for which Abraham Lincoln lived and died.

John G. Nicolay John Hay [signatures]

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FRANKLIN PIERCE From a photograph by Brady.

LYMAN TRUMBULL From a photograph by Brady.

OWEN LOVEJOY From a photograph.

DAVID E. ATCHISON From a daguerreotype.

ANDREW H. REEDER From a photograph by R. Knecht.

JAMES H. LANE By permission of the Strowbridge Lithographing Co.
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ABRAHAM LINCOLN

CHAPTER I

LINEAGE

[Sidenote: 1780.]

In the year 1780, Abraham Lincoln, a member of a respectable and well-to-do family in Rockingham County, Virginia, started westward to establish himself in the newly-explored country of Kentucky. He entered several large tracts of fertile land, and returning to Virginia disposed of his property there, and with his wife and five children went back to Kentucky and settled in Jefferson County. Little is known of this pioneer Lincoln or of his father. Most of the records belonging to that branch of the family were destroyed in the civil war. Their early orphanage, the wild and illiterate life they led on the frontier, severed their connection with their kindred in the East. This, often happened; there are hundreds of families in the West bearing historic names and probably descended from well-known houses in the older States or in England, which, by passing through one or two generations of ancestors who could not read or write, have lost their continuity with the past as effectually as if a deluge had intervened between the last century and this. Even the patronymic has been frequently distorted beyond recognition by slovenly pronunciation during the years when letters were a lost art, and by the phonetic spelling of the first boy in the family who learned the use of the pen. There are Lincolns in Kentucky and Tennessee

belonging to the same stock with the President, whose names are spelled "Linkhorn" and "Linkhern." All that was known of the emigrant, Abraham Lincoln, by his immediate descendants was that his progenitors, who were Quakers, came from Berks County, Pennsylvania, into Virginia, and there thrived and prospered. [Footnote: We desire to express our obligations to Edwin Salter, Samuel L. Smedley, Samuel Shackford, Samuel W. Pennypacker, Howard M. Jenkins, and John T. Harris, Jr., for information and suggestions which have been of use to us in this chapter.] But we now know, with sufficient clearness, through the wide-spread and searching luster which surrounds the name, the history of the migrations of the family since its arrival on this continent, and the circumstances under which the Virginia pioneer started for Kentucky.

The first ancestor of the line of whom we have knowledge was Samuel Lincoln, of Norwich, England, who came to Hingham, Massachusetts, in 1638, and died there. He left a son, Mordecai, whose son, of the same name,—and it is a name which persists in every branch of the family, [Footnote: The Lincolns, in naming their children, followed so strict a tradition that great confusion has arisen in the attempt to trace their genealogy. For instance, Abraham Lincoln, of Chester County, son of one Mordecai and brother of another, the President's ancestors, left a fair estate, by will, to his children, whose names were John, Abraham, Isaac, Jacob, Mordecai, Rebecca, and Sarah—precisely the same names we find in three collateral families.]—removed to Monmouth, New Jersey, and thence to Amity township, now a part of now a part of Berks County, Pennsylvania, where he died in 1735, fifty years old. From a copy of his will, recorded in the office of the Register in Philadelphia, we gather that he was a man of considerable property. In the inventory of his effects, made after his death, he is styled by the appraisers, "Mordecai Lincoln, Gentleman." His son John received by his father's will "a certain piece of land lying in the Jerseys, containing three hundred acres," the other sons and daughters

having been liberally provided for from the Pennsylvania property. This John Lincoln left New Jersey some years later, and about 1750 established himself in Rockingham County, Virginia. He had five sons, to whom he gave the names which were traditional in the family:— Abraham, the pioneer first mentioned,—Isaac, Jacob, Thomas, and John. Jacob and John remained in Virginia; the former was a soldier in the War of the Revolution, and took part as lieutenant in a Virginia regiment at the siege of Yorktown. Isaac went to a place on the Holston River in Tennessee; Thomas followed his brother to Kentucky, lived and died there, and his children then emigrated to Tennessee [Footnote: It is an interesting coincidence for the knowledge of which we are indebted to Colonel John B. Brownlow, that a minister named Mordecai Lincoln a relative of the President, performed, on the 17th of May, 1837, the marriage ceremony of Andrew Johnson, Mr. Lincoln's successor, in the Presidency.] With the one memorable exception the family seem to have been modest, thrifty, unambitious people. Even the great fame and conspicuousness of the President did not tempt them out of their retirement. Robert Lincoln, of Hancock County, Illinois, a cousin—German, became a captain and commissary of volunteers; none of the others, so far as we know, ever made their existence known to their powerful kinsman during the years of his glory. [Transcriber's Note: Lengthy footnote relocated to chapter end.]

It was many years after the death of the President that his son learned the probable circumstances under which the pioneer Lincoln removed to the West, and the intimate relations which subsisted between his family and the most celebrated man in early Western annals. There is little doubt that it was on account of his association with the, famous Daniel Boone that Abraham Lincoln went to Kentucky. The families had for a century been closely allied. There were frequent intermarriages [Footnote: A letter from David J. Lincoln, of Birdsboro, Berks County, Pennsylvania, to the writers, says, "My grandfather, Abraham Lincoln, was married to Anna Boone, a

first cousin of Daniel Boone, July 10, 1760." He was half-brother of John Lincoln, and afterwards became a man of some prominence in Pennsylvania, serving in the Constitutional Convention in 1789-90.] among them—both being of Quaker lineage. By the will of Mordecai Lincoln, to which reference has been made, his "loving friend and neighbor" George Boone was made a trustee to assist his widow in the care of the property. Squire Boone, the father of Daniel, was one of the appraisers who made the inventory of Mordecai Lincoln's estate. The intercourse between the families was kept up after the Boones had removed to North Carolina and John Lincoln had gone to Virginia. Abraham Lincoln, son of John, and grandfather of the President, was married to Miss Mary Shipley [Transcriber's Note: Lengthy footnote relocated to chapter end.] in North Carolina. The inducement which led him to leave Virginia, where his standing and his fortune were assured, was, in all probability, his intimate family relations with the great explorer, the hero of the new country of Kentucky, the land of fabulous richness and unlimited adventure. At a time when the Eastern States were ringing with the fame of the mighty hunter who was then in the prime of his manhood, and in the midst of those achievements which will forever render him one of the most picturesque heroes in all our annals, it is not to be wondered at that his own circle of friends should have caught the general enthusiasm and felt the desire to emulate his career.

Boone's exploration of Kentucky had begun some ten years before Lincoln set out to follow his trail. In 1769 he made his memorable journey to that virgin wilderness of whose beauty he always loved to speak even to his latest breath. During all that year he hunted, finding everywhere abundance of game. "The buffalo," Boone says, "were more frequent than I have seen cattle in the settlements, browsing on the leaves of the cane, or cropping the herbage on these extensive plains, fearless because ignorant of the violence of man. Sometimes we saw hundreds in a drove, and the

numbers about the salt springs were amazing." In the course of the winter, however, he was captured by the Indians while hunting with a comrade, and when they had contrived to escape they never found again any trace of the rest of their party. But a few days later they saw two men approaching and hailed them with the hunter's caution, "Hullo, strangers; who are you?" They replied, "White men and friends." They proved to be Squire Boone and another adventurer from North Carolina. The younger Boone had made that long pilgrimage through the trackless woods, led by an instinct of doglike affection, to find his elder brother and share his sylvan pleasures and dangers. Their two companions were soon waylaid and killed, and the Boones spent their long winter in that mighty solitude undisturbed. In the spring their ammunition, which was to them the only necessary of life, ran low, and one of them must return to the settlements to replenish the stock. It need not be said which assumed this duty; the cadet went uncomplaining on his way, and Daniel spent three months in absolute loneliness, as he himself expressed it, "by myself, without bread, salt, or sugar, without company of my fellow- creatures, or even a horse or dog." He was not insensible to the dangers of his situation. He never approached his camp without the utmost precaution, and always slept in the cane-brakes if the signs were unfavorable. But he makes in his memoirs this curious reflection, which would seem like affectation in one less perfectly and simply heroic: "How unhappy such a situation for a man tormented with fear, which is vain if no danger comes, and if it does, only augments the pain. It was my happiness to be destitute of this afflicting passion, with which I had the greatest reason to be afflicted." After his brother's return, for a year longer they hunted in those lovely wilds, and then returned to the Yadkin to bring their families to the new domain. They made the long journey back, five hundred miles, in peace and safety.

For some time after this Boone took no conspicuous part in the settlement of Kentucky. The expedition with which he left the Yadkin in

1773 met with a terrible disaster near Cumberland Gap, in which his eldest son and five more young men were killed by Indians, and the whole party, discouraged by the blow, retired to the safer region of Clinch River. In the mean time the dauntless speculator Richard Henderson had begun his occupation with all the pomp of viceroyalty. Harrodsburg had been founded, and corn planted, and a flourishing colony established at the Falls of the Ohio. In 1774 Boone was called upon by the Governor of Virginia to escort a party of surveyors through Kentucky, and on his return was given the command of three garrisons; and for several years thereafter the history of the State is the record of his feats of arms. No one ever equaled him in his knowledge of Indian character, and his influence with the savages was a mystery to him and to themselves. Three times he fell into their hands and they did not harm him. Twice they adopted him into their tribes while they were still on the war-path. Once they took him to Detroit, [Footnote: Silas Farmer, historiographer of Detroit, informs us that Daniel Boone was brought there on the 10th of March, 1778, and that he remained there a month.] to show the Long-Knife chieftains of King George that they also could exhibit trophies of memorable prowess, but they refused to give him up even to their British allies. In no quality of wise woodcraft was he wanting. He could outrun a dog or a deer; he could thread the woods without food day and night; he could find his way as easily as the panther could. Although a great athlete and a tireless warrior, he hated fighting and only fought for peace. In council and in war he was equally valuable. His advice was never rejected without disaster, nor followed but with advantage; and when the fighting once began there was not a rifle in Kentucky which could rival his. At the nine days' siege of Boonesboro' he took deliberate aim and killed a negro renegade who was harassing the garrison from a tree five hundred and twenty-five feet away, and whose head only was visible from the fort. The mildest and the quietest of men, he had killed dozens of enemies with his own hand, and all this without malice

and, strangest of all, without incurring the hatred of his adversaries. He had self-respect enough, but not a spark of vanity. After the fatal battle of the Blue Licks,—where the only point of light in the day's terrible work was the wisdom and valor with which he had partly retrieved a disaster he foresaw but was powerless to prevent,—when it became his duty, as senior surviving officer of the forces, to report the affair to Governor Harrison, his dry and naked narrative gives not a single hint of what he had done himself, nor mentions the gallant son lying dead on the field, nor the wounded brother whose gallantry might justly have claimed some notice. He was thinking solely of the public good, saying, "I have encouraged the people in this country all that I could, but I can no longer justify them or myself to risk our lives here under such extraordinary hazards." He therefore begged his Excellency to take immediate measures for relief. During the short existence of Henderson's legislature he was a member of it, and not the least useful one. Among his measures was one for the protection of game.

[Illustration: LAND WARRANT ISSUED TO ABRAHAM LINKHORN (LINCOLN). The original, of which this is a reduced fac-simile, is in the possession of Colonel R. T. Durrett, Louisville, Ky.]

[Sidenote: Jefferson County Records.]

Everything we know of the emigrant Abraham Lincoln goes to show that it was under the auspices of this most famous of our pioneers that he set out from Rockingham County to make a home for himself and his young family in that wild region which Boone was wresting from its savage holders. He was not without means of his own. He took with him funds enough to enter an amount of land which would have made his family rich if they had retained it. The county records show him to have been the possessor of a domain of some seventeen hundred acres. There is still in existence [Transcriber's Note: Lengthy footnote relocated to chapter end.] the original

warrant, dated March 4, 1780, for four hundred acres of land, for which the pioneer had paid "into the publick Treasury one hundred and sixty pounds current money," and a copy of the surveyor's certificate, giving the metes and bounds of the property on Floyd's Fork, which remained for many years in the hands of Mordecai Lincoln, the pioneer's eldest son and heir. The name was misspelled "Linkhorn" by a blunder of the clerk in the land-office, and the error was perpetuated in the subsequent record.

Kentucky had been for many years the country of romance and fable for Virginians. Twenty years before Governor Spotswood had crossed the Alleghanies and returned to establish in a Williamsburg tavern that fantastic order of nobility which he called the Knights of The Golden Horseshoe, [Footnote: Their motto was *Sic jurat transcendere montes.*] and, with a worldly wisdom which was scarcely consistent with these medieval affectations, to press upon the attention of the British Government the building of a line of frontier forts to guard the Ohio River from the French. Many years after him the greatest of all Virginians crossed the mountains again, and became heavily interested in those schemes of emigration which filled the minds of many of the leading men in America until they were driven out by graver cares and more imperative duties. Washington had acquired claims and patents to the amount of thirty or forty thousand acres of land in the West; Benjamin Franklin and the Lees were also large owners of these speculative titles. They formed, it is true, rather an airy and unsubstantial sort of possession, the same ground being often claimed by a dozen different persons or companies under various grants from the crown or from legislatures, or through purchase by adventurers from Indian councils. But about the time of which we are speaking the spirit of emigration had reached the lower strata of colonial society, and a steady stream of pioneers began pouring over the passes of the mountains into the green and fertile valleys of Kentucky and Tennessee. They selected their homes in the most eligible spots to which chance or the report of earlier

explorers directed them, with little knowledge or care as to the rightful ownership of the land, and too often cleared their corner of the wilderness for the benefit of others. Even Boone, to whose courage, forest lore, and singular intuitions of savage character the State of Kentucky owed more than to any other man, was deprived in his old age of his hard-earned homestead through his ignorance of legal forms, and removed to Missouri to repeat in that new territory his labors and his misfortunes.

[Illustration: FAC-SIMILE FROM THE FIELD BOOK OF DANIEL BOONE. This record of the Lincoln Claim on Licking River is from the original in possession of Lyman C. Draper, Madison, Wis.]

[Sidenote: 1780.]

The period at which Lincoln came West was one of note in the history of Kentucky. The labors of Henderson and the Transylvania Company had begun to bear fruit in extensive plantations and a connected system of forts. The land laws of Kentucky had reduced to something like order the chaos of conflicting claims arising from the various grants and the different preemption customs under which settlers occupied their property. The victory of Boone at Boonesboro' against the Shawnees, and the capture of Kaskaskia and Vincennes by the brilliant audacity of George Rogers Clark, had brought the region prominently to the attention of the Atlantic States, and had turned in that direction the restless and roving spirits which are always found in communities at periods when great emigrations are a need of civilization. Up to this time few persons had crossed the mountains except hunters, trappers, and explorers—men who came merely to kill game, and possibly Indians, or to spy out the fertility of the land for the purpose of speculation. But in 1780 and 1781 a large number of families took up their line of march, and in the latter year a considerable contingent of women joined the little army of pioneers, impelled by an instinct which

they themselves probably but half comprehended. The country was to be peopled, and there was no other way of peopling it but by the sacrifice of many lives and fortunes; and the history of every country shows that these are never lacking when they are wanted. The number of those who came at about the same time with the pioneer Lincoln was sufficient to lay the basis of a sort of social order. Early in the year 1780 three hundred "large family boats" arrived at the Falls of the Ohio, where the land had been surveyed by Captain Bullitt seven years before, and in May the Legislature of Virginia passed a law for the incorporation of the town of Louisville, then containing some six hundred inhabitants. At the same session a law was passed confiscating the property of certain British subjects for the endowment of an institution of learning in Kentucky, "it being the interest of this commonwealth," to quote the language of the philosophic Legislature, "always to encourage and promote every design which may tend to the improvement of the mind and the diffusion of useful knowledge even among its remote citizens, whose situation in a barbarous neighborhood and a savage intercourse might otherwise render them unfriendly to science." This was the origin of the Transylvania University of Lexington, which rose and flourished for many years on the utmost verge of civilization.

[Illustration: SURVEYOR'S CERTIFICATE (SLIGHTLY REDUCED),
TAKEN FROM
RECORD BOOK "B," PAGE 60, IN THE OFFICE OF JEFFERSON
COUNTY,
KENTUCKY.]

The "barbarous neighborhood" and the "savage intercourse" undoubtedly had their effect upon the manners and morals of the settlers; but we should fall into error if we took it for granted that the pioneers were all of one piece. The ruling motive which led most of them to the wilds was that Anglo-Saxon lust of land which seems inseparable from the race. The

prospect of possessing a four-hundred-acre farm by merely occupying it, and the privilege of exchanging a basketful of almost worthless continental currency for an unlimited estate at the nominal value of forty cents per acre, were irresistible to thousands of land-loving Virginians and Carolinians whose ambition of proprietorship was larger than their means. Accompanying this flood of emigrants of good faith was the usual froth and scum of shiftless idlers and adventurers, who were either drifting with a current they were too worthless to withstand, or in pursuit of dishonest gains in fresher and simpler regions. The vices and virtues of the pioneers were such as proceeded from their environment. They were careless of human life because life was worth comparatively little in that hard struggle for existence; but they had a remarkably clear idea of the value of property, and visited theft not only with condign punishment, but also with the severest social proscription. Stealing a horse was punished more swiftly and with more feeling than homicide. A man might be replaced more easily than the other animal. Sloth was the worst of weaknesses. An habitual drunkard was more welcome at "raisings" and "logrollings" than a known faineant. The man who did not do a man's share where work was to be done was christened "Lazy Lawrence," and that was the end of him socially. Cowardice was punished by inexorable disgrace. The point of honor was as strictly observed as it ever has been in the idlest and most artificial society. If a man accused another of falsehood, the ordeal by fisticuffs was instantly resorted to. Weapons were rarely employed in these chivalrous encounters, being kept for more serious use with Indians and wild beasts; nevertheless fists, teeth, and the gouging thumb were often employed with fatal effect. Yet among this rude and uncouth people there was a genuine and remarkable respect for law. They seemed to recognize it as an absolute necessity of their existence. In the territory of Kentucky, and afterwards in that of Illinois, it occurred at several periods in the transition from counties to territories and states, that the country was without any organized

authority. But the people were a law unto themselves. Their improvised courts and councils administered law and equity; contracts were enforced, debts were collected, and a sort of order was maintained. It may be said, generally, that the character of this people was far above their circumstances. In all the accessories of life, by which we are accustomed to rate communities and races in the scale of civilization, they were little removed from primitive barbarism. They dressed in the skins of wild beasts killed by themselves, and in linen stuffs woven by themselves. They hardly knew the use of iron except in their firearms and knives. Their food consisted almost exclusively of game, fish, and roughly ground corn-meal. Their exchanges were made by barter; many a child grew up without ever seeing a piece of money. Their habitations were hardly superior to those of the savages with whom they waged constant war. Large families lived in log huts, put together without iron, and far more open to the inclemencies of the skies than the pig-styes of the careful farmer of to-day. An early schoolmaster says that the first place where he went to board was the house of one Lucas, consisting of a single room, sixteen feet square, and tenanted by Mr. and Mrs. Lucas, ten children, three dogs, two cats, and himself. There were many who lived in hovels so cold that they had to sleep on their shoes to keep them from freezing too stiff to be put on. The children grew inured to misery like this, and played barefoot in the snow. It is an error to suppose that all this could be undergone with impunity. They suffered terribly from malarial and rheumatic complaints, and the instances of vigorous and painless age were rare among them. The lack of moral and mental sustenance was still more marked. They were inclined to be a religious people, but a sermon was an unusual luxury, only to be enjoyed at long intervals and by great expense of time. There were few books or none, and there was little opportunity for the exchange of opinion. Any variation in the dreary course of events was welcome. A murder was not without its advantages as a stimulus to conversation; a criminal trial was a kind of

holiday to a county. It was this poverty of life, this famine of social gratification, from which sprang their fondness for the grosser forms of excitement, and their tendency to rough and brutal practical joking. In a life like theirs a laugh seemed worth having at any expense.

[Illustration: HOUSE NEAR BEECHLAND, KENTUCKY, IN WHICH THOMAS LINCOLN AND NANCY HANKS WERE MARRIED.]

But near as they were to barbarism in all the circumstances of their daily existence, they were far from it politically. They were the children of a race which had been trained in government for centuries in the best school the world has ever seen, and wherever they went they formed the town, the county, the court, and the legislative power with the ease and certainty of nature evolving its results. And this they accomplished in the face of a savage foe surrounding their feeble settlements, always alert and hostile, invisible and dreadful as the visionary powers of the air. Until the treaty of Greenville, in 1795, closed the long and sanguinary history of the old Indian wars, there was no day in which the pioneer could leave his cabin with the certainty of not finding it in ashes when he returned, and his little flock murdered on his threshold, or carried into a captivity worse than death. Whenever nightfall came with the man of the house away from home, the anxiety and care of the women and children were none the less bitter because so common.

[Illustration: MAP SHOWING VARIOUS LOCALITIES CONNECTED WITH EARLY EVENTS IN THE LINCOLN FAMILY.]

The life of the pioneer Abraham Lincoln soon came to a disastrous close. He had settled in Jefferson County, on the land he had bought from the Government, and cleared a small farm in the forest. [Footnote: Lyman C.

Draper, of the Wisconsin Historical Society, has kindly furnished us with a MS account of a Kentucky tradition according to which the pioneer Abraham Lincoln was captured by the Indians, near Crow's Station, in August, 1782, carried into captivity, and forced to run the gauntlet. The story rests on the statement of a single person, Mrs. Sarah Graham.] One morning in the year 1784, he started with his three sons, Mordecai, Josiah, and Thomas, to the edge of the clearing, and began the day's work. A shot from the brush killed the father; Mordecai, the eldest son, ran instinctively to the house, Josiah to the neighboring fort, for assistance, and Thomas, the youngest, a child of six, was left with the corpse of his father. Mordecai, reaching the cabin, seized the rifle, and saw through the loophole an Indian in his war-paint stooping to raise the child from the ground. He took deliberate aim at a white ornament on the breast of the savage and brought him down. The little boy, thus released, ran to the cabin, and Mordecai, from the loft, renewed his fire upon the savages, who began to show themselves from the thicket, until Josiah returned with assistance from the stockade, and the assailants fled. This tragedy made an indelible impression on the mind of Mordecai. Either a spirit of revenge for his murdered father, or a sportsmanlike pleasure in his successful shot, made him a determined Indian-stalker, and he rarely stopped to inquire whether the red man who came within range of his rifle was friendly or hostile. [Footnote: Late in life Mordecai Lincoln removed to Hancock County, Illinois, where his descendants still live.]

[Illustration: FAC-SIMILE OF THE MARRIAGE BOND OF THOMAS LINCOLN.]

The head of the family being gone, the widow Lincoln soon removed to a more thickly settled neighborhood in Washington County. There her children grew up. Mordecai and Josiah became reputable citizens; the two daughters married two men named Crume and Brumfield. Thomas, to

whom were reserved the honors of an illustrious paternity, learned the trade of a carpenter. He was an easy-going man, entirely without ambition, but not without self-respect. Though the friendliest and most jovial of gossips, he was not insensible to affronts; and when his slow anger was roused he was a formidable adversary. Several border bullies, at different times, crowded him indiscreetly, and were promptly and thoroughly whipped. He was strong, well-knit, and sinewy; but little over the medium height, though in other respects he seems to have resembled his son in appearance.

On the 12th of June, 1806, [Footnote: All previous accounts give the date of this marriage as September 23d. This error arose from a clerical blunder in the county record of marriages. The minister, the Rev. Jesse Head, in making his report, wrote the date before the names; the clerk, copying it, lost the proper sequence of the entries, and gave to the Lincolns the date belonging to the next couple on the list.] while learning his trade in the carpenter shop of Joseph Hanks, in Elizabethtown, he married Nancy Hanks, a niece of his employer, near Beechland, in Washington County. [Transcriber's Note: Lengthy footnote (1) relocated to chapter end.] She was one of a large family who had emigrated from Virginia with the Lincolns and with another family called Sparrow. They had endured together the trials of pioneer life; their close relations continued for many years after, and were cemented by frequent intermarriage.

Mrs. Lincoln's mother was named Lucy Hanks; her sisters were Betty, Polly, and Nancy who married Thomas Sparrow, Jesse Friend, and Levi Hall. The childhood of Nancy was passed with the Sparrows, and she was oftener called by their name than by her own. The whole family connection was composed of people so little given to letters that it is hard to determine the proper names and relationships of the younger members amid the tangle of traditional cousinships. [Footnote: The Hanks family seem to have gone from Pennsylvania and thence to Kentucky about the same time with the

Lincolns. They also belonged to the Communion of Friends.—"Historical Collections of Gwynnedd," by H. M. Jenkins.] Those who went to Indiana with Thomas Lincoln, and grew up with his children, are the only ones that need demand our attention.

There was no hint of future glory in the wedding or the bringing home of Nancy Lincoln. All accounts represent her as a handsome young woman of twenty-three, of appearance and intellect superior to her lowly fortunes. She could read and write,—a remarkable accomplishment in her circle,—and even taught her husband to form the letters of his name. He had no such valuable wedding gift to bestow upon her; he brought her to a little house in Elizabethtown, where he and she and want dwelt together in fourteen feet square. The next year a daughter was born to them; and the next the young carpenter, not finding his work remunerative enough for his growing needs, removed to a little farm which he had bought on the easy terms then prevalent in Kentucky. It was on the Big South Fork of Nolin Creek, in what was then Hardin and is now La Rue County, three miles from Hodgenville. The ground had nothing attractive about it but its cheapness. It was hardly more grateful than the rocky hill slopes of New England. It required full as earnest and intelligent industry to persuade a living out of those barren hillocks and weedy hollows, covered with stunted and scrubby underbrush, as it would amid the rocks and sands of the northern coast.

Thomas Lincoln settled down in this dismal solitude to a deeper poverty than any of his name had ever known; and there, in the midst of the most unpromising circumstances that ever witnessed the advent of a hero into this world, Abraham Lincoln was born on the 12th day of February, 1809.

Four years later, Thomas Lincoln purchased a fine farm of 238 acres on Knob Creek, near where it flows into the Rolling Fork, and succeeded in getting a portion of it into cultivation. The title, however, remained in him

only a little while, and after his property had passed out of his control he looked about for another place to establish himself.

[Illustration: This Certificate, or Marriage List (here shown in reduced fac-simile), written by the Rev. Jesse Head, was lost sight of for many years, and about 1886 was discovered through the efforts of W. F. Booker, Clerk of Washington County, Kentucky.]

Of all these years of Abraham Lincoln's early childhood we know almost nothing. He lived a solitary life in the woods, returning from his lonesome little games to his cheerless home. He never talked of these days to his most intimate friends. [Transcriber's Note: Lengthy footnote (2) relocated to chapter end.] Once, when asked what he remembered about the war with Great Britain, he replied: "Nothing but this. I had been fishing one day and caught a little fish which I was taking home. I met a soldier in the road, and, having been always told at home that we must be good to the soldiers, I gave him my fish." This is only a faint glimpse, but what it shows is rather pleasant—the generous child and the patriotic household. But there is no question that these first years of his life had their lasting effect upon the temperament of this great mirthful and melancholy man. He had little schooling. He accompanied his sister Sarah [Footnote: This daughter of Thomas Lincoln is sometimes called Nancy and sometimes Sarah. She seems to have borne the former name during her mother's life-time, and to have taken her stepmother's name after Mr. Lincoln's second marriage.] to the only schools that existed in their neighborhood, one kept by Zachariah Riney, another by Caleb Hazel, where he learned his alphabet and a little more. But of all those advantages for the cultivation of a young mind and spirit which every home now offers to its children, the books, toys, ingenious games, and daily devotion of parental love, he knew absolutely nothing.

[Relocated Footnote: Soon after Mr. Lincoln arrived in Washington in 1861, he received the following letter from one of his Virginia kinsmen, the last communication which ever came from them. It was written on paper adorned with a portrait of Jefferson Davis, and was inclosed in an envelope emblazoned with the Confederate flag:

"To ABRAHAM LINCOLN, Esq., *President of the Northern Confederacy.*

"SIR: Having just returned from a trip through Virginia, North Carolina, and Tennessee, permit me to inform you that you will get whipped out of your boots. To-day I met a gentleman from Anna, Illinois, and although he voted for you he says that the moment your troops leave Cairo they will get the spots knocked out of them. My dear sir, these are facts which time will prove to be correct.

"I am, sir, with every consideration, yours respectfully,

"MINOR LINCOLN,

"Of the Staunton stock of Lincolns."

There was a young Abraham Lincoln on the Confederate side in the Shenandoah distinguished for his courage and ferocity. He lay in wait and shot a Drunkard preacher, whom he suspected of furnishing information to the Union army. (Letter from Samuel W. Pennypacker.)]

[Relocated Footnote: In giving to the wife of the pioneer Lincoln the name of Mary Shipley we follow the tradition in his family. The Hon. J. L. Nall, of Missouri, grandson of Nancy (Lincoln) Brumfield, Abraham Lincoln's youngest child, has given us so clear a statement of the case that we cannot hesitate to accept it, although it conflicts with equally positive

statements from other sources. The late Gideon Welles, Secretary of the Navy, who gave much intelligent effort to genealogical researches, was convinced that the Abraham Lincoln who married Miss Hannah Winters, a daughter of Ann Boone, sister of the famous Daniel, was the President's grandfather. Waddell's "Annals of Augusta County" says he married Elizabeth Winter, a cousin of Daniel Boone. The Boone and Lincoln families were large and there were frequent intermarriages among them, and the patriarchal name of Abraham was a favorite one. There was still another Lincoln, Hannaniah by name, who was also intimately associated with the Boones. His signature appears on the surveyor's certificate for Abraham Lincoln's land in Jefferson County, and he joined Daniel Boone in 1798 in the purchase of the tract of land on the Missouri River where Boone died. (Letter from Richard V. B. Lincoln, printed in the "Williamsport [Pa.] Banner," Feb. 25, 1881.)]

[Relocated Footnote: In the possession of Colonel Reuben T. Durrett, of Louisville, a gentleman who has made the early history of his State a subject of careful study, and to whom we are greatly indebted for information in regard to the settlement of the Lincolns in Kentucky. He gives the following list of lands in that State owned by Abraham Lincoln:

1. Four hundred acres on Long Run, a branch of Floyd's Fork, in Jefferson County, entered May 29, 1780, and surveyed May 7, 1785. We have in our possession the original patent issued by Governor Garrard, of Kentucky, to Abraham Lincoln for this property. It was found by Col. A. C. Matthews, of the 99th Illinois, in 1863, at an abandoned residence near Indianola, Texas.

2. Eight hundred acres on Green River, near Green River Lick, entered June 7, 1780, and surveyed October 12, 1784.

3. Five hundred acres in Campbell County, date of entry not known, but surveyed September 27, 1798, and patented June 30, 1799—the survey and patent evidently following his entry after his death. It is possible that this was the five-hundred-acre tract found in Boone's field-book, in the possession of Lyman C. Draper, Esq., Secretary of the Wisconsin Historical Society, and erroneously supposed by some to have been in Mercer County. Boone was a deputy of Colonel Thomas Marshall, Surveyor of Fayette County.]

[Relocated Footnote (1): The following is a copy of the marriage bond:

"Know all men by these presents, that we, Thomas Lincoln and Richard Berry, are held and firmly bound unto his Excellency, the Governor of Kentucky, in the just and full sum of fifty pounds current money to the payment of which well and truly to be made to the said Governor and his successors, we bind ourselves, our heirs, etc., jointly and severally, firmly by these presents, sealed with our seals and dated this 10th day of June, 1806. The condition of the above obligation is such that whereas there is a marriage shortly intended between the above bound Thomas Lincoln and Nancy Hanks, for which a license has issued, now if there be no lawful cause to obstruct the said marriage, then this obligation to be void, else to remain in full force and virtue in law.

"THOMAS LINCOLN [Seal]. "RICHARD BERRY [Seal]. "*Witness,*
JOHN H. PARROTT, Guardian."

Richard Berry was a connection of Lincoln; his wife was a Shipley.]

[Relocated Footnote (2): There is still living (1886) near Knob Creek in Kentucky, at the age of eighty, a man who claims to have known Abraham Lincoln in his childhood—Austin Gollaher. He says he used to play with Abe Lincoln in the shavings of his father's carpenter shop. He tells a story

which, if accurate, entitles him to the civic crown which the Romans used to give to one who saved the life of a citizen. When Gollaher was eleven and Lincoln eight the two boys were in the woods in pursuit of partridges; in trying to "coon" across Knob Creek on a log, Lincoln fell in and Gollaher fished him out with a sycamore branch—a service to the Republic, the value of which it would be difficult to compute.]

CHAPTER II

INDIANA

[Sidenote: 1818.]

By the time the boy Abraham had attained his seventh year, the social condition of Kentucky had changed considerably from the early pioneer days. Life had assumed a more settled and orderly course. The old barbarous equality of the earlier time was gone; a difference of classes began to be seen. Those who held slaves assumed a distinct social superiority over those who did not. Thomas Lincoln, concluding that Kentucky was no country for a poor man, determined to seek his fortune in Indiana. He had heard of rich and unoccupied lands in Perry County in that State, and thither he determined to go. He built a rude raft, loaded it with his kit of tools and four hundred gallons of whisky, and trusted his fortunes to the winding water-courses. He met with only one accident on his way: his raft capsized in the Ohio River, but he fished up his kit of tools and most of the ardent spirits, and arrived safely at the place of a settler named Posey, with whom he left his odd invoice of household goods for the wilderness, while he started on foot to look for a home in the dense forest. He selected a spot which pleased him in his first day's journey. He then walked back to Knob Creek and brought his family on to their new home. No humbler cavalcade ever invaded the Indiana timber. Besides his wife and two

children, his earthly possessions were of the slightest, for the backs of two borrowed horses sufficed for the load. Insufficient bedding and clothing, a few pans and kettles, were their sole movable wealth. They relied on Lincoln's kit of tools for their furniture, and on his rifle for their food. At Posey's they hired a wagon and literally hewed a path through the wilderness to their new habitation near Little Pigeon Creek, a mile and a half east of Gentryville, in a rich and fertile forest country.

Thomas Lincoln, with the assistance of his wife and children, built a temporary shelter of the sort called in the frontier language "a half- faced camp"; merely a shed of poles, which defended the inmates on three sides from foul weather, but left them open to its inclemency in front. For a whole year his family lived in this wretched fold, while he was clearing a little patch of ground for planting corn, and building a rough cabin for a permanent residence. They moved into the latter before it was half completed; for by this time the Sparrows had followed the Lincolns from Kentucky, and the half-faced camp was given up to them. But the rude cabin seemed so spacious and comfortable after the squalor of "the camp," that Thomas Lincoln did no further work on it for a long time. He left it for a year or two without doors, or windows, or floor. The battle for existence allowed him no time for such superfluities. He raised enough corn to support life; the dense forest around him abounded in every form of feathered game; a little way from his cabin an open glade was full of deer-licks, and an hour or two of idle waiting was generally rewarded by a shot at a fine deer, which would furnish meat for a week, and material for breeches and shoes. His cabin was like that of other pioneers. A few three-legged stools; a bedstead made of poles stuck between the logs in the angle of the cabin, the outside corner supported by a crotched stick driven into the ground; the table, a huge hewed log standing on four legs; a pot, kettle, and skillet, and a few tin and pewter dishes were all the furniture. The boy

Abraham climbed at night to his bed of leaves in the loft, by a ladder of wooden pins driven into the logs.

This life has been vaunted by poets and romancers as a happy and healthful one. Even Dennis Hanks, speaking of his youthful days when his only home was the half-faced camp, says, "I tell you, Billy, I enjoyed myself better then than I ever have since." But we may distrust the reminiscences of old settlers, who see their youth in the flattering light of distance. The life was neither enjoyable nor wholesome. The rank woods were full of malaria, and singular epidemics from time to time ravaged the settlements. In the autumn of 1818 the little community of Pigeon Creek was almost exterminated by a frightful pestilence called the milk-sickness, or, in the dialect of the country, "the milk-sick." It is a mysterious disease which has been the theme of endless wrangling among Western physicians, and the difficulty of ascertaining anything about it has been greatly increased by the local sensitiveness which forbids any one to admit that any well-defined case has ever been seen in his neighborhood, "although just over the creek (or in the next county) they have had it bad." It seems to have been a malignant form of fever—attributed variously to malaria and to the eating of poisonous herbs by the cattle—attacking cattle as well as human beings, attended with violent retching and a burning sensation in the stomach, often terminating fatally on the third day. In many cases those who apparently recovered lingered for years with health seriously impaired. Among the Pioneers of Pigeon Creek, so ill-fed, ill-housed, and uncared for, there was little prospect of recovery from such a grave disorder. The Sparrows, husband and wife, died early in October, and Nancy Hanks Lincoln followed them after an interval of a few days. Thomas Lincoln made the coffins for his dead "out of green lumber cut with a whipsaw," and they were all buried, with scant ceremony, in a little clearing of the forest. It is related of young Abraham, that he sorrowed most of all that his mother should have been laid away with such maimed rites, and that he contrived

several months later to have a wandering preacher named David Elkin brought to the settlement, to deliver a funeral sermon over her grave, already white with the early winter snows. [Footnote: A stone has been placed over the site of the grave "by P. E. Studebaker, of South Bend, Indiana." The stone bears the following inscription: "Nancy Hanks Lincoln, mother of President Lincoln, died October 5th, A. D. 1818, aged 35 years. Erected by a friend of her martyred son, 1879."]

This was the dreariest winter of his life, for before the next December came his father had brought from Kentucky a new wife, who was to change the lot of all the desolate little family very much for the better. Sarah Bush had been an acquaintance of Thomas Lincoln before his first marriage; she had, it is said, rejected him to marry one Johnston, the jailer at Elizabethtown, who had died, leaving her with three children, a boy and two girls. When Lincoln's widowhood had lasted a year, he went down to Elizabethtown to begin again the wooing broken off so many years before. He wasted no time in preliminaries, but promptly made his wishes known, and the next morning they were married. It was growing late in the autumn, and the pioneer probably dreaded another lonely winter on Pigeon Creek. Mrs. Johnston was not altogether portionless. She had a store of household goods which filled a four-horse wagon borrowed of Ralph Grume, Thomas Lincoln's brother-in-law, to transport the bride to Indiana. It took little time for this energetic and honest Christian woman to make her influence felt, even in those discouraging surroundings, and Thomas Lincoln and the children were the better for her coming all the rest of their lives. The lack of doors and floors was at once corrected. Her honest pride inspired her husband to greater thrift and industry. The goods she brought with her compelled some effort at harmony in the other fittings of the house. She dressed the children in warmer clothing and put them to sleep in comfortable beds. With this slight addition to their resources the family were much improved in appearance, behavior, and self-respect.

[Illustration: SARAH BUSH LINCOLN AT THE AGE OF SEVENTY-SIX.]

Thomas Lincoln joined the Baptist church at Little Pigeon in 1823; his oldest child, Sarah, followed his example three years later. They were known as active and consistent members of that communion. Lincoln was himself a good carpenter when he chose to work at his trade; a walnut table made by him is still preserved as part of the furniture of the church to which he belonged.

[Sidenote: MS. letter from the Rev. T.V. Robertson, pastor of the Little Pigeon Baptist church.]

Such a woman as Sarah Bush could not be careless of so important a matter as the education of her children, and they made the best use of the scanty opportunities the neighborhood afforded. "It was a wild region," writes Mr. Lincoln, in one of those rare bits of autobiography which he left behind him, "with many bears and other wild animals still in the woods. There were some schools so-called, but no qualification was ever required of a teacher beyond 'readin', writin', and cipherin' to the Rule of Three.' If a straggler supposed to understand Latin happened to sojourn in the neighborhood, he was looked upon as a wizard. There was absolutely nothing to excite ambition for education." But in the case of this ungainly boy there was no necessity of any external incentive. A thirst for knowledge as a means of rising in the world was innate in him. It had nothing to do with that love of science for its own sake which has been so often seen in lowly savants, who have sacrificed their lives to the pure desire of knowing the works of God. All the little learning he ever acquired he seized as a tool to better his condition. He learned his letters that he might read books and see how men in the great world outside of his woods had borne themselves in the fight for which he longed. He learned to write, first, that he might

have an accomplishment his playmates had not; then that he might help his elders by writing their letters, and enjoy the feeling of usefulness which this gave him; and finally that he might copy what struck him in his reading and thus make it his own for future use. He learned to cipher certainly from no love of mathematics, but because it might come in play in some more congenial business than the farm-work which bounded the horizon of his contemporaries. Had it not been for that interior spur which kept his clear spirit at its task, his schools could have done little for him; for, counting his attendance under Riney and Hazel in Kentucky, and under Dorsey, Crawford, and Swaney in Indiana, it amounted to less than a year in all. The schools were much alike. They were held in deserted cabins of round logs, with earthen floors, and small holes for windows, sometimes illuminated by as much light as could penetrate through panes of paper greased with lard. The teachers were usually in keeping with their primitive surroundings. The profession offered no rewards sufficient to attract men of education or capacity. After a few months of desultory instruction young Abraham knew all that these vagrant literati could teach him. His last school-days were passed with one Swaney in 1826, who taught at a distance of four and a half miles from the Lincoln cabin. The nine miles of walking doubtless seemed to Thomas Lincoln a waste of time, and the lad was put at steady work and saw no more of school.

But it is questionable whether he lost anything by being deprived of the ministrations of the backwoods dominies. When his tasks ended, his studies became the chief pleasure of his life. In all the intervals of his work—in which he never took delight, knowing well enough that he was born for something better than that—he read, wrote, and ciphered incessantly. His reading was naturally limited by his opportunities, for books were among the rarest of luxuries in that region and time. But he read everything he could lay his hands upon, and he was certainly fortunate in the few books of which he became the possessor. It would hardly be possible to select a

better handful of classics for a youth in his circumstances than the few volumes he turned with a nightly and daily hand—the Bible, "Aesop's Fables," "Robinson Crusoe," "The Pilgrim's Progress," a history of the United States, and Weem's "Life of Washington." These were the best, and these he read over and over till he knew them almost by heart. But his voracity for anything printed was insatiable. He would sit in the twilight and read a dictionary as long as he could see. He used to go to David Turnham's, the town constable, and devour the "Revised Statutes of Indiana," as boys in our day do the "Three Guardsmen." Of the books he did not own he took voluminous notes, filling his copy-book with choice extracts, and poring over them until they were fixed in his memory. He could not afford to waste paper upon his original compositions. He would sit by the fire at night and cover the wooden shovel with essays and arithmetical exercises, which he would shave off and then begin again. It is touching to think of this great-spirited child, battling year after year against his evil star, wasting his ingenuity upon devices and makeshifts, his high intelligence starving for want of the simple appliances of education that are now offered gratis to the poorest and most indifferent. He did a man's work from the time he left school; his strength and stature were already far beyond those of ordinary men. He wrought his appointed tasks ungrudgingly, though without enthusiasm; but when his employer's day was over, his own began. John Hanks says: "When Abe and I returned to the house from work he would go to the cupboard, snatch a piece of corn-bread, take down a book, sit down, cock his legs up as high as his head, and read." The picture may be lacking in grace, but its truthfulness is beyond question. The habit remained with him always. Some of his greatest work in later years was done in this grotesque Western fashion,—"sitting on his shoulder-blades."

[Sidenote: W. H. Lamou "Life of Lincoln," p. 37.]

[Sidenote: Damon, p. 80.]

Otherwise his life at this time differed little from that of ordinary farmhands. His great strength and intelligence made him a valuable laborer, and his unfailing good temper and flow of rude rustic wit rendered him the most agreeable of comrades. He was always ready with some kindly act or word for others. Once he saved the life of the town drunkard, whom he found freezing by the roadside, by carrying him in his strong arms to the tavern, and working over him until he revived. It is a curious fact that this act of common humanity was regarded as something remarkable in the neighborhood; the grateful sot himself always said "it was mighty clever of Abe to tote me so far that cold night." It was also considered an eccentricity that he hated and preached against cruelty to animals. Some of his comrades remember still his bursts of righteous wrath, when a boy, against the wanton murder of turtles and other creatures. He was evidently of better and finer clay than his fellows, even in those wild and ignorant days. At home he was the life of the singularly assorted household, which consisted, besides his parents and himself, of his own sister, Mrs. Lincoln's two girls and boy, Dennis Hanks, the legacy of the dying Sparrow family, and John Hanks (son of the carpenter Joseph with whom Thomas Lincoln learned his trade), who came from Kentucky several years after the others. It was probably as much the inexhaustible good nature and kindly helpfulness of young Abraham which kept the peace among all these heterogeneous elements, effervescing with youth and confined in a one-roomed cabin, as it was the Christian sweetness and firmness of the woman of the house. It was a happy and united household: brothers and sisters and cousins living peacefully under the gentle rule of the good stepmother, but all acknowledging from a very early period the supremacy in goodness and cleverness of their big brother Abraham. Mrs. Lincoln, not long before her death, gave striking testimony of his winning and loyal character. She said to Mr. Herndon: "I can say, what scarcely one mother in a thousand can say, Abe never gave

me a cross word or look, and never refused in fact or appearance to do anything I asked him. His mind and mine—what little I had—seemed to run together.... I had a son John, who was raised with Abe. Both were good boys, but I must say, both now being dead, that Abe was the best boy I ever saw or expect to see." Such were the beginnings of this remarkable career, sacred as we see from childhood, to duty and to human kindness.

"We are making no claim of early saintship for him. He was merely a good boy, with sufficient wickedness to prove his humanity. One of his employers, undazzled by recent history, faithfully remembers that young Abe liked his dinner and his pay better than his work: there is surely nothing alien to ordinary mortality in this. It is also reported that he sometimes impeded the celerity of harvest operations by making burlesque speeches, or worse than that, comic sermons, from the top of some tempting stump, to the delight of the hired hands and the exasperation of the farmer. His budding talents as a writer were not always used discreetly. He was too much given to scribbling coarse satires and chronicles, in prose, and in something which had to him and his friends the air of verse. From this arose occasional heart- burnings and feuds, in which Abraham bore his part according to the custom of the country. Despite his Quaker ancestry and his natural love of peace, he was no non-resistant, and when he once entered upon a quarrel the opponent usually had the worst of it. But he was generous and placable, and some of his best friends were those with whom he had had differences, and had settled them in the way then prevalent,—in a ring of serious spectators, calmly and judicially ruminant, under the shade of some spreading oak, at the edge of the timber. Before we close our sketch of this period of Lincoln's life, it may not be amiss to glance for a moment at the state of society among the people with whom his lot was cast in these important years.

In most respects there had been little moral or material improvement since the early settlement of the country. Their houses were usually of one room, built of round logs with the bark on. We have known a man to gain the sobriquet of "Split-log Mitchell" by indulging in the luxury of building a cabin of square-hewn timbers. Their dress was still mostly of tanned deer-hide, a material to the last degree uncomfortable when the wearer was caught in a shower. Their shoes were of the same, and a good Western authority calls a wet moccasin "a decent way of going barefoot." About the time, however, when Lincoln grew to manhood, garments of wool and of tow began to be worn, dyed with the juice of the butternut or white walnut, and the hides of neat-cattle began to be tanned. But for a good while it was only the women who indulged in these novelties. There was little public worship. Occasionally an itinerant preacher visited a county, and the settlers for miles around would go nearly in mass to the meeting. If a man was possessed of a wagon, the family rode luxuriously; but as a rule the men walked and the women went on horseback with the little children in their arms. It was considered no violation of the sanctities of the occasion to carry a rifle and take advantage of any game which might be stirring during the long walk. Arriving at the place of meeting, which was some log cabin if the weather was foul, or the shade of a tree if it was fair, the assembled worshipers threw their provisions into a common store and picnicked in neighborly companionship. The preacher would then take off his coat, and go at his work with an energy unknown to our days.

There were few other social meetings. Men came together for "raisings," where a house was built in a day; for "log-rollings," where tons of excellent timber were piled together and wastefully burned; for wolf-hunts, where a tall pole was erected in the midst of a prairie or clearing, and a great circle of hunters formed around it, sometimes of miles in diameter, which, gradually contracting with shouts and yells, drove all the game in the woods together at the pole for slaughter; and for horse-races, which bore little

resemblance to those magnificent exhibitions which are the boast of Kentucky at this time. In these affairs the women naturally took no part; but weddings, which were entertainments scarcely less rude and boisterous, were their own peculiar province. These festivities lasted rarely less than twenty-four hours. The guests assembled in the morning. There was a race for the whisky bottle; a midday dinner; an afternoon of rough games and outrageous practical jokes; a supper and dance at night, interrupted by the successive withdrawals of the bride and of the groom, attended with ceremonies and jests of more than Rabelaisian crudeness; and a noisy dispersal next day.

[Sidenote: O. H. Smith, "Early Indiana Trials," p. 285.]

The one point at which they instinctively clung to civilization was their regard for law and reverence for courts of justice. Yet these were of the simplest character and totally devoid of any adventitious accessories. An early jurist of the country writes: "I was Circuit Prosecuting Attorney at the time of the trials at the falls of Fall Creek, where Pendleton now stands. Four of the prisoners were convicted of murder, and three of them hung, for killing Indians. The court was held in a double log cabin, the grand jury sat upon a log in the woods, and the foreman signed the bills of indictment, which I had prepared, upon his knee; there was not a petit juror that had shoes on; all wore moccasins, and were belted around the waist, and carried side-knives used by the hunters." Yet amidst all this apparent savagery we see justice was done, and the law vindicated even against the bitterest prejudices of these pioneer jurymen.

[Sidenote: Lamon, p. 44.]

They were full of strange superstitions. The belief in witchcraft had long ago passed away with the smoke of the fagots from old and New England, but it survived far into this century in Kentucky and the lower halves of

Indiana and Illinois—touched with a peculiar tinge of African magic. The pioneers believed in it for good and evil. Their veterinary practice was mostly by charms and incantations; and when a person believed himself bewitched, a shot at the image of the witch with a bullet melted out of a half-dollar was the favorite curative agency. Luck was an active divinity in their apprehension, powerful for blessing or bane, announced by homely signs, to be placated by quaint ceremonies. A dog crossing the hunter's path spoiled his day, unless he instantly hooked his little fingers together, and pulled till the animal disappeared. They were familiar with the ever-recurring mystification of the witch-hazel, or divining-rod; and the "cure by faith" was as well known to them as it has since become in a more sophisticated state of society. The commonest occurrences were heralds of death and doom. A bird lighting in a window, a dog baying at certain hours, the cough of a horse in the direction of a child, the sight, or worse still, the touch of a dead snake, heralded domestic woe. A wagon driving past the house with a load of baskets was a warning of atmospheric disturbance. A vague and ignorant astronomy governed their plantings and sowings, the breeding of their cattle, and all farm-work. They must fell trees for fence-rails before noon, and in the waxing of the moon. Fences built when there was no moon would give way; but that was the proper season for planting potatoes and other vegetables whose fruit grows underground; those which bore their product in the air must be planted when the moon shone. The magical power of the moon was wide in its influence; it extended to the most minute details of life.

[Sidenote: Lamon, p. 52.]

Among these people, and in all essential respects one of them, Abraham Lincoln passed his childhood and youth. He was not remarkably precocious. His mind was slow in acquisition, and his powers of reasoning and rhetoric improved constantly to the end of his life, at a rate of progress

marvelously regular and sustained. But there was that about him, even at the age of nineteen years, which might well justify his admiring friends in presaging for him an unusual career. He had read every book he could find, and could "spell down" the whole county at their orthographical contests. By dint of constant practice he had acquired an admirably clear and serviceable handwriting. He occasionally astounded his companions by such glimpses of occult science as that the world is round and that the sun is relatively stationary. He wrote, for his own amusement and edification, essays on politics, of which gentlemen of standing who had been favored with a perusal said with authority, at the cross-roads grocery, "The world can't beat it." One or two of these compositions got into print and vastly increased the author's local fame. He was also a magnanimous boy, with a larger and kindlier spirit than common. His generosity, courage, and capability of discerning two sides to a dispute, were remarkable even then, and won him the admiration of those to whom such qualities were unknown. But perhaps, after all, the thing which gained and fixed his mastery over his fellows was to a great degree his gigantic stature and strength. He attained his full growth, six feet and four inches, two years before he came of age. He rarely met with a man he could not easily handle. His strength is still a tradition in Spencer County. One aged man says that he has seen him pick up and carry away a chicken-house weighing six hundred pounds. At another time, seeing some men preparing a contrivance for lifting some large posts, Abe quickly shouldered the posts and took them where they were needed. One of his employers says, "He could sink an axe deeper into wood than any man I ever saw." With strength like this and a brain to direct it, a man was a born leader in that country and at that time. There are, of course, foolish stories extant that Abraham used to boast, and that others used to predict, that he would be President some day. The same thing is daily said of thousands of boys who will never be constables. But there is evidence that he felt too large for the life of a farmhand on Pigeon

Creek, and his thoughts naturally turned, after the manner of restless boys in the West, to the river, as the avenue of escape from the narrow life of the woods. He once asked an old friend to give him a recommendation to some steamboat on the Ohio, but desisted from his purpose on being reminded that his father had the right to dispose of his time for a year or so more. But in 1828 an opportunity offered for a little glimpse of the world outside, and the boy gladly embraced it. He was hired by Mr. Gentry, the proprietor of the neighboring village of Gentryville, to accompany his son with a flat-boat of produce to New Orleans and intermediate landings. The voyage was made successfully, and Abraham gained great credit for his management and sale of the cargo. The only important incident of the trip occurred at the plantation of Madame Duchesne, a few miles below Baton Rouge. The young merchants had tied up for the night and were asleep in the cabin, when they were aroused by shuffling footsteps, which proved to be a gang of marauding negroes, coming to rob the boat. Abraham instantly attacked them with a club, knocked several overboard and put the rest to flight; flushed with battle, he and Allen Gentry carried the war into the enemy's country, and pursued the retreating Africans some distance in the darkness. They then returned to the boat, bleeding but victorious, and hastily swung into the stream and floated down the river till daylight. Lincoln's exertion in later years for the welfare of the African race showed that this nocturnal battle had not led him to any hasty and hostile generalizations.

The next autumn, John Hanks, the steadiest and most trustworthy of his family, went to Illinois. Though an illiterate and rather dull man, he had a good deal of solidity of character and consequently some influence and consideration in the household. He settled in Macon County, and was so well pleased with the country, and especially with its admirable distribution into prairie and timber, that he sent repeated messages to his friends in Indiana to come out and join him. Thomas Lincoln was always ready to move. He had probably by this time despaired of ever owning any

unencumbered real estate in Indiana, and the younger members of the family had little to bind them to the place where they saw nothing in the future but hard work and poor living. Thomas Lincoln handed over his farm to Mr. Gentry, sold his crop of corn and hogs, packed his household goods and those of his children and sons-in-law into a single wagon, drawn by two yoke of oxen, the combined wealth of himself and Dennis Hanks, and started for the new State. His daughter Sarah or Nancy, for she was called by both names, who married Aaron Grigsby a few years before, had died in childbirth. The emigrating family consisted of the Lincolns, John Johnston, Mrs. Lincoln's son, and her daughters, Mrs. Hall and Mrs. Hanks, with their husbands.

Two weeks of weary tramping over forest roads and muddy prairie, and the dangerous fording of streams swollen by the February thaws, brought the party to John Hanks's place near Decatur. He met them with a frank and energetic welcome. He had already selected a piece of ground for them a few miles from his own, and had the logs ready for their house. They numbered men enough to build without calling in their neighbors, and immediately put up a cabin on the north fork of the Sangamon River. The family thus housed and sheltered, one more bit of filial work remained for Abraham before assuming his virile independence. With the assistance of John Hanks he plowed fifteen acres, and split, from the tall walnut-trees of the primeval forest, enough rails to surround them with a fence. Little did either dream, while engaged in this work, that the day would come when the appearance of John Hanks in a public meeting, with two of these rails on his shoulder, would electrify a State convention, and kindle throughout the country a contagious and passionate enthusiasm, whose results would reach to endless generations.

CHAPTER III

ILLINOIS IN 1830

[Sidenote: Roy. J. M. Sturtevant, "Address to Old Settlers of Morgan County."]

[Sidenote: Thomas Buckles, of McLean County.]

[Sidenote: J.C. Power, "Early Settlers of Sangamon County," p. 62.]

[Sidenote: "Old Times in McLean County," p. 414.]

[Illustration: GOOSE-NEST PRAIRIE, NEAR FARMINGTON ILLINOIS, WHERE THOMAS LINCOLN LIVED AND DIED.]

The Lincolns arrived in Illinois just in time to entitle themselves to be called pioneers. When, in after years, associations of "Old Settlers" began to be formed in Central Illinois, the qualification for membership agreed upon by common consent was a residence in the country before "the winter of the deep snow." This was in 1830-31, a season of such extraordinary severity that it has formed for half a century a recognized date in the middle counties of Illinois, among those to whom in those days diaries and journals were unknown. The snowfall began in the Christmas holidays and

continued until the snow was three feet deep on level ground. Then came a cold rain, freezing as it fell, until a thick crust of ice gathered over the snow. The weather became intensely cold, the mercury sinking to twelve degrees below zero, Fahrenheit, and remaining there for two weeks. The storm came on with such suddenness that all who were abroad had great trouble in reaching their homes, and many perished. One man relates that he and a friend or two were out in a hunting party with an ox- team. They had collected a wagon-load of game and were on their way home when the storm struck them. After they had gone four miles they were compelled to abandon their wagon; the snow fell in heavy masses "as if thrown from a scoop-shovel"; arriving within two miles of their habitation, they were forced to trust to the instinct of their animals, and reached home hanging to the tails of their steers. Not all were so fortunate. Some were found weeks afterwards in the snow- drifts, their flesh gnawed by famished wolves; and the fate of others was unknown until the late spring sunshine revealed their resting- places. To those who escaped, the winter was tedious and terrible. It is hard for us to understand the isolation to which such weather condemned the pioneer. For weeks they remained in their cabins hoping for some mitigation of the frost. When at last they were driven out by the fear of famine, the labor of establishing communications was enormous. They finally made roads by "wallowing through the snow," as an Illinois historian expresses it, and going patiently over the same track until the snow was trampled hard and rounded like a turnpike. These roads lasted far into the spring, when the snow had melted from the plains, and wound for miles like threads of silver over the rich black loam of the prairies. After that winter game was never again so plentiful in the State. Much still remained, of course, but it never recovered entirely from the rigors of that season and the stupid enterprise of the pioneer hunters, who, when they came out of their snow-beleaguered cabins, began chasing and killing the starved deer by herds. It was easy work; the crust of the snow was strong enough to bear the

weight of men and dogs, but the slender hoofs of the deer would after a few bounds pierce the treacherous surface. This destructive slaughter went on until the game grew too lean to be worth the killing. All sorts of wild animals grew scarce from that winter. Old settlers say that the slow cowardly breed of prairie wolves, which used to be caught and killed as readily as sheep, disappeared about that time and none but the fleeter and stronger survived.

Only once since then has nature shown such extravagant severity in Illinois, and that was on a day in the winter of 1836, known to Illinoisans as "the sudden change." At noon on the 20th of December, after a warm and rainy morning, the ground being covered with mud and slush, the temperature fell instantly forty degrees. A man riding into Springfield for a marriage license says a roaring and crackling wind came upon him and the rain-drops dripping from his bridle-reins and beard changed in a second into jingling icicles. He rode hastily into the town and arrived in a few minutes at his destination; but his clothes were frozen like sheet iron, and man and saddle had to be taken into the house together to be thawed apart. Geese and chickens were caught by the feet and wings and frozen to the wet ground. A drove of a thousand hogs, which were being driven to St. Louis, rushed together for warmth, and became piled in a great heap. Those inside smothered and those outside froze, and the ghastly pyramid remained there on the prairie for weeks: the drovers barely escaped with their lives. Men killed their horses, disemboweled them, and crept into the cavity of their bodies to escape the murderous wind. [Footnote: Although the old settlers of Sangamon County are acquainted with these facts, and we have often heard them and many others like them from the lips of eye-witnesses, we have preferred to cite only these incidents of the sudden change which are given in the careful and conscientious compilation entitled "The Early Settlers of Sangamon County," by John Carroll Power.]

The pioneer period of Illinois was ending as Thomas Lincoln and his tall boy drove their ox-team over the Indiana line. The population of the State had grown to 157,447. It still clung to the wooded borders of the water-courses; scattered settlements were to be found all along the Mississippi and its affluents, from where Cairo struggled for life in the swamps of the Ohio to the bustling and busy mining camps which the recent discovery of lead had brought to Galena. A line of villages from Alton to Peoria dotted the woodland which the Illinois River had stretched, like a green baldric, diagonally across the bosom of the State. Then there were long reaches of wilderness before you came to Fort Dearborn, where there was nothing as yet to give promise of that miraculous growth which was soon to make Chicago a proverb to the world. There were a few settlements in the fertile region called the Military Tract; the southern part of the State was getting itself settled here and there. People were coming in freely to the Sangamon country. But a grassy solitude stretched from Galena to Chicago, and the upper half of the State was generally a wilderness. The earlier emigrants, principally of the poorer class of Southern farmers, shunned the prairies with something of a superstitious dread. They preferred to pass the first years of their occupation in the wasteful and laborious work of clearing a patch of timber for corn, rather than enter upon those rich savannas which were ready to break into fertility at the slightest provocation of culture. Even so late as 1835, writes J. F. Speed, "no one dreamed the prairies would ever be occupied." It was thought they would be used perpetually as grazing- fields for stock. For years the long processions of "movers" wound, over those fertile and neglected plains, taking no hint of the wealth suggested by the rank luxuriance of vegetable growth around them, the carpet of brilliant flowers spread over the verdant knolls, the strong, succulent grass that waved in the breeze, full of warm and vital odor, as high as the waist of a man. In after years, when the emigration from the Northern and Eastern States began to pour in, the prairies were rapidly

taken up, and the relative growth and importance of the two sections of the State were immediately reversed. Governor Ford, writing about 1847, attributes this result to the fact that the best class of Southern people were slow to emigrate to a State where they could not take their slaves; while the settlers from the North, not being debarred by the State Constitution from bringing their property with them, were of a different class. "The northern part of the State was settled in the first instance by wealthy farmers, enterprising merchants, millers, and manufacturers. They made farms, built mills, churches, school-houses, towns, and cities, and constructed roads and bridges as if by magic; so that although the settlements in the southern part of the State are from twenty to fifty years in advance on the score of age, yet are they ten years behind in point of wealth and all the appliances of a higher civilization."

[Sidenote: Thomas Ford, "History of Illinois," p. 280.]

At the time which we are specially considering, however, the few inhabitants of the south and the center were principally from what came afterwards to be called the border slave States. They were mostly a simple, neighborly, unambitious people, contented with their condition, living upon plain fare, and knowing not much of anything better. Luxury was, of course, unknown; even wealth, if it existed, could procure few of the comforts of refined life. There was little or no money in circulation. Exchanges were effected by the most primitive forms of barter, and each family had to rely chiefly upon itself for the means of living. The neighbors would lend a hand in building a cabin for a new-comer; after that he must in most cases shift for himself. Many a man arriving from an old community, and imperfectly appreciating the necessities of pioneer life, has found suddenly, on the approach of winter, that he must learn to make shoes or go barefoot. The furniture of their houses was made with an axe from the trees of the forest. Their clothing was all made at home. The buckskin days were over to a

great extent, though an occasional hunting-shirt and pair of moccasins were still seen. But flax and hemp had begun to be cultivated, and as the wolves were killed off the sheep-folds increased, and garments resembling those of civilization were spun and woven, and cut and sewed, by the women of the family. When a man had a suit of jeans colored with butternut-dye, and his wife a dress of linsey, they could appear with the best at a wedding or a quilting frolic. The superfluous could not have been said to exist in a community where men made their own buttons, where women dug roots in the woods to make their tea with, where many children never saw a stick of candy until after they were grown. The only sweetmeats known were those a skillful cook could compose from the honey plundered from the hollow oaks where the wild bees had stored it. Yet there was withal a kind of rude plenty; the woods swarmed with game, and after swine began to be raised, there was the bacon and hoe-cake which any south-western farmer will say is good enough for a king. The greatest privation was the lack of steel implements. His axe was as precious to the pioneer as his sword to the knight errant. Governor John Reynolds speaks of the panic felt in his father's family when the axe was dropped into a stream. A battered piece of tin was carefully saved and smoothed, and made into a grater for green corn.

[Sidenote: William H. Herndon's speech at Old Settlers' Meeting, Menard County.]

[Sidenote: "Old Times in McLean County," p. 194.]

They had their own amusements, of course; no form of society is without them, from the anthropoid apes to the Jockey Club. As to the grosser and ruder shapes taken by the diversions of the pioneers, we will let Mr. Herndon speak—their contemporary annalist and ardent panegyrist: "These men could shave a horse's mane and tail, paint, disfigure, and offer it for

sale to the owner. They could hoop up in a hoghead a drunken man, they themselves being drunk, put in and nail fast the head, and roll the man down hill a hundred feet or more. They could run down a lean and hungry wild pig, catch it, heat a ten-plate stove furnace hot, and putting in the pig, could cook it, they dancing the while a merry jig." Wild oats of this kind seem hardly compatible with a harvest of civilization, but it is contended that such of these roysterers as survived their stormy beginnings became decent and serious citizens. Indeed, Mr. Herndon insists that even in their hot youth they showed the promise of goodness and piety. "They attended church, heard the sermon, wept and prayed, shouted, got up and fought an hour, and then went back to prayer, just as the spirit moved them." The camp-meeting may be said, with no irreverent intention, to have been their principal means of intellectual excitement. The circuit preachers were for a long time the only circulating medium of thought and emotion that kept the isolated settlements from utter spiritual stagnation. They were men of great physical and moral endurance, absolutely devoted to their work, which they pursued in the face of every hardship and discouragement. Their circuits were frequently so great in extent that they were forced to be constantly on the route; what reading they did was done in the saddle. They received perhaps fifty dollars from the missionary fund and half as much more from their congregations, paid for the most part in necessities of life. Their oratory was suited to their longitude, and was principally addressed to the emotions of their hearers. It was often very effective, producing shouts and groans and genuflections among the audience at large, and terrible convulsions among the more nervous and excitable. We hear sometimes of a whole congregation prostrated as by a hurricane, flinging their limbs about in furious contortions, with wild outcries. To this day some of the survivors of that period insist that it was the spirit of the Almighty, and nothing less, that thus manifested itself. The minister, however, did not always share in the delirium of his hearers. Governor Reynolds tells us of a

preacher in Sangamon County, who, before his sermon, had set a wolf-trap in view from his pulpit. In the midst of his exhortations his keen eyes saw the distant trap collapse, and he continued in the same intonation with which he had been preaching, "Mind the text, brethren, till I go kill that wolf!" With all the failings and eccentricities of this singular class of men, they did a great deal of good, and are entitled to especial credit among those who conquered the wilderness. The emotions they excited did not all die away in the shouts and contortions of the meeting. Not a few of the cabins in the clearings were the abode of a fervent religion and an austere morality. Many a traveler, approaching a rude hut in the woods in the gathering twilight, distrusting the gaunt and silent family who gave him an unsmiling welcome, the bare interior, the rifles and knives conspicuously displayed, has felt his fears vanish when he sat down to supper, and the master of the house, in a few fervent words, invoked the blessing of heaven on the meal.

There was very little social intercourse; a visit was a serious matter, involving the expenditure of days of travel. It was the custom among families, when the longing for the sight of kindred faces was too strong to withstand, to move in a body to the distant settlement where their relatives lived and remain with them for months at a time. The claims of consanguinity were more regarded than now. Almost the only festivities were those that accompanied weddings, and these were, of course, of a primitive kind. The perils and adventures through which the young pioneers went to obtain their brides furnish forth thousands of tales by Western firesides. Instead of taking the rosy daughter of a neighbor, the enterprising bachelor would often go back to Kentucky, and pass through as many adventures in bringing his wife home as a returning crusader would meet between Beirut and Vienna. If she was a young woman who respected herself, the household gear she would insist on bringing would entail an Iliad of embarrassments. An old farmer of Sangamon County still talks of a

featherbed weighing fifty-four pounds with which his wife made him swim six rivers under penalty of desertion.

It was not always easy to find a competent authority to perform the ceremony. A justice in McLean County lived by the bank of a river, and his services were sometimes required by impatient lovers on the other bank when the waters were too torrential to cross. In such cases, being a conscientious man, he always insisted that they should ride into the stream far enough for him to discern their features, holding torches to their faces by night and by storm. The wooing of those days was prompt and practical. There was no time for the gradual approaches of an idler and more conventional age. It is related of one Stout, one of the legendary Nimrods of Illinois, who was well and frequently married, that he had one unfailing formula of courtship. He always promised the ladies whose hearts he was besieging that "they should live in the timber where they could pick up their own firewood."

Theft was almost unknown; property, being so hard to get, was jealously guarded, as we have already noticed in speaking of the settlement of Kentucky. The pioneers of Illinois brought with them the same rigid notions of honesty which their environment maintained. A man in Macoupin County left his wagon, loaded with corn, stuck in the prairie mud for two weeks near a frequented road. When he returned he found some of his corn gone, but there was money enough tied in the sacks to pay for what was taken. Men carrying bags of silver from the towns of Illinois to St. Louis rather made a display of it, as it enhanced their own importance, and there was no fear of robbery. There were of course no locks on the cabin doors, and the early merchants sometimes left their stores unprotected for days together when they went to the nearest city to replenish their stock. Of course there were rare exceptions to this rule, but a single theft alarmed and

excited a whole neighborhood. When a crime was traced home, the family of the criminal were generally obliged to remove.

[Sidenote: N.W. Edwards, "Life and Times of Ninian Edwards," p. 163.]

There were still, even so late as the time to which we are referring, two alien elements in the population of the State—the French and the Indians. The French settlements about Kaskaskia retained much of their national character, and the pioneers from the South who visited them or settled among them never ceased to wonder at their gayety, their peaceable industry and enterprise, and their domestic affection, which they did not care to dissemble and conceal like their shy and reticent neighbors. It was a daily spectacle, which never lost its strangeness for the Tennesseans and Kentuckians, to see the Frenchman returning from his work greeted by his wife and children with embraces of welcome "at the gate of his door-yard, and in view of all the villagers." The natural and kindly fraternization of the Frenchmen with the Indians was also a cause of wonder to the Americans. The friendly intercourse between them, and their occasional intermarriages, seemed little short of monstrous to the ferocious exclusiveness of the Anglo-Saxon. [Footnote: Michelet notices this exclusiveness of the English, and inveighs against it in his most lyric style. "Crime contre la nature! Crime contre l'humanite! Il sera expie par la sterilité de l'esprit."] The Indians in the central part of Illinois cut very little figure in the reminiscences of the pioneers; they occupied much the same relation to them as the tramp to the housewife of to-day. The Winnebago war in 1827 and the Black Hawk war in 1831 disturbed only the northern portion of the State. A few scattered and vagrant lodges of Pottawatomies and Kickapoos were all the pioneers of Sangamon and the neighboring counties ever met. They were spared the heroic struggle of the advance-guard of civilization in other States. A woman was sometimes alarmed by a visit from a drunken savage; poultry and pigs occasionally disappeared when they were in the

neighborhood; but life was not darkened by the constant menace of massacre. A few years earlier, indeed, the relations of the two races had been more strained, as may be inferred from an act passed by the territorial Legislature in 1814, offering a reward of fifty dollars to any citizen or ranger who should kill or take any depredating Indian. As only two dollars was paid for killing a wolf, it is easy to see how the pioneers regarded the forest folk in point of relative noxiousness. But ten years later a handful only of the Kickapoos remained in Sangamon County, the specter of the vanished people. A chief named Machina came one day to a family who were clearing a piece of timber, and issued an order of eviction in these words: "Too much come white man. T'other side Sangamon." He threw a handful of dried leaves in the air to show how he would scatter the pale faces, but he never fulfilled his threats further than to come in occasionally and ask for a drink of whisky. That such trivial details are still related, only shows how barren of incident was the life of these obscure founders of a great empire. Any subject of conversation, any cause of sensation, was a godsend. When Vannoy murdered his wife in Springfield, whole families put on their best clothes and drove fifty miles through bottomless mud and swollen rivers to see him hanged.

[Sidenote: Power, "Early Settlers of Sangamon County," p. 88.]

It is curious to see how naturally in such a state of things the fabric of political society developed itself from its germ. The county of Sangamon was called by an act of the Legislature in 1821 out of a verdant solitude of more than a million acres, inhabited by a few families. An election for county commissioners was ordered; three men were chosen; they came together at the cabin of John Kelly, at Spring Creek. He was a roving bachelor from North Carolina, devoted to the chase, who had built this hut three years before on the margin of a green-bordered rivulet, where the deer passed by in hundreds, going in the morning from the shady banks of the

Sangamon to feed on the rich green grass of the prairie, and returning in the twilight. He was so delighted with this hunters' paradise that he sent for his brothers to join him. They came and brought their friends, so it happened that in this immense county, several thousand square miles in extent, the settlement of John Kelly at Spring Creek was the only place where there was shelter for the commissioners; thus it became the temporary county-seat, duly described in the official report of the commissioners as "a certain point in the prairie near John Kelly's field, on the waters of Spring Creek, at a stake marked Z and D (the initials of the commissioners), to be the temporary seat of justice for said county; and we do further agree that the said county-seat be called and known by the name of Springfield." In this manner the future capital received that hackneyed title, when the distinctive and musical name of Sangamon was ready to their hands. The same day they agreed with John Kelly to build them a court-house, for which they paid him forty-two dollars and fifty cents. In twenty-four days the house was built—one room of rough logs, the jury retiring to any sequestered glade they fancied for their deliberation. They next ordered the building of a jail, which cost just twice as much money as the court-house. Constables and overseers of the poor were appointed, and all the machinery of government prepared for the population which was hourly expected. It was taken for granted that malefactors would come and the constables have employment; and the poor they would have always with them, when once they began to arrive. This was only a temporary arrangement, but when, a year or two later, the time came to fix upon a permanent seat of justice for the county, the resources of the Spring Creek men were equal to the emergency. When the commissioners came to decide on the relative merits of Springfield and another site a few miles away, they led them through brake, through brier, by mud knee-deep and by water-courses so exasperating that the wearied and baffled officials declared they would seek no further, and Springfield became the county-seat for all time; and greater

destinies were in store for it through means not wholly dissimilar. Nature had made it merely a pleasant hunting-ground; the craft and the industry of its first settlers made it a capital.

[Sidenote: "History Of Sangamon County," p. 83.]

[Sidenote: "Old Times in McLean County," p. 235.]

[Sidenote: Ford, "History of Illinois," p. 53.]

The courts which were held in these log huts were as rude as might be expected; yet there is evidence that although there was no superfluity of law or of learning, justice was substantially administered. The lawyers came mostly from Kentucky, though an occasional New Englander confronted and lived down the general prejudice against his region and obtained preferment. The profits of the profession were inconceivably small. One early State's Attorney describes his first circuit as a tour of shifts and privations not unlike the wanderings of a mendicant friar. In his first county he received a fee of five dollars for prosecuting the parties to a sanguinary affray. In the next he was equally successful, but barely escaped drowning in Spoon River. In the third there were but two families at the county-seat, and no cases on the docket. Thence he journeyed across a trackless prairie sixty miles, and at Quincy had one case and gained five dollars. In Pike County our much-enduring jurist took no cash, but found a generous sheriff who entertained him without charge. "He was one of nature's noblemen, from Massachusetts," writes the grateful prosecutor. The lawyers in what was called good practice earned less than a street-sweeper to-day. It is related that the famous Stephen A. Douglas once traveled from Springfield to Bloomington and made an extravagant speech, and having gained his case received a fee of five dollars. In such a state of things it was not to be wondered at that the technicalities of law were held in somewhat less veneration than what the pioneer regarded as the essential claims of justice.

The infirmities of the jury system gave them less annoyance than they give us. Governor Ford mentions a case where a gang of horse-thieves succeeded in placing one of their confederates upon a jury which was to try them; but he was soon brought to reason by his eleven colleagues making preparations to hang him to the rafters of the jury room. The judges were less hampered by the limitations of their legal lore than by their fears of a loss of popularity as a result of too definite charges in civil suits, or too great severity in criminal cases. They grew very dexterous in avoiding any commitment as to the legal or moral bearings of the questions brought before them. They generally refused to sum up, or to comment upon evidence; when asked by the counsel to give instructions they would say, "Why, gentlemen, the jury understand this case as well as you or I. They will do justice between the parties." One famous judge, who was afterwards governor, when sentencing a murderer, impressed it upon his mind, and wished him to inform his friends, that it was the jury and not the judge who had found him guilty, and then asked him on what day he would like to be hanged. It is needless to say that the bench and bar were not all of this class. There were even at that early day lawyers, and not a few, who had already won reputation in the older States, and whose names are still honored in the profession. Cook, McLean, Edwards, Kane, Thomas, Reynolds, and others, the earliest lawyers of the State, have hardly been since surpassed for learning and ability.

[Sidenote: Ford, "History of Illinois," p. 31.]

[Sidenote: Ford, p. 81.]

In a community where the principal men were lawyers, where there was as yet little commerce, and industrial enterprise was unknown, it was natural that one of the chief interests of life should be the pursuit of politics. The young State swarmed with politicians; they could be found chewing

and whittling at every cross-roads inn; they were busy at every horse-race, arranging their plans and extending their acquaintance; around the burgoo-pot of the hunting party they discussed measures and candidates; they even invaded the camp-meeting and did not disdain the pulpit as a tribune. Of course there was no such thing as organization in the pioneer days. Men were voted for to a great extent independently of partisan questions affecting the nation at large, and in this way the higher offices of the State were filled for many years by men whose personal character compelled the respect and esteem of the citizens. The year 1826 is generally taken as the date which witnessed the change from personal to partisan politics, though several years more elapsed before the rule of conventions came in, which put an end to individual candidacy. In that year, Daniel Pope Cook, who had long represented the State in Congress with singular ability and purity, was defeated by Governor Joseph Duncan, the candidate of the Jackson men, on account of the vote given by Cook which elected John Quincy Adams to the Presidency. The bitter intolerance of the Jackson party naturally caused their opponents to organize against them, and there were two parties in the State from that time forward. The change in political methods was inevitable, and it is idle to deplore it; but the former system gave the better men in the new State a power and prominence which they have never since enjoyed. Such men as Governor Ninian Edwards, who came with the prestige of a distinguished family connection, a large fortune, a good education, and a distinction of manners and of dress—ruffles, gold buttons, and fair-topped boots—which would hardly have been pardoned a few years later; and Governor Edward Coles, who had been private secretary to Madison, and was familiar with the courts of Europe, a man as notable for his gentleness of manners as for his nobility of nature, could never have come so readily and easily to the head of the government after the machine of the caucus had been perfected. Real ability then imposed itself with more authority upon the ignorant and unpretending politicians from the back

timber; so that it is remarked by those who study the early statutes of Illinois that they are far better drawn up, and better edited, than those of a later period, when illiterate tricksters, conscious of the party strength behind them, insisted on shaping legislation according to their own fancy. The men of cultivation wielded an influence in the Legislature entirely out of proportion to their numbers, as the ruder sort of pioneers were naturally in a large majority. The type of a not uncommon class in Illinois tradition was a member from the South who could neither read nor write, and whose apparently ironical patronymic was Grammar. When first elected he had never worn anything except leather; but regarding his tattered buckskin as unfit for the garb of a lawgiver, he and his sons gathered hazelnuts enough to barter at the nearest store for a few yards of blue strouding such as the Indians used for breech- clouts. When he came home with his purchase and had called together the women of the settlement to make his clothes, it was found that there was only material enough for a very short coat and a long pair of leggins, and thus attired he went to Kaskaskia, the territorial capital. Uncouth as was his appearance, he had in him the raw material of a politician. He invented a system—which was afterwards adopted by many whose breeches were more fashionably cut—of voting against every measure which was proposed. If it failed, the responsibility was broadly shared; if it passed and was popular, no one would care who voted against it; if it passed and did not meet the favor of the people, John Grammar could vaunt his foresight. Between the men like Coles and the men like Grammar there was a wide interval, and the average was about what the people of the State deserved and could appreciate. A legislator was as likely to suffer for doing right as for doing wrong. Governor Ford, in his admirable sketch of the early history of the State, mentions two acts of the Legislature, both of them proper and beneficial, as unequaled in their destructive influence upon the great folks of the State. One was a bill for a loan to meet the honest obligations of the commonwealth, commonly called

"the Wiggins loan"; and the other was a law to prevent bulls of inferior size and breed from running at large. This latter set loose all the winds of popular fury: it was cruel, it was aristocratic; it was in the interest of rich men and pampered foreign bulls; and it ended the career of many an aspiring politician in a blast of democratic indignation and scorn. The politician who relied upon immediate and constant contact with the people certainly earned all the emoluments of office he received. His successes were hardly purchased by laborious affability. "A friend of mine," says Ford, "once informed me that he intended to be a candidate for the Legislature, but would not declare himself until just before the election, and assigned as a reason that it was so very hard to be clever for a long time at once." Before the caucus had eliminated the individual initiative, there was much more of personal feeling in elections. A vote against a man had something of offense in it, and sometimes stirred up a defeated candidate to heroic vengeance. In 1827 the Legislature elected a State treasurer after an exciting contest, and before the members had left the house the unsuccessful aspirant came in and soundly thrashed, one after the other, four of the representatives who had voted against him. Such energy was sure to meet its reward, and he was soon after made clerk of the Circuit Court. It is related by old citizens of Menard County, as a circumstance greatly to the credit of Abraham Lincoln, that when he was a candidate for the Legislature a man who wanted his vote for another place walked to the polls with him and ostentatiously voted for him, hoping to receive his vote in return. Lincoln voted against him, and the act was much admired by those who saw it.

One noticeable fact is observed in relation to the politicians of the day—their careers were generally brief. Superannuation came early. In the latter part of the last century and the first half of this, men were called old whom we should regard as in the prime of life. When the friends of Washington were first pressing the Presidency upon him in 1788, he urged his

"advanced age" as an imperative reason for declining it: he was fifty-six years old. When Ninian Edwards was a candidate for Governor of Illinois in 1826, he was only fifty-one, and yet he considered it necessary in his published addresses to refer to the charge that he was too old for the place, and, while admitting the fact that he was no longer young, to urge in extenuation that there are some old things,—like old whisky, old bacon, and old friends,—which are not without their merits. Even so late as 1848, we find a remarkable letter from Mr. Lincoln, who was then in Congress, bearing upon the same point. His partner, William H. Herndon, had written him a letter, complaining that the old men in Sangamon County were unwilling to let the young ones have any opportunity to distinguish themselves. To this Lincoln answered in his usual tone of grave kindness: "The subject of your letter is exceedingly painful to me; and I cannot but think there is some mistake in your impression of the motives of the old men. I suppose I am now one of the old men, and I declare on my veracity, which I think is good with you, that nothing could afford me more satisfaction than to learn that you and others of my young friends at home were doing battle in the contest and endearing themselves to the people and taking a stand far above any I have ever been able to reach in their admiration. I cannot conceive that other old men feel differently. Of course, I cannot demonstrate what I say; but I was young once, and I am sure I was never ungenerously thrust back." The man who thus counseled petulant youth with the experienced calmness of age was thirty-nine years old. A state of society where one could at that age call himself or be called by others an old man, is proved by that fact alone to be one of wearing hardships and early decay of the vital powers. The survivors of the pioneers stoutly insist upon the contrary view. "It was a glorious life," says one old patriarch; "men would fight for the love of it, and then shake hands and be friends; there is nothing like it now." Another says, "I never enjoy my breakfast now as I used to, when I got up and ran down a deer before I

could have anything to eat." But they see the past through a rosy mist of memory, transfigured by the eternal magic of youth. The sober fact is that the life was a hard one, with few rational pleasures, few wholesome appliances. The strong ones lived, and some even attained great length of years; but to the many age came early and was full of infirmity and pain. If we could go back to what our fore-fathers endured in clearing the Western wilderness, we could then better appreciate our obligations to them. It is detracting from the honor which is their due to say that their lives had much of happiness or comfort, or were in any respect preferable to our own.

CHAPTER IV

NEW SALEM

During the latter part of "the winter of the deep snow," Lincoln became acquainted with one Denton Offutt, an adventurous and discursive sort of merchant, with more irons in the fire than he could well manage. He wanted to take a flat-boat and cargo to New Orleans, and having heard that Hanks and Lincoln had some experience of the river, he insisted on their joining him. John Johnston was afterwards added to the party, probably at the request of his foster-brother, to share in the golden profits of the enterprise; for fifty cents a day, and a contingent dividend of twenty dollars apiece, seemed like a promise of immediate opulence to the boys. In the spring, when the rivers broke up and the melting snows began to pour in torrents down every ravine and gully, the three young men paddled down the Sangamon in a canoe to the point where Jamestown now stands; whence they walked five miles to Springfield, where Offutt had given them rendezvous. They met him at Elliott's tavern and far from happy. Amid the multiplicity of his engagements he had failed to procure a flat-boat, and the first work his new hands must do was to build one. They cut the timber, with frontier innocence, from "Congress land," and soon had a serviceable craft afloat, with which they descended the current of the Sangamon to New Salem, a little village which seems to have been born for the occasion, as it came into existence just before the arrival of Lincoln, nourished for seven

years while he remained one of its citizens, and died soon after he went away. His introduction to his fellow-citizens was effected in a peculiar and somewhat striking manner. Offutt's boat had come to serious embarrassment on Rutledge's mill-dam, and the unwonted incident brought the entire population to the water's edge. They spent a good part of the day watching the hapless flat-boat, resting midships on the dam, the forward end in the air and the stern taking in the turbid Sangamon water. Nobody knew what to do with the disaster except "the bow-oar," who is described as a gigantic youth "with his trousers rolled up some five feet," who was wading about the boat and rigging up some undescribed contrivance by which the cargo was unloaded, the boat tilted and the water let out by boring a hole through the bottom, and everything brought safely to moorings below the dam. This exploit gained for young Lincoln the enthusiastic admiration of his employer, and turned his own mind in the direction of an invention which he afterwards patented "for lifting vessels over shoals." The model on which he obtained this patent—a little boat whittled by his own hand in 1849, after he had become prominent as a lawyer and politician—is still shown to visitors at the Department of the Interior. We have never learned that it has served any other purpose.

[Illustration: MODEL OF LINCOLN'S INVENTION, IN THE PATENT OFFICE,
WASHINGTON.]

[Illustration: REDUCED FAC-SIMILE OF DRAWINGS IN THE
PATENT OFFICE.]

[Sidenote: Lamon, p. 83.]

They made a quick trip down the Sangamon, the Illinois, and the Mississippi rivers. Although it was but a repetition in great part of the trip young Lincoln had made with Gentry, it evidently created a far deeper

impression on his mind than the former one. The simple and honest words of John Hanks leave no doubt of this. At New Orleans, he said, they saw for the first time "negroes chained, maltreated, whipped, and scourged. Lincoln saw it; his heart bled; said nothing much, was silent, looked bad. I can say, knowing it, that it was on this trip that he formed his opinion of slavery. It run its iron in him then and there, May, 1831. I have heard him say so often." The sight of men in chains was intolerable to him. Ten years after this he made another journey by water with his friend Joshua Speed, of Kentucky. Writing to Speed about it after the lapse of fourteen years, he says: "In 1841 you and I had together a tedious low-water trip on a steamboat from Louisville to St. Louis. You may remember, as I well do, that from Louisville to the mouth of the Ohio there were on board ten or a dozen slaves shackled together with irons. That sight was a continual torment to me, and I see something like it every time I touch the Ohio or any other slave border. It is not fair for you to assume that I have no interest in a thing which has, and continually exercises, the power of making me miserable."

There have been several ingenious attempts to show the origin and occasion of Mr. Lincoln's antislavery convictions. They seem to us an idle waste of labor. These sentiments came with the first awakening of his mind and conscience, and were roused into active life and energy by the sight of fellow-creatures in chains on an Ohio River steamboat, and on the wharf at New Orleans.

The party went up the river in the early summer and separated in St. Louis. Abraham walked in company with John Johnston from St. Louis to Coles County, and spent a few weeks there with his father, who had made another migration the year before. His final move was to Goose Nest Prairie, where he died in 1851, [Footnote: His grave, a mile and a half west of the town of Farmington, Illinois, is surmounted by an appropriate

monument erected by his grandson, the Hon. Robert T. Lincoln.] at the age of seventy-three years, after a life which, though not successful in any material or worldly point of view, was probably far happier than that of his illustrious son, being unvexed by enterprise or ambition. Abraham never lost sight of his parents. He continued to aid and befriend them in every way, even when he could ill afford it, and when his benefactions were imprudently used. He not only comforted their declining years with every aid his affection could suggest, but he did everything in his power to assist his stepbrother Johnston—a hopeless task enough. The following rigidly truthful and yet kindly letters will show how mentor-like and masterful, as well as generous, were the relations that Mr. Lincoln held to these friends and companions of his childhood:

DEAR JOHNSTON: Your request for eighty dollars I do not think it best to comply with now. At the various times when I have helped you a little, you have said to me, "We can get along very well now," but in a very short time I find you in the same difficulty again. Now this can only happen by some defect in your conduct.

What that defect is I think I know. You are not *lazy*, and still you are an *idler*. I doubt whether, since I saw you, you have done a good whole day's work in any one day. You do not very much dislike to work, and still you do not work much, merely because it does not seem to you that you could get much for it. This habit of uselessly wasting time is the whole difficulty, and it is vastly important to you, and still more so to your children, that you should break the habit. It is more important to them because they have longer to live, and can keep out of an idle habit before they are in it easier than they can get out after they are in.

You are now in need of some money; and what I propose is that you shall go to work "tooth and nail" for somebody who will give you money for it.

Let father and your boys take charge of things at home, prepare for a crop, and make the crop; and you go to work for the best money wages, or in discharge of any debt you owe, that you can get; and to secure you a fair reward for your labor, I now promise you that for every dollar you will, between this and the first of next May, get for your own labor, either in money or as discharging your own indebtedness, I will then give you one other dollar. By this, if you hire yourself at ten dollars a month, from me you will get ten more, making twenty dollars a month for your work. In this I do not mean you should go off to St. Louis, or the lead mines, or the gold mines in California; but I mean for you to go at it for the best wages you can get close to home, in Coles County. Now, if you will do this you will soon be out of debt, and, what is better, you will have a habit that will keep you from getting in debt again. But if I should now clear you out of debt, next year you would be just as deep in as ever. You say you would almost give your place in heaven for seventy or eighty dollars. Then you value your place in heaven very cheap, for I am sure you can with the offer I make get the seventy or eighty dollars for four or five months' work. You say if I will furnish you the money you will deed me the land, and if you don't pay the money back you will deliver possession. Nonsense. If you can't now live with the land, how will you then live without it? You have always been kind to me, and I do not mean to be unkind to you. On the contrary, if you will but follow my advice, you will find it worth more than eighty times eighty dollars to you.

Here is a later epistle, still more graphic and terse in statement, which has the unusual merit of painting both confessor and penitent to the life:

SHELBYVILLE, Nov. 4, 1851.

DEAR BROTHER: When I came into Charleston, day before yesterday, I learned that you were anxious to sell the land where you live and move to

Missouri. I have been thinking of this ever since, and cannot but think such a notion is utterly foolish. What can you do in Missouri better than here? Is the land any richer? Can you there, any more than here, raise corn and wheat and oats without work? Will anybody there, any more than here, do your work for you? If you intend to go to work, there is no better place than right where you are; if you do not intend to go to work, you cannot get along anywhere. Squirring and crawling about from place to place can do no good. You have raised no crop this year, and what you really want is to sell the land, get the money, and spend it. Part with the land you have, and, my life upon it, you will never after own a spot big enough to bury you in. Half you will get for the land you will spend in moving to Missouri, and the other half you will eat and drink and wear out, and no foot of land will be bought. Now, I feel it is my duty to have no hand in such a piece of foolery. I feel that it is so even on your own account, and particularly on mother's account. The eastern forty acres I intend to keep for mother while she lives; if you will not cultivate it, it will rent for enough to support her; at least, it will rent for something. Her dower in the other two forties she can let you have, and no thanks to me. Now do not misunderstand this letter. I do not write it in any unkindness. I write it in order, if possible, to get you to face the truth, which truth is, you are destitute because you have idled away all your time. Your thousand pretenses deceive nobody but yourself. Go to work is the only cure for your case.

A volume of disquisition could not put more clearly before the reader the difference between Abraham Lincoln and the common run of Southern and Western rural laborers. He had the same disadvantages that they had. He grew up in the midst of poverty and ignorance; he was poisoned with the enervating malaria of the Western woods, as all his fellows were, and the consequences of it were seen in his character and conduct to the close of his life. But he had, what very few of them possessed any glimmering notion of, a fixed and inflexible will to succeed. He did not love work, probably,

any better than John Johnston; but he had an innate self-respect, and a consciousness that his self was worthy of respect, that kept him from idleness as it kept him from all other vices, and made him a better man every year that he lived.

We have anticipated a score of years in speaking of Mr. Lincoln's relations to his family. It was in August of the year 1831 that he finally left his father's roof, and swung out for himself into the current of the world to make his fortune in his own way. He went down to New Salem again to assist Offutt in the business that lively speculator thought of establishing there. He was more punctual than either his employer or the merchandise, and met with the usual reward of punctuality in being forced to waste his time in waiting for the tardy ones. He seemed to the New Salem people to be "loafing"; several of them have given that description of him. He did one day's work acting as clerk of a local election, a lettered loafer being pretty sure of employment on such an occasion. [Footnote: Mrs. Lizzie H. Bell writes of this incident: "My father, Menton Graham, was on that day, as usual, appointed to be a clerk, and Mr. McNamee, who was to be the other, was sick and failed to come. They were looking around for a man to fill his place when my father noticed Mr. Lincoln and asked if he could write. He answered that 'he could make a few rabbit tracks.'"] He also piloted a boat down the Sangamon for one Dr. Nelson, who had had enough of New Salem and wanted to go to Texas. This was probably a task not requiring much pilot-craft, as the river was much swollen, and navigators had in most places two or three miles of channel to count upon. But Offutt and his goods arrived at last, and Lincoln and he got them immediately into position, and opened their doors to what commerce could be found in New Salem. There was clearly not enough to satisfy the volatile mind of Mr. Offutt, for he soon bought Cameron's mill at the historic dam, and made Abraham superintendent also of that branch of the business.

It is to be surmised that Offutt never inspired his neighbors and customers with any deep regard for his solidity of character. One of them says of him with injurious pleonasm, that he "talked too much with his mouth." A natural consequence of his excessive fluency was soon to be made disagreeably evident to his clerk. He admired Abraham beyond measure, and praised him beyond prudence. He said that Abe knew more than any man in the United States; and he was certainly not warranted in making such an assertion, as his own knowledge of the actual state of science in America could not have been exhaustive. He also said that Abe could beat any man in the county running, jumping, or "wrestling." This proposition, being less abstract in its nature, was more readily grasped by the local mind, and was not likely to pass unchallenged.

[Illustration: MAP OF NEW SALEM AND VICINITY]

Public opinion at New Salem was formed by a crowd of ruffianly young fellows who were called the "Clary's Grove Boys." Once or twice a week they descended upon the village and passed the day in drinking, fighting, and brutal horse-play. If a stranger appeared in the place, he was likely to suffer a rude initiation into the social life of New Salem at the hands of these jovial savages. Sometimes he was nailed up in a hogshead and rolled down hill; sometimes he was insulted into a fight and then mauled black and blue; for despite their pretensions to chivalry they had no scruples about fair play or any such superstitions of civilization. At first they did not seem inclined to molest young Lincoln. His appearance did not invite insolence; his reputation for strength and activity was a greater protection to him than his inoffensive good-nature. But the loud admiration of Offutt gave them umbrage. It led to dispute, contradictions, and finally to a formal banter to a wrestling-match. Lincoln was greatly averse to all this "wooling and pulling," as he called it. But Offutt's indiscretion had made it necessary for him to show his mettle. Jack Armstrong, the leading bully of the gang,

was selected to throw him, and expected an easy victory. But he soon found himself in different hands from any he had heretofore engaged with. Seeing he could not manage the tall stranger, his friends swarmed in, and by kicking and tripping nearly succeeded in getting Lincoln down. At this, as has been said of another hero, "the spirit of Odin entered into him," and putting forth his whole strength, he held the pride of Clary's Grove in his arms like a child, and almost choked the exuberant life out of him. For a moment a general fight seemed inevitable; but Lincoln, standing undismayed with his back to the wall, looked so formidable in his defiance that an, honest admiration took the place of momentary fury, and his initiation was over. As to Armstrong, he was Lincoln's friend and sworn brother as soon as he recovered the use of his larynx, and the bond thus strangely created lasted through life. Lincoln had no further occasion to fight his own battles while Armstrong was there to act as his champion. The two friends, although so widely different, were helpful to each other afterwards in many ways, and Lincoln made ample amends for the liberty his hands had taken with Jack's throat, by saving, in a memorable trial, his son's neck from the halter.

This incident, trivial and vulgar as it may seem, was of great importance in Lincoln's life. His behavior in this ignoble scuffle did the work of years for him, in giving him the position he required in the community where his lot was cast. He became from that moment, in a certain sense, a personage, with a name and standing of his own. The verdict of Clary's Grove was unanimous that he was "the cleverest fellow that had ever broke into the settlement." He did not have to be constantly scuffling to guard his self-respect, and at the same time he gained the good-will of the better sort by his evident peaceableness and integrity.

[Illustration: LEAF FROM ABRAHAM LINCOLN'S EXERCISE BOOK. The page here shown in reduced fac-simile is from the Exercise

Book presented by William H. Herndon to the Keyes-Lincoln Memorial Collection. When the book was written Lincoln was about seventeen.]

He made on the whole a satisfactory clerk for Mr. Offutt, though his downright honesty must have seemed occasionally as eccentric in that position as afterwards it did to his associates at the bar. Dr. Holland has preserved one or two incidents of this kind, which have their value. Once, after he had sold a woman a little bill of goods and received the money, he found on looking over the account again that she had given him six and a quarter cents too much. The money burned in his hands until he locked the shop and started on a walk of several miles in the night to make restitution before he slept. On another occasion, after weighing and delivering a pound of tea, he found a small weight on the scales. He immediately weighed out the quantity of tea of which he had innocently defrauded his customer and went in search of her, his sensitive conscience not permitting any delay. To show that the young merchant was not too good for this world, the same writer gives an incident of his shop-keeping experience of a different character. A rural bully having made himself especially offensive one day, when women were present, by loud profanity, Lincoln requested him to be silent. This was of course a cause of war, and the young clerk was forced to follow the incensed ruffian into the street, where the combat was of short duration. Lincoln threw him at once to the ground, and gathering a handful of the dog fennel with which the roadside was plentifully bordered, he rubbed the ruffian's face and eyes with it until he howled for mercy. He did not howl in vain, for the placable giant, when his discipline was finished, brought water to bathe the culprit's smarting face, and doubtless improved the occasion with quaint admonition.

A few passages at arms of this sort gave Abraham a redoubtable reputation in the neighborhood. But the principal use he made of his strength and his prestige was in the capacity of peacemaker, an office which

soon devolved upon him by general consent. Whenever old feuds blossomed into fights by Offutt's door, or the chivalry of Clary's Grove attempted in its energetic way to take the conceit out of some stranger, or a canine duel spread contagion of battle among the masters of the beasts, Lincoln usually appeared upon the scene, and with a judicious mixture of force and reason and invincible good- nature restored peace.

While working with Offutt his mind was turned in the direction of English grammar. From what he had heard of it he thought it a matter within his grasp, if he could once fall in with the requisite machinery. Consulting with Menton [Footnote: This name has always been written in Illinois "Minter," but a letter from Mr. Graham's daughter, Mrs. Bell, says that her father's name is as given in the text.] Graham, the schoolmaster, in regard to it, and learning the whereabouts of a vagrant "Kirkham's Grammar," he set off at once and soon returned from a walk of a dozen miles with the coveted prize. He devoted himself to the new study with that peculiar intensity of application which always remained his most valuable faculty, and soon knew all that can be known about it from rules. He seemed surprised, as others have been, at the meager dimensions of the science he had acquired and the ease with which it yielded all there was of it to the student. But it seemed no slight achievement to the New Salemites, and contributed not a little to the prevalent impression of his learning.

His name is prominently connected with an event which just at this time caused an excitement and interest in Salem and the neighboring towns entirely out of proportion to its importance. It was one of the articles of faith of most of the settlers on the banks of the Sangamon River that it was a navigable stream, and the local politicians found that they could in no way more easily hit the fancy of their hearers than by discussing this assumed fact, and the logical corollary derived from it, that it was the duty of the State or the nation to clear out the snags and give free course to the

commerce which was waiting for an opportunity to pour along this natural highway. At last one Captain Vincent Bogue, of Springfield, determined to show that the thing could be done by doing it. The first promise of the great enterprise appears in the "Sangsmo Journal" of January 26, 1832, in a letter from the Captain, at Cincinnati, saying he would ascend the Sangamon by steam on the breaking up of the ice. He asked that he might be met at the mouth of the river by ten or twelve men, having axes with long handles, to cut away the overhanging branches of the trees on the banks. From this moment there was great excitement,— public meetings, appointment of committees, appeals for subscriptions, and a scattering fire of advertisements of goods and freight to be bargained for,—which sustained the prevailing interest. It was a day of hope and promise when the advertisement reached Springfield from Cincinnati that "the splendid upper-cabin steamer *Talisman*" would positively start for the Sangamon on a given day. As the paper containing this joyous intelligence also complained that no mail had reached Springfield from the east for three weeks, it is easy to understand the desire for more rapid and regular communications. From week to week the progress of the *Talisman*, impeded by bad weather and floating ice, was faithfully recorded, until at last the party with long-handled axes went down to Beardstown to welcome her. It is needless to state that Lincoln was one of the party. His standing as a scientific citizen of New Salem would have been enough to insure his selection even if he had not been known as a bold navigator. He piloted the *Talisman* safely through the windings of the Sangamon, and Springfield gave itself up to extravagant gayety on the event that proved she "could no longer be considered an inland town." Captain Bogue announced "fresh and seasonable goods just received per steamboat *Talisman*," and the local poets illuminated the columns of the "Journal" with odes on her advent. The joy was short-lived. The *Talisman* met the natural fate of steamboats a few months later, being burned at the St. Louis wharf. Neither State nor nation has ever removed the

snags from the Sangamon, and no subsequent navigator of its waters has been found to eclipse the fame of the earliest one.

CHAPTER V

LINCOLN IN THE BLACK HAWK WAR

[Sidenote: 1832.]

A new period in the life of Lincoln begins with the summer of 1832. He then obtained his first public recognition, and entered upon the course of life which was to lead him to a position of prominence and great usefulness.

The business of Offutt had gone to pieces, and his clerk was out of employment, when Governor Reynolds issued his call for volunteers to move the tribe of Black Hawk across the Mississippi. For several years the raids of the old Sac chieftain upon that portion of his patrimony which he had ceded to the United States had kept the settlers in the neighborhood of Rock Island in terror, and menaced the peace of the frontier. In the spring of 1831 he came over to the east side of the river with a considerable band of warriors, having been encouraged by secret promises of cooperation from several other tribes. These failed him, however, when the time of trial arrived, and an improvised force of State volunteers, assisted by General E. P. Gaines and his detachment, had little difficulty in compelling the Indians to re-cross the Mississippi, and to enter into a solemn treaty on the 30th of June by which the former treaties were ratified and Black Hawk and his leading warriors bound themselves never again to set foot on the east side

of the river, without express permission from the President or the Governor of Illinois.

[Sidenote: Reynolds, "Life and Times," p. 325.]

[Sidenote: Ford, "History of Illinois," p. 110.]

But Black Hawk was too old a savage to learn respect for treaties or resignation under fancied wrongs. He was already approaching the allotted term of life. He had been a chief of his nation for more than forty years. He had scalped his first enemy when scarcely more than a child, having painted on his blanket the blood-red hand which marked his nobility at fifteen years of age. Peace under any circumstances would doubtless have been irksome to him, but a peace which forbade him free access to his own hunting-grounds and to the graves of his fathers was more than he could now school himself to endure. He had come to believe that he had been foully wronged by the treaty which was his own act; he had even convinced himself that "land cannot be sold," a proposition in political economy which our modern socialists would be puzzled to accept or confute. Besides this, the tenderest feelings of his heart were outraged by this exclusion from his former domain. He had never passed a year since the death of his daughter without making a pilgrimage to her grave at Oquawka and spending hours in mystic ceremonies and contemplation. He was himself prophet as well as warrior, and had doubtless his share of mania, which is the strength of prophets. The promptings of his own broken heart readily seemed to him the whisperings of attendant spirits; and day by day these unseen incitements increased around him, until they could not be resisted even if death stood in the way.

He made his combinations during the winter, and had it not been for the loyal attitude of Keokuk, he could have brought the entire nation of the Sacs and Foxes to the war-path. As it was, the flower of the young men came with him when, with the opening spring, he crossed the river once

more. He came this time, he said, "to plant corn," but as a preliminary to this peaceful occupation of the land he marched up the Rock River, expecting to be joined by the Winnebagoes and Pottawatomies. But the time was passed for honorable alliances among the Indians. His oath-bound confederates gave him little assistance, and soon cast in their lot with the stronger party.

This movement excited general alarm in the State. General Henry Atkinson, commanding the United States troops, sent a formal summons to Black Hawk to return; but the old chief was already well on his way to the lodge of his friend, the prophet Wabokishick, at Prophetstown, and treated the summons with contemptuous defiance. The Governor immediately called for volunteers, and was himself astonished at the alacrity with which the call was answered. Among those who enlisted at the first tap of the drum was Abraham Lincoln, and equally to his surprise and delight he was elected captain of his company. The volunteer organizations of those days were conducted on purely democratic principles. The company assembled on the green, an election was suggested, and three-fourths of the men walked over to where Lincoln was standing; most of the small remainder joined themselves to one Kirkpatrick, a man of some substance and standing from Spring Creek. We have the word of Mr. Lincoln for it, that no subsequent success ever gave him such unmixed pleasure as this earliest distinction. It was a sincere, unsought tribute of his equals to those physical and moral qualities which made him the best man of his hundred, and as such was accepted and prized.

[Sidenote: Reynolds, "Life and Times," p. 363.]

At the Beardstown rendezvous, Captain Lincoln's company was attached to Colonel Samuel Thompson's regiment, the Fourth Illinois, which was organized at Richland, Sangamon County, on the 21st of April, and moved

on the 27th, with the rest of the command under General Samuel Whitesides, for Yellow Banks, where the boats with provisions had been ordered to meet them. It was arduous marching. There were no roads and no bridges, and the day's task included a great deal of labor. The third day out they came to the Henderson River, a stream some fifty yards wide, swift and swollen with the spring thaws, with high and steep banks. To most armies this would have seemed a serious obstacle, but these backwoodsmen swarmed to the work like beavers, and in less than three hours the river was crossed with the loss of only one or two horses and wagons. When they came to Yellow Banks, on the Mississippi, the provision-boats had not arrived, and for three days they waited there literally without food; very uncomfortable days for Governor Reynolds, who accompanied the expedition, and was forced to hear the outspoken comments of two thousand hungry men on his supposed inefficiency. But on the 6th of May the *William Wallace* arrived, and "this sight," says the Governor with characteristic sincerity, "was, I presume, the most interesting I ever beheld." From there they marched to the mouth of Rock River, and thence General Whitesides proceeded with his volunteers up the river some ninety miles to Dixon, where they halted to await the arrival of General Atkinson with the regular troops and provisions. There they found two battalions of fresh horsemen under Majors Stillman and Bailey, who had as yet seen no service and were eager for the fray. Whitesides's men were tired with their forced march, and besides, in their ardor to get forward, they had thrown away a good part of their provisions and left their baggage behind. It pleased the Governor, therefore, to listen to the prayers of Stillman's braves, and he gave them orders to proceed to the head of Old Man's Creek, where it was supposed there were some hostile Indians, and coerce them into submission. "I thought," says the Governor in his memoirs, "they might discover the enemy."

[Illustration: A SOLDIER'S DISCHARGE FROM THE BLACK HAWK WAR, SIGNED BY A. LINCOLN, CAPTAIN. IN THE POSSESSION OF O. H. OLDROTD, SPRINGFIELD, ILLINOIS.]

The supposition was certainly well founded. They rode merrily away, came to Old Man's Creek, thereafter to be called Stillman's Run, and encamped for the night. By the failing light a small party of Indians was discovered on the summit of a hill a mile away, and a few courageous gentlemen hurriedly saddled their horses, and, without orders, rode after them. The Indians retreated, but were soon overtaken, and two or three of them killed. The volunteers were now strung along a half mile of hill and valley, with no more order or care than if they had been chasing rabbits. Black Hawk, who had been at supper when the running fight began, hastily gathered a handful of warriors and attacked the scattered whites. The onset of the savages acted like an icy bath on the red-hot valor of the volunteers; they turned and ran for their lives, stampeding the camp as they fled. There was very little resistance—so little that Black Hawk, fearing a ruse, tried to recall his warriors from the pursuit, but in the darkness and confusion could not enforce his orders. The Indians killed all they caught up with; but the volunteers had the fleeter horses, and only eleven were overtaken. The rest reached Dixon by twos and threes, rested all night, and took courage. General Whitesides marched out to the scene of the disaster the next morning, but the Indians were gone. They had broken up into small parties, and for several days they reaped the bloody fruit of their victory in the massacre of peaceful settlements in the adjacent districts.

The time of enlistment of the volunteers had now come to an end, and the men, seeing no prospect of glory or profit, and weary of the work and the hunger which were the only certain incidents of the campaign, refused in

great part to continue in service. But it is hardly necessary to say that Captain Lincoln was not one of these homesick soldiers. Not even the trammels of rank, which are usually so strong among the trailers of the saber, could restrain him from what he considered his simple duty. As soon as he was mustered out of his captaincy, he re-enlisted on the same day, May 27, as a private soldier. Several other officers did the same, among them General Whitesides and Major John T. Stuart. Lincoln became a member of Captain Elijah Iles's company of mounted volunteers, sometimes called the "Independent Spy Battalion," an organization unique of its kind, if we may judge from the account given by one of its troopers. It was not, says Mr. George M. Harrison, "under the control of any regiment or brigade, but received orders directly from the Commander-in-Chief, and always, when with the army, camped within the lines, and had many other privileges, such as having no camp duties to perform and drawing rations as much and as often as we pleased," which would seem to liken this battalion as nearly as possible to the fabled "regiment of brigadiers." With this *elite* corps Lincoln served through his second enlistment, though it was not his fortune to take part in either of the two engagements in which General James D. Henry, at the Wisconsin Bluffs and the Bad Axe, broke and destroyed forever the power of Black Hawk and the British band of Sacs and Foxes.

After Lincoln was relieved of the weight of dignity involved in his captaincy, the war became a sort of holiday, and the tall private from New Salem enjoyed it as much as any one. He entered with great zest into the athletic sports with which soldiers love to beguile the tedium of camp. He was admitted to be the strongest man in the army, and, with one exception, the best wrestler. Indeed, his friends never admitted the exception, and severely blamed Lincoln for confessing himself defeated on the occasion when he met the redoubtable Thompson, and the two fell together on the turf. His popularity increased from the beginning to the end of the

campaign, and those of his comrades who still survive always speak with hearty and affectionate praise of his character and conduct in those rough yet pleasantly remembered days.

[Sidenote: MS. Letters from Thomas, Gregg and others.]

The Spy Battalion formed no part of General Henry's forces when, by a disobedience of orders as prudent as it was audacious, he started with his slender force on the fresh trail which he was sure would lead him to Black Hawk's camp. He found and struck the enemy at bay on the bluffs of the Wisconsin River on the 21st of July, and inflicted upon them a signal defeat. The broken remnant of Black Hawk's power then fled for the Mississippi River, the whole army following in close pursuit—General Atkinson in front and General Henry bringing up the rear. Fortune favored the latter once more, for while Black Hawk with a handful of men was engaging and drawing away the force under Atkinson, General Henry struck the main trail, and brought on the battle of the Bad Axe, if that could be called a battle which was an easy slaughter of the weary and discouraged savages, fighting without heart or hope, an army in front and the great river behind. Black Hawk escaped the fate of his followers, to be captured a few days later through the treachery of his allies. He was carried in triumph to Washington and presented to President Jackson, to whom he made this stern and defiant speech, showing how little age or disaster could do to tame his indomitable spirit: "I am a man and you are another. I did not expect to conquer the white people. I took up the hatchet to avenge injuries which could no longer be borne. [Footnote: It is a noteworthy coincidence that President Lincoln's proclamation at the opening of the war calls for troops "to redress wrongs already long enough endured."] Had I borne them longer my people would have said: 'Black Hawk is a squaw; he is too old to be a chief; he is no Sac.' This caused me to raise the war-whoop. I say no more of it; all is known to you." He returned to Iowa, and died on the 3d of

October, 1838, at his camp on the river Des Moines. He was buried in gala dress, with cocked hat and sword, and the medals presented him by two governments. He was not allowed to rest even in his grave. His bones were exhumed by some greedy wretch and sold from hand to hand till they came at last to the Burlington Museum, where they were destroyed by fire.

[Illustration: BLACK HAWK]

It was on the 16th of June, a month before the slaughter of the Bad Axe, that the battalion to which Lincoln belonged was at last mustered out, at Whitewater, Wisconsin. His final release from the service was signed by a young lieutenant of artillery, Robert Anderson, who, twenty-nine years later, in one of the most awful crises in our annals, was to sustain to Lincoln relations of prodigious importance, on a scene illuminated by the flash of the opening guns of the civil war. [Transcriber's Note: Lengthy footnote relocated to chapter end.] The men started home the next day in high spirits, school-boys for their holidays. Lincoln had need, like Horatio, of his good spirits, for they were his only outfit for the long journey to New Salem, he and his mess-mate Harrison [Footnote: George M. Harrison, who gives an account of his personal experiences in Lamon, p. 116.] having had their horses stolen the day before by some patriot over-anxious to reach home. But, as Harrison says, "I laughed at our fate, and he joked at it, and we all started off merrily. The generous men of our company walked and rode by turns with us, and we fared about equal with the rest. But for this generosity our legs would have had to do the better work; for in that day this dreary route furnished no horses to buy or to steal; and, whether on horse or afoot, we always had company, for many of the horses' backs were too sore for riding." It is not hard to imagine with what quips and quirks of native fancy Lincoln and his friends beguiled the way through forest and prairie. With youth, good health, and a clear conscience, and even then the dawn of a young and undefiled ambition in his heart, nothing was wanting to give zest

and spice to this long, sociable walk of a hundred leagues. One joke is preserved, and this one is at the expense of Lincoln. One chilly morning he complained of being cold. "No wonder," said some facetious cavalier, "there is so much of you on the ground." [Footnote: Dr. Holland gives this homely joke (Life of Lincoln, p. 71), but transfers it to a time four years later, when Lincoln had permanently assumed shoes and had a horse of his own.] We hope Lincoln's contributions to the fun were better than this, but of course the prosperity of these jests lay rather in the liberal ears that heard them than in the good-natured tongues that uttered them.

Lincoln and Harrison could not have been altogether penniless, for at Peoria they bought a canoe and paddled down to Pekin. Here the ingenious Lincoln employed his hereditary talent for carpentry by making an oar for the frail vessel while Harrison was providing the commissary stores. The latter goes on to say: "The river, being very low, was without current, so that we had to pull hard to make half the speed of legs on land; in fact, we let her float all night, and on the next morning always found the objects still visible that were beside us the previous evening. The water was remarkably clear for this river of plants, and the fish appeared to be sporting with us as we moved over or near them. On the next day after we left Pekin we overhauled a raft of saw-logs, with two men afloat on it to urge it on with poles and to guide it in the channel. We immediately pulled up to them and went on the raft, where we were made welcome by various demonstrations, especially by an invitation to a feast on fish, corn- bread, eggs, butter, and coffee, just prepared for our benefit. Of these good things we ate almost immoderately, for it was the only warm meal we had made for several days. While preparing it, and after dinner, Lincoln entertained them, and they entertained us for a couple of hours very amusingly." Kindly human companionship was a luxury in that green wilderness, and was readily appreciated and paid for.

The returning warriors dropped down the river to the village of Havana—from Pekin to Havana in a canoe! The country is full of these geographical nightmares, the necessary result of freedom of nomenclature bestowed by circumstances upon minds equally destitute of taste or education. There they sold their boat,—no difficult task, for a canoe was a staple article in any river-town,—and again set out "the old way, over the sand-ridges, for Petersburg. As we drew near home, the impulse became stronger and urged us on amazingly. The long strides of Lincoln, often slipping back in the loose sand six inches every step, were just right for me; and he was greatly diverted when he noticed me behind him stepping along in his tracks to keep from slipping." Thus the two comrades came back from their soldierings to their humble homes, from which Lincoln was soon to start on the way marked out for him by Providence, with strides which no comrade, with whatever goodwill, might hope to follow.

He never took his campaigning seriously. The politician's habit of glorifying the petty incidents of a candidate's life always seemed absurd to him, and in his speech, made in 1848, ridiculing the effort on the part of General Cass's friends to draw some political advantage from that gentleman's respectable but obscure services on the frontier in the war with Great Britain, he stopped any future eulogist from painting his own military achievements in too lively colors. "Did you know, Mr. Speaker," he said, "I am a military hero! In the days of the Black Hawk war I fought, bled, and came away. I was not at Stillman's defeat, but I was about as near it as General Cass was to Hull's surrender; and, like him, I saw the place very soon afterwards. It is quite certain I did not break my sword, for I had none to break, but I bent my musket pretty badly on one occasion. If General Cass went in advance of me picking whortleberries, I guess I surpassed him in charges on the wild onions. If he saw any live fighting Indians, it was more than I did, but I had a good many bloody struggles with the mosquitoes; and although I never fainted from loss of blood, I can truly say

I was often very hungry. If ever I should conclude to doff whatever our Democratic friends may suppose there is of black-cockade Federalism about me, and thereupon they shall take me up as their candidate for the Presidency, I protest that they shall not make fun of me, as they have of General Cass, by attempting to write me into a military hero."

[Relocated Footnote: A story to the effect that Lincoln was mustered into service by Jefferson Davis has for a long time been current, but the strictest search in the records fails to confirm it. We are indebted to General R. C. Drum, Adjutant-General of the Army, for an interesting letter giving all the known facts in relation to this story. General Drum says: "The company of the Fourth Regiment Illinois Mounted Volunteers, commanded by Mr. Lincoln, was, with others, called out by Governor Reynolds, and was organized at Richland, Sangamon County, Illinois, April 21, 1832. The muster-in roll is not on file, but the records show that the company was mustered out at the mouth of Fox River, May 27, 1832, by Nathaniel Buckmaster, Brigade-Major to General Samuel Whitesides's Illinois Volunteers. On the muster-roll of Captain Elijah Iles's company, Illinois Mounted Volunteers, A. Lincoln (Sangamon County) appears as a private from May 27, 1832, to June 16, 1832, when the company was mustered out of service by Lieutenant Robert Anderson, Third United States Artillery and Colonel (Assistant Inspector-General) Illinois Volunteers. Brigadier-General Henry Atkinson, in his report of May 30, 1832, stated that the Illinois Volunteers were called out by the Governor of that State, but in haste and for no definite period of service. On their arrival at Ottawa they became clamorous for their discharge, which the Governor granted, retaining—of those who were discharged and volunteered for a further period of twenty days—a sufficient number of men to form six companies, which General Atkinson found at Ottawa on his arrival there from Rock River. General Atkinson further reports that these companies and some three hundred regular troops, remaining in position at Rock River, were all the force left

him to keep the enemy in check until the assemblage of the three thousand additional Illinois militia called out by the Governor upon his (General A.'s) requisition, to rendezvous at Ottawa, June 12-15, 1832,

"There can be no doubt that Captain Iles's company, mentioned above, was one of the six which served until June 16, 1832, while the fact is fully established that the company of which Mr. Lincoln was a member was mustered out by Lieutenant Robert Anderson, who, in April, 1861, was in command of Fort Sumter. There is no evidence to show that it was mustered in by Lieutenant Jefferson Davis. Mr. Davis's company (B, First United States Infantry) was stationed at Fort Crawford, Wisconsin, during the months of January and February, 1832, and he is borne on the rolls as 'absent on detached service at the Dubuque mines by order of Colonel Morgan.' From March 26 to August 18, 1832, the muster-rolls of his company report him as absent on furlough."]

CHAPTER VI

SURVEYOR AND REPRESENTATIVE

[Sidenote: 1832.]

The discharged volunteer arrived in New Salem only ten days before the August election, in which he had a deep personal interest. Before starting for the wars he had announced himself, according to the custom of the time, by a handbill circular, as a candidate for the Legislature from Sangamon County. [Footnote: We are aware that all former biographers have stated that Lincoln's candidacy for the Legislature was subsequent to his return from the war, and a consequence of his service. But his circular is dated March 9, 1832, and the "Sangamo Journal" mentions his name among the July, and apologizes candidates in for having accidentally omitted it in May.] He had done this in accordance with his own natural bent for public life and desire for usefulness and distinction, and not without strong encouragement from friends whose opinion he valued. He had even then considerable experience in speaking and thinking on his feet. He had begun his practice in that direction before leaving Indiana, and continued it everywhere he had gone. Mr. William Butler tells us that on one occasion, when Lincoln was a farmhand at Island Grove, the famous circuit-rider, Peter Cartwright, came by, electioneering for the Legislature, and Lincoln at once engaged in a discussion with him in the cornfield, in which the great

Methodist was equally astonished at the close reasoning and the uncouth figure of Mr. Brown's extraordinary hired man. At another time, after one Posey, a politician in search of office, had made a speech in Macon, John Hanks, whose admiration of his cousin's oratory was unbounded, said that "Abe could beat it." He turned a keg on end, and the tall boy mounted it and made his speech. "The subject was the navigation of the Sangamon, and Abe beat him to death," says the loyal Hanks. So it was not with the tremor of a complete novice that the young man took the stump during the few days left him between his return and the election.

[Sidenote: Reynolds, "My Own Times," p. 291.]

He ran as a Whig. As this has been denied on authority which is generally trustworthy, it is well enough to insist upon the fact. We have a memorandum in Mr. Lincoln's own handwriting in which he says he ran as "an avowed Clay man." In one of the few speeches of his, which, made at this time, have been remembered and reported, he said: "I am in favor of a national bank; I am in favor of the internal improvement system, and of a high protective tariff. These are my sentiments and political principles." Nothing could be more unqualified or outspoken than this announcement of his adhesion to what was then and for years afterwards called "the American System" of Henry Clay. Other testimony is not wanting to the same effect. Both Major Stuart and Judge Logan [Footnote: The Democrats of New Salem worked for Lincoln out of their personal regard for him. That was the general understanding of the matter here at the time. In this he made no concession of principle whatever. He was as stiff as a man could be in his Whig doctrines. They did this for him simply because he was popular—because he was Lincoln. STEPHEN T. LOGAN. July 6, 1875.] say that Lincoln ran in 1832 as a Whig, and that his speeches were unequivocally in defense of the principles of that party. Without discussing the merits of the party or its purposes, we may insist that his adopting them

thus openly at the outset of his career was an extremely characteristic act, and marks thus early the scrupulous conscientiousness which shaped every action of his life. The State of Illinois was by a large majority Democratic, hopelessly attached to the person and policy of Jackson. Nowhere had that despotic leader more violent and unscrupulous partisans than there. They were proud of their very servility, and preferred the name of "whole-hog Jackson men" to that of Democrats. The Whigs embraced in their scanty ranks the leading men of the State, those who have since been most distinguished in its history, such as S. T. Logan, Stuart, Browning, Dubois, Hardin, Breese, and many others. But they were utterly unable to do anything except by dividing the Jackson men, whose very numbers made their party unwieldy, and by throwing their votes with the more decent and conservative portion of them. In this way, in the late election, they had secured the success of Governor Reynolds—the Old Ranger—against Governor Kinney, who represented the vehement and proscriptive spirit which Jackson had just breathed into the party. He had visited the General in Washington, and had come back giving out threatenings and slaughter against the Whigs in the true Tennessee style, declaring that "all Whigs should be whipped out of office like dogs out of a meat-house"; the force of south-western simile could no further go. But the great popularity of Reynolds and the adroit management of the Whigs carried him through successfully. A single fact will show on which side the people who could read were enlisted. The "whole-hog" party had one newspaper, the opposition five. Of course it would have been impossible for Reynolds to poll a respectable vote if his loyalty to Jackson had been seriously doubted. As it was, he lost many votes through a report that he had been guilty of saying that "he was as strong for Jackson as any reasonable man should be." The Governor himself, in his naive account of the canvass, acknowledges the damaging nature of this accusation, and comforts himself with quoting

an indiscretion of Kinney's, who opposed a projected canal on the ground that "it would flood the country with Yankees."

It showed some moral courage, and certainly an absence of the shuffling politician's fair-weather policy, that Lincoln, in his obscure and penniless youth, at the very beginning of his career, when he was not embarrassed by antecedents or family connections, and when, in fact, what little social influence he knew would have led him the other way, chose to oppose a furiously intolerant majority, and to take his stand with the party which was doomed to long-continued defeat in Illinois. The motives which led him to take this decisive course are not difficult to imagine. The better sort of people in Sangamon County were Whigs, though the majority were Democrats, and he preferred through life the better sort to the majority. The papers he read were the Louisville "Journal" and the "Sangamo Journal," both Whig. Reading the speeches and debates of the day, he sided with Webster against Calhoun, and with Clay against anybody. Though his notions of politics, like those of any ill-educated young man of twenty-two, must have been rather crude, and not at all sufficient to live and to die by, he had adopted them honestly and sincerely, with no selfish regard to his own interests; and though he ardently desired success, he never abated one jot or tittle of his convictions for any possible personal gain, then or thereafter.

In the circular in which he announced his candidacy he made no reference to national politics, but confined himself mainly to a discussion of the practicability of improving the navigation of the Sangamon, the favorite hobby of the place and time. He had no monopoly of this "issue." It formed the burden of nearly every candidate's appeal to the people in that year. The excitement occasioned by the trip of the *Talisman* had not yet died away, although the little steamer was now dust and ashes, and her bold commander had left the State to avoid an awkward meeting with the sheriff.

The hope of seeing Springfield an emporium of commerce was still lively among the citizens of Sangamon County, and in no one of the handbills of the political aspirants of the season was that hope more judiciously encouraged than in the one signed by Abraham Lincoln. It was a well-written circular, remarkable for its soberness and, reserve when we consider the age and the limited advantages of the writer. It concluded in these words: "Upon the subjects of which I have treated, I have spoken as I have thought. I may be wrong in regard to any or all of them; but holding it a sound maxim that it is better only sometimes to be right than at all times wrong, so soon as I discover my opinions to be erroneous I shall be ready to renounce them.... Every man is said to have his peculiar ambition. Whether it be true or not, I can say for one, that I have no other so great as that of being truly esteemed of my fellow-men, by rendering myself worthy of their esteem. How far I shall succeed in gratifying this ambition is yet to be developed. I am young, and unknown to many of you. I was born and have ever remained in the most humble walks of life. I have no wealthy or powerful relations or friends to recommend me. My case is thrown exclusively upon the independent voters of the county; and, if elected, they will have conferred a favor upon me, for which I shall be unremitting in my labors to compensate. But if the good people in their wisdom shall see fit to keep me in the background, I have been too familiar with disappointments to be very much chagrined."

This is almost precisely the style of his later years. The errors of grammar and construction which spring invariably from an effort to avoid redundancy of expression remained with him through life. He seemed to grudge the space required for necessary parts of speech. But his language was at twenty-two, as it was thirty years later, the simple and manly attire of his thought, with little attempt at ornament and none at disguise. There was an intermediate time when he sinned in the direction of fine writing; but this

ebullition soon passed away, and left that marvelously strong and transparent style in which his two inaugurals were written.

Of course, in the ten days left him after his return from the field, a canvass of the county, which was then—before its division—several thousand square miles in extent, was out of the question. He made a few speeches in the neighborhood of New Salem, and at least one in Springfield. He was wholly unknown there except by his few comrades in arms. We find him mentioned in the county paper only once during the summer, in an editorial note adding the name of Captain Lincoln to those candidates for the Legislature who were periling their lives on the frontier and had left their reputations in charge of their generous fellow-citizens at home. On the occasion of his speaking at Springfield, most of the candidates had come together to address a meeting there to give their electors some idea of their quality. These were severe ordeals for the rash aspirants for popular favor. Besides those citizens who came to listen and judge, there were many whose only object was the free whisky provided for the occasion, and who, after potations pottle-deep, became not only highly unparliamentary but even dangerous to life and limb. This wild chivalry of Lick Creek was, however, less redoubtable to Lincoln than it might be to an urban statesman unacquainted with the frolic brutality of Clary's Grove. Their gambols never caused him to lose his self-possession. It is related that once, while he was speaking, he saw a ruffian attack a friend of his in the crowd, and the rencontre not resulting according to the orator's sympathies, he descended from the stand, seized the objectionable fighting man by the neck, "threw him some ten feet," then calmly mounted to his place and finished his speech, the course of his logic undisturbed by this athletic parenthesis. Judge Logan saw Lincoln for the first time on the day when he came up to Springfield on his canvass this summer. He thus speaks of his future partner: "He was a very tall, gawky, and rough-looking fellow then; his pantaloons didn't meet his shoes by six inches. But after he began

speaking I became very much interested in him. He made a very sensible speech. His manner was very much the same as in after life; that is, the same peculiar characteristics were apparent then, though of course in after years he evinced more knowledge and experience. But he had then the same novelty and the same peculiarity in presenting his ideas. He had the same individuality that he kept through all his life."

There were two or three men at the meeting whose good opinion was worth more than all the votes of Lick Creek to one beginning life: Stephen T. Logan, a young lawyer who had recently come from Kentucky with the best equipment for a *nisi prius* practitioner ever brought into the State; Major Stuart, whom we have met in the Black Hawk war, once commanding a battalion and then marching as a private; and William Butler, afterwards prominent in State politics, at that time a young man of the purest Western breed in body and character, clear-headed and courageous, and ready for any emergency where a friend was to be defended or an enemy punished. We do not know whether Lincoln gained any votes that day, but he gained what was far more valuable, the active friendship of these able and honorable men, all Whigs and all Kentuckians like himself.

The acquaintances he made in his canvass, the practice he gained in speaking, and the added confidence which this experience of measuring his abilities with those of others gave, were all the advantages which Lincoln derived from this attempt. He was defeated, for the only time in his life, in a contest before the people. The fortunate candidates were E. D. Taylor, J. T. Stuart, Achilles Morris, and Peter Cartwright, the first of whom received 1127 votes and the last 815. Lincoln's position among the eight defeated candidates was a very respectable one. He had 657 votes, and there were five who fared worse, among them his old adversary Kirkpatrick. What must have been especially gratifying to him was the fact that he received

the almost unanimous vote of his own neighborhood, the precinct of New Salem, 277 votes against 3, a result which showed more strongly than any words could do the extent of the attachment and the confidence which his genial and upright character had inspired among those who knew him best.

Having been, even in so slight a degree, a soldier and a politician, he was unfitted for a day laborer; but being entirely without means of subsistence, he was forced to look about for some suitable occupation. We know he thought seriously at this time of learning the trade of a blacksmith, and using in that honest way the sinew and brawn which nature had given him. But an opening for another kind of business occurred, which prevented his entering upon any merely mechanical occupation. Two of his most intimate friends were the brothers Herndon, called, according to the fashion of the time, which held it unfriendly to give a man his proper name, and arrogant for him to claim it, "Row" and "Jim." They kept one of those grocery stores in which everything salable on the frontier was sold, and which seem to have changed their occupants as rapidly as sentry-boxes. "Jim" sold his share to an idle and dissolute man named Berry, and "Row" soon transferred his interest to Lincoln. It was easy enough to buy, as nothing was ever given in payment but a promissory note. A short time afterwards, one Reuben Radford, who kept another shop of the same kind, happened one evening to attract the dangerous attention of the Clary's Grove boys, who, with their usual prompt and practical facetiousness, without a touch of malice in it, broke his windows and wrecked his store. The next morning, while Radford was ruefully contemplating the ruin, and doubtless concluding that he had had enough of a country where the local idea of neighborly humor found such eccentric expression, he hailed a passer-by named Greene, and challenged him to buy his establishment for four hundred dollars. This sort of trade was always irresistible to these Western speculators, and Greene at once gave his note for the amount. It next occurred to him to try to find out what the property was worth, and

doubting his own skill, he engaged Lincoln to make an invoice of it. The young merchant, whose appetite for speculation had just been whetted by his own investment, undertook the task, and, finding the stock of goods rather tempting, offered Greene \$250 for his bargain, which was at once accepted. Not a cent of money changed hands in all these transactions. By virtue of half a dozen signatures, Berry and Lincoln became proprietors of the only mercantile establishment in the village, and the apparent wealth of the community was increased by a liberal distribution of their notes among the Herndons, Radford, Greene, and a Mr. Rutledge, whose business they had also bought.

Fortunately for Lincoln and for the world, the enterprise was not successful. It was entered into without sufficient reflection, and from the very nature of things was destined to fail. To Berry the business was merely the refuge of idleness. He spent his time in gossip and drank up his share of the profits, and it is probable that Lincoln was far more interested in politics and general reading than in the petty traffic of his shop. In the spring of the next year, finding that their merchandise was gaining them little or nothing, they concluded to keep a tavern in addition to their other business, and the records of the County Court of Sangamon County show that Berry took out a license for that purpose on the 6th of March, 1833. [Transcriber's Note: Lengthy footnote (1) relocated to chapter end.] But it was even then too late for any expedients to save the moribund partnership. The tavern was never opened, for about this time Lincoln and Berry were challenged to sell out to a pair of vagrant brothers named Trent, who, as they had no idea of paying, were willing to give their notes to any amount. They soon ran away, and Berry expired, extinguished in rum. Lincoln was thus left loaded with debts, and with no assets except worthless notes of Berry and the Trents. It is greatly to his credit that he never thought of doing by others as others had done by him. The morality of the frontier was deplorably loose in such matters, and most of these people would have concluded that the failure of

the business expunged its liabilities. But Lincoln made no effort even to compromise the claims against him. He promised to pay when he could, and it took the labor of years to do it; but he paid at last every farthing of the debt, which seemed to him and his friends so large that it was called among them "the national debt."

[Illustration: JUDGE STEPHEN T. LOGAN.]

He had already begun to read elementary books of law, borrowed from Major Stuart and other kindly acquaintances. Indeed, it is quite possible that Berry and Lincoln might have succeeded better in business if the junior member of the firm had not spent so much of his time reading Blackstone and Chitty in the shade of a great oak just outside the door, while the senior quietly fuddled himself within. Eye-witnesses still speak of the grotesque youth, habited in homespun tow, lying on his back with his feet on the trunk of the tree, and poring over his book by the hour, "grinding around with the shade," as it shifted from north to east. After his store, to use his own expression, had "winked out," he applied himself with more continuous energy to his reading, doing merely what odd jobs came to his hand to pay his current expenses, which were of course very slight. He sometimes helped his friend Ellis in his store; sometimes went into the field and renewed his exploits as a farm-hand, which had gained him a traditional fame in Indiana; sometimes employed his clerkly hand in straightening up a neglected ledger. It is probable that he worked for his board oftener than for any other compensation, and his hearty friendliness and vivacity, as well as his industry in the field, made him a welcome guest in any farmhouse in the county. His strong arm was always at the disposal of the poor and needy; it is said of him, with a graphic variation of a well-known text, "that he visited the fatherless and the widow and chopped their wood."

In the spring of this year, 1833, he was appointed Postmaster of New Salem, and held the office for three years. Its emoluments were slender and its duties light, but there was in all probability no citizen of the village who could have made so much of it as he. The mails were so scanty that he was said to carry them in his hat, and he is also reported to have read every newspaper that arrived; it is altogether likely that this formed the leading inducement to his taking the office. His incumbency lasted until New Salem ceased to be populous enough for a post-station and the mail went by to Petersburg. Dr. J. G. Holland relates a sequel to this official experience which illustrates the quaint honesty of the man. Several years later, when he was a practicing lawyer, an agent of the Post-office Department called upon him, and asked for a balance due from the New Salem office, some seventeen dollars. Lincoln rose, and opening a little trunk which lay in a corner of the room, took from it a cotton rag in which was tied up the exact sum required. "I never use any man's money but my own," he quietly remarked. When we consider the pinching poverty in which these years had been passed, we may appreciate the self-denial which had kept him from making even a temporary use of this little sum of government money.

[Illustration: A. LINCOLN'S SURVEYING INSTRUMENTS AND SADDLE-BAG. IN THE POSSESSION OF THE LINCOLN MONUMENT COLLECTION.]

John Calhoun, the Surveyor of Sangamon County, was at this time overburdened with work. The principal local industry was speculation in land. Every settler of course wanted his farm surveyed and marked out for him, and every community had its syndicate of leading citizens who cherished a scheme of laying out a city somewhere. In many cases the city was plotted, the sites of the principal buildings, including a courthouse and a university, were determined, and a sonorous name was selected out of Plutarch, before its location was even considered. For this latter office the

intervention of an official surveyor was necessary, and therefore Mr. Calhoun had more business than he could attend to without assistance. Looking about for a young man of good character, intelligent enough to learn surveying at short notice, his attention was soon attracted to Lincoln. He offered young Abraham a book containing the elements of the art, and told him when he had mastered it he should have employment. The offer was a flattering one, and Lincoln, with that steady self-reliance of his, accepted it, and armed with his book went out to the schoolmaster's (Menton Graham's), and in six weeks' close application made himself a surveyor. [Transcriber's Note: Lengthy footnote (2) relocated to chapter end.]

[Illustration: AUTOGRAPH PLAN OF ROAD SURVEYED BY A. LINCOLN AND OTHERS. The lower half is the right-hand side of the plan which, in the original, is in one piece.]

[Illustration: Fac-simile of Lincoln's Report of the road survey.]

It will be remembered that Washington in his youth adopted the same profession, but there were few points of similarity in the lives of the two great Presidents, in youth or later manhood. The Virginian had every social advantage in his favor, and was by nature a man of more thrift and greater sagacity in money matters. He used the knowledge gained in the practice of his profession so wisely that he became rather early in life a large landholder, and continually increased his possessions until his death. Lincoln, with almost unbounded opportunities for the selection and purchase of valuable tracts, made no use whatever of them. He employed his skill and knowledge merely as a bread-winner, and made so little provision for the future that when Mr. Van Bergen, who had purchased the Radford note, sued and got judgment on it, his horse and his surveying instruments were taken to pay the debt, and only by the generous intervention of a friend was

he able to redeem these invaluable means of living. He was, nevertheless, an excellent surveyor. His portion of the public work executed under the directions of Mr. Calhoun and his successor, T. M. Neale, was well performed, and he soon found his time pretty well employed with private business which came to him from Sangamon and the adjoining counties. Early in the year 1834 we find him appointed one of three "viewers" to locate a road from Salt Creek to the county line in the direction of Jacksonville. The board seems to have consisted mainly of its chairman, as Lincoln made the deposit of money required by law, surveyed the route, plotted the road, and wrote the report. [Transcriber's Note: (3) Lengthy footnote relocated to chapter end.]

Though it is evident that the post-office and the surveyor's compass were not making a rich man of him, they were sufficient to enable him to live decently, and during the year he greatly increased his acquaintance and his influence in the county. The one followed the other naturally; every acquaintance he made became his friend, and even before the end of his unsuccessful canvass in 1832 it had become evident to the observant politicians of the district that he was a man whom it would not do to leave out of their calculations. There seemed to be no limit to his popularity nor to his aptitudes, in the opinion of his admirers. He was continually called on to serve in the most incongruous capacities. Old residents say he was the best judge at a horse-race the county afforded; he was occasionally second in a duel of fisticuffs, though he usually contrived to reconcile the adversaries on the turf before any damage was done; he was the arbiter on all controverted points of literature, science, or woodcraft among the disputatious denizens of Clary's Grove, and his decisions were never appealed from. His native tact and humor were invaluable in his work as a peacemaker, and his enormous physical strength, which he always used with a magnanimity rare among giants, placed his off-hand decrees beyond the reach of contemptuous question. He composed differences among

friends and equals with good-natured raillery, but he was as rough as need be when his wrath was roused by meanness and cruelty. We hardly know whether to credit some of the stories, apparently well-attested by living witnesses, of his prodigious muscular powers. He is said to have lifted, at Rutledge's mill, a box of stones weighing over half a ton! It is also related that he could raise a barrel of whisky from the ground and drink from the bung—but the narrator adds that he never swallowed the whisky. Whether these traditions are strictly true or not, they are evidently founded on the current reputation he enjoyed among his fellows for extraordinary strength, and this was an important element in his influence. He was known to be capable of handling almost any man he met, yet he never sought a quarrel. He was everybody's friend and yet used no liquor or tobacco. He was poor and had scarcely ever been at school, yet he was the best-informed young man in the village. He had grown up on the frontier, the utmost fringe of civilization, yet he was gentle and clean of speech, innocent of blasphemy or scandal. His good qualities might have excited resentment if displayed by a well-dressed stranger from an Eastern State, but the most uncouth ruffians of New Salem took a sort of proprietary interest and pride in the decency and the cleverness and the learning of their friend and comrade, Abe Lincoln.

It was regarded, therefore, almost as a matter of course that Lincoln should be a candidate for the Legislature at the next election, which took place in August, 1834. He was sure of the united support of the Whigs, and so many of the Democrats also wanted to vote for him that some of the leading members of that party came to him and proposed they should give him an organized support. He was too loyal a partisan to accept their overtures without taking counsel from the Whig candidates. He laid the matter before Major Stuart, who at once advised him to make the canvass. It was a generous and chivalrous action, for by thus encouraging the candidacy of Lincoln he was endangering his own election. But his success

two years before, in the face of a vindictive opposition led by the strongest Jackson men in the district, had made him somewhat confident, and he perhaps thought he was risking little by giving a helping hand to his comrade in the Spy Battalion. Before the election Lincoln's popularity developed itself in rather a portentous manner, and it required some exertion to save the seat of his generous friend. At the close of the poll, the four successful candidates held the following relative positions: Lincoln, 1376; Dawson, 1370; Carpenter, 1170; and Stuart, at that time probably the most prominent young man in the district, and the one marked out by the public voice for an early election to Congress, 1164.

[Relocated Footnote (1): The following is an extract from the court record: "March 6, 1833. Ordered that William F. Berry, in the name of Berry and Lincoln, have license to keep a tavern in New Salem, to continue twelve months from this date, and that they pay one dollar in addition to six dollars heretofore prepaid as per Treasurer's receipt, and that they be allowed the following rates, viz.: French brandy, per pint, 25; Peach, 183/4; Apple, 12; Holland Gin, 183/4; Domestic, 121/2; Wine, 25; Rum, 183/4; Whisky, 121/2; Breakfast, dinner, or supper, 25; Lodging for night, 121/2; Horse for night, 25; Single feed, 121/2; Breakfast, dinner, or supper, for stage passengers, 371/2. Who gave bond as required by law."]

[Relocated Footnote (2): There has been some discussion as to whether Lincoln served as deputy under Calhoun or Neale. The truth is that he served under both of them. Calhoun was surveyor in 1833, when Lincoln first learned the business. Neale was elected in 1835, and immediately appointed Lincoln and Calhoun as his deputies. The "Sangamo Journal" of Sept, 12, 1835, contains the following official advertisement:

"SURVEYOR'S NOTICE.—I have appointed John B. Watson, Abram Lincoln, and John Calhoun deputy surveyors for Sangamon County. In my

absence from town, any persons wishing their land surveyed will do well to call at the Recorder's office and enter his or their names in a book left for that purpose, stating township and range in which they respectively live, and their business shall be promptly attended to.

"T. M. NEALE."

An article by Colonel G. A. Pierce, printed April 21, 1881, in the Chicago "Inter-Ocean," describes an interview held in that month with W.G. Green, of Menard County, in which this matter is referred to. But Mr. Green relies more on the document in his possession than on his recollection of what took place in 1833. "'Where did Lincoln learn his surveying?' I asked. 'Took it up himself,' replied Mr. Green, 'as he did a hundred things, and mastered it too. When he acted as surveyor here he was deputy of T. M. Neale, and not of Calhoun, as has often been said. There was a dispute about this, and many sketches of his life gave Calhoun (Candle-box Calhoun, as he was afterwards known during the Kansas troubles and election frauds) as the surveyor, but it was Neale.' Mr. Green turned to his desk and drew out an old certificate, in the handwriting of Lincoln, giving the boundaries of certain lands, and signed, 'T. M. Neale, Surveyor, by A. Lincoln, Deputy,' thus settling the question. Mr. Green was a Democrat, and has leaned towards that party all his life, but what he thought and thinks of Lincoln can be seen by an endorsement on the back of the certificate named, which is as follows:"

(Preserve this, as it is the noblest of God's creation—A. Lincoln, the 2d preserver of his country. May 3, 1865.—Penned by W. G. Green, who taught Lincoln the English grammar in 1831.)]

[Relocated Footnote (3): As this is probably the earliest public document extant written and signed by Lincoln, we give it in full:

"March 3, 1834. Reuben Harrison presented the following petition: We, the undersigned, respectfully request your honorable body to appoint viewers to view and locate a road from Musick's ferry on Salt Creek, via New Salem, to the county line in the direction of Jacksonville.

"And Abram Lincoln deposited with the clerk \$10, as the law directs. Ordered, that Michael Killion, Hugh Armstrong, and Abram Lincoln be appointed to view said road, and said Lincoln to act as surveyor.

"To the County Commissioners' Court for the county of Sangamon, at its June term, 1834. We, the undersigned, being appointed to view and locate a "Whole length of road, 26 road, beginning at Musick's ferry on Salt Creek, via New Salem, to the county line in the direction to Jacksonville, respectfully report that we have performed the duties of said view and location, as required by law, and that we have made the location on good ground, and believe the establishment of the same to be necessary and proper.

"The inclosed map gives the courses and distances as required by law. Michael Killion, Hugh Armstrong, A. Lincoln."

(Indorsement in pencil, also in Lincoln's handwriting:)

"A. Lincoln, 5 days at \$3.00, \$15.00. John A. Kelsoe, chain-bearer, for 5 days at 75 cents, \$3.75. Robert Lloyd, at 75 cents, \$3.75. Hugh Armstrong, for services as axeman, 5 days at 75 cents, \$3.75. A. Lincoln, for making plot and report, \$2.50."

(On Map.) "Whole length of road, 26 miles and 70 chains. Scale, 2 inches to the mile."]

CHAPTER VII

LEGISLATIVE EXPERIENCE

The election of Mr. Lincoln to the Legislature may be said to have closed the pioneer portion of his life. He was done with the wild carelessness of the woods, with the jolly ruffianism of Clary's Grove, with the petty chaffering of grocery stores, with odd jobs for daily bread, with all the uncouth squalor of the frontier poverty. It was not that his pecuniary circumstances were materially improved. He was still, and for years continued to be, a very poor man, harassed by debts which he was always working to pay, and sometimes in distress for the means of decent subsistence. But from this time forward his associations were with a better class of men than he had ever known before, and a new feeling of self-respect must naturally have grown up in his mind from his constant intercourse with them—a feeling which extended to the minor morals of civilized life. A sophisticated reader may smile at the mention of anything like social ethics in Vandalia in 1834; but, compared with Gentryville and New Salem, the society which assembled in the winter at that little capital was polished and elegant. The State then contained nearly 250,000 inhabitants, and the members of the Legislature, elected purely on personal grounds, nominated by themselves or their neighbors without the intervention of party machinery, were necessarily the leading men, in one way or another, in their several districts. Among the colleagues of Lincoln

at Vandalia were young men with destinies only less brilliant than his own. They were to become governors, senators, and judges; they were to organize the Whig party of Illinois, and afterwards the Republican; they were to lead brigades and divisions in two great wars. Among the first persons he met there—not in the Legislature proper, but in the lobby, where he was trying to appropriate an office then filled by Colonel John J. Hardin—was his future antagonist, Stephen A. Douglas. Neither seemed to have any presentiment of the future greatness of the other. Douglas thought little of the raw youth from the Sangamon timber, and Lincoln said the dwarfish Vermonter was "the least man he had ever seen." To all appearance, Vandalia was full of better men than either of them—clever lawyers, men of wit and standing, some of them the sons of provident early settlers, but more who had come from older States to seek their fortunes in these fresh fields.

During his first session Lincoln occupied no especially conspicuous position. He held his own respectably among the best. One of his colleagues tells us he was not distinguished by any external eccentricity; that he wore, according to the custom of the time, a decent suit of blue jeans; that he was known simply as a rather quiet young man, good-natured and sensible. Before the session ended he had made the acquaintance of most of the members, and had evidently come to be looked upon as possessing more than ordinary capacity. His unusual common-sense began to be recognized. His name does not often appear in the records of the year. He introduced a resolution in favor of securing to the State a part of the proceeds of the sales of public lands within its limits; he took part in the organization of the ephemeral "White" party, which was designed to unite all the anti- Jackson elements under the leadership of Hugh L. White, of Tennessee; he voted with the minority in favor of Young against Robinson for senator, and with the majority that passed the Bank and Canal bills, which were received with great enthusiasm throughout Illinois, and which were only the precursors of

those gigantic and ill-advised schemes that came to maturity two years later, and inflicted incalculable injury upon the State.

Lincoln returned to New Salem, after this winter's experience of men and things at the little capital, much firmer on his feet than ever before. He had had the opportunity of measuring himself with the leading men of the community, and had found no difficulty whatever in keeping pace with them. He continued his studies of the law and surveying together, and became quite indispensable in the latter capacity—so much so that General Neale, announcing in September, 1835, the names of the deputy surveyors of Sangamon County, placed the name of Lincoln before that of his old master in the science, John Calhoun. He returned to the Legislature in the winter of 1835-6, and one of the first important incidents of the session was the election of a senator to fill the vacancy occasioned by the death of Elias Kent Kane. There was no lack of candidates. A journal of the time says: "This intelligence reached Vandalia on the evening of the 26th of December, and in the morning nine candidates appeared in that place, and it was anticipated that a number more would soon be in, among them 'the lion of the North,' who, it is thought, will claim the office by preemption." [Footnote: "Sangamo Journal," January 2.] It is not known who was the roaring celebrity here referred to, but the successful candidate was General William L. D. Ewing, who was elected by a majority of one vote. Lincoln and the other Whigs voted for him, not because he was a "White" man, as they frankly stated, but because "he had been proscribed by the Van Buren party." Mr. Semple, the candidate for the regular Democratic caucus, was beaten simply on account of his political orthodoxy.

A minority is always strongly in favor of independent action and bitterly opposed to caucuses, and therefore we need not be surprised at finding Mr. Lincoln, a few days later in the session, joining in hearty denunciation of the convention system, which had already become popular in the East, and

which General Jackson was then urging upon his faithful followers. The missionaries of this new system in Illinois were Stephen A. Douglas, recently from Vermont, the shifty young lawyer from Morgan County, who had just succeeded in having himself made circuit attorney in place of Colonel Hardin, and a man who was then regarded in Vandalia as a far more important and dangerous person than Douglas, Ebenezer Peck, of Chicago. Peck was looked upon with distrust and suspicion for several reasons, all of which seemed valid to the rural legislators assembled there. He came from Canada, where he had been a member of the provincial parliament; it was therefore imagined that he was permeated with secret hostility to republican institutions; his garb, his furs, were of the fashion of Quebec; and he passed his time indoctrinating the Jackson men with the theory and practice of party organization, teachings which they eagerly absorbed, and which seemed sinister and ominous to the Whigs. He was showing them, in fact, the way in which elections were to be won; and though the Whigs denounced his system as subversive of individual freedom and private judgment, it was not long before they were also forced to adopt it, or be left alone with their virtue. The organization of political parties in Illinois really takes its rise from this time, and in great measure from the work of Mr. Peck with the Vandalia Legislature. There was no man more dreaded and disliked than he was by the stalwart young Whigs against whom he was organizing that solid and disciplined opposition. But a quarter of a century brings wonderful changes. Twenty-five years later Mr. Peck stood shoulder to shoulder with these very men who then reviled him as a Canadian emissary of tyranny and corruption,—with S. T. Logan, O. H. Browning, and J. K. Dubois,—organizing a new party for victory under the name of Abraham Lincoln.

[Illustration: O. H. Browning.]

The Legislature adjourned on the 18th of January, having made a beginning, it is true, in the work of improving the State by statute, though its modest work, incorporating canal and bridge companies and providing for public roads, bore no relation to the ambitious essays of its successor. Among the bills passed at this session was an Apportionment act, by which Sangamon County became entitled to seven representatives and two senators, and early in the spring eight "White" statesmen of the county were ready for the field—the ninth, Mr. Herndon, holding over as State Senator. It seems singular to us of a later day that just eight prominent men, on a side, should have offered themselves for these places, without the intervention of any primary meetings. Such a thing, if we mistake not, was never known again in Illinois. The convention system was afterwards seen to be an absolute necessity to prevent the disorganization of parties through the restless vanity of obscure and insubordinate aspirants. But the eight who "took the stump" in Sangamon in the summer of 1836 were supported as loyally and as energetically as if they had been nominated with all the solemnity of modern days. They became famous in the history of the State, partly for their stature and partly for their influence in legislation. They were called, with Herndon, the "Long Nine;" their average height was over six feet, and their aggregate altitude was said to be fifty-five feet. Their names were Abraham Lincoln, John Dawson, Dan Stone, Ninian W. Edwards, William F. Elkin, R. L. Wilson, and Andrew McCormick, candidates for the House of Representatives, and Job Fletcher for the Senate, of Illinois.

Mr. Lincoln began his canvass with the following circular:

NEW SALEM/June 13, 1836.

To the Editor of the "Journal."

In your paper of last Saturday I see a communication over the signature "Many Voters" in which the candidates who are announced in the "Journal" are called upon to "show their hands." Agreed. Here's mine.

I go for all sharing the privileges of the Government who assist in bearing its burdens. Consequently I go for admitting all whites to the right of suffrage who pay taxes or bear arms (by no means excluding females).

If elected, I shall consider the whole people of Sangamon my constituents, as well those that oppose as those that support me.

While acting as their representative I shall be governed by their will on all subjects upon which I have the means of knowing what their will is, and upon all others I shall do what my own judgment teaches me will best advance their interests. Whether elected or not, I go for distributing the proceeds of the sales of the public lands to the several States, to enable our State, in common with others, to dig canals and construct railroads without borrowing money and paying interest on it.

If alive on the first Monday in November, I shall vote for Hugh L. White for President. [Footnote: This phrase seems to have been adopted as a formula by the anti-Jackson party. The "cards" of several candidates contain it.]

Very respectfully,
A. LINCOLN.

It would be hard to imagine a more audacious and unqualified declaration of principles and intentions. But it was the fashion of the hour to promise exact obedience to the will of the people, and the two practical questions touched by this circular were the only ones then much talked about. The

question of suffrage for aliens was a living problem in the State, and Mr. Lincoln naturally took liberal ground on it; and he was also in favor of getting from the sale of public lands a portion of the money he was ready to vote for internal improvements. This was good Whig doctrine at that time, and the young politician did not fancy he could go wrong in following in such a matter the lead of his idol, Henry Clay.

He made an active canvass, and spoke frequently during the summer. He must have made some part of the campaign on foot, for we find in the county paper an advertisement of a horse which had strayed or been stolen from him while on a visit to Springfield. It was not an imposing animal, to judge from the description; it was "plainly marked with harness," and was "believed to have lost some of his shoes"; but it was a large horse, as suited a cavalier of such stature, and "trotted and paced" in a serviceable manner. In July a rather remarkable discussion took place at the county-seat, in which many of the leading men on both sides took part. Ninian Edwards, son of the late Governor, is said to have opened the debate with much effect. Mr. Early, who followed him, was so roused by his energetic attack that he felt his only resource was a flat contradiction, which in those days meant mischief. In the midst of great and increasing excitement Dan Stone and John Calhoun made speeches which did not tend to pour oil on the waters of contention, and then came Mr. Lincoln's turn. An article in the "Journal" states that he seemed embarrassed in his opening, for this was the most important contest in which he had ever been engaged. But he soon felt the easy mastery of his powers come back to him, and he finally made what was universally regarded as the strongest speech of the day. One of his colleagues says that on this occasion he used in his excitement for the first time that singularly effective clear tenor tone of voice which afterwards became so widely known in the political battles of the West. The canvass was an energetic one throughout, and excited more interest, in the district than even the presidential election, which occurred some months later. Mr.

Lincoln was elected at the head of the poll by a majority greatly in excess of the average majority of his friends, which shows conclusively how his influence and popularity had increased. The Whigs in this election effected a revolution in the politics of the county. By force of their ability and standing they had before managed to divide the suffrages of the people, even while they were unquestionably in the minority; but this year they completely defeated their opponents and gained that control of the county which they never lost as long as the party endured.

If Mr. Lincoln had no other claims to be remembered than his services in the Legislature of 1836-7, there would be little to say in his favor. Its history is one of disaster to the State. Its legislation was almost wholly unwise and hurtful. The most we can say for Mr. Lincoln is that he obeyed the will of his constituents, as he promised to do, and labored with singular skill and ability to accomplish the objects desired by the people who gave him their votes. The especial work intrusted to him was the subdivision of the county, and the project for the removal of the capital of the State to Springfield. [Footnote: "Lincoln was at the head of the project to remove the seat of government to Springfield; it was entirely intrusted to him to manage. The members were all elected on one ticket, but they all looked to Lincoln as the head" STEPHEN T, LOGAN.] In both of these he was successful. In the account of errors and follies committed by the Legislature to the lasting injury of the State, he is entitled to no praise or blame beyond the rest. He shared in that sanguine epidemic of financial and industrial quackery which devastated the entire community, and voted with the best men of the country in favor of schemes which appeared then like a promise of an immediate millennium, and seem now like midsummer madness.

[Sidenote: Ford, p. 102.]

[Footnote: Reynolds, "Life and Times."]

He entered political life in one of those eras of delusive prosperity which so often precede great financial convulsions. The population of the State was increasing at the enormous rate of two hundred percent in ten years. It had extended northward along the lines of the wooded valleys of creeks and rivers in the center to Peoria; on the west by the banks of the Mississippi to Galena; on the east with wide intervals of wilderness to Chicago. The edge of the timber was everywhere pretty well occupied, though the immigrants from the forest States of Kentucky and Tennessee had as yet avoided the prairies. The rich soil and equable climate were now attracting an excellent class of settlers from the older States, and the long-neglected northern counties were receiving the attention they deserved. The war of Black Hawk had brought the country into notice; the utter defeat of his nation had given the guarantee of a permanent peace; the last lodges of the Pottawatomies had disappeared from the country in 1833. The money spent by the general Government during the war, and paid to the volunteers at its close, added to the common prosperity. There was a brisk trade in real estate, and there was even a beginning in Chicago of that passion for speculation in town lots which afterwards became a frenzy.

It was too much to expect of the Illinois Legislature that it should understand that the best thing it could do to forward this prosperous tendency of things was to do nothing; for this is a lesson which has not yet been learned by any legislature in the world. For several years they had been tinkering, at first modestly and tentatively, at a scheme of internal improvements which should not cost too much money. In 1835 they began to grant charters for railroads, which remained in embryo, as the stock was never taken. Surveys for other railroads were also proposed, to cross the State in different directions; and the project of uniting Lake Michigan with the Illinois River by a canal was of too evident utility to be overlooked. In fact, the route had been surveyed, and estimates of cost made, companies incorporated, and all preliminaries completed many years before, though

nothing further had been done, as no funds had been offered from any source. But at the special session of 1835 a law was passed authorizing a loan of half a million dollars for this purpose; the loan was effected by Governor Duncan the following year, and in June, aboard of canal commissioners having been appointed, a beginning was actually made with pick and shovel.

[Sidenote: Ford, p. 181.]

A restless feeling of hazardous speculation seemed to be taking possession of the State. "It commenced," says Governor Ford, in his admirable chronicle, "at Chicago, and was the means of building up that place in a year or two from a village of a few houses to be a city of several thousand inhabitants. The story of the sudden fortunes made there excited at first wonder and amazement; next, a gambling spirit of adventure; and lastly, an all-absorbing desire for sudden and splendid wealth. Chicago had been for some time only one great town-market. The plots of towns for a hundred miles around were carried there to be disposed of at auction. The Eastern people had caught the mania. Every vessel coming west was loaded with them, their money and means, bound for Chicago, the great fairy-land of fortunes. But as enough did not come to satisfy the insatiable greediness of the Chicago sharpers and speculators, they frequently consigned their wares to Eastern markets. In fact, lands and town lots were the staple of the country, and were the only article of export." The contagion spread so rapidly, towns and cities were laid out so profusely, that it was a standing joke that before long there would be no land left in the State for farming purposes.

The future of the State for many years to come was thus discounted by the fervid imaginations of its inhabitants. "We have every requisite of a great empire," they said, "except enterprise and inhabitants," and they

thought that a little enterprise would bring the inhabitants. Through the spring and summer of 1836 the talk of internal improvements grew more general and more clamorous. The candidates for office spoke about little else, and the only point of emulation among the parties was which should be the more reckless and grandiose in its promises. When the time arrived for the assembling of the Legislature, the members were not left to their own zeal and the recollection of their campaign pledges, but meetings and conventions were everywhere held to spur them up to the fulfillment of their mandate. The resolutions passed by the principal body of delegates who came together in December directed the Legislature to vote a system of internal improvements "commensurate with the wants of the people," a phrase which is never lacking in the mouth of the charlatan or the demagogue.

[Sidenote: "Ford's History," p. 184.]

These demands were pressed upon a not reluctant Legislature. They addressed themselves at once to the work required of them, and soon devised, with reckless and unreasoning haste, a scheme of railroads covering the vast uninhabited prairies as with a gridiron. There was to be a rail-road from Galena to the mouth of the Ohio River; from Alton to Shawneetown; from Alton to Mount Carmel; from Alton to the eastern State boundary—by virtue of which lines Alton was to take the life of St. Louis without further notice; from Quincy to the Wabash River; from Bloomington to Pekin; from Peoria to Warsaw;—in all, 1350 miles of railway. Some of these terminal cities were not in existence except upon neatly designed surveyor's maps. The scheme provided also for the improvement of every stream in the State on which a child's shingle-boat could sail; and to the end that all objections should be stifled on the part of those neighborhoods which had neither railroads nor rivers, a gift of two hundred thousand dollars was voted to them, and with this sop they were

fain to be content and not trouble the general joy. To accomplish this stupendous scheme, the Legislature voted eight million dollars, to be raised by loan. Four millions were also voted to complete the canal. These sums, monstrous as they were, were still ridiculously inadequate to the purpose in view. But while the frenzy lasted there was no consideration of cost or of possibilities. These vast works were voted without estimates, without surveys, without any rational consideration of their necessity. The voice of reason seemed to be silent in the Assembly; only the utterances of fervid prophecy found listeners. Governor Ford speaks of one orator who insisted, amid enthusiastic plaudits, that the State could well afford to borrow one hundred millions for internal improvements. The process of reasoning, or rather predicting, was easy and natural. The roads would raise the price of land; the State could enter large tracts and sell them at a profit; foreign capital would be invested in land, and could be heavily taxed to pay bonded interest; and the roads, as fast as they were built, could be operated at a great profit to pay for their own construction. The climax of the whole folly was reached by the provision of law directing that work should be begun at once at the termini of all the roads and the crossings of all rivers.

It is futile and disingenuous to attempt, as some have done, to fasten upon one or the other of the political parties of the State the responsibility of this bedlam legislation. The Governor and a majority of the Legislature were elected as Jackson Democrats, but the Whigs were as earnest in passing these measures as their opponents; and after they were adopted, the superior wealth, education, and business capacity of the Whigs had their legitimate influence, and they filled the principal positions upon the boards and commissions which came into existence under the acts. The bills were passed,—not without opposition, it is true, but by sufficient majorities,—and the news was received by the people of the State with the most extravagant demonstrations of delight. The villages were illuminated; bells were rung in the rare steeples of the churches; "fire-balls,"—bundles of

candle-wick soaked in turpentine,—were thrown by night all over the country. The day of payment was far away, and those who trusted the assurances of the sanguine politicians thought that in some mysterious way the scheme would pay for itself.

Mr. Lincoln is continually found voting with his friends in favor of this legislation, and there is nothing to show that he saw any danger in it. He was a Whig, and as such in favor of internal improvements in general and a liberal construction of constitutional law in such matters. As a boy, he had interested himself in the details of local improvements of rivers and roads, and he doubtless went with the current in Vandalia in favor of this enormous system. He took, however, no prominent part in the work by which these railroad bills were passed. He considered himself as specially commissioned to procure the removal of the State capital from Vandalia to Springfield, and he applied all his energies to the accomplishment of this work. The enterprise was hedged round with difficulties; for although it was everywhere agreed, except at Vandalia, that the capital ought to be moved, every city in the State, and several which existed only on paper, demanded to be made the seat of government. The question had been submitted to a popular vote in 1834, and the result showed about as many cities desirous of opening their gates to the Legislature as claimed the honor of being the birthplace of Homer. Of these Springfield was only third in popular estimation, and it was evident that Mr. Lincoln had need of all his wits if he were to fulfill the trust confided to him. It is said by Governor Ford that the "Long Nine" were not averse to using the hopes and fears of other members in relation to their special railroads to gain their adherence to the Springfield programme, but this is by no means clear. We are rather inclined to trust the direct testimony of Jesse K. Dubois, that the success of the Sangamon County delegation in obtaining the capital was due to the adroit management of Mr. Lincoln—first in inducing all the rival claimants to unite in a vote to move the capital from Vandalia, and then in carrying a

direct vote for Springfield through the joint convention by the assistance of the southern counties. His personal authority accomplished this in great part. Mr. Dubois says: "He made Webb and me vote for the removal, though we belonged to the southern end of the State. We defended our vote before our constituents by saying that necessity would ultimately force the seat of government to a central position. But in reality we gave the vote to Lincoln because we liked him, because we wanted to oblige our friend, and because we recognized him as our leader." To do this, they were obliged to quarrel with their most intimate associates, who had bought a piece of waste land at the exact geographical center of the State and were striving to have the capital established there in the interest of their own pockets and territorial symmetry.

The bill was passed only a short time before the Legislature adjourned, and the "Long Nine" came back to their constituents wearing their well-won laurels. They were complimented in the newspapers, at public meetings, and even at subscription dinners. We read of one at Springfield, at the "Rural Hotel," to which sixty guests sat down, where there were speeches by Browning, Lincoln, Douglas (who had resigned his seat in the Legislature to become Register of the Land Office at the new capital), S. T. Logan, Baker, and others, whose wit and wisdom were lost to history through the absence of reporters. Another dinner was given them at Athens a few weeks later. Among the toasts on these occasions were two which we may transcribe: "Abraham Lincoln: He has fulfilled the expectations of his friends, and disappointed the hopes of his enemies"; and "A. Lincoln: One of Nature's noblemen."

CHAPTER VIII

THE LINCOLN-STONE PROTEST

[Sidenote: 1837.]

On the 3rd of March, the day before the Legislature adjourned, Mr. Lincoln caused to be entered upon its records a paper which excited but little interest at the time, but which will probably be remembered long after the good and evil actions of the Vandalia Assembly have faded away from the minds of men. It was the authentic record of the beginning of a great and momentous career. The following protest was presented to the House, which was read and ordered to be spread on the journals, to wit:

Resolutions upon the subject of domestic slavery having passed both branches of the General Assembly at its present session, the undersigned hereby protest against the passage of the same.

They believe that the institution of slavery is founded on both injustice and bad policy, but that the promulgation of abolition doctrines tends rather to increase than abate its evils.

They believe that the Congress of the United States has no power under the Constitution to interfere with the institution of slavery in

the different States.

They believe that the Congress of the United States has the power, under the Constitution, to abolish slavery in the District of Columbia, but that the power ought not to be exercised, unless at the request of the people of the District.

The difference between these opinions and those contained in the above resolutions is their reason for entering this protest.

(Signed)
DAN STONE,
A. LINCOLN,
Representatives from the county of Sangamon.

It may seem strange to those who shall read these pages that a protest so mild and cautious as this should ever have been considered either necessary or remarkable. We have gone so far away from the habits of thought and feeling prevalent at that time that it is difficult to appreciate such acts at their true value. But if we look a little carefully into the state of politics and public opinion in Illinois in the first half of this century, we shall see how much of inflexible conscience and reason there was in this simple protest.

[Sidenote: Edwards, "History of Illinois," p. 179.]

[Sidenote: Edwards, p. 180.]

The whole of the North-west territory had, it is true, been dedicated to freedom by the ordinance of 1787, but in spite of that famous prohibition, slavery existed in a modified form throughout that vast territory wherever there was any considerable population. An act legalizing a sort of slavery by indenture was passed by the Indiana territorial Legislature in 1807, and this

remained in force in the Illinois country after its separation. Another act providing for the hiring of slaves from Southern States was passed in 1814, for the ostensible reason that "mills could not be successfully operated in the territory for want of laborers, and that the manufacture of salt could not be successfully carried on by white laborers." Yet, as an unconscious satire upon such pretenses, from time to time the most savage acts were passed to prohibit the immigration of free negroes into the territory which was represented as pining for black labor. Those who held slaves under the French domination, and their heirs, continued to hold them and their descendants in servitude, after Illinois had become nominally a free territory and a free State, on the ground that their vested rights of property could not have been abrogated by the ordinance, and that under the rule of the civil law *partus sequitur ventrem*.

But this quasi-toleration of the institution was not enough for the advocates of slavery. Soon after the adoption of the State Constitution, which prohibited slavery "hereafter," it was evident that there was a strong under-current of desire for its introduction into the State. Some of the leading politicians, exaggerating the extent of this desire, imagined they saw in it a means of personal advancement, and began to agitate the question of a convention to amend the Constitution. At that time there was a considerable emigration setting through the State from Kentucky and Tennessee to Missouri. Day by day the teams of the movers passed through the Illinois settlements, and wherever they halted for rest and refreshment they would affect to deplore the short-sighted policy which, by prohibiting slavery, had prevented their settling in that beautiful country. When young bachelors came from Kentucky on trips of business or pleasure, they dazzled the eyes of the women and excited the envy of their male rivals with their black retainers. The early Illinoisans were perplexed with a secret and singular sense of inferiority to even so new and raw a community as Missouri, because of its possession of slavery. Governor Edwards,

complaining so late as 1829 of the superior mail facilities afforded to Missouri, says: "I can conceive of no reason for this preference, unless it be supposed that because the people of Missouri have negroes to work for them they are to be considered as gentlefolks entitled to higher consideration than us plain 'free-State' folks who have to work for ourselves."

The attempt was at last seriously made to open the State to slavery by the Legislature of 1822-3. The Governor, Edward Coles, of Virginia, a strong antislavery man, had been elected by a division of the pro-slavery party, but came in with a Legislature largely against him. The Senate had the requisite pro-slavery majority of two-thirds for a convention. In the House of Representatives there was a contest for a seat upon the result of which the two-thirds majority depended. The seat was claimed by John Shaw and Nicholas Hansen, of Pike County. The way in which the contest was decided affords a curious illustration of the moral sense of the advocates of slavery. They wanted at this session to elect a senator and provide for the convention. Hansen would vote for their senator and not for the convention. Shaw would vote for the convention, but not for Thomas, their candidate for senator. In such a dilemma they determined not to choose, but impartially to use both. They gave the seat to Hansen, and with his vote elected Thomas; they then turned him out, gave the place to Shaw, and with his vote carried the act for submitting the convention question to a popular vote. They were not more magnanimous in their victory than scrupulous in the means by which they had gained it. The night after the vote was taken they formed in a wild and drunken procession, and visited the residences of the Governor and the other free-State leaders, with loud and indecent demonstrations of triumph.

They considered their success already assured; but they left out of view the value of the moral forces called into being by their insolent challenge.

The better class of people in the State, those heretofore unknown in politics, the schoolmasters, the ministers, immediately prepared for the contest, which became one of the severest the State has ever known. They established three newspapers, and sustained them with money and contributions. The Governor gave his entire salary for four years to the expenses of this contest, in which he had no personal interest whatever. The antislavery members of the Legislature made up a purse of a thousand dollars. They spent their money mostly in printer's ink and in the payment of active and zealous colporteurs. The result was a decisive defeat for the slave party. The convention was beaten by 1800 majority, in a total vote of 11612, and the State saved forever from slavery.

[Illustration: MARTIN VAN BUREN.]

But these supreme efforts of the advocates of public morals, uninfluenced by considerations of personal advantage, are of rare occurrence, and necessarily do not survive the exigencies that call them forth. The apologists of slavery, beaten in the canvass, were more successful in the field of social opinion. In the reaction which succeeded the triumph of the antislavery party, it seemed as if there had never been any antislavery sentiment in the State. They had voted, it is true, against the importation of slaves from the South, but they were content to live under a code of Draconian ferocity, inspired by the very spirit of slavery, visiting the immigration of free negroes with penalties of the most savage description. Even Governor Coles, the public-spirited and popular politician, was indicted and severely fined for having brought his own freedmen into the State and having assisted them in establishing themselves around him upon farms of their own. The Legislature remitted the fine, but the Circuit Court declared it had no constitutional power to do so, though the Supreme Court afterwards overruled this decision. Any mention of the subject of slavery was thought in the worst possible taste, and no one could avow himself

opposed to it without the risk of social ostracism. Every town had its one or two abolitionists, who were regarded as harmless or dangerous lunatics, according to the energy with which they made their views known.

From this arose a singular prejudice against New England people. It was attributable partly to the natural feeling of distrust of strangers which is common to ignorance and provincialism, but still more to a general suspicion that all Eastern men were abolitionists. Mr. Cook, who so long represented the State in Congress, used to relate with much amusement how he once spent the night in a farmer's cabin, and listened to the honest man's denunciations of "that—— Yankee Cook." Cook was a Kentuckian, but his enemies could think of no more dreadful stigma to apply to him than that of calling him a Yankee. Senator James A. McDougall once told us that although he made no pretense of concealing his Eastern nativity, he never could keep his ardent friends in Pike County from denying the fact and fighting any one who asserted it. The great preacher, Peter Cartwright, used to denounce Eastern men roundly in his sermons, calling them "imps who lived on oysters" instead of honest corn-bread and bacon. The taint of slavery, the contagion of a plague they had not quite escaped, was on the people of Illinois. They were strong enough to rise once in their might and say they would not have slavery among them. But in the petty details of every day, in their ordinary talk, and in their routine legislation, their sympathies were still with the slave-holders. They would not enlist with them, but they would fight their battles in their own way.

Their readiness to do what came to be called later, in a famous speech, the "dirty work" of the South was seen in the tragic death of Rev. Elijah P. Lovejoy, in this very year of 1837. He had for some years been publishing a religious newspaper in St. Louis, but finding the atmosphere of that city becoming dangerous to him on account of the freedom of his comments upon Southern institutions, he moved to Alton, in Illinois, twenty-five miles

further up the river. His arrival excited an immediate tumult in that place; a mob gathered there on the day he came—it was Sunday, and the good people were at leisure—and threw his press into the Mississippi. Having thus expressed their determination to vindicate the law, they held a meeting, and cited him before it to declare his intentions. He said they were altogether peaceful and legal; that he intended to publish a religious newspaper and not to meddle with politics. This seemed satisfactory to the people, and he was allowed to fish out his press, buy new types, and set up his paper. But Mr. Lovejoy was a predestined martyr. He felt there was a "woe" upon him if he held his peace against the wickedness across the river. He wrote and published what was in his heart to say, and Alton was again vehemently moved. A committee appointed itself to wait upon him; for this sort of outrage is usually accomplished with a curious formality which makes it seem to the participants legal and orderly. The preacher met them with an undaunted front and told them he must do his duty as it appeared to him; that he was amenable to law, but nothing else; he even spoke in condemnation of mobs. Such language "from a minister of the gospel" shocked and infuriated the committee and those whom they represented. "The people assembled," says Governor Ford, "and quietly took the press and types and threw them into the river." We venture to say that the word "quietly" never before found itself in such company. It is not worth while to give the details of the bloody drama that now rapidly ran to its close. There was a fruitless effort at compromise, which to Lovejoy meant merely surrender, and which he firmly rejected. The threats of the mob were answered by defiance; from the little band that surrounded the abolitionist. A new press was ordered, and arrived, and was stored in a warehouse, where Lovejoy and his friends shut themselves up, determined to defend it with their lives. They were there besieged by the infuriated crowd, and after a short interchange of shots Lovejoy was killed, his friends dispersed, and the press once more—and this time finally—thrown into the turbid flood.

These events took place in the autumn of 1837, but they indicate sufficiently the temper of the people of the State in the earlier part of the year.

[Sidenote: Law approved Dec. 26, 1831.]

The vehemence with which the early antislavery apostles were conducting their agitation in the East naturally roused a corresponding violence of expression in every other part of the country. William Lloyd Garrison, the boldest and most aggressive non-resistant that ever lived, had, since 1831, been pouring forth once a week in the "Liberator" his earnest and eloquent denunciations of slavery, taking no account of the expedient or the possible, but demanding with all the fervor of an ancient prophet the immediate removal of the cause of offense. Oliver Johnson attacked the national sin and wrong, in the "Standard," with zeal and energy equally hot and untiring. Their words stung the slave-holding States to something like frenzy. The Georgia Legislature offered a reward of five thousand dollars to any one who should kidnap Garrison, or who should bring to conviction any one circulating the "Liberator" in the State. Yet so little known in their own neighborhoods were these early workers in this great reform that when the Mayor of Boston received remonstrances from certain Southern States against such an incendiary publication as the "Liberator," he was able to say that no member of the city government and no person of his acquaintance had ever heard of the paper or its editor; that on search being made it was found that "his office was an obscure hole, his only visible auxiliary a negro boy, and his supporters a very few insignificant persons of all colors." But the leaven worked continually, and by the time of which we are writing the antislavery societies of the Northeast had attained a considerable vitality, and the echoes of their work came back from the South in furious resolutions of legislatures and other bodies, which, in their exasperation, could not refrain from this injudicious

advertising of their enemies. Petitions to Congress, which were met by gag-laws, constantly increasing in severity, brought the dreaded discussion more and more before the public. But there was as yet little or no antislavery agitation in Illinois.

[Sidenote: Jan 25, 1837.]

There was no sympathy with nor even toleration for any public expression of hostility to slavery. The zeal of the followers of Jackson, although he had ceased to be President, had been whetted by his public denunciations of the antislavery propaganda; little more than a year before he had called upon Congress to take measures to "prohibit under severe penalties" the further progress of such incendiary proceedings as were "calculated to stimulate the slaves to insurrection and to produce all the horrors of civil war." But in spite of all this, people with uneasy consciences continued to write and talk and petition Congress against slavery, and most of the State legislatures began to pass resolutions denouncing them. In the last days of 1836 Governor Duncan sent to the Illinois Legislature the reports and resolutions of several States in relation to this subject. They were referred to a committee, who in due time reported a set of resolves "highly disapproving abolition societies"; holding that "the right of property in slaves is secured to the slave-holding States by the Federal Constitution"; that the general Government cannot abolish slavery in the District of Columbia against the consent of the citizens of said District, without a manifest breach of good faith; and requesting the Governor to transmit to the States which had sent their resolutions to him a copy of those tranquilizing expressions. A long and dragging debate ensued of which no record has been preserved; the resolutions, after numberless amendments had been voted upon, were finally passed, in the Senate, unanimously, in the House with none but Lincoln and five others in the negative. [Footnote: We are under obligations to John M. Adair for transcripts of the State

records bearing on this matter.] No report remains of the many speeches which prolonged the debate; they have gone the way of all buncombe; the sound and fury of them have passed away into silence; but they woke an echo in one sincere heart which history will be glad to perpetuate.

There was no reason that Abraham Lincoln should take especial notice of these resolutions, more than another. He had done his work at this session in effecting the removal of the capital. He had only to shrug his shoulders at the violence and untruthfulness of the majority, vote against them, and go back to his admiring constituents, to his dinners and his toasts. But his conscience and his reason forbade him to be silent; he felt a word must be said on the other side to redress the distorted balance. He wrote his protest, saying not one word he was not ready to stand by then and thereafter, wasting not a syllable in rhetoric or feeling, keeping close to law and truth and justice. When he had finished it he showed it to some of his colleagues for their adhesion; but one and all refused, except Dan Stone, who was not a candidate for reelection, having retired from politics to a seat on the bench. The risk was too great for the rest to run. Lincoln was twenty-eight years old; after a youth, of singular privations and struggles he had arrived at an enviable position in the politics and the society of the State. His intimate friends, those whom he loved and honored, were Browning, Butler, Logan, and Stuart—Kentuckians all, and strongly averse to any discussion of the question of slavery. The public opinion of his county, which was then little less than the breath of his life, was all the same way. But all these considerations could not withhold him from performing a simple duty—a duty which no one could have blamed him for leaving undone. The crowning grace of the whole act is in the closing sentence: "The difference between these opinions and those contained in the said resolutions is their reason for entering this protest." Reason enough for the Lincolns and Luthers.

He had many years of growth and development before him. There was a long distance to be traversed between the guarded utterances of this protest and the heroic audacity which launched the proclamation of emancipation. But the young man who dared declare, in the prosperous beginning of his political life, in the midst of a community imbued with slave-State superstitions, that "he believed the institution of slavery was founded both on injustice and bad policy,"—attacking thus its moral and material supports, while at the same time recognizing all the constitutional guarantees which protected it,—had in him the making of a statesman and, if need be, a martyr. His whole career was to run in the lines marked out by these words, written in the hurry of a closing session, and he was to accomplish few acts, in that great history which God reserved for him, wiser and nobler than this.

CHAPTER IX

COLLAPSE OF THE SYSTEM

Mr. Lincoln had made thus far very little money—nothing more, in fact, than a subsistence of the most modest character. But he had made some warm friends, and this meant much among the early Illinoisans. He had become intimately acquainted, at Vandalia, with William Butler, who was greatly interested in the removal of the capital to Springfield, and who urged the young legislator to take up his residence at the new seat of government. Lincoln readily fell in with this suggestion, and accompanied his friend home when the Legislature adjourned, sharing the lodging of Joshua F. Speed, a young Kentucky merchant, and taking his meals at the house of Mr. Butler for several years.

[Sidenote: "Sangamon Journal," November 7, 1835.]

[Sidenote: Reynolds, "Life and Times" p. 237.]

In this way began Mr. Lincoln's residence in Springfield, where he was to remain until called to one of the highest of destinies intrusted to men, and where his ashes were to rest forever in monumental marble. It would have seemed a dreary village to any one accustomed to the world, but in a letter written about this time, Lincoln speaks of it as a place where there was a "good deal of flourishing about in carriages" —a town of some pretentious

to elegance. It had a population of 1500. The county contained nearly 18,000 souls, of whom 78 were free negroes, 20 registered indentured servants, and six slaves. Scarcely a perceptible trace of color, one would say, yet we find in the Springfield paper a leading article beginning with the startling announcement, "Our State is threatened to be overrun with free negroes." The county was one of the richest in Illinois, possessed of a soil of inexhaustible fertility, and divided to the best advantage between prairie and forest. It was settled early in the history of the State, and the country was held in high esteem by the aborigines. The name of Sangamon is said to mean in the Pottawatomie language "land of plenty." Its citizens were of an excellent class of people, a large majority of them from Kentucky, though representatives were not wanting from the Eastern States, men of education and character.

There had been very little of what might be called pioneer life in Springfield. Civilization came in with a reasonably full equipment at the beginning. The Edwardses, in fair-top boots and ruffled shirts; the Ridgelys brought their banking business from Maryland; the Logans and Conklings were good lawyers before they arrived; another family came from Kentucky, with a cotton manufactory which proved its aristocratic character by never doing any work. With a population like this, the town had, from the beginning, a more settled and orderly type than was usual in the South and West. A glance at the advertising columns of the newspaper will show how much attention to dress was paid in the new capital. "Cloths, cassinetts, cassimeres, velvet, silk, satin, and Marseilles vestings, fine calf boots, seal and morocco pumps, for gentlemen," and for the sex which in barbarism dresses less and in civilization dresses more than the male, "silks, bareges, crepe lisse, lace veils, thread lace, Thibet shawls, lace handkerchiefs, fine prunella shoes, etc." It is evident that the young politician was confronting a social world more formidably correct than anything he had as yet seen.

[Sidenote: Ford's "History," p. 94.]

Governor Ford began some years before this to remark with pleasure the change in the dress of the people of Illinois: the gradual disappearance of leather and, linsey-woolsey, the hunting-knife and tomahawk, from the garb of men; the deerskin moccasin supplanted by the leather boot and shoe; the leather breeches tied around the ankle replaced by the modern pantaloons; and the still greater improvement in the adornment of women, the former bare feet decently shod, and homespun frocks giving way to gowns of calico and silk, and the heads tied up in red cotton turbans disappearing in favor of those surmounted by pretty bonnets of silk or straw. We admit that these changes were not unattended with the grumbling ill-will of the pioneer patriarchs; they predicted nothing but ruin to a country that thus forsook the old ways "which were good enough for their fathers." But with the change in dress came other alterations which were all for the better—a growing self-respect among the young; an industry and thrift by which they could buy good clothes; a habit of attending religious service, where they could show them; a progress in sociability, civility, trade, and morals.

The taste for civilization had sometimes a whimsical manifestation. Mr. Stuart said the members of the Legislature bitterly complained of the amount of game—venison and grouse of the most delicious quality—which was served them at the taverns in Vandalia; they clamored for bacon—they were starving, they said, "for something civilized." There was plenty of civilized nourishment in Springfield. Wheat was fifty cents a bushel, rye thirty-three; corn and oats were twenty-five, potatoes twenty-five; butter was eight cents a pound, and eggs were eight cents a dozen; pork was two and a half cents a pound.

The town was built on the edge of the woods, the north side touching the timber, the south encroaching on the prairie. The richness of the soil was

seen in the mud of the streets, black as ink, and of an unfathomable depth in time of thaw. There were, of course, no pavements or sidewalks; an attempt at crossings was made by laying down large chunks of wood. The houses were almost all wooden, and were disposed in rectangular blocks. A large square had been left in the middle of the town, in anticipation of future greatness, and there, when Lincoln began his residence, the work of clearing the ground for the new State-house was already going forward. In one of the largest houses looking on the square, at the north-west corner, the county court had its offices, and other rooms in the building were let to lawyers. One of these was occupied by Stuart and Lincoln, for the friendship formed in the Black Hawk war and strengthened at Vandalia induced "Major" Stuart to offer a partnership to "Captain" Lincoln. [Footnote: It is not unworthy of notice that in a country where military titles were conferred with ludicrous profusion, and borne with absurd complacency, Abraham Lincoln, who had actually been commissioned, and had served as captain, never used the designation after he laid down his command.]

Lincoln did not gain any immediate eminence at the bar. His preliminary studies had been cursory and slight, and Stuart was then too much engrossed in politics to pay the unremitting attention to the law which that jealous mistress requires. He had been a candidate for Congress the year before, and had been defeated by W. L. May. He was a candidate again in 1838, and was elected over so agile an adversary as Stephen Arnold Douglas. His paramount interest in these canvasses necessarily prevented him from setting to his junior partner the example which Lincoln so greatly needed, of close and steady devotion to their profession. It was several years later that Lincoln found with Judge Logan the companionship and inspiration which he required, and began to be really a lawyer. During the first year or two he is principally remembered in Springfield as an excellent talker, the life and soul of the little gatherings about the county offices, a

story-teller of the first rank, a good-natured, friendly fellow whom everybody liked and trusted. He relied more upon his influence with a jury than upon his knowledge of law in the few cases he conducted in court, his acquaintance with human nature being far more extensive than his legal lore.

Lincoln was not yet done with Vandalia, its dinners of game, and its political intrigue. The archives of the State were not removed to Springfield until 1839, and Lincoln remained a member of the Legislature by successive reelections from 1834 to 1842. His campaigns were carried on almost entirely without expense. Joshua Speed told the writers that on one occasion some of the Whigs contributed a purse of two hundred dollars which Speed handed to Lincoln to pay his personal expenses in the canvass. After the election was over, the successful candidate handed Speed \$199.25, with the request that he return it to the subscribers. "I did not need the money," he said. "I made the canvass on my own horse; my entertainment, being at the houses of friends, cost me nothing; and my only outlay was seventy-five cents for a barrel of cider, which some farm-hands insisted I should treat them to." He was called down to Vandalia in the summer of 1837, by a special session of the Legislature. The magnificent schemes of the foregoing winter required some repairing. The banks throughout the United States had suspended specie payments in the spring, and as the State banks in Illinois were the fiscal agents of the railroads and canals, the Governor called upon the law-makers to revise their own work, to legalize the suspension, and bring their improvement system within possible bounds. They acted as might have been expected: complied with the former suggestion, but flatly refused to touch their masterpiece. They had been glorifying their work too energetically to destroy it in its infancy. It was said you could recognize a legislator that year in any crowd by his automatic repetition of the phrase, "Thirteen hundred—fellow-citizens!—and fifty miles of railroad!" There was nothing to be done but to go on with the

stupendous folly. Loans were effected with surprising and fatal facility, and, "before the end of the year, work had begun at many points on the railroads. The whole State was excited to the highest pitch of frenzy and expectation. Money was as plenty as dirt. Industry, instead of being stimulated, actually languished. We exported nothing," says Governor Ford, "and everything from abroad was paid for by the borrowed money expended among us." Not only upon the railroads, but on the canal as well, the work was begun on a magnificent scale. Nine millions of dollars were thought to be a mere trifle in view of the colossal sum expected to be realized from the sale of canal lands, three hundred thousand acres of which had been given by the general Government. There were rumors of coming trouble, and of an unhealthy condition of the banks; but it was considered disloyal to look too curiously into such matters. One frank patriot, who had been sent as one of a committee to examine the bank at Shawneetown, when asked what he found there, replied with winning candor, "Plenty of good whisky and sugar to sweeten it."

[Sidenote: Ford, "History," p. 197.]

But a year of baleful experience destroyed a great many illusions, and in the election of 1838 the subject of internal improvements was treated with much more reserve by candidates. The debt of the State, issued at a continually increasing discount, had already attained enormous proportions; the delirium of the last few years was ending, and sensible people began to be greatly disquieted. Nevertheless, Mr. Cyrus Edwards boldly made his canvass for Governor as a supporter of the system of internal improvements, and his opponent, Thomas Carlin, was careful not to commit himself strongly on the other side. Carlin was elected, and finding that a majority of the Legislature was still opposed to any steps backward, he made no demonstration against the system at the first session. Lincoln was a member of this body, and, being by that time the unquestioned leader of the

Whig minority, was nominated for Speaker, and came within one vote of an election. The Legislature was still stiff-necked and perverse in regard to the system. It refused to modify it in the least, and voted, as if in bravado, another eight hundred thousand dollars to extend it.

But this was the last paroxysm of a fever that was burnt out. The market was glutted with Illinois bonds; one banker and one broker after another, to whose hands they had been recklessly confided in New York and London, failed, or made away with the proceeds of sales. The system had utterly failed; there was nothing to do but repeal it, stop work upon the visionary roads, and endeavor to invent some means of paying the enormous debt. This work taxed the energies of the Legislature in 1839, and for some years after. It was a dismal and disheartening task. Blue Monday had come after these years of intoxication, and a crushing debt rested upon a people who had been deceiving themselves with the fallacy that it would somehow pay itself by acts of the Legislature.

[Illustration: "COLONEL E. D. BAKER."]

Many were the schemes devised for meeting these oppressive obligations without unduly taxing the voters; one of them, not especially wiser than the rest, was contributed by Mr. Lincoln. It provided for the issue of bonds for the payment of the interest due by the State, and for the appropriation of a special portion of State taxes to meet the obligations thus incurred. He supported his bill in a perfectly characteristic speech, making no effort to evade his share of the responsibility for the crisis, and submitting his views with diffidence to the approval of the Assembly. His plan was not adopted; it was too simple and straightforward, even if it had any other merits, to meet the approval of an assembly intent only upon getting out of immediate embarrassment by means which might save them future trouble on the stump. There was even an undercurrent of sentiment in favor of repudiation.

But the payment of the interest for that year was provided for by an ingenious expedient which shifted upon the Fund Commissioners the responsibility of deciding what portion of the debt was legal, and how much interest was therefore to be paid. Bonds were sold for this purpose at a heavy loss.

This session of the Legislature was enlivened by a singular contest between the Whigs and Democrats in relation to the State banks. Their suspension of specie payments had been legalized up to "the adjournment of the next session of the Legislature." They were not now able to resume, and it was held by the Democrats that if the special session adjourned *sine die* the charter of the banks would be forfeited, a purpose the party was eager to accomplish. The Whigs, who were defending the banks, wished to prevent the adjournment of the special session until the regular session should begin, during the course of which they expected to renew the lease of life now held under sufferance by the banks—in which, it may be here said, they were finally successful. But on one occasion, being in the minority, and having exhausted every other parliamentary means of opposition and delay, and seeing the vote they dreaded imminent, they tried to defeat it by leaving the house in a body, and, the doors being locked, a number of them, among whom Mr. Lincoln's tall figure was prominent, jumped from the windows of the church where the Legislature was then holding its sessions. "I think," says Mr. Joseph Gillespie, who was one of those who performed this feat of acrobatic politics, "Mr. Lincoln always regretted it, as he deprecated everything that savored of the revolutionary."

Two years later the persecuted banks, harried by the demagogues and swindled by the State, fell with a great ruin, and the financial misery of the State was complete. Nothing was left of the brilliant schemes of the historic Legislature of 1836 but a load of debt which crippled for many years the energies of the people, a few miles of embankments which the grass

hastened to cover, and a few abutments which stood for years by the sides of leafy rivers, waiting for their long delaying bridges and trains.

During the winter of 1840-1 occurred the first clash of opinion and principle between Mr. Lincoln and his life-long adversary, Mr. Douglas. There are those who can see only envy and jealousy in that strong dislike and disapproval with which Mr. Lincoln always regarded his famous rival. But we think that few men have ever lived who were more free from those degrading passions than Abraham Lincoln, and the personal reprobation with which he always visited the public acts of Douglas arose from his sincere conviction that, able as Douglas was, and in many respects admirable in character, he was essentially without fixed political morals. They had met for the first time in 1834 at Vandalia, where Douglas was busy in getting the circuit attorneyship away from John J. Hardin. He held it only long enough to secure a nomination to the Legislature in 1836. He went there to endeavor to have the capital moved to Jacksonville, where he lived, but he gave up the fight for the purpose of having himself appointed Register of the Land Office at Springfield. He held this place as a means of being nominated for Congress the next year; he was nominated and defeated. In 1840 he was engaged in another scheme to which we will give a moment's attention, as it resulted in giving him a seat on the Supreme Bench of the State, which he used merely as a perch from which to get into Congress.

There had been a difference of opinion in Illinois for some years as to whether the Constitution, which made voters of all white male inhabitants of six months' residence, meant to include aliens in that category. As the aliens were nearly all Democrats, that party insisted on their voting, and the Whigs objected. The best lawyers in the State were Whigs, and so it happened that most of the judges were of that complexion. A case was made up for decision and decided adversely to the aliens, who appealed it to the

Supreme Court. This case was to come on at the June term in 1840, and the Democratic counsel, chief among whom was Mr. Douglas, were in some anxiety, as an unfavorable decision would lose them about ten thousand alien votes in the Presidential election in November. In this conjuncture one Judge Smith, of the Supreme Court, an ardent Democrat, willing to enhance his value in his party, communicated to Mr. Douglas two important facts: first, that a majority of the court would certainly decide against the aliens; and, secondly that there was a slight imperfection in the record by which counsel might throw the case over to the December term, and save the alien vote for Van Buren and the Democratic ticket. This was done, and when the Legislature came together with its large Democratic majority, Mr. Douglas handed in a bill "reforming" the Judiciary—for they had learned that serviceable word already. The circuit judges were turned out of office, and five new judges were added to the Supreme Court, who were to perform circuit duty also. It is needless to say that Judge Douglas was one of these, and he had contrived also in the course of the discussion to disgrace his friend Smith so thoroughly by quoting his treacherous communication of matters which took place within the court, that Smith was no longer a possible rival for political honors.

It was useless for the Whigs to try to prevent this degradation of the bench. There was no resource but a protest, and here again Lincoln uttered the voice of the conscience of the party. He was joined on this occasion by Edward D. Baker [Footnote: Afterwards senator from Oregon, and as colonel of the 71st Pennsylvania (called the 1st California) killed at Ball's Bluff.] and some others, who protested against the act because

1st. It violates the principles of free government by subjecting the Judiciary to the Legislature.

2d. It is a fatal blow at the independence of the judges and the constitutional term of their offices.

3d. It is a measure not asked for or wished for by the people.

4th. It will greatly increase the expense of our courts or else greatly diminish their utility.

5th. It will give our courts a political and partisan character, thereby impairing public confidence in their decisions.

6th. It will impair our standing with other States and the world.

7th. It is a party measure for party purposes from which no practical good to the people can possibly arise, but which may be the source of immeasurable evils.

The undersigned are well aware that this protest will be altogether unavailing with the majority of this body. The blow has already fallen; and we are compelled to stand by, the mournful spectators of the ruin it will cause.

[Sidenote: Ford's "History," p. 221.]

It will be easy to ridicule this indignant protest as the angry outcry of beaten partisans; but fortunately we have evidence which cannot be gainsaid of the justice of its sentiments and the wisdom of its predictions. Governor Ford, himself a Democratic leader as able as he was honest, writing seven years after these proceedings, condemns them as wrong and impolitic, and adds, "Ever since this reforming measure the Judiciary has been unpopular with the Democratic majorities. Many and most of the judges have had great personal popularity—so much so as to create complaint of so many of them being elected or appointed to other offices.

But the Bench itself has been the subject of bitter attacks by every Legislature since." It had been soiled by unclean contact and could not be respected as before.

CHAPTER X

EARLY LAW PRACTICE

During all the years of his service in the Legislature, Lincoln was practicing law in Springfield in the dingy little office at the corner of the square. A youth named Milton Hay, who afterwards became one of the foremost lawyers of the State, had made the acquaintance of Lincoln at the County Clerk's office and proposed to study law with him. He was at once accepted as a pupil, and his days being otherwise employed he gave his nights to reading, and as his vigils were apt to be prolonged he furnished a bedroom adjoining the office, where Lincoln often passed the night with him. Mr. Hay gives this account of the practice of the law in those days:

"In forming our ideas of Lincoln's growth and development as a lawyer, we must remember that in those early days litigation was very simple as compared with that of modern times. Population was sparse and society scarcely organized, land was plentiful and employment abundant. There was an utter absence of the abstruse questions and complications which now beset the law. There was no need of that close and searching study into principles and precedents which keeps the modern law-student buried in his office. On the contrary, the very character of this simple litigation drew the lawyer into the street and neighborhood, and into close and active intercourse with all classes of his fellow-men. The suits consisted of actions

of tort and assumpsit. If a man had a debt not collectible, the current phrase was, 'I'll take it out of his hide.'

[Illustration: LINCOLN AND STUART'S LAW-OFFICE, SPRINGFIELD.]

"This would bring on an action for assault and battery. The free comments of the neighbors on the fracas or the character of the parties would be productive of slander suits. A man would for his convenience lay down an irascible neighbor's fence, and indolently forget to put it up again, and an action of trespass would grow out of it. The suit would lead to a free fight, and sometimes furnish the bloody incidents for a murder trial. Occupied with this class of business, the half-legal, half-political lawyers were never found plodding in their offices. In that case they would have waited long for the recognition of their talents or a demand for their services. Out of this characteristic of the times also grew the street discussions I have adverted to. There was scarcely a day or hour when a knot of men might not have been seen near the door of some prominent store, or about the steps of the court-house eagerly discussing a current political topic—not as a question of news, for news was not then received quickly or frequently, as it is now, but rather for the sake of debate; and the men from the country, the pioneers and farmers, always gathered eagerly about these groups and listened with open-mouthed interest, and frequently manifested their approval or dissent in strong words, and carried away to their neighborhoods a report of the debaters' wit and skill. It was in these street talks that the rising and aspiring young lawyer found his daily and hourly forum. Often by good luck or prudence he had the field entirely to himself, and so escaped the dangers and discouragements of a decisive conflict with a trained antagonist."

[Illustration: LINCOLN'S BOOKCASE AND INKSTAND.]

Mr. Stuart was either in Congress or actively engaged in canvassing his district a great part of the time that his partnership with Lincoln continued, so that the young lawyer was thrown a good deal on his own resources for occupation. There was not enough business to fill up all his hours, and he was not at that time a close student, so that he soon became as famous for his racy talk and good-fellowship at all the usual lounging-places in Springfield as he had ever been in New Salem. Mr. Hay says, speaking of the youths who made the County Clerk's office their place of rendezvous, "It was always a great treat when Lincoln got amongst us. We were sure to have some of those stories for which he already had a reputation, and there was this peculiarity about them, that they were not only entertaining in themselves, but always singularly illustrative of some point he wanted to make." After Mr. Hay entered his office, and was busily engaged with his briefs and declarations, the course of their labors was often broken by the older man's wise and witty digressions. Once an interruption occurred which affords an odd illustration of the character of discussion then prevalent. We will give it in Mr. Hay's words: "The custom of public political debate, while it was sharp and acrimonious, also engendered a spirit of equality and fairness. Every political meeting was a free fight open to every one who had talent and spirit, no matter to which party the speaker belonged. These discussions used often to be held in the court-room, just under our office, and through a trap-door, made there when the building was used for a store-house, we could hear everything that was said in the hall below. One night there was a discussion in which E. D. Baker took part. He was a fiery fellow, and when his impulsiveness was let loose among the rough element that composed his audience there was a fair prospect of trouble at any moment. Lincoln was lying on the bed, apparently paying no attention to what was going on. Lamborn was talking, and we suddenly heard Baker interrupting him with a sharp remark, then a rustling and uproar. Lincoln jumped from the bed and down the trap,

lighting on the platform between Baker and the audience, and quieted the tumult as much by the surprise of his sudden apparition as by his good-natured and reasonable words."

[Lamon p. 396.]

He was often unfaithful to his Quaker traditions in those days of his youth. Those who witnessed his wonderful forbearance and self-restraint in later manhood would find it difficult to believe how promptly and with what pleasure he used to resort to measures of repression against a bully or brawler. On the day of election in 1840, word came to him that one Radford, a Democratic contractor, had taken possession of one of the polling-places with his workmen, and was preventing the Whigs from voting. Lincoln started off at a gait which showed his interest in the matter in hand. He went up to Radford and persuaded him to leave the polls without a moment's delay. One of his candid remarks is remembered and recorded: "Radford! you'll spoil and blow, if you live much longer." Radford's prudence prevented an actual collision, which, it must be confessed, Lincoln regretted. He told his friend Speed he wanted Radford to show fight so that he might "knock him down and leave him kicking."

Early in the year 1840 it seemed possible that the Whigs might elect General Harrison to the Presidency, and this hope lent added energy to the party even in the States where the majority was so strongly against them as in Illinois. Lincoln was nominated for Presidential Elector and threw himself with ardor into the canvass, traversing a great part of the State and speaking with remarkable effect. Only one of the speeches he made during the year has been preserved entire: this was an address delivered in Springfield as one of a series—a sort of oratorical tournament participated in by Douglas, Calhoun, Lamborn, and Thomas on the part of the Democrats, and Logan, Baker, Browning, and Lincoln on the part of the

Whigs. The discussion began with great enthusiasm and with crowded houses, but by the time it came to Lincoln's duty to close the debate the fickle public had tired of the intellectual jousts, and he spoke to a comparatively thin house. But his speech was considered the best of the series, and there was such a demand for it that he wrote it out, and it was printed and circulated in the spring as a campaign document.

[Illustration: GLOBE TAVERN, SPRINGFIELD, WHERE LINCOLN LIVED AFTER HIS MARRIAGE.]

It was a remarkable speech in many respects—and in none more than in this, that it represented the highest expression of what might be called his "first manner." It was the most important and the last speech of its class which he ever delivered—not destitute of sound and close reasoning, yet filled with boisterous fun and florid rhetoric. It was, in short, a rattling stump speech of the kind then universally popular in the West, and which is still considered a very high grade of eloquence in the South. But it is of no kindred with his inaugural addresses, and resembles the Gettysburg speech no more than "The Comedy of Errors" resembles "Hamlet." One or two extracts will give some idea of its humorous satire and its lurid fervor. Attacking the corruptions and defalcations of the Administration party he said: "Mr. Lamborn insists that the difference between the Van Buren party and the Whigs is that, although the former sometimes err in practice they are always correct in principle, whereas the latter are wrong in principle; and the better to impress this proposition he uses a figurative expression in these words, 'The Democrats are vulnerable in the heel, but they are sound in the heart and head.' The first branch of the figure—that is, the Democrats are vulnerable in the heel—I admit is not merely figuratively but literally true. Who that looks but for a moment at their Swartwouts, their Prices, their Harringtons, and their hundreds of others scampering away with the

public money to Texas, to Europe, and to every spot of the earth where a villain may hope to find refuge from justice, can at all doubt that they are most distressingly affected in their heels with a species of running itch? It seems that this malady of their heels operates on the sound-headed and honest-hearted creatures, very much as the cork leg in the comic song did on its owner, which, when he once got started on it, the more he tried to stop it the more it would run away. At the hazard of wearing this point threadbare, I will relate an anecdote which seems to be too strikingly in point to be omitted. A witty Irish soldier who was always boasting of his bravery when no danger was near, but who invariably retreated without orders at the first charge of the engagement, being asked by his captain why he did so, replied, 'Captain, I have as brave a heart as Julius Caesar ever had, but somehow or other whenever danger approaches, my cowardly legs will run away with it.' So with Mr. Lamborn's party—they take the public money into their hands for the most laudable purpose that wise heads and honest hearts can dictate; but before they can possibly get it out again, their rascally vulnerable heels will run away with them."

[Illustration: WILLIAM HENRY HARRISON.]

The speech concludes with these swelling words: "Mr. Lamborn refers to the late elections in the States, and from their results confidently predicts every State in the Union will vote for Mr. Van Buren at the next Presidential election. Address that argument to cowards and slaves: with the free and the brave it will affect nothing. It may be true; if it must, let it. Many free countries have lost their liberty, and ours may lose hers; but if she shall, be it my proudest plume, not that I was the last to desert, but that I never deserted her. I know that the great volcano at Washington, aroused and directed by the evil spirit that reigns there, is belching forth the lava of political corruption in a current broad and deep, which is sweeping with frightful velocity over the whole length and breadth of the land, bidding fair

to leave unscathed no green spot or living thing; while on its bosom are riding, like demons on the wave of Hell, the imps of the Evil Spirit, and fiendishly taunting all those who dare to resist its destroying course with the hopelessness of their efforts; and knowing this, I cannot deny that all may be swept away. Broken by it I, too, may be; bow to it, I never will. The probability that we may fall in the struggle ought not to deter us from the support of a cause we believe to be just. It shall not deter me. If ever I feel the soul within me elevate and expand to those dimensions not wholly unworthy of its almighty architect, it is when I contemplate the cause of my country, deserted by all the world beside, and I standing up boldly alone, hurling defiance at her victorious oppressors. Here, without contemplating consequences, before Heaven, and in face of the world, I swear eternal fealty to the just cause, as I deem it, of the land of my life, my liberty, and my love. And who that thinks with me will not fearlessly adopt that oath that I take? Let none falter who thinks he is right, and we may succeed. But if after all we should fail, be it so. We still shall have the proud consolation of saying to our consciences, and to the departed shade of our country's freedom, that the cause approved of our judgment, and adored of our hearts, in disaster, in chains, in torture, in death, we never faltered in defending."

These perfervid and musical metaphors of devotion and defiance have often been quoted as Mr. Lincoln's heroic challenge to the slave power, and Bishop Simpson gave them that lofty significance in his funeral oration. But they were simply the utterances of a young and ardent Whig, earnestly advocating the election of "old Tippecanoe" and not unwilling, while doing this, to show the people of the capital a specimen of his eloquence. The whole campaign was carried on in a tone somewhat shrill. The Whigs were recovering from the numbness into which they had fallen during the time of Jackson's imperious predominance, and in the new prospect of success they felt all the excitement of prosperous rebels. The taunts of the party in power, when Harrison's nomination was first mentioned, their sneers at

"hard cider" and "log-cabins," had been dexterously adopted as the slogan of the opposition, and gave rise to the distinguishing features of that extraordinary campaign. Log-cabins were built in every Western county, tuns of hard cider were filled and emptied at all the Whig mass meetings; and as the canvass gained momentum and vehemence a curious kind of music added its inspiration to the cause; and after the Maine election was over, with its augury of triumph, every Whig who was able to sing, or even to make a joyful noise, was roaring the inquiry, "Oh, have you heard how old Maine went?" and the profane but powerfully accented response, "She went, hell-bent, for Governor Kent, and Tippecanoe, and Tyler too."

It was one of the busiest and most enjoyable seasons of Lincoln's life. He had grown by this time thoroughly at home in political controversy, and he had the pleasure of frequently meeting Mr. Douglas in rough-and-tumble debate in various towns of the State as they followed Judge Treat on his circuit. If we may trust the willing testimony of his old associates, Lincoln had no difficulty in holding his own against his adroit antagonist, and it was even thought that the recollection of his ill success in these encounters was not without its influence in inducing Douglas and his followers, defeated in the nation, though victorious in the State, to wreak their vengeance on the Illinois Supreme Court.

[Sidenote: Copied from the MS. in Major Stuart's possession.]

[Sidenote: Noah W. Matheny, County Clerk.]

In Lincoln's letters to Major Stuart, then in Washington, we see how strongly the subject of politics overshadows all others in his mind. Under date of November 14, 1839, he wrote: "I have been to the Secretary's office within the last hour, and find things precisely as you left them; no new arrivals of returns on either side. Douglas has not been here since you left. A report is in circulation here now that he has abandoned, the idea of going

to Washington; but the report does not come in very authentic form so far as I can learn. Though, speaking of authenticity, you know that if we had heard Douglas say that he had abandoned the contest, it would not be very authentic. There is no news here. Noah, I still think, will be elected very easily. I am afraid of our race for representative. Dr. Knapp has become a candidate; and I fear the few votes he will get will be taken from us. Also some one has been tampering with old squire Wyckoff, and induced him to send in his name to be announced as a candidate. Francis refused to announce him without seeing him, and now I suppose there is to be a fuss about it. I have been so busy that I have not seen Mrs. Stuart since you left, though I understand she wrote you by to-day's mail, which will inform you more about her than I could. The very moment a speaker is elected, write me who he is. Your friend, as ever."

Again he wrote, on New Year's Day, 1840, a letter curiously destitute of any festal suggestions: "There is a considerable disposition on the part of both parties in the Legislature to reinstate the law bringing on the Congressional elections next summer. What motive for this the Locos have, I cannot tell. The Whigs say that the canal and other public works will stop, and consequently we shall then be clear of the foreign votes, whereas by another year they may be brought in again. The Whigs of our district say that everything is in favor of holding the election next summer, except the fact of your absence; and several of them have requested me to ask your opinion on the matter. Write me immediately what you think of it.

"On the other side of this sheet I send you a copy of my Land Resolutions, which passed both branches of our Legislature last winter. Will you show them to Mr. Calhoun, informing him of the fact of their passage through our Legislature! Mr. Calhoun suggested a similar proposition last winter; and perhaps if he finds himself backed by one of the States he may be induced to take it up again."

After the session opened, January 20, he wrote to Mr. Stuart, accurately outlining the work of the winter: "The following is my guess as to what will be done. The Internal Improvement System will be put down in a lump without benefit of clergy. The Bank will be resuscitated with some trifling modifications."

State affairs have evidently lost their interest, however, and his soul is in arms for the wider fray. "Be sure to send me as many copies of the Life of Harrison as you can spare. Be very sure to send me the Senate Journal of New York for September, 1814,"—he had seen in a newspaper a charge of disloyalty made against Mr. Van Buren during the war with Great Britain, but, as usual, wanted to be sure of his facts,— "and in general," he adds, "send me everything you think will be a good war-club, The nomination of Harrison takes first-rate. You know I am never sanguine; but I believe we will carry the State. The chance for doing so appears to me twenty-five per cent, better than it did for you to beat Douglas. A great many of the grocery sort of Van Buren men are out for Harrison. Our Irish blacksmith Gregory is for Harrison.... You have heard that the Whigs and Locos had a political discussion shortly after the meeting of the Legislature. Well, I made a big speech which is in progress of printing in pamphlet form. To enlighten you and the rest of the world, I shall send you a copy when it is finished." The "big speech" was the one from which we have just quoted.

The sanguine mood continued in his next letter, March 1: "I have never seen the prospects of our party so bright in these parts as they are now. We shall carry this county by a larger majority than we did in 1836 when you ran against May. I do not think my prospects individually are very flattering, for I think it probable I shall not be permitted to be a candidate; but the party ticket will succeed triumphantly. Subscriptions to the 'Old Soldier' pour in without abatement. This morning I took from the post-office a letter from Dubois, inclosing the names of sixty subscribers, and on

carrying it to Francis [Simeon Francis, editor of the 'Sangamo Journal'] I found he had received one hundred and forty more from other quarters by the same day's mail.... Yesterday Douglas, having chosen to consider himself insulted by something in the 'Journal,' undertook to cane Francis in the street. Francis caught him by the hair and jammed him back against a market-cart, where the matter ended by Francis being pulled away from him. The whole affair was so ludicrous that Francis and everybody else, Douglas excepted, have been laughing about it ever since."

Douglas seems to have had a great propensity to such rencontres, of which the issue was ordinarily his complete discomfiture, as he had the untoward habit of attacking much bigger and stronger men than himself. He weighed at that time little, if anything, over a hundred pounds, yet his heart was so valiant that he made nothing of assaulting men of ponderous flesh like Francis, or of great height and strength like Stuart. He sought a quarrel with the latter, during their canvass in 1838, in a grocery, with the usual result. A bystander who remembers the incident says that Stuart "jest mopped the floor with him." In the same letter Mr. Lincoln gives a long list of names to which he wants documents to be sent. It shows a remarkable personal acquaintance with the minutest needs of the canvass: this one is a doubtful Whig; that one is an inquiring Democrat; that other a zealous young fellow who would be pleased by the attention; three brothers are mentioned who "fell out with us about Early and are doubtful now"; and finally he tells Stuart that Joe Smith is an admirer of his, and that a few documents had better be mailed to the Mormons; and he must be sure, the next time he writes, to send Evan Butler his compliments.

It would be strange, indeed, if such a politician as this were slighted by his constituents, and in his next letter we find how groundless were his forebodings in that direction. The convention had been held; the rural delegates took all the nominations away from Springfield except two, Baker

for the Senate, and Lincoln for the House of Representatives. "Ninian," he says, meaning Ninian W. Edwards, "was very much hurt at not being nominated, but he has become tolerably well reconciled. I was much, very much, wounded myself, at his being left out. The fact is, the country delegates made the nominations as they pleased, and they *pleased* to make them all from the country, except Baker and me, whom they supposed necessary to make stump speeches. Old Colonel Elkin is nominated for Sheriff—that's right."

Harrison was elected in November, and the great preoccupation of most of the Whigs was, of course, the distribution of the offices which they felt belonged to them as the spoils of battle. This demoralizing doctrine had been promulgated by Jackson, and acted upon for so many years that it was too much to expect of human nature that the Whigs should not adopt it, partially at least, when their turn came. But we are left in no doubt as to the way in which Lincoln regarded the unseemly scramble. It is probable that he was asked to express his preference among applicants, and he wrote under date of December 17: "This affair of appointments to office is very annoying—more so to you than to me doubtless. I am, as you know, opposed to removals to make places for our friends. Bearing this in mind, I express my preference in a few cases, as follows: for Marshal, first, John Dawson, second, B. F. Edwards; for postmaster here, Dr. Henry; at Carlinville, Joseph C. Howell."

The mention of this last post-office rouses his righteous indignation, and he calls for justice upon a wrong-doer. "There is no question of the propriety of removing the postmaster at Carlinville, I have been told by so many different persons as to preclude all doubt of its truth, that he boldly refused to deliver from his office during the canvass all documents franked by Whig members of Congress."

Once more, on the 23d of January, 1841, he addresses a letter to Mr. Stuart, which closes the correspondence, and which affords a glimpse of that strange condition of melancholia into whose dark shadow he was then entering, and which lasted, with only occasional intervals of healthy cheerfulness, to the time of his marriage. We give this remarkable letter entire, from the manuscript submitted to us by the late John T. Stuart:

DEAR STUART: Yours of the 3d instant is received, and I proceed to answer it as well as I can, though from the deplorable state of my mind at this time I fear I shall give you but little satisfaction. About the matter of the Congressional election, I can only tell you that there is a bill now before the Senate adopting the general ticket system; but whether the party have fully determined on its adoption is yet uncertain. There is no sign of opposition to you among our friends, and none that I can learn among our enemies; though of course there will be if the general ticket be adopted. The Chicago "American," Peoria "Register," and Sangamo "Journal" have already hoisted your flag upon their own responsibility; and the other Whig papers of the district are expected to follow immediately. On last evening there was a meeting of our friends at Butler's, and I submitted the question to them and found them unanimously in favor of having you announced as a candidate. A few of us this morning, however, concluded that as you were already being announced in the papers we would delay announcing you, as by your authority, for a week or two. We thought that to appear too keen about it might spur our opponents on about their general ticket project. Upon the whole I think I may say with certainty that your reelection is sure, if it be in the power of the Whigs to make it so.

For not giving you a general summary of news, you *must* pardon me; it is not in my power to do so. I am now the most miserable man living. If what I feel were equally distributed to the whole human family, there would not be one cheerful face on earth. Whether I shall ever be better I cannot tell; I

awfully forebode I shall not. To remain as I am is impossible; I must die or be better, it appears to me. The matter you speak of on my account you may attend to as you say, unless you shall hear of my condition forbidding it. I say this because I fear I shall be unable to attend to any business here, and a change of scene might help me. If I could be myself, I would rather remain at home with Judge Logan. I can write no more. Your friend as ever.

A. LINCOLN.

CHAPTER XI

MARRIAGE

The foregoing letter brings us to the consideration of a remarkable passage in Lincoln's life. It has been the cause of much profane and idle discussion among those who were constitutionally incapacitated from appreciating ideal sufferings, and we would be tempted to refrain from adding a word to what has already been said if it were possible to omit all reference to an experience so important in the development of his character.

In the year 1840 he became engaged to be married to Miss Mary Todd, of Lexington, Kentucky, a young lady of good education and excellent connections, who was visiting her sister, Mrs. Ninian W. Edwards, at Springfield. [Transcriber's Note: Lengthy footnote relocated to chapter end.] The engagement was not in all respects a happy one, as both parties doubted their compatibility, and a heart so affectionate and a conscience so sensitive as Lincoln's found material for exquisite self-torment in these conditions. His affection for his betrothed, which he thought was not strong enough to make happiness with her secure; his doubts, which yet were not convincing enough to induce him to break off all relations with her; his sense of honor, which was wounded in his own eyes by his own act; his sense of duty, which condemned him in one course and did not sustain him in the opposite one—all combined to make him profoundly and

passionately miserable. To his friends and acquaintances, who were unused to such finely wrought and even fantastic sorrows, his trouble seemed so exaggerated that they could only account for it on the ground of insanity. But there is no necessity of accepting this crude hypothesis; the coolest and most judicious of his friends deny that his depression ever went to such an extremity. Orville H. Browning, who was constantly in his company, says that his worst attack lasted only about a week; that during this time he was incoherent and distraught; but that in the course of a few days it all passed off, leaving no trace whatever. "I think," says Mr. Browning, "it was only an intensification of his constitutional melancholy; his trials and embarrassments pressed him down to a lower point than usual."

[Illustration: FAC-SIMILE OF THE MARRIAGE CERTIFICATE OF ABRAHAM

LINCOLN. From the original in the Keyes Lincoln Memorial Collection, Chicago.]

[Sidenote: "Western Characters," p. 134.]

This taint of constitutional sadness was not peculiar to Lincoln; it may be said to have been endemic among the early settlers of the West. It had its origin partly in the circumstances of their lives, the severe and dismal loneliness in which their struggle for existence for the most part went on. Their summers were passed in the solitude of the woods; in the winter they were often snowed up for months in the more desolate isolation of their own poor cabins. Their subjects of conversation were limited, their range of thoughts and ideas narrow and barren. There was as little cheerfulness in their manners as there was incentive to it in their lives. They occasionally burst out into wild frolic, which easily assumed the form of comic outrage, but of the sustained cheerfulness of social civilized life they knew very little. One of the few pioneers who have written their observations of their

own people, John L. McConnell, says, "They are at the best not a cheerful race; though they sometimes join in festivities, it is but seldom, and the wildness of their dissipation is too often in proportion to its infrequency. There is none of that serene contentment which distinguishes the tillers of the ground in other lands.... Acquainted with the character [of the pioneer], you do not expect him to smile much, but now and then he laughs."

Besides this generic tendency to melancholy, very many of the pioneers were subject in early life to malarial influences, the effect of which remained with them all their days. Hewing out their plantations in the primeval woods amid the undisturbed shadow of centuries, breaking a soil thick with ages of vegetable decomposition, sleeping in half- faced camps, where the heavy air of the rank woods was in their lungs all night, or in the fouler atmosphere of overcrowded cabins, they were especially subject to miasmatic fevers. Many died, and of those who survived, a great number, after they had outgrown the more immediate manifestations of disease, retained in nervous disorders of all kinds the distressing traces of the maladies which afflicted their childhood. In the early life of Lincoln these unwholesome physical conditions were especially prevalent. The country about Pigeon Creek was literally devastated by the terrible malady called "milk- sickness," which carried away his mother and half her family. His father left his home in Macon County, also, on account of the frequency and severity of the attacks of fever and ague which were suffered there; and, in general, Abraham was exposed through all the earlier part of his life to those malarial influences which made, during the first half of this century, the various preparations of Peruvian bark a part of the daily food of the people of Indiana and Illinois. In many instances this miasmatic poison did not destroy the strength or materially shorten the lives of those who absorbed it in their youth; but the effects remained in periodical attacks of gloom and depression of spirits which would seem incomprehensible to

thoroughly healthy organizations, and which gradually lessened in middle life, often to disappear entirely in old age.

[Sidenote: "Western Characters" p. 126.]

Upon a temperament thus predisposed to look at things in their darker aspect, it might naturally be expected that a love-affair which was not perfectly happy would be productive of great misery. But Lincoln seemed especially chosen to the keenest suffering in such a conjuncture. The pioneer, as a rule, was comparatively free from any troubles of the imagination. To quote Mr. McConnell again: "There was no romance in his [the pioneer's] composition. He had no dreaminess; meditation was no part of his mental habit; a poetical fancy would, in him, have been an indication of insanity. If he reclined at the foot of a tree, on a still summer day, it was to sleep; if he gazed out over the waving prairie, it was to search for the column of smoke which told of his enemies' approach; if he turned his eyes towards the blue heaven, it was to prognosticate tomorrow's rain or sunshine. If he bent his gaze towards the green earth, it was to look for 'Indian sign' or buffalo trail. His wife was only a helpmate; he never thought of making a divinity of her." But Lincoln could never have claimed this happy immunity from ideal trials. His published speeches show how much the poet in him was constantly kept in check; and at this time of his life his imagination was sufficiently alert to inflict upon him the sharpest anguish. His reverence for women was so deep and tender that he thought an injury to one of them was a sin too heinous to be expiated. No Hamlet, dreaming amid the turrets of Elsinore, no Sidney creating a chivalrous Arcadia, was fuller of mystic and shadowy fancies of the worth and dignity of woman than this backwoods politician. Few men ever lived more sensitively and delicately tender towards the sex.

Besides his step-mother, who was a plain, God-fearing woman, he had not known many others until he came to live in New Salem. There he had made the acquaintance of the best people the settlement contained, and among them had become much attached to a young girl named Ann Rutledge, the daughter of one of the proprietors of the place. She died in her girlhood, and though there does not seem to have been any engagement between them, he was profoundly affected by her death. But the next year a young woman from Kentucky appeared in the village, to whom he paid such attentions as in his opinion fully committed him as a suitor for her hand. He admired her, and she seems to have merited the admiration of all the manhood there was in New Salem. She was handsome and intelligent and of an admirable temper and disposition. While they were together he was constant in his attentions, and when he was at Vandalia or at Springfield he continued his assiduities in some of the most singular love-letters ever written. They are filled mostly with remarks about current politics, and with arguments going to show that she had better not marry him! At the same time he clearly intimates that he is at her disposition if she is so inclined. At last, feeling that his honor and duty were involved, he made a direct proposal to her, and received an equally direct, kind, and courteous refusal. Not knowing but that this indicated merely a magnanimous desire to give him a chance for escape, he persisted in his offer, and she in her refusal. When the matter had ended in this perfectly satisfactory manner to both of them, he sat down and wrote, by way of epilogue to the play, a grotesquely comic account of the whole affair to Mrs. O. H. Browning, one of his intimate Vandalia acquaintances.

[Illustration: JOSHUA SPEED AND WIFE.]

This letter has been published and severely criticised as showing a lack of gentlemanlike feeling. But those who take this view forget that he was writing to an intimate friend of a matter which had greatly occupied his own

mind for a year; that he mentioned no names, and that he threw such an air of humorous unreality about the whole story that the person who received it never dreamed that it recorded an actual occurrence until twenty-five years afterwards, when, having been asked to furnish it to a biographer, she was warned against doing so by the President himself, who said there was too much truth in it for print. The only significance the episode possesses is in showing this almost abnormal development of conscience in the young man who was perfectly ready to enter into a marriage which he dreaded simply because he thought he had given a young woman reason to think that he had such intentions. While we admit that this would have been an irremediable error, we cannot but wonder at the nobleness of the character to which it was possible.

In this vastly more serious matter, which was, we may say at once, the crucial ordeal of his life, the same invincible truthfulness, the same innate goodness, the same horror of doing a wrong, are combined with an exquisite sensibility and a capacity for suffering which mark him as a man "picked out among ten thousand." His habit of relentless self-searching reveals to him a state of feeling which strikes him with dismay; his simple and inflexible veracity communicates his trouble and his misery to the woman whom he loves; his freedom, when he has gained it, yields him nothing but an agony of remorse and humiliation. He could not shake off his pain, like men of cooler heads and shallower hearts. It took fast hold of him and dragged him into awful depths of darkness and torture. The letter to Stuart, which we have given, shows him emerging from the blackest period of that time of gloom. Immediately after this, he accompanied his close friend and confidant, Joshua F. Speed, to Kentucky, where, in a way so singular that no writer of fiction would dare to employ the incident, he became almost cured of his melancholy, and came back to Illinois and his work again.

Mr. Speed was a Kentuckian, carrying on a general mercantile business in Springfield—a brother of the distinguished lawyer, James Speed, of Louisville, who afterwards became Attorney-General of the United States. He was one of those men who seem to have to a greater extent than others the genius of friendship, the Pythias, the Pylades, the Horatios of the world. It is hardly too much to say that he was the only—as he was certainly the last—intimate friend that Lincoln ever had. He was his closest companion in Springfield, and in the evil days when the letter to Stuart was written he took him with brotherly love and authority under his special care. He closed up his affairs in Springfield, and went with Lincoln to Kentucky, and, introducing him to his own cordial and hospitable family circle, strove to soothe his perturbed spirit by every means which unaffected friendliness could suggest. That Lincoln found much comfort and edification in that genial companionship is shown by the fact that after he became President he sent to Mr. Speed's mother a photograph of himself, inscribed, "For Mrs. Lucy G. Speed, from whose pious hand I accepted the present of an Oxford Bible twenty years ago."

But the principal means by which the current of his thoughts was changed was never dreamed of by himself or by his friend when they left Illinois. During this visit Speed himself fell in love, and became engaged to be married; and either by a singular chance or because the maladies of the soul may be propagated by constant association, the feeling of despairing melancholy, which he had found so morbid and so distressing an affliction in another, took possession of himself, and threw him into the same slough of despondency from which he had been laboring to rescue Lincoln. Between friends so intimate there were no concealments, and from the moment Lincoln found his services as nurse and consoler needed, the violence of his own trouble seemed to diminish. The two young men were in Springfield together in the autumn, and Lincoln seems by that time to have laid aside his own peculiar besetments, in order to minister to his

friend. They knew the inmost thoughts of each other's hearts and each relied upon the honesty and loyalty of the other to an extent rare among men. When Speed returned to Kentucky, to a happiness which awaited him there, so bright that it dazzled and blinded his moral vision, Lincoln continued his counsels and encouragements in letters which are remarkable for their tenderness and delicacy of thought and expression. Like another poet, he looked into his own heart and wrote. His own deeper nature had suffered from these same fantastic sorrows and terrors; of his own grief he made a medicine for his comrade.

While Speed was still with him, he wrote a long letter, which he put into his hands at parting, full of wise and affectionate reasonings, to be read when he should feel the need of it. He predicts for him a period of nervous depression—first, because he will be "exposed to bad weather on his journey, and, secondly, because of the absence of all business and conversation of friends which might divert his mind and give it occasional rest from the intensity of thought which will sometimes wear the sweetest idea threadbare, and turn it to the bitterness of death." The third cause, he says, "is the rapid and near approach of that crisis on which all your thoughts and feelings concentrate." If in spite of all these circumstances he should escape without a "twinge of the soul," his friend will be most happily deceived; but, he continues, "if you shall, as I expect you will at some time, be agonized and distressed, let me, who have some reason to speak with judgment on the subject, beseech you to ascribe it to the causes I have mentioned, and not to some false and ruinous suggestion of the devil." This forms the prelude to an ingenious and affectionate argument in which he labors to convince Speed of the loveliness of his betrothed and of the integrity of his own heart; a strange task, one would say, to undertake in behalf of a young and ardent lover. But the two men understood each other, and the service thus rendered was gratefully received and remembered by Speed all his life.

Lincoln wrote again on the 3d of February, 1842, congratulating Speed upon a recent severe illness of his destined bride, for the reason that "your present distress and anxiety about her health must forever banish those horrid doubts which you feel as to the truth of your affection for her." As the period of Speed's marriage drew near, Lincoln's letters betray the most intense anxiety. He cannot wait to hear the news from his friend, but writes to him about the time of the wedding, admitting that he is writing in the dark, that words from a bachelor may be worthless to a Benedick, but still unable to keep silence. He hopes he is happy with his wife, "but should I be mistaken in this, should excessive pleasure still be accompanied with a painful counterpart at times, still let me urge you, as I have ever done, to remember in the depth and even agony of despondency, that very shortly you are to feel well again." Further on he says: "If you went through the ceremony calmly, or even with sufficient composure not to excite alarm in any present, you are safe beyond question," seeking by every device of subtle affection to lift up the heart of his friend.

With a solicitude apparently greater than that of the nervous bridegroom, he awaited the announcement of the marriage, and when it came he wrote (February 25): "I opened the letter with intense anxiety and trepidation; so much that, although it turned out better than I expected, I have hardly yet, at the distance of ten hours, become calm. I tell you, Speed, our forebodings, for which you and I are peculiar, are all the worst sort of nonsense. I fancied from the time I received your letter of Saturday that the one of "Wednesday was never to come," and yet it did come, and, what is more, it is perfectly clear, both from its tone and handwriting, that ... you had obviously improved at the very time I had so much fancied you would have grown worse. You say that something indescribably horrible and alarming still haunts you. You will not say that three months from now, I will venture." The letter goes on in the same train of sympathetic cheer, but there is one phrase which strikes the keynote of all lives whose ideals are too high for

fulfillment: "It is the peculiar misfortune of both you and me to dream dreams of Elysium far exceeding all that anything earthly can realize."

But before long a letter came from Speed, who had settled with his black-eyed Kentucky wife upon a well-stocked plantation, disclaiming any further fellowship of misery and announcing the beginnings of that life of uneventful happiness which he led ever after. His peace of mind has become a matter of course; he dismisses the subject in a line, but dilates, with a new planter's rapture, upon the beauties and attractions of his farm. Lincoln frankly answers that he cares nothing about his farm. "I can only say that I am glad *you* are satisfied and pleased with it. But on that other subject, to me of the most intense interest whether in joy or sorrow, I never had the power to withhold my sympathy from you. It cannot be told how it now thrills me with joy to hear you say you are 'far happier than you ever expected to be.'.. I am not going beyond the truth when I tell you that the short space it took me to read your last letter gave me more pleasure than the total sum of all I have enjoyed since the fatal 1st of January, 1841. Since then it seems to me I should have been entirely happy, but for the never-absent idea that there is *one* still unhappy whom I have contributed to make so. That still kills my soul. I cannot but reproach myself for even wishing myself to be happy while she is otherwise."

During the summer of 1842 the letters of the friends still discuss, with waning intensity, however, their respective affairs of the heart. Speed, in the ease and happiness of his home, thanks Lincoln for his important part in his welfare, and gives him sage counsel for himself. Lincoln replies (July 4, 1842): "I could not have done less than I did. I always was superstitious; I believe God made me one of the instruments of bringing your Fanny and you together, which union I have no doubt he foreordained. Whatever he designs, he will do for me yet." A better name than "superstition" might properly be applied to this frame of mind. He acknowledges Speed's kindly

advice, but says: "Before I resolve to do the one thing or the other, I must gain my confidence in my own ability to keep my resolves when they are made. In that ability you know I once prided myself, as the only or chief gem of my character; that gem I lost, how and where you know too well. I have not yet regained it; and until I do I cannot trust myself in any matter of much importance. I believe now, that had you understood my case at the time as well as I understood yours afterwards, by the aid you would have given me I should have sailed through clear; but that does not afford me confidence to begin that, or the like of that, again." Still, he was nearing the end of his doubts and self-torturing sophistry. A last glimpse of his imperious curiosity, kept alive by saucy hopes and fears, is seen in his letter to Speed of the 5th of October. He ventures, with a genuine timidity, to ask a question which we may believe has not often been asked by one civilized man of another, with the hope of a candid answer, since marriages were celebrated with ring and book. "I want to ask you a close question— Are you now, in *feeling* as well as *judgment*, glad you are married as you are? From anybody but me this would be an impudent question, not to be tolerated; but I know you will pardon it in me. Please answer it quickly, as I am impatient to know." It is probable that Mr. Speed replied promptly in the way in which such questions must almost of necessity be answered. On the 4th of November, 1842, a marriage license was issued to Lincoln, and on the same day he was married to Miss Mary Todd, the ceremony being performed by the Rev. Charles Dresser. Four sons were the issue of this marriage: Robert Todd, born August 1, 1843; Edward Baker, March 10, 1846; William Wallace, December 21, 1850; Thomas, April 4, 1853. Of these only the eldest lived to maturity.

In this way Abraham Lincoln met and passed through one of the most important crises of his life. There was so much of idiosyncrasy in it that it has been, and will continue to be for years to come, the occasion of endless gossip in Sangamon County and elsewhere. Because it was not precisely

like the experience of other people, who are married and given in marriage every day without any ado, a dozen conflicting stories have grown up, more or less false and injurious to both contracting parties. But it may not be fanciful to suppose that characters like that of Lincoln, elected for great conflicts and trials, are fashioned by different processes from those of ordinary men, and pass their stated ordeals in a different way. By circumstances which seem commonplace enough to commonplace people, he was thrown for more than a year into a sea of perplexities and sufferings beyond the reach of the common run of souls.

It is as useless as it would be indelicate to seek to penetrate in detail the incidents and special causes which produced in his mind this darkness as of the valley of the shadow of death. There was probably nothing worth recording in them; we are only concerned with their effect upon a character which was to be hereafter for all time one of the possessions of the nation. It is enough for us to know that a great trouble came upon him, and that he bore it nobly after his kind. That the manner in which he confronted this crisis was strangely different from that of most men in similar circumstances need surely occasion no surprise. Neither in this nor in other matters was he shaped in the average mold of his contemporaries. In many respects he was doomed to a certain loneliness of excellence. There are few men that have had his stern and tyrannous sense of duty, his womanly tenderness of heart, his wakeful and inflexible conscience, which was so easy towards others and so merciless towards himself. Therefore when the time came for all of these qualities at once to be put to the most strenuous proof, the whole course of his development and the tendency of his nature made it inevitable that his suffering should be of the keenest and his final triumph over himself should be of the most complete and signal character. In that struggle his youth of reveries and day-dreams passed away. Such furnace-blasts of proof, such pangs of transformation, seem necessary for exceptional natures. The bread eaten in tears, of which Goethe speaks, the

sleepless nights of sorrow, are required for a clear vision of the celestial powers. Fortunately the same qualities that occasion the conflict insure the victory also. From days of gloom and depression, such as we have been considering, no doubt came precious results in the way of sympathy, self-restraint, and that sober reliance on the final triumph of good over evil peculiar to those who have been greatly tried but not destroyed. The late but splendid maturity of Lincoln's mind and character dates from this time, and, although he grew in strength and knowledge to the end, from this year we observe a steadiness and sobriety of thought and purpose, as discernible in his life as in his style. He was like a blade forged in fire and tempered in the ice- brook, ready for battle whenever the battle might come.

[Relocated Footnote: Mrs. Lincoln was the daughter of the Hon. Robert S. Todd of Kentucky. Her great-uncle John Todd, and her grandfather Levi Todd, accompanied General George Rogers Clark to Illinois, and were present at the capture of Kaskaskia and Vincennes. In December, 1778, John Todd was appointed by Patrick Henry, Governor of Virginia, to be lieutenant of the county of Illinois, then a part of Virginia. He was killed at the battle of the Blue Licks, in 1782. His brother Levi was also at that battle and was one of the few survivors of it.

Colonel John Todd was one of the original proprietors of the town of Lexington, Ky. While encamped on the site of the present city, he heard of the opening battle of the Revolution and named his infant settlement in its honor.—Arnold's "Life of Lincoln," p. 68.]

CHAPTER XII

THE SHIELDS DUEL

An incident which occurred during the summer preceding Mr. Lincoln's marriage, and which in the opinion of many had its influence in hastening that event, deserves some attention, if only from its incongruity with the rest of his history. This was the farce—which aspired at one time to be a tragedy—of his first and last duel. Among the officers of the State Government was a young Irishman named James Shields, who owed his post as Auditor, in great measure, to that alien vote to gain which the Democrats had overturned the Supreme Court. The finances of the State were in a deplorable condition: the treasury was empty; auditor's warrants were selling at half their nominal value; no more money was to be borrowed, and taxation was dreaded by both political parties more than disgrace. The currency of the State banks was well-nigh worthless, but it constituted nearly the only circulating medium in the State.

In the middle of August the Governor, Auditor, and Treasurer issued a circular forbidding the payment of State taxes in this depreciated paper. This order was naturally taken by the Whigs as indicating on the part of these officers a keener interest in the integrity of their salaries than in the public welfare, and it was therefore severely attacked in all the opposition newspapers of the State.

The sharpest assault it had to endure, however, was in a communication, dated August 27, and printed in the "Sangamo Journal" of September 2, not only dissecting the administration circular with the most savage satire, but covering the Auditor with merciless personal ridicule. It was written in the dialect of the country, dated from the "Lost Townships," and signed "Rebecca," and purported to come from a farmer widow of the county, who expressed in this fashion her discontent with the evil course of affairs.

Shields was a man of inordinate vanity and a corresponding irascibility. He was for that reason an irresistible mark for satire. Through a long life of somewhat conspicuous public service, he never lost a certain tone of absurdity which can only be accounted for by the qualities we have mentioned. Even his honorable wounds in battle, while they were productive of great public applause and political success, gained him scarcely less ridicule than praise. He never could refrain from talking of them himself, having none of Coriolanus's repugnance in that respect, and for that reason was a constant target for newspaper wits.

After Shields returned from the Mexican war, with his laurels still green, and at the close of the canvass which had made him Senator, he wrote an incredible letter to Judge Breese, his principal competitor, in which he committed the gratuitous folly of informing him that "he had sworn in his heart [if Breese had been elected] that he should never have profited by his success; and depend upon it," he added, in the amazing impudence of triumph, "I would have kept that vow, regardless of consequences. That, however, is now past, and the vow is canceled by your defeat." He then went on, with threats equally indecent, to make certain demands which were altogether inadmissible, and which Judge Breese only noticed by sending this preposterous letter to the press.

[Sidenote: "National Intelligencer," Feb. 28, 1849.]

It may easily be imagined that a man who, after being elected a Senator of the United States, was capable of the insane insolence of signing his name to a letter informing his defeated competitor that he would have killed him if the result had been different, would not have been likely, when seven years younger, to bear newspaper ridicule with equanimity. His fury against the unknown author of the satire was the subject of much merriment in Springfield, and the next week another letter appeared, from a different hand, but adopting the machinery of the first, in which the widow offered to make up the quarrel by marrying the Auditor, and this, in time, was followed by an epithalamium, in which this happy compromise was celebrated in very bad verses. In the change of hands all the humor of the thing had evaporated, and nothing was left but feminine mischief on one side and the exasperation of wounded vanity on the other.

Shields, however, had talked so much about the matter that he now felt imperatively called upon to act, and he therefore sent General Whitesides to demand from the "Journal" the name of its contributor. Mr. Francis, the editor, was in a quandary. Lincoln had written the first letter, and the antic fury of Shields had induced two young ladies who took a lively interest in Illinois politics—and with good reason, for one was to be the wife of a Senator and the other of a President—to follow up the game with attacks in prose and verse which, however deficient in wit and meter, were not wanting in pungency. In his dilemma he applied to Lincoln, who, as he was starting to attend court at Tremont, told him to give his name and withhold the names of the ladies. As soon as Whitesides received this information, he and his fiery principal set out for Tremont, and as Shields did nothing in silence, the news came to Lincoln's friends, two of whom, William Butler and Dr. Merryman, one of those combative medical men who have almost disappeared from American society, went off in a buggy in pursuit. They soon came in sight of the others, but loitered in the rear until evening, and then drove rapidly to Tremont, arriving there some time in advance of

Shields; so that in the ensuing negotiations Abraham Lincoln had the assistance of friends whose fidelity and whose nerve were equally beyond question.

It would be useless to recount all the tedious preliminaries of the affair. Shields opened the correspondence, as might have been expected, with blustering and with threats; his nature had no other way of expressing itself. His first letter was taken as a bar to any explanation or understanding, and he afterwards wrote a second, a little less offensive in tone, but without withdrawing the first. At every interview of the seconds General Whitesides deplored the bloodthirsty disposition of his principal, and urged that Mr. Lincoln should make the concessions which alone would prevent lamentable results. These representations seemed to avail nothing, however, and the parties, after endless talk, went to Alton and crossed the river to the Missouri shore. It seemed for a moment that the fight must take place. The terms had been left by the code, as then understood in the West, to Lincoln, and he certainly made no grudging use of his privilege. The weapons chosen were "cavalry broadswords of the largest size"; and the combatants were to stand on either side of a board placed on the ground, each to fight in a limit of six feet on his own side of the board. It was evident that Lincoln did not desire the death of his adversary, and did not intend to be materially injured himself. The advantage morally was altogether against him. He felt intensely the stupidity of the whole affair, but thought he could not avoid the fight without degradation; while to Shields such a fracas was a delight. The duel came to its natural end by the intervention of the usual "gods out of a machine," the gods being John J. Hardin and one Dr. English, and the machine a canoe in which they had hastily paddled across the Mississippi. Shields suffered himself to be persuaded to withdraw his offensive challenge. Lincoln then made the explanation he had been ready to make from the beginning; avowing the one letter he had written, and saying that it

had been printed solely for political effect, and without any intention of injuring Shields personally.

One would think that, after a week passed in such unprofitable trifling, the parties, principal and secondary, would have been willing to drop the matter forever. We are sure that Lincoln would have been glad to banish it, even from his memory; but to men like Shields and Whitesides, the peculiar relish and enjoyment of such an affair is its publicity. On the 3d of October, therefore, eleven days after the meeting, as public attention seemed to be flagging, Whitesides wrote an account of it to the "Sangamo Journal," for which he did not forget to say, "I hold myself responsible!" Of course he seized the occasion to paint a heroic portrait of himself and his principal. It was an excellent story until the next week, when Dr. Merryman, who seems to have wielded a pen like a scalpel, gave a much fuller history of the matter, which he substantiated by printing all the documents, and, not content with that, gave little details of the negotiations which show, either that Whitesides was one of the most grotesque braggarts of the time, or that Merryman was an admirable writer of comic fiction. Among the most amusing facts he brought forward was that Whitesides, being a Fund Commissioner of the State, ran the risk of losing his office by engaging in a duel; and his anxiety to appear reckless and dangerous, and yet keep within the statute and save his salary, was depicted by Merryman with a droll fidelity. He concluded by charging Whitesides plainly with "inefficiency and want of knowledge of those laws which govern gentlemen in matters of this kind," and with "trying to wipe out his fault by doing an act of injustice to Mr. Lincoln."

[Illustration: HOUSE IN WHICH ABRAHAM LINCOLN WAS MARRIED, THEN OWNED BY NINIAN W. EDWARDS, NOW OCCUPIED AS ST. AGATHA'S SCHOOL.]

The town was greatly diverted by these pungent echoes of the bloodless fight, and Shields and Whitesides felt that their honor was still out of repair. A rapid series of challenges succeeded among the parties, principals and seconds changing places as deftly as dancers in a quadrille. The Auditor challenged Mr. Butler, who had been very outspoken in his contemptuous comments on the affair. Butler at once accepted, and with a grim sincerity announced his conditions—"to fight next morning at sunrising in Bob Allen's meadow, one hundred yards' distance, with rifles." This was instantly declined, with a sort of horror, by Shields and Whitesides, as such a proceeding would have proved fatal to their official positions and their means of livelihood. They probably cared less for the chances of harm from Butler's Kentucky rifle than for the certainty of the Illinois law which cut off all duelists from holding office in the State.

But, on the other hand,—so unreasonable is human nature as displayed among politicians,—General Whitesides felt that if he bore patiently the winged words of Merryman, his availability as a candidate was greatly damaged; and he therefore sent to the witty doctor what Mr. Lincoln called "a quasi-challenge," hurling at him a modified defiance, which should be enough to lure him to the field of honor, and yet not sufficiently explicit to lose Whitesides the dignity and perquisites of Fund Commissioner. Merryman, not being an office-holder and having no salary to risk, responded with brutal directness, which was highly unsatisfactory to Whitesides, who was determined not to fight unless he could do so lawfully; and Lincoln, who now acted as second to the doctor in his turn, records the cessation of the correspondence amid the agonized explanations of Whitesides and the scornful hootings of Merryman, "while the town was in a ferment and a street fight somewhat anticipated." In respect to the last diversion the town was disappointed.

Shields lost nothing by the hilarity which this burlesque incident created. He was reserved for a career of singular luck and glory mingled with signal misfortunes. On account of his political availability he continued throughout a long lifetime to be selected at intervals for high positions. After he ceased to be Auditor he was elected a judge of the Supreme Court of Illinois; while still holding that position he applied for the place of Commissioner of the General Land Office, and his application was successful. When the Mexican war broke out he asked for a commission as brigadier-general, although he still held his civil appointment, and, to the amazement of the whole army, he was given that important command before he had ever seen a day's service. At the battle of Cerro Gordo he was shot through the lungs, and this wound made him a United States Senator as soon as he returned from the war. After he had served one term in the Senate, he removed from Illinois, and was soon sent back to the same body from Minnesota. In the war of the rebellion he was again appointed a brigadier-general by his old adversary, and was again wounded in a battle in which his troops defeated the redoubtable Stonewall Jackson; and many years after Lincoln was laid to sleep beneath a mountain of marble at Springfield, Shields was made the shuttlecock of contending demagogues in Congress, each striving to make a point by voting him money—until in the impulse of that transient controversy, the State of Missouri, finding the gray-headed soldier in her borders, for the third time sent him to the Senate of the United States for a few weeks—a history unparalleled even in America.

We have reason to think that the affair of the duel was excessively distasteful to Lincoln. He did not even enjoy the ludicrousness of it, as might have been expected. He never—so far as we can learn—alluded to it afterwards, and the recollection of it died away so completely from the minds of people in the State, that during the heated canvass of 1860 there

was no mention of this disagreeable episode in the opposition papers of Illinois. It had been absolutely forgotten.

This was Mr. Lincoln's last personal quarrel. [Transcriber's Note: Lengthy footnote relocated to chapter end.] Although the rest of his life was passed in hot and earnest debate, he never again descended to the level of his adversaries, who would gladly enough have resorted to unseemly wrangling. In later years it became his duty to give an official reprimand to a young officer who had been court-martialed for a quarrel with one of his associates. The reprimand is probably the gentlest recorded in the annals of penal discourses, and it shows in few words the principles which ruled the conduct of this great and peaceable man. It has never before been published, and it deserves to be written in letters of gold on the walls of every gymnasium and college:

The advice of a father to his son, "Beware of entrance to a quarrel, but being in, bear it that the opposed may beware of thee!" is good, but not the best. Quarrel not at all. No man resolved to make the most of himself can spare time for personal contention. Still less can he afford to take all the consequences, including the vitiating of his temper and the loss of self-control. Yield larger things to which you can show no more than equal right; and yield lesser ones though clearly your own. Better give your path to a dog than be bitten by him in contesting for the right. Even killing the dog would not cure the bite.

[Relocated Footnote: Lincoln's life was unusually free from personal disputes. We know of only one other hostile letter addressed to him. This was from W. G. Anderson, who being worsted in a verbal encounter with Lincoln at Lawrenceville, the county-seat of Lawrence County, Ill., wrote him a note demanding an explanation of his words and of his "present feelings." Lincoln's reply shows that his habitual peaceableness involved no

lack of dignity; he said. "Your note of yesterday is received. In the difficulty between us of which you speak, you say you think I was the aggressor. I do not think I was. You say my words 'imported insult.' I meant them as a fair set-off to your own statements, and not otherwise; and in that light alone I now wish you to understand them. You ask for my 'present feelings on the subject.' I entertain no unkind feeling to you, and none of any sort upon the subject, except a sincere regret that I permitted myself to get into any such altercation." This seems to have ended the matter—although the apology was made rather to himself than to Mr. Anderson. (See the letter of William C. Wilkinson in "The Century Magazine" for January, 1889.)]

CHAPTER XIII

THE CAMPAIGN OF 1844

In the letter to Stuart which we have quoted, Lincoln announced his intention to form a partnership with Judge Logan, which was soon carried out. His connection with Stuart was formally dissolved in April, 1841, and one with Logan formed which continued for four years. It may almost be said that Lincoln's practice as a lawyer begins from this time. Stuart, though even then giving promise of the distinction at which he arrived in his profession later in life, was at that period so entirely devoted to politics that the business of the office was altogether a secondary matter to him; and Lincoln, although no longer in his first youth, being then thirty-two years of age, had not yet formed those habits of close application which are indispensable to permanent success at the bar. He was not behind the greater part of his contemporaries in this respect. Among all the lawyers of the circuit who were then, or who afterwards became, eminent practitioners, [Footnote: They were Dan Stone, Jesse B. Thomas, Cyrus Walker, Schuyler Strong, Albert T. Bledsoe, George Forquer, Samuel H. Treat, Ninian W. Edwards, Josiah Lamborn, John J. Hardin, Edward D. Baker, and others.] there were few indeed who in those days applied themselves with any degree of persistency to the close study of legal principles. One of these few was Stephen T. Logan. He was more or less a politician, as were all his compeers at the bar, but he was always more a lawyer than anything else.

He had that love for his profession which it jealously exacts as a condition of succeeding. He possessed few books, and it used to be said of him long afterwards that he carried his library in his hat. But the books which he had he never ceased to read and ponder, and we heard him say when he was sixty years old, that once every year since he came of age he had read "Blackstone's Commentaries" through. He had that old-fashioned, lawyer-like morality which was keenly intolerant of any laxity or slovenliness of mind or character. His former partner had been Edward D. Baker, but this brilliant and mercurial spirit was not congenial to Logan; Baker's carelessness in money matters was Intolerable to him, and he was glad to escape from an associate so gifted and so exasperating. [Footnote: Logan's office was, in fact, a nursery of statesmen. Three of his partners, William L. May, Baker, and Lincoln, left him in rapid succession to go to Congress, and finally the contagion gained the head of the firm, and the judge was himself the candidate of his party, when it was no longer able to elect one. After he had retired from practice, the office, under his son-in-law and successor, Milton Hay, retained its prestige for cradling public men. John M. Palmer and Shelby M. Cullom left it to be Governors of the State, and the latter to be a Congressman and Senator.]

Needing some one, however, to assist him in his practice, which was then considerable, he invited Lincoln into partnership. He had, as we have seen, formed a favorable opinion of the young Kentuckian the first time they had met. In his subsequent acquaintance with him he had come to recognize and respect his abilities, his unpretending common sense, and his innate integrity. The partnership continued about four years, but the benefit Lincoln derived from it lasted all his life. The example of Judge Logan's thrift, order, and severity of morals; his straightforward devotion to his profession; his close and careful study of his cases, together with the larger and more important range of practice to which Lincoln was introduced by this new association, confirmed all those salutary tendencies by which he

had been led into the profession, and corrected those less desirable ones which he shared with most of the lawyers about him. He began for the first time to study his cases with energy and patience; to resist the tendency, almost universal at that day, to supply with florid rhetoric the attorney's deficiency in law; in short, to educate, discipline, and train the enormous faculty, hitherto latent in him, for close and severe intellectual labor. Logan, who had expected that Lincoln's chief value to him would be as a talking advocate before juries, was surprised and pleased to find his new partner rapidly becoming a lawyer. "He would study out his case and make about as much of it as anybody," said Logan, many years afterwards. "His ambition as a lawyer increased; he grew constantly. By close study of each case, as it came up, he got to be quite a formidable lawyer." The character of the man is in these words. He had vast concerns intrusted to him in the course of his life, and disposed of them one at a time as they were presented. At the end of four years the partnership was dissolved. Judge Logan took his son David—afterwards a well-known politician and lawyer of Oregon—into his office, and Lincoln opened one of his own, into which he soon invited a young, bright, and enthusiastic man named William Henry Herndon, who remained his partner as long as Lincoln lived.

The old partners continued close and intimate friends. They practiced at the same bar for twenty years, often as associates, and often as adversaries, but always with relations of mutual confidence and regard. They had the unusual honor, while they were still comparatively young men, of seeing their names indissolubly associated in the map of their State as a memorial to future ages of their friendship and their fame, in the county of Logan, of which the city of Lincoln is the county-seat.

They both prospered, each in his way. Logan rapidly gained a great reputation and accumulated an ample fortune. Lincoln, while he did not become rich, always earned a respectable livelihood, and never knew the

care of poverty or debt from that time forward, His wife and he suited their style of living to their means, and were equally removed from luxury and privation. They went to live, immediately after their marriage, at a boarding-house [Footnote: This house is still standing, opposite St, Paul's church.] called "The Globe," which was "very well kept by a widow lady of the name of Beck," and there their first child was born, who was one day to be Secretary of War and Minister to England, and for whom was reserved the strange experience of standing by the death-bed of two assassinated Presidents. Lincoln afterwards built a comfortable house of wood on the corner of Eighth and Jackson streets, where he lived until he removed to the White House.

Neither his marriage nor his new professional interests, however, put an end to his participation in politics. Even that period of gloom and depression of which we have spoken, and which has been so much exaggerated by the chroniclers and the gossip of Springfield, could not have interrupted for any length of time his activity as a member of the Legislature. Only for a few days was he absent from his place in the House. On the 19th of January, 1841, John J. Hardin apologized for the delay in some committee business, alleging Mr. Lincoln's indisposition as an excuse. On the 23d the letter to Stuart was written; but on the 26th Lincoln had so far recovered his self- possession as to resume his place in the House and the leadership of his party. The journals of the next month show his constant activity and prominence in the routine business of the Legislature until it adjourned. In August, Stuart was reflected to Congress. Lincoln made his visit to Kentucky with speed, and returned to find himself generally talked of for Governor of the State. This idea did not commend itself to the judgment of himself or his friends, and accordingly we find in the "Sangamo Journal" one of those semi- official announcements so much in vogue in early Western politics, which, while disclaiming any direct inspiration from Mr. Lincoln, expressed the gratitude of his friends for the

movement in his favor, but declined the nomination. "His talents and services endear him to the Whig party; but we do not believe he desires the nomination. He has already made great sacrifices in maintaining his party principles, and before his political friends ask him to make additional sacrifices, the subject should be well considered. The office of Governor, which would of necessity interfere with the practice of his profession, would poorly compensate him for the loss of four of the best years of his life."

He served this year as a member of the Whig Central Committee, and bore a prominent part in the movement set on foot at that time to check intemperance in the use of spirits. It was a movement in the name and memory of "Washington," and the orators of the cause made effective rhetorical use of its august associations. A passage from the close of a speech made by Lincoln on February 22, 1842, shows the fervor and feeling of the hour: "Washington is the mightiest name of earth—long since mightiest in the cause of civil liberty; still mightiest in moral reformation. On that name no eulogy is expected. It cannot be. To add brightness to the sun or glory to the name of Washington is alike impossible. Let none attempt it. In solemn awe pronounce the name, and in its naked, deathless splendor leave it shining on."

A mass meeting of the Whigs of the district was held at Springfield on the 1st of March, 1843, for the purpose of organizing the party for the elections of the year. On this occasion Lincoln was the most prominent figure. He called the meeting to order, stated its object, and drew up the platform of principles, which embraced the orthodox Whig tenets of a protective tariff, national bank, the distribution of the proceeds of the public lands, and, finally, the tardy conversion of the party to the convention system, which had been forced upon them by the example of the Democrats, who had shown them that victory could not be organized

without it. Lincoln was also chairman of the committee which was charged with the address to the people, and a paragraph from this document is worth quoting, as showing the use which he made at that early day of a pregnant text which was hereafter to figure in a far more momentous connection, and exercise a powerful influence upon his career. Exhorting the Whigs to harmony, he says: "That union is strength is a truth that has been known, illustrated, and declared in various ways and forms in all ages of the world. That great fabulist and philosopher, Aesop, illustrated it by his fable of the bundle of sticks; and He whose wisdom surpasses that of all philosophers has declared that 'a house divided against itself cannot stand.'" He calls to mind the victory of 1840, the overwhelming majority gained by the Whigs that year, their ill success since, and the necessity of unity and concord that the party may make its entire strength felt.

Lincoln was at this time a candidate for the Whig nomination to Congress; but he was confronted by formidable competition. The adjoining county of Morgan was warmly devoted to one of its own citizens, John J. Hardin, a man of an unusually gallant and chivalrous strain of character; and several other counties, for reasons not worth considering, were pledged to support any one whom Morgan County presented. If Lincoln had carried Sangamon County, his strength was so great in Menard and Mason, where he was personally known, that he could have been easily nominated. But Edward D. Baker had long coveted a seat in Congress, and went into the contest against Lincoln with many points in his favor. He was of about the same age, but had resided longer in the district, had a larger personal acquaintance, and was a much readier and more pleasing speaker. In fact, there are few men who have ever lived in this country with more of the peculiar temperament of the orator than Edward Dickinson Baker, It is related of him that on one occasion when the circumstances called for a policy of reserve, he was urged by his friends to go out upon a balcony and address an impromptu audience, which was calling for him. "No," he

replied, mistrusting his own fluency; "if I go out there, I will make a better speech than I want to." He was hardly capable of the severe study and care by which great parliamentary speakers are trained; but before a popular audience, and on all occasions where brilliant and effective improvisation was called for, he was almost unequaled. His funeral oration over the dead body of Senator Broderick in California, his thrilling and inspiring appeal in Union Square, New York, at the great meeting of April, 1861, and his reply to Breckinridge in the Senate delivered upon the impulse of the moment, conceived as he listened to the Kentuckian's peroration, leaning against the doorway of the Chamber in full uniform, booted and spurred, as he had ridden into Washington from the camp, are among the most remarkable specimens of absolutely unstudied and thrilling eloquence which our annals contain. He was also a man of extremely prepossessing appearance. Born in England of poor yet educated parents, and brought as a child to this country, his good looks and brightness had early attracted the attention of prominent gentlemen in Illinois, especially of Governor Edwards, who had made much of him and assisted him to a good education. He had met with considerable success as a lawyer, though he always relied rather upon his eloquence than his law, and there were few juries which could resist the force and fury of his speech, and not many lawyers could keep their equanimity in the face of his witty persiflage and savage sarcasm. When to all this is added a genuine love of every species of combat, physical and moral, we may understand the name Charles Sumner—paraphrasing a well-known epigram—applied to him in the Senate, after his heroic death at Ball's Bluff, "the Prince Rupert of battle and debate."

If Baker had relied upon his own unquestionable merits he would have been reasonably sure of succeeding in a community so well acquainted with him as Sangamon County. But to make assurance doubly sure his friends resorted to tactics which Lincoln, the most magnanimous and placable of men, thought rather unfair. Baker and his wife belonged to that numerous

and powerful sect which has several times played an important part in Western politics—the Disciples. They all supported him energetically, and used as arguments against Lincoln that his wife was a Presbyterian, that most of her family were Episcopalians, that Lincoln himself belonged to no church, and that he had been suspected of deism, and, finally, that he was the candidate of the aristocracy. This last charge so amazed Lincoln that he was unable to frame any satisfactory answer to it. The memory of his flat-boating days, of his illiterate youth, even of his deer-skin breeches shrunk by rain and exposure, appeared to have no power against this unexpected and baleful charge. When the county convention met, the delegates to the district convention were instructed to cast the vote of Sangamon for Baker. It showed the confidence of the convention in the imperturbable good-nature of the defeated candidate that they elected him a delegate to the Congressional convention charged with the cause of his successful rival. In a letter to Speed, he humorously refers to his situation as that of a rejected suitor who is asked to act as groomsman at the wedding of his sweetheart.

It soon became evident that Baker could not get strength enough outside of the county to nominate him. Lincoln in a letter to Speed, written in May, said: "In relation to our Congress matter here, you were right in supposing I would support the nominee. Neither Baker nor I, however, is the man, but Hardin, so far as I can judge from present appearances. We shall have no split or trouble about the matter; all will be harmony." A few days later this prediction was realized. The convention met at Pekin, and nominated Hardin with all the customary symptoms of spontaneous enthusiasm. He was elected in August, [Footnote: The opposing candidate was James A. McDougall, who was afterwards, as Senator from California, one of the most remarkable and eccentric figures in Washington life.] after a short but active canvass, in which Lincoln bore his part as usual. Hardin took his seat in December. The next year the time of holding elections was changed, and always afterwards the candidates were elected the year before vacancies

were to occur. In May, 1844, therefore, Baker attained the desire of his heart by being nominated, and in August he was elected, defeating John Calhoun, while Lincoln had the laborious and honorable post of Presidential Elector.

[Illustration: BRIG.-GEN. JAMES SHIELDS.]

It was not the first nor the last time that he acted in this capacity. The place had become his by a sort of prescription. His persuasive and convincing oratory was thought so useful to his party that every four years he was sent, in the character of electoral canvasser, to the remotest regions of the State to talk to the people in their own dialect, with their own habits of thought and feeling, in favor of the Whig candidate. The office had its especial charm for him; if beaten, as generally happened, the defeat had no personal significance; if elected, the functions of the place were discharged in one day, and the office passed from existence. But there was something more than the orator and the partisan concerned in this campaign of 1844. The whole heart of the man was enlisted in it—for the candidate was the beloved and idolized leader of the Whigs, Henry Clay. It is probable that we shall never see again in this country another such instance of the personal devotion of a party to its chieftain as that which was shown by the long and wonderful career of Mr. Clay. He became prominent in the politics of Kentucky near the close of the last century at twenty-three years of age. He was elected first to the Senate at twenty-nine. He died a Senator at seventy-five, and for the greater part of that long interval he was the most considerable personal influence in American politics. As Senator, Representative, Speaker of the House, and diplomatist, he filled the public eye for half a century, and although he twice peremptorily retired from office, and although he was the mark of the most furious partisan hatred all his days, neither his own weariness nor the malice of his enemies could ever keep him for any length of time from that commanding position for which his temperament and his nature designed him. He was beloved,

respected, and served by his adherents with a single-hearted allegiance which seems impossible to the more complex life of a later generation. In 1844, it is true, he was no longer young, and his power may be said to have been on the decline. But there were circumstances connected with this his last candidacy which excited his faithful followers to a peculiar intensity of devotion. He had been, as many thought, unjustly passed over in 1840, and General Harrison, a man of greatly inferior capacity, had been preferred to him on the grounds of prudence and expediency, after three days of balloting had shown that the eloquent Kentuckian had more friends and more enemies than any other man in the republic. He had seemed to regain all his popularity by the prompt and frank support which he gave to the candidacy of Harrison; and after the President's death and the treachery of Tyler had turned the victory of the Whigs into dust and ashes, the entire party came back to Clay with passionate affection and confidence, to lead them in the desperate battle which perhaps no man could have won. The Whigs, however, were far from appreciating this. There is evident in all their utterances of the spring and early summer of 1844, an ardent and almost furious conviction, not only of the necessity but the certainty of success. Mr. Clay was nominated long before the convention met in Baltimore. The convention of the 1st of May only ratified the popular will; no other name was mentioned. Mr. Watkins Leigh had the honor of presenting his name, "a word," he said "that expressed more enthusiasm, that had in it more eloquence, than the names of Chatham, Burke, Patrick Henry, and," he continued, rising to the requirements of the occasion, "to us more than any other and all other names together." Nothing was left to be said, and Clay was nominated without a ballot; Mr. Lumpkin, of Georgia, then nominated Theodore Frelinghuysen for Vice-President, not hesitating to avow, in the warmth and expansion of the hour, that he believed that the baptismal name of the New Jersey gentleman had a mystical appropriateness to the occasion.

In the Democratic convention Mr. Van Buren had a majority of delegates pledged to support him; but it had already been resolved in the inner councils of the party that he should be defeated. The Southern leaders had determined upon the immediate and unconditional annexation of Texas, and Mr. Van Buren's views upon this vital question were too moderate and conservative to suit the adventurous spirits who most closely surrounded President Tyler. During the whole of the preceding year a steady and earnest propaganda of annexation had been on foot, starting from the immediate *entourage* of the President and embracing a large number of Southern Congressmen. A letter had been elicited from General Jackson, declaring with his usual vehemence in favor of the project, and urging it upon the ground that Texas was absolutely necessary to us, as the most easily defensible frontier against Great Britain. Using the favorite argument of the Southerners of his school, he said: "Great Britain has already made treaties with Texas; and we know that far-seeing nation never omits a circumstance in her extensive intercourse with the world which can be turned to account in increasing her military resources. May she not enter into an alliance with Texas? And, reserving, as she doubtless will, the North-western boundary question as the cause of war with us whenever she chooses to declare it—let us suppose that, as an ally with Texas, we are to fight her. Preparatory to such a movement she sends her 20,000 or 30,000 men to Texas; organizes them on the Sabine, where supplies and arms can be concentrated before we have even notice of her intentions; makes a lodgment on the Mississippi; excites the negroes to insurrection; the lower country falls, with it New Orleans; and a servile war rages through the whole South and West." [Footnote: This letter was dated at the Hermitage, near Nashville, Tennessee, Feb. 13, 1843, and was printed a year later in the "National Intelligencer," with the date altered to 1844.]

[Sidenote: T. H. Benton, "Thirty Years View."]

These fanciful prophecies of evil were privately circulated for a year among those whom they would be most likely to influence, and the entire letter was printed in 1844, with a result never intended by the writer. It contributed greatly, in the opinion of many, to defeat Van Buren, whom Jackson held in great esteem and regard, and served the purposes of the Tyler faction, whom he detested. The argument based on imaginary British intrigues was the one most relied upon by Mr. Tyler's successive secretaries of state. John C. Calhoun, in his dispatch of the 12th of August, 1844, instructed our minister in Paris to impress upon the Government of France the nefarious character of the English diplomacy, which was seeking, by defeating the annexation of Texas, to accomplish the abolition of slavery first in that region, and afterwards throughout the United States, "a blow calamitous to this continent beyond description." No denials on the part of the British Government had any effect; it was a fixed idea of Calhoun and his followers that the designs of Great Britain against American slavery could only be baffled by the annexation of Texas. Van Buren was not in principle opposed to the admission of Texas into the Union at the proper time and with the proper conditions, but the more ardent Democrats of the South were unwilling to listen to any conditions or any suggestion of delay. They succeeded in inducing the convention to adopt the two-thirds rule, after a whole day of stormy debate, and the defeat of Van Buren was secured. The nomination of Mr. Polk was received without enthusiasm, and the exultant hopes of the Whigs were correspondingly increased.

Contemporary observers differ as to the causes which gradually, as the summer advanced, changed the course of public opinion to such an extent as to bring defeat in November upon a party which was so sure of victory in June. It has been the habit of the antislavery Whigs who have written upon the subject to ascribe the disaster to an indiscretion of the candidate himself. At the outset of the campaign Mr. Clay's avowed opinion as to the annexation of Texas was that of the vast majority of his party, especially in

the North. While not opposing an increase of territory under all circumstances, he said,— in a letter written from Raleigh, N.C., two weeks before his nomination,—"I consider the annexation of Texas, at this time, without the consent of Mexico, as a measure compromising the national character, involving us certainly in war with Mexico, probably with other foreign powers, dangerous to the integrity of the Union, inexpedient in the present financial condition of the country, and not called for by any expression of public opinion." He supported these views with temperate and judicious reasons which were received with much gratification throughout the country.

Of course they were not satisfactory to every one, and Mr. Clay became so disquieted by letters of inquiry and of criticism from the South, that he was at last moved, in an unfortunate hour, to write another letter to a friend in Alabama, which was regarded as seriously modifying the views he had expressed in the letter from Raleigh. He now said: "I have no hesitation in saying that, far from having any personal objections to the annexation of Texas, I should be glad to see it—without dishonor, without war, with the common consent of the Union, and upon just and fair terms ... I do not think the subject of slavery ought to affect the question one way or the other, whether Texas be independent or incorporated in the United States. I do not believe it will prolong or shorten the duration of that institution. It is destined to become extinct, at some distant day, in my opinion, by the operation of the inevitable laws of population. It would be unwise to refuse a permanent acquisition, which will exist as long as the globe remains, on account of a temporary institution." Mr. Clay does not in this letter disclaim or disavow any sentiments previously expressed. He says, as any one might say, that provided certain impossible conditions were complied with, he would be glad to see Texas in the Union, and that he was so sure of the ultimate extinction of slavery that he would not let any consideration of that transitory system interfere with a great national advantage. It might

naturally have been expected that such an expression would have given less offense to the opponents than to the friends of slavery. But the contrary effect resulted, and it soon became evident that a grave error of judgment had been committed in writing the letter.

[Sidenote: "American Conflict," p. 167.]

The principal opposition to annexation in the North had been made expressly upon the ground that it would increase the area of slavery, and the comparative indifferences with which Mr. Clay treated that view of the subject cost him heavily in the canvass. Horace Greeley, who should be regarded as an impartial witness in such a case, says, "The 'Liberty Party,' so-called, pushed this view of the matter beyond all justice and reason, insisting that Mr. Clay's antagonism to annexation, not being founded in antislavery conviction, was of no account whatever, and that his election should, on that ground, be opposed." It availed nothing that Mr. Clay, alarmed at the defection in the North, wrote a third and final letter, reiterating his unaltered objections to any such annexation as was at that time possible. The damage was irretrievable. It is not probable that his letters gained or saved him a vote in the South among the advocates of annexation. They cared for nothing short of their own unconditional scheme of immediate action. They forgot the services rendered by Mr. Clay in bringing about the recognition of Texan independence a few years before.

They saw that Mr. Polk was ready to risk everything—war, international complications, even the dishonor of broken obligations— to accomplish their purpose, and nothing the Whig candidate could say would weigh anything in the balance against this blind and reckless readiness. On the other hand, Mr. Clay's cautious and moderate position did him irreparable harm among the ardent opponents of slavery. They were not willing to listen to counsels of caution and moderation. More than a year before,

thirteen of the Whig antislavery Congressmen, headed by the illustrious John Quincy Adams, had issued a fervid address to the people of the free States, declaiming in language of passionate force against the scheme of annexation as fatal to the country, calling it, in fact, "identical with dissolution," and saying that "it would be a violation of our national compact, its objects, designs, and the great elementary principles which entered into its formation of a character so deep and fundamental, and would be an attempt to eternize an institution and a power of nature so unjust in themselves, so injurious to the interests and abhorrent to the feelings of the people of the free States, as in our opinion, not only inevitably to result in a dissolution of the Union, but fully to justify it; and we not only assert that the people of the free States ought not to submit to it, but we say with confidence they would not submit to it." To men in a temper like that indicated by these words, no arguments drawn from consideration of political expediency could be expected to have any weight, and it was of no use to say to them that in voting for a third candidate they were voting to elect Mr. Polk, the avowed and eager advocate of annexation. If all the votes cast for James G. Birney, the "Liberty" candidate, had been cast for Clay, he would have been elected, and even as it was the contest was close and doubtful to the last. Birney received 62,263 votes, and the popular majority of Polk over Clay was only 38,792.

There are certain temptations that no government yet instituted has been able to resist. When an object is ardently desired by the majority, when it is practicable, when it is expedient for the material welfare of the country, and when the cost of it will fall upon other people, it may be taken for granted that—in the present condition of international ethics—the partisans of the project will never lack means of defending its morality. The annexation of Texas was one of these cases. Moralists called it an inexcusable national crime, conceived by Southern statesmen for the benefit of slavery, [Footnote: This purpose was avowed by John C. Calhoun in the Senate,

May 23, 1836; see also his speech of February 24, 1847.] carried on during a term of years with unexampled energy, truculence and treachery; in both houses of Congress, in the cabinets of two Presidents, in diplomatic dealings with foreign powers, every step of its progress marked by false professions, by broken pledges, by a steady degradation of moral fiber among all those engaged in the scheme. The opposition to it—as usually happens—consisted partly in the natural effort of partisans to baffle their opponents, and partly in an honorable protest of heart and conscience against a great wrong committed in the interest of a national sin. But looking back upon the whole transaction—even over so short a distance as now separates us from it—one cannot but perceive that the attitude of the two parties was in some sort inevitable and that the result was also sure, whatever the subordinate events or incidents which may have led to it. It was impossible to defeat or greatly to delay the annexation of Texas, and although those who opposed it but obeyed the dictates of common morality, they were fighting a battle beyond ordinary human powers.

Here was a great empire offering itself to us—a State which had gained its independence, and built itself into a certain measure of order and thrift through American valor and enterprise. She offered us a magnificent estate of 376,000 square miles of territory, all of it valuable, and much of it of unsurpassed richness and fertility. Even those portions of it once condemned as desert now contribute to the markets of the world vast stores of wool and cotton, herds of cattle and flocks of sheep. Not only were these material advantages of great attractiveness to the public mind, but many powerful sentimental considerations reinforced the claim of Texas. The Texans were not an alien people. The few inhabitants of that vast realm were mostly Americans, who had occupied and subdued a vacant wilderness. The heroic defense of the Alamo had been made by Travis, Bowie, and David Crockett, whose exploits and death form one of the most brilliant pages of our border history. Fannin and his men, four hundred

strong, when they laid down their lives at Goliad [Transcriber's Note: Lengthy footnote relocated to chapter end.] had carried mourning into every South-western State; and when, a few days later, Samuel Houston and his eight hundred raw levies defeated and destroyed the Mexican army at San Jacinto, captured Santa Anna, the Mexican president, and with American thrift, instead of giving him the death he merited for his cruel murder of unarmed prisoners, saved him to make a treaty with, the whole people recognized something of kinship in the unaffected valor with which these borderers died and the humorous shrewdness with which they bargained, and felt as if the victory over the Mexicans were their own.

The schemes of the Southern statesmen who were working for the extension of slavery were not defensible, and we have no disposition to defend them; but it may be doubted whether there is a government on the face of the earth which, under similar circumstances, would not have yielded to the same temptation.

Under these conditions, the annexation, sooner or later, was inevitable. No man and no party could oppose it except at serious cost. It is not true that schemes of annexation are always popular. Several administrations have lost heavily by proposing them. Grant failed with Santo Domingo; Seward with St. Thomas; and it required all his skill and influence to accomplish the ratification of the Alaska purchase. There is no general desire among Americans for acquiring outlying territory, however intrinsically valuable it may be; their land-hunger is confined within the limits of that of a Western farmer once quoted by Mr. Lincoln, who used to say, "I am not greedy about land; I only want what jines mine." Whenever a region contiguous to the United States becomes filled with Americans, it is absolutely certain to come under the American flag. Texas was as sure to be incorporated into the Union as are two drops of water touching each other to become one; and this consummation would not have been prevented for

any length of time if Clay or Van Buren had been elected in 1844. The honorable scruples of the Whigs, the sensitive consciences of the "Liberty" men, could never have prevailed permanently against a tendency so natural and so irresistible. Everything that year seemed to work against the Whigs. At a most unfortunate time for them, there was an outbreak of that "native" fanaticism which reappears from time to time in our politics with the periodicity of malarial fevers, and always to the profit of the party against which its efforts are aimed. It led to great disturbances in several cities, and to riot and bloodshed in Philadelphia. The Clay party were, of course, free from any complicity with these outrages, but the foreigners, in their alarm, huddled together almost as one man on the side where the majority of them always voted, and this occasioned a heavy loss to the Whigs in several States. The first appearance of Lincoln in the canvass was in a judicious attempt to check this unreasonable panic. At a meeting held in Springfield, June 12, he introduced and supported resolutions, declaring that "the guarantee of the rights of conscience as found in our Constitution is most sacred and inviolable, and one that belongs no less to the Catholic than the Protestant, and that all attempts to abridge or interfere with these rights either of Catholic or Protestant, directly or indirectly, have our decided disapprobation, and shall have our most effective opposition." Several times afterwards in his life Lincoln was forced to confront this same proscriptive spirit among the men with whom he was more or less affiliated politically, and he never failed to denounce it as it deserved, whatever might be the risk of loss involved.

Beginning with this manly protest against intolerance and disorder, he went into the work of the campaign and continued in it with unabated ardor to the end. The defeat of Clay affected him, as it did thousands of others, as a great public calamity and a keen personal sorrow. It is impossible to mistake the accent of sincere mourning which we find in the journals of the time. The addresses which were sent to Mr. Clay from every part of the

country indicate a depth of affectionate devotion which rarely falls to the lot of a political chieftain. An extract from the one sent by the Clay Clubs of New York will show the earnest attachment and pride with which the young men of that day still declared their loyalty to their beloved leader, even in the midst of irreparable disaster. "We will remember you, Henry Clay, while the memory of the glorious or the sense of the good remains in us, with a grateful and admiring affection which shall strengthen with our strength and shall not decay with our decline. We will remember you in all our future trials and reverses as him whose name honored defeat and gave it a glory which victory could not have brought. We will remember you when patriotic hope rallies again to successful contest with the agencies of corruption and ruin; for we will never know a triumph which you do not share in life, whose glory does not accrue to you in death."

[Relocated Footnote: This massacre inspired one of the most remarkable poems of Walt Whitman, "Now I tell you what I knew of Texas in my early youth," in which occurs his description of the rangers:

"They were the glory of the race of rangers,
Matchless with horse, rifle, song, supper, courtship,
Large, turbulent, generous, handsome, proud, and affectionate,
Bearded, sunburnt, drest in the free costume of hunters,
Not a single one over thirty years of age."]

CHAPTER XIV

CAMPAIGN FOR CONGRESS

In the months that remained of his term, after the election of his successor, President Tyler pursued with much vigor his purpose of accomplishing the annexation of Texas, regarding it as the measure which was specially to illustrate his administration and to preserve it from oblivion. The state of affairs, when Congress came together in December, 1844, was propitious to the project. Dr. Anson Jones had been elected as President of Texas; the republic was in a more thriving condition than ever before. Its population was rapidly increasing under the stimulus of its probable change of flag; its budget presented a less unwholesome balance; its relations with Mexico, while they were no more friendly, had ceased to excite alarm. The Tyler government, having been baffled in the spring by the rejection of the treaty for annexation which they had submitted to the Senate, chose to proceed this winter in a different way. Early in the session a joint resolution providing for annexation was introduced in the House of Representatives, which, after considerable discussion and attempted amendment by the anti-slavery members, passed the House by a majority of twenty-two votes.

In the Senate it encountered more opposition, as might have been expected in a chamber which had overwhelmingly rejected the same

scheme only a few months before. It was at last amended by inserting a section called the Walker amendment, providing that the President, if it were in his judgment advisable, should proceed by way of negotiation, instead of submitting the resolutions as an overture on the part of the United States to Texas. This amendment eased the conscience of a few shy supporters of the Administration who had committed themselves very strongly against the scheme, and saved them from the shame of open tergiversation. The President, however, treated this subterfuge with the contempt which it deserved, by utterly disregarding the Walker amendment, and by dispatching a messenger to Texas to bring about annexation on the basis of the resolutions, the moment he had signed them, when only a few hours of his official existence remained. The measures initiated by Tyler were, of course, carried out by Polk. The work was pushed forward with equal zeal at Washington and at Austin. A convention of Texans was called for the 4th of July to consider the American propositions; they were promptly accepted and ratified, and in the last days of 1845 Texas was formally admitted into the Union as a State.

Besides the general objections which the anti-slavery men of the North had to the project itself, there was something especially offensive to them in the pretense of fairness and compromise held out by the resolutions committing the Government to annexation. The third section provided that four new States might hereafter be formed out of the Territory of Texas; that such States as were formed out of the portion lying south of 36 degrees 30', the Missouri Compromise line, might be admitted with or without slavery, as the people might desire; and that slavery should be prohibited in such States as might be formed out of the portion lying north of that line. The opponents of slavery regarded this provision, with good reason, as derisive. Slavery already existed in the entire territory by the act of the early settlers from the South who had brought their slaves with them, and the State of Texas had no valid claim to an inch of ground north of the line of 36

degrees 30' nor anywhere near it; so that this clause, if it had any force whatever, would have authorized the establishment of slavery in a portion of New Mexico, where it did not exist, and where it had been expressly prohibited by the Mexican law. Another serious objection was that the resolutions were taken as committing the United States to the adoption and maintenance of the Rio Grande del Norte as the western boundary of Texas. All mention of this was avoided in the instrument, and it was expressly stated that the State was to be formed "subject to the adjustment by this Government of all questions of boundary that may arise with other governments," but the moment the resolutions were passed the Government assumed, as a matter beyond dispute, that all of the territory east of the Rio Grande was the rightful property of Texas, to be defended by the military power of the United States.

Even if Mexico had been inclined to submit to the annexation of Texas, it was nevertheless certain that the occupation of the left bank of the Rio Grande, without an attempt at an understanding, would bring about a collision. The country lying between the Nueces and the Rio Grande was then entirely uninhabited, and was thought uninhabitable, though subsequent years have shown the fallacy of that belief. The occupation of the country extended no farther than the Nueces, and the Mexican farmers cultivated their corn and cotton in peace in the fertile fields opposite Matamoras.

It is true that Texas claimed the eastern bank of the Rio Grande from its source to its mouth; and while the Texans held Santa Anna prisoner, under duress of arms and the stronger pressure of his own conscience, which assured him that he deserved death as a murderer, "he solemnly sanctioned, acknowledged, and ratified" their independence with whatever boundaries they chose to claim; but the Bustamente administration lost no time in

repudiating this treaty, and at once renewed the war, which had been carried on in a fitful way ever since.

[Illustration: HENRY CLAY.]

[Sidenote: August 23, 1843.]

But leaving out of view this special subject of admitted dispute, the Mexican Government had warned our own in sufficiently formal terms that annexation could not be peacefully effected. When A. P. Upshur first began his negotiations with Texas, the Mexican Minister of Foreign Affairs, at his earliest rumors of what was afoot, addressed a note to Waddy Thompson, our Minister in Mexico, referring to the reported intention of Texas to seek admission, to the Union, and formally protesting against it as "an aggression unprecedented in the annals of the world," and adding "if it be indispensable for the Mexican nation to seek security for its rights at the expense of the disasters of war, it will call upon God, and rely on its own efforts for the defense of its just cause." A little while later General Almonte renewed this notification at Washington, saying in so many words that the annexation of Texas would terminate his mission, and that Mexico would declare war as soon as it received intimation of such an act. In June, 1845, Mr. Donelson, in charge of the American Legation in Mexico, assured the Secretary of State that war was inevitable, though he adopted the fiction of Mr. Calhoun, that it was the result of the abolitionist intrigues of Great Britain, which he credited with the intention "of depriving both Texas and the United States of all claim to the country between the Nueces and the Rio Grande."

No one, therefore, doubted that war would follow, and it soon came. General Zachary Taylor had been sent during the summer to Corpus Christi, where a considerable portion of the small army of the United States was placed under his command. It was generally understood to be the desire of

the Administration that hostilities should begin without orders, by a species of spontaneous combustion; but the coolness and prudence of General Taylor made futile any such hopes, if they were entertained, and it required a positive order to induce him, in March, 1846, to advance towards the Rio Grande and to cross the disputed territory. He arrived at a point opposite Matamoras on the 28th of March, and immediately fortified himself, disregarding the summons of the Mexican commander, who warned him that such action would be considered as a declaration of war. In May, General Arista crossed the river and attacked General Taylor on the field of Palo Alto, where Taylor won the first of that remarkable series of victories, embracing Resaca de la Palma, Monterey, and Buena Vista, all gained over superior forces of the enemy, which made the American commander for the brief day that was left him the idol alike of soldiers and voters.

After Baker's election in 1844, it was generally taken as a matter of course in the district that Lincoln was to be the next candidate of the Whig party for Congress. It was charged at the time, and some recent writers have repeated the charge, that there was a bargain made in 1840 between Hardin, Baker, Lincoln, and Logan to succeed each other in the order named. This sort of fiction is the commonest known to American politics. Something like it is told, and more or less believed, in half the districts in the country at every election. It arises naturally from the fact that there are always more candidates than places, that any one who is a candidate twice is felt to be defrauding his neighbors, and that all candidates are too ready to assure their constituents that they only want one term, and too ready to forget these assurances when their terms are ending. There is not only no evidence of any such bargain among the men we have mentioned, but there is the clearest proof of the contrary. Two or more of them were candidates for the nomination at every election from the time when Stuart retired until the Whigs lost the district.

At the same time it is not to be denied that there was a tacit understanding among the Whigs of the district that whoever should, at each election, gain the honor of representing the one Whig constituency of the State, should hold himself satisfied with the privilege, and not be a candidate for reelection. The retiring member was not always convinced of the propriety of this arrangement. In the early part of January, 1846, Hardin was the only one whose name was mentioned in opposition to Lincoln. He was reasonably sure of his own county, and he tried to induce Lincoln to consent to an arrangement that all candidates should confine themselves to their own counties in the canvass; but Lincoln, who was very strong in the outlying counties of the district, declined the proposition, alleging, as a reason for refusing, that Hardin was so much better known than he, by reason of his service in Congress, that such a stipulation would give him a great advantage. There was fully as much courtesy as candor in this plea, and Lincoln's entire letter was extremely politic and civil. "I have always been in the habit," he says, "of acceding to almost any proposal that a friend would make, and I am truly sorry that I cannot to this." A month later Hardin saw that his candidacy was useless, and he published a card withdrawing from the contest, which was printed and commended in the kindest terms by papers friendly to Lincoln, and the two men remained on terms of cordial friendship.

[Sidenote: Lincoln to James, Nov. 24, 1845. Unpublished MS.]

[Sidenote: Lincoln to James, Jan. 14, 1846. Unpublished MS.]

[Sidenote: Ibid.]

It is not to be said that Lincoln relied entirely upon his own merits and the sentiment of the constituents to procure him this nomination. Like other politicians of the time, he used all proper means to attain his object. A package of letters, written during the preliminary canvass, which have

recently come into our hands, show how intelligent and how straightforward he was in the ways of politics. He had no fear of Baker; all his efforts were directed to making so strong a show of force as to warn Hardin off the field. He countenanced no attack upon his competitor; he approved a movement—not entirely disinterested—looking to his nomination for Governor. He kept up an extensive correspondence with the captains of tens throughout the district; he suggested and revised the utterances of country editors; he kept his friends aware of his wishes as to conventions and delegates. He was never overconfident; so late as the middle of January, he did not share the belief of his supporters that he was to be nominated without a contest. "Hardin," he wrote, "is a man of desperate energy and perseverance, and one that never backs out; and, I fear, to think otherwise is to be deceived.... I would rejoice to be spared the labor of a contest, 'but being in' I shall go it thoroughly...." His knowledge of the district was curiously minute, though he underestimated his own popularity. He wrote: "As to my being able to make a break in the lower counties, ... I can possibly get Cass, but I do not think I will. Morgan and Scott are beyond my reach, Menard is safe to me; Mason, neck and neck; Logan is mine. To make the matter sure your entire senatorial district must be secured. Of this I suppose Tazewell is safe, and I have much done in both the other counties. In Woodford I have Davenport, Simms, Willard, Braken, Perry, Travis, Dr. Hazzard, and the Clarks, and some others, all specially committed. At Lacon, in Marshall, the very most active friend I have in the district (if I except yourself) is at work. Through him I have procured the names and written to three or four of the most active Whigs in each precinct of the county. Still, I wish you all in Tazewell to keep your eyes continually on Woodford and Marshall. Let no opportunity of making a mark escape. When they shall be safe, all will be safe—I think." His constitutional caution suggests those final words. He did not relax his vigilance for a moment until after Hardin withdrew. He warned his

correspondents day by day of every move on the board; advised his supporters at every point, and kept every wire in perfect working order.

The convention was held at Petersburg on the 1st of May. Judge Logan placed the name of Lincoln before it, and he was nominated unanimously. The Springfield "Journal," giving the news the week after, said: "This nomination was of course anticipated, there being no other candidate in the field. Mr. Lincoln, we all know, is a good Whig, a good man, an able speaker, and richly deserves, as he enjoys, the confidence of the Whigs of this district and of the State."

The Democrats gave Mr. Lincoln a singular competitor—the famous Methodist preacher, Peter Cartwright. It was not the first time they had met in the field of politics. When Lincoln ran for the Legislature on his return from the Black Hawk war, in 1832, one of the successful candidates of that year was this indefatigable circuit-rider. He was now over sixty years of age, in the height of his popularity, and in all respects an adversary not to be despised. His career as a preacher began at the beginning of the century and continued for seventy years. He was the son of one of the pioneers of the West, and grew up in the rudest regions of the border land between Tennessee and Kentucky. He represents himself, with the usual inverted pride of a class-leader, as having been a wild, vicious youth; but the catalogue of his crimes embraces nothing less venial than card-playing, horse-racing, and dancing, and it is hard to see what different amusements could have been found in southern Kentucky in 1801.

This course of dissipation did not continue long, as he was "converted and united with the Ebenezer Methodist Episcopal Church" in June of that year, when only sixteen years old, and immediately developed such zeal and power in exhortation that less than a year later he was licensed to "exercise his gifts as an exhorter so long as his practice is agreeable to the gospel."

He became a deacon at twenty-one, an elder at twenty-three, a presiding elder at twenty-seven, and from that time his life is the history of his church in the West for sixty years. He died in 1872, eighty-seven years of age, having baptized twelve thousand persons and preached fifteen thousand sermons. He was, and will always remain, the type of the backwoods preacher. Even in his lifetime the simple story of his life became so overgrown with a net-work of fable that there is little resemblance between the simple, courageous, prejudiced itinerant of his "Autobiography" and the fighting, brawling, half-civilized, Protestant Friar Tuck of bar-room newspaper legend.

It is true that he did not always discard the weapons of the flesh in his combats with the ungodly, and he felt more than once compelled to leave the pulpit to do carnal execution upon the disturbers of the peace of the sanctuary; but two or three incidents of this sort in three-quarters of a century do not turn a parson into a pugilist. He was a fluent, self-confident speaker, who, after the habit of his time, addressed his discourses more to the emotions than to the reason of his hearers. His system of future rewards and punishments was of the most simple and concrete character, and formed the staple of his sermons. He had no patience with the refinements and reticences of modern theology, and in his later years observed with scorn and sorrow the progress of education and scholarly training in his own communion. After listening one day to a prayer from a young minister which shone more by its correctness than its unction, he could not refrain from saying, "Brother—, three prayers like that would freeze hell over!"—a consummation which did not commend itself to him as desirable. He often visited the cities of the Atlantic coast, but saw little in them to admire. His chief pleasure on his return was to sit in a circle of his friends and pour out the phials of his sarcasm upon all the refinements of life that he had witnessed in New York or Philadelphia, which he believed, or affected to believe, were tenanted by a species of beings altogether inferior to the

manhood that filled the cabins of Kentucky and Illinois. An apocryphal story of one of these visits was often told of him, which pleased him so that he never contradicted it: that becoming bewildered in the vastness of a New York hotel, he procured a hatchet, and in pioneer fashion "blazed" his way along the mahogany staircases and painted corridors from the office to his room. With all his eccentricities, he was a devout man, conscientious and brave. He lived in domestic peace and honor all his days, and dying, he and his wife, whom he had married almost in childhood, left a posterity of 129 direct descendants to mourn them. [Transcriber's Note: Lengthy footnote (1) relocated to chapter end.]

With all his devotion to the cause of his church, Peter Cartwright was an ardent Jackson politician, with probably a larger acquaintance throughout the district than any other man in it, and with a personal following which, beginning with his own children and grandchildren and extending through every precinct, made it no holiday task to defeat him in a popular contest. But Lincoln and his friends went energetically into the canvass, and before it closed he was able to foresee a certain victory.

An incident is related to show how accurately Lincoln could calculate political results in advance—a faculty which remained with him all his life. A friend, who was a Democrat, had come to him early in the canvass and had told him he wanted to see him elected, but did not like to vote against his party; still he would vote for him, if the contest was to be so close that every vote was needed. A short time before the election Lincoln said to him: "I have got the preacher, and I don't want your vote."

The election was held in August, and the Whig candidate's majority was very large—1511 in the district, where Clay's majority had been only 914, and where Taylor's, two years later, with all the glamour of victory about him, was ten less. Lincoln's majority in Sangamon County was 690, which,

in view of the standing of his competitor, was the most remarkable proof which could be given of his personal popularity; [Transcriber's Note: Lengthy footnote (2) relocated to chapter end.] it was the highest majority ever given to any candidate in the county during the entire period of Whig ascendancy until Yates's triumphant campaign of 1852.

This large vote was all the more noteworthy because the Whigs were this year upon the unpopular side. The annexation of Texas was generally approved throughout the West, and those who opposed it were regarded as rather lacking in patriotism, even before actual hostilities began. But when General Taylor and General Ampudia confronted each other with hostile guns across the Rio Grande, and still more after the brilliant feat of arms by which the Americans opened the war on the plain of Palo Alto, it required a good deal of moral courage on the part of the candidates and voters alike to continue their attitude of disapproval of the policy of the Government, at the same time that they were shouting paeans over the exploits of our soldiers. They were assisted, it is true, by the fact that the leading Whigs of the State volunteered with the utmost alacrity and promptitude in the military service. On the 11th of May, Congress authorized the raising of fifty thousand volunteers, and as soon as the intelligence reached Illinois the daring and restless spirit of Hardin leaped forward to the fate which was awaiting him, and he instantly issued a call to his brigade of militia, in which he said: "The general has already enrolled himself as the first volunteer from Illinois under the requisition. He is going whenever ordered. Who will go with him? He confidently expects to be accompanied by many of his brigade." The quota assigned to Illinois was three regiments; these were quickly raised, [Footnote: The colonels were Hardin, Bissell, and Forman.] and an additional regiment offered by Baker was then accepted. The sons of the prominent Whigs enlisted as private soldiers; David Logan was a sergeant in Baker's regiment. A public meeting was held in Springfield on the 29th of May, at which Mr. Lincoln delivered what was

considered a thrilling and effective speech on the condition of affairs, and the duty of citizens to stand by the flag of the nation until an honorable peace was secured.

It was thought probable, and would have been altogether fitting, that either Colonel Hardin, Colonel Baker, or Colonel Bissell, all of them men of intelligence and distinction, should be appointed general of the Illinois Brigade, but the Polk Administration was not inclined to waste so important a place upon men who might thereafter have views of their own in public affairs. The coveted appointment was given to a man already loaded to a grotesque degree with political employment— Mr. Lincoln's old adversary, James Shields. He had left the position of Auditor of State to assume a seat on the Bench; retiring from this, he had just been appointed Commissioner of the General Land Office. He had no military experience, and so far as then known no capacity for the service; but his fervid partisanship commended him to Mr. Polk as a safe servant, and he received the commission, to the surprise and derision of the State. His bravery in action and his honorable wounds at Cerro Gordo and Chapultepec saved him from contempt and made his political fortune. He had received the recommendation of the Illinois Democrats in Congress, and it is altogether probable that he owed his appointment in great measure to the influence of Douglas, who desired to have as few Democratic statesmen as possible in Springfield that winter. A Senator was to be elected, and Shields had acquired such a habit of taking all the offices that fell vacant that it was only prudent to remove him as far as convenient from such a temptation. The election was held in December, and Douglas was promoted from the House of Representatives to that seat in the Senate which he held with such ability and distinction the rest of his life.

[Sidenote: December 28, 1841.]

The session of 1846-7 opened with the Sangamon district of Illinois unrepresented in Congress. Baker had gone with his regiment to Mexico, It did not have the good fortune to participate in any of the earlier actions of the campaign, and his fiery spirit chafed in the enforced idleness of camp and garrison. He seized an occasion which was offered him to go to Washington as bearer of dispatches, and while there he made one of those sudden and dramatic appearances in the Capitol which were so much in harmony with his tastes and his character. He went to his place on the floor, and there delivered a bright, interesting speech in his most attractive vein, calling attention to the needs of the army, disavowing on the part of the Whigs any responsibility for the war or its conduct, and adroitly claiming for them a full share of the credit for its prosecution.

He began by thanking the House for its kindness in allowing him the floor, protesting at the same time that he had done nothing to deserve such courtesy. "I could wish," he said, "that it had been the fortune of the gallant Davis [Footnote: Jefferson Davis, who was with the army in Mexico.] to now stand where I do and to receive from gentlemen on all sides the congratulations so justly due to him, and to listen to the praises of his brave compeers. For myself, I have, unfortunately, been left far in the rear of the war, and if now I venture to say a word in behalf of those who have endured the severest hardships of the struggle, whether in the blood-stained streets of Monterey, or in a yet sterner form on the banks of the Rio Grande, I beg you to believe that while I feel this a most pleasant duty, it is in other respects a duty full of pain; for I stand here, after six months' service as a volunteer, having seen no actual warfare in the field;"

Yet even this disadvantage he turned with great dexterity to his service. He reproached Congress for its apathy and inaction in not providing for the wants of the army by reinforcements and supplies; he flattered the troops in the field, and paid a touching tribute to those who had died of disease and

exposure, without ever enjoying the sight of a battle-field, and, rising to lyric enthusiasm, he repeated a poem of his own, which he had written in camp to the memory of the dead of the Fourth Illinois. [Transcriber's Note: Lengthy footnote (3) relocated to chapter end.] He could not refrain from giving his own party all the credit which could be claimed for it, and it is not difficult to imagine how exasperating it must have been to the majority to hear so calm an assumption of superior patriotism on the part of the opposition as the following: "As a Whig I still occupy a place on this floor; nor do I think it worth while to reply to such a charge as that the Whigs are not friends of their country because many of them doubt the justice or expediency of the present war. Surely there was all the more evidence of the patriotism of the man who, doubting the expediency and even the entire justice of the war, nevertheless supported it, because it was the war of his country. In the one it might be mere enthusiasm and an impetuous temperament; in the other it was true patriotism, a sense of duty. Homer represents Hector as strongly doubting the expediency of the war against Greece. He gave his advice against it; he had no sympathy with Paris, whom he bitterly reproached, much less with Helen; yet, when the war came, and the Grecian forces were marshaled on the plain, and their crooked keels were seen cutting the sands of the Trojan coast, Hector was a flaming fire, his beaming helmet was seen in the thickest of the fight.

They did not die in eager strife
Upon a well-fought field;
Nor from the red wound poured their life
Where cowering foemen yield.
Death's ghastly shade was slowly cast
Upon each manly brow,
But calm and fearless to the last,
They sleep securely now.

Yet shall a grateful country give
Her honors to their name;
In kindred hearts their memory live,
And history guard their fame.
Not unremembered do they sleep
Upon a foreign strand,
Though near their graves thy wild waves sweep,
O rushing Rio Grande!

There are in the American army many who have the spirit of Hector; who strongly doubt the propriety of the war, and especially the manner of its commencement; who yet are ready to pour out their hearts' best blood like water, and their lives with it, on a foreign shore, in defense of the American flag and American glory."

Immediately after making this speech, Baker increased the favorable impression created by it by resigning his seat in Congress and hurrying as fast as steam could carry him to New Orleans, to embark there for Mexico. He had heard of the advance of Santa Anna upon Saltillo, and did not wish to lose any opportunity of fighting which might fall in the way of his regiment. He arrived to find his troops transferred to the department of General Scott; and although he missed Buena Vista, he took part in the capture of Vera Cruz, and greatly distinguished himself at Cerro Gordo. When Shields was wounded, Baker took command of his brigade, and by a gallant charge on the Mexican guns gained possession of the Jalapa road, an act by which a great portion of the fruits of that victory were harvested.

His resignation left a vacancy in Congress, and a contest, characteristic of the politics of the time, at once sprang up over it. The rational course would have been to elect Lincoln, but, with his usual overstrained delicacy, he declined to run, thinking it fair to give other aspirants a chance for the term

of two months. The Whigs nominated a respectable man named Brown, but a short while before the election John Henry, a member of the State Senate, announced himself as a candidate, and appealed for votes on the sole ground that he was a poor man and wanted the place for the mileage. Brown, either recognizing the force of this plea, or smitten with a sudden disgust for a service in which such pleas were possible, withdrew from the canvass, and Henry got his election and his mileage.

[Illustration: THE BOUNDARIES OF TEXAS. This map gives the boundary between Mexico and the United States as defined by the treaty of 1828; the westerly bank of the Sabine River from its mouth to the 32d degree of longitude west from Greenwich; thence due north to the Arkansas River, and running along its south bank to its source in the Rocky Mountains, near the place where Leadville now stands; thence due north to the 42d parallel of latitude, which it follows to the Pacific Ocean. On the west will be seen the boundaries claimed by Mexico and the United States after the annexation of Texas. The Mexican authorities considered the western boundary of Texas to be the Nueces River, from mouth to source; thence by an indefinite line to the Rio Pecos, and through the elevated and barren Llano Estacado to the source of the main branch of the Red River, and along that river to the 100th meridian. The United States adopted the Texan claim of the Rio Grande del Norte as their western limit. By the treaty of peace of 1848, the Mexicans relinquished to the United States the territory between the Nueces and the Rio Grande del Norte; also the territory lying between the last-named river and the Pacific Ocean, and north of the Gila River and the southern boundary of New Mexico, which was a short distance above the town of El Paso.]

[Illustration: ZACHARY TAYLOR.]

[Relocated Footnote (1): The impressive manner of Mrs. Cartwright's death, who survived her husband a few years, is remembered in the churches of Sangamon County. She was attending a religious meeting at Bethel Chapel, a mile from her house. She was called upon "to give her testimony," which she did with much feeling, concluding with the words, "the past three weeks have been the happiest of all my life; I am waiting for the chariot."

When the meeting broke up, she did not rise with the rest. The minister solemnly said, "The chariot has arrived."—"Early Settlers of Sangamon County," by John Carroll Power.]

[Relocated Footnote (2):

Stuart's maj. over May in 1836 in Sangamon Co. was 543
" " " Douglas " 1838 " " " " 295
" " " Ralston " 1840 " " " " 575
Hardin's " " McDougall " 1843 " " " " 504
Baker's " " Calhoun " 1844 " " " " 373
Lincoln's " " Cartwright " 1846 " " " " 690
Logan's " " Harris " 1848 " " " " 263
Yates's " " Harris " 1850 " " " " 336]

[Relocated Footnote (3): We give a copy of these lines, not on account of their intrinsic merit, but as illustrating the versatility of the lawyer, orator, and soldier who wrote them.

Where rolls the rushing Rio Grande,
How peacefully they sleep!
Far from their native Northern land,
Far from the friends who weep.
No rolling drums disturb their rest

Beneath the sandy sod;
The mold lies heavy on each breast,
The spirit is with God.

They heard their country's call, and came
To battle for the right;
Each bosom filled with martial flame,
And kindling for the fight.
Light was their measured footsteps when
They moved to seek the foe;
Alas that hearts so fiery then
Should soon be cold and low!]

CHAPTER XV

THE THIRTIETH CONGRESS

The Thirtieth Congress organized on the 6th of December, 1847. Its roll contained the names of many eminent men, few of whom were less known than his which was destined to a fame more wide and enduring than all the rest together. It was Mr. Lincoln's sole distinction that he was the only Whig member from Illinois. He entered upon the larger field of work which now lay before him without any special diffidence, but equally without elation. Writing to his friend Speed soon after his election he said: "Being elected to Congress, though I am very grateful to our friends for having done it, has not pleased me as much as I expected,"—an experience not unknown to most public men, but probably intensified in Lincoln's case by his constitutional melancholy. He went about his work with little gladness, but with a dogged sincerity and an inflexible conscience.

It soon became apparent that the Whigs were to derive at least a temporary advantage from the war which the Democrats had brought upon the country, although it was destined in its later consequences to sweep the former party out of existence and exile the other from power for many years. The House was so closely divided that Lincoln, writing on the 5th, expressed some doubt whether the Whigs could elect all their caucus nominees, and Mr. Robert C. Winthrop was chosen Speaker the next day by

a majority of one vote. The President showed in his message that he was doubtful of the verdict of Congress and the country upon the year's operations, and he argued with more solicitude than force in defense of the proceedings of the Administration in regard to the war with Mexico. His anxiety was at once shown to be well founded. The first attempt made by his friends to indorse the conduct of the Government was met by a stern rebuke from the House of Representatives, which passed an amendment proposed by George Ashmun that "the war had been unnecessarily and unconstitutionally commenced by the President." This severe declaration was provoked and justified by the persistent and disingenuous assertions of the President that the preceding Congress had "with virtual unanimity" declared that "war existed by the act of Mexico"—the truth being that a strong minority had voted to strike out those words from the preamble of the supply bill, but being outvoted in this, they were compelled either to vote for preamble and bill together, or else refuse supplies to the army.

It was not surprising that the Whigs and other opponents of the war should take the first opportunity to give the President their opinion of such a misrepresentation. The standing of the opposition had been greatly strengthened by the very victories upon which Mr. Polk had confidently relied for his vindication. Both our armies in Mexico were under the command of Whig generals, and among the subordinate officers who had distinguished themselves in the field, a full share were Whigs, who, to an extent unusual in wars of political significance, retained their attitude of hostility to the Administration under whose orders they were serving. Some of them had returned to their places on the floor of Congress brandishing their laurels with great effect in the faces of their opponents who had talked while they fought. [Transcriber's Note: Lengthy footnote (1) relocated to chapter end.] When we number the names which leaped into sudden fame in that short but sanguinary war, it is surprising to find how few of them sympathized with the party who brought it on, or with the purposes for

which it was waged. The earnest opposition of Taylor to the scheme of the annexationists did not hamper his movements or paralyze his arm, when with his little band of regulars he beat the army of Arista on the plain of Palo Alto, and again in the precipitous Resaca de la Palma; took by storm the fortified city of Monterey, defended by a greatly superior force; and finally, with a few regiments of raw levies, posted among the rocky spurs and gorges about the farm of Buena Vista, met and defeated the best-led and the best-fought army the Mexicans ever brought into the field, outnumbering him more than four to one. It was only natural that the Whigs should profit by the glory gained by Whig valor, no matter in what cause. The attitude of the opposition—sure of their advantage and exulting in it—was never perhaps more clearly and strongly set forth than in a speech made by Mr. Lincoln near the close of this session. He said:

As General Taylor is *par excellence* the hero of the Mexican war, and as you Democrats say we Whigs have always opposed the war, you think it must be very awkward and embarrassing for us to go for General Taylor. The declaration that we have always opposed the war is true or false accordingly as one may understand the term "opposing the war." If to say "the war was unnecessarily and unconstitutionally commenced by the President" be opposing the war, then the Whigs have very generally opposed it. Whenever they have spoken at all they have said this; and they have said it on what has appeared good reason to them; the marching of an army into the midst of a peaceful Mexican settlement, frightening the inhabitants away, leaving their growing crops and other property to destruction, to *you* may appear a perfectly amiable, peaceful, unprovoking procedure; but it does not appear so to *us*. So to call such an act, to us appears no other than a naked, impudent absurdity, and we speak of it accordingly. But if when the war had begun, and had become the cause of the country, the giving of our money and our blood, in common with yours, was support of the war, then it is not true that we have always opposed the

war. With few individual exceptions, you have constantly had our votes here for all the necessary supplies. And, more than this, you have had the services, the blood, and the lives of our political brethren in every trial, and on every field. The beardless boy and the mature man, the humble and the distinguished,—you have had them. Through suffering and death, by disease and in battle, they have endured and fought and fallen with you. Clay and Webster each gave a son, never to be returned. From the State of my own residence, besides other worthy but less-known Whig names, we sent Marshall, Morrison, Baker, and Hardin; they all fought, and one fell, and in the fall of that one we lost our best Whig man. Nor were the Whigs few in number or laggard in the day of danger. In that fearful, bloody, breathless struggle at Buena Vista, where each man's hard task was to beat back five foes or die himself, of the five high officers who perished, four were Whigs.

There was no refuge for the Democrats after the Whigs had adopted Taylor as their especial hero, since Scott was also a Whig and an original opponent of the war. His victories, on account of the apparent ease with which they were gained, have never received the credit justly due them. The student of military history will rarely meet with narratives of battles in any age where the actual operations coincide so exactly with the orders issued upon the eve of conflict, as in the official reports of the wonderfully energetic and successful campaign in which General Scott with a handful of men renewed the memory of the conquest of Cortes, in his triumphant march from Vera Cruz to the capital. The plan of the battle of Cerro Gordo was so fully carried out in action that the official report is hardly more than the general orders translated from the future tense to the past. The story of Chapultepec has the same element of the marvelous in it. On one day the general commanded apparent impossibilities in the closest detail, and the next day reported that they had been accomplished. These successes were not cheaply attained. The Mexicans, though deficient in science and in

military intelligence, fought with bravery and sometimes with desperation. The enormous percentage of loss in his army proves that Scott was engaged in no light work. He marched from Pueblo with about 10,000 men, and his losses in the basin of Mexico were 2703, of whom 383 were officers. But neither he nor Taylor was a favorite of the Administration, and their brilliant success brought no gain of popularity to Mr. Polk and his Cabinet.

During the early part of the session little was talked about except the Mexican war, its causes, its prosecution, and its probable results. In these wordy engagements the Whigs, partly for the reasons we have mentioned, partly through their unquestionable superiority in debate, and partly by virtue of their stronger cause, usually had the advantage. There was no distinct line of demarcation, however, between the two parties. There was hardly a vote, after the election of Mr. Winthrop as Speaker, where the two sides divided according to their partisan nomenclature. The question of slavery, even where its presence was not avowed, had its secret influence upon every trial of strength in Congress, and Southern Whigs were continually found sustaining the President, and New England Democrats voting against his most cherished plans. Not even all the Democrats of the South could be relied on by the Administration. The most powerful leader of them all denounced with bitter earnestness the conduct of the war, for which he was greatly responsible. Mr. Calhoun, in an attack upon the President's policy, January 4, 1848, said: "I opposed the war, not only because it might have been easily avoided; not only because the President had no authority to order a part of the disputed territory in possession of the Mexicans to be occupied by our troops; not only because I believed the allegations upon which Congress sanctioned the war untrue, but from high considerations of policy; because I believed it would lead to many and serious evils to the country and greatly endanger its free institutions."

[Sidenote: January 13, 1848.]

It was probably not so much the free institutions of the country that the South Carolina Senator was disturbed about as some others. He perhaps felt that the friends of slavery had set in motion a train of events whose result was beyond their ken. Mr. Palfrey, of Massachusetts, a few days later said with as much sagacity as wit that "Mr. Calhoun thought that he could set fire to a barrel of gunpowder and extinguish it when half consumed." In his anxiety that the war should be brought to an end, Calhoun proposed that the United States army should evacuate the Mexican capital, establish a defensive line, and hold it as the only indemnity possible to us. He had no confidence in treaties, and believed that no Mexican government was capable of carrying one into effect. A few days later, in a running debate, Mr. Calhoun made an important statement, which still further strengthened the contention of the Whigs. He said that in making the treaty of annexation he did not assume that the Rio del Norte was the western boundary of Texas; on the contrary, he assumed that the boundary was an unsettled one between Mexico and Texas; and that he had intimated to our *charge d'affaires* that we were prepared to settle the boundary on the most liberal terms! This was perfectly in accordance with the position held by most Democrats before the Rio Grande boundary was made an article of faith by the President. C. J. Ingersoll, one of the leading men upon that side in Congress, in a speech three years before had said: "The stupendous deserts between the Nueces and the Bravo rivers are the natural boundaries between the Anglo-Saxon and the Mauritanian races"; a statement which, however faulty from the point of view of ethnology and physical geography, shows clearly enough the view then held of the boundary question.

The discipline of both parties was more or less relaxed under the influence of the slavery question. It was singular to see Mr. McLane, of Baltimore, rebuking Mr. Clingman, of North Carolina, for mentioning that forbidden subject on the floor of the House; Reverdy Johnson, a Whig from

Maryland, administering correction to John P. Hale, an insubordinate Democrat from New Hampshire, for the same offense, and at the time screaming that the "blood of our glorious battle-fields in Mexico rested on the hands of the President"; Mr. Clingman challenging the House with the broad statement that "it is a misnomer to speak of our institution at the South as peculiar; ours is the general system of the world, and the *free* system is the peculiar one," and Mr. Palfrey dryly responding that slavery was natural just as barbarism was, just as fig-leaves and bare skins were a natural dress. When the time arrived, however, for leaving off grimacing and posturing, and the House went to voting, the advocates of slavery usually carried the day, as the South, Whigs and Democrats together, voted solidly, and the North was divided. Especially was this the case after the arrival of the treaty of peace between the United States and Mexico, which was signed at Guadalupe Hidalgo on the 2d of February and was in the hands of the Senate only twenty days later. It was ratified by that body on the 10th of March, with a series of amendments which were at once accepted by Mexico, and the treaty of peace was officially promulgated on the national festival of the Fourth of July.

From the hour when the treaty was received in Washington, however, the discussion as to the conduct of the war naturally languished; the ablest speeches of the day before became obsolete in the presence of accomplished facts; and the interest of Congress promptly turned to the more important subject of the disposition to be made of the vast domain which our arms had conquered and the treaty confirmed to us. No one in America then realized the magnitude of this acquisition; its stupendous physical features were as little appreciated as the vast moral and political results which were to flow from its absorption into our commonwealth. It was only known, in general terms, that our new possessions covered ten degrees of latitude and fifteen of longitude; that we had acquired, in short, six hundred and thirty thousand square miles of desert, mountain, and

wilderness. There was no dream, then, of that portentous discovery which, even while the Senate was wrangling over the treaty, had converted Captain Sutter's mill at Coloma into a mining camp, for his ruin and the sudden up-building of many colossal fortunes. The name of California, which conveys to-day such opulent suggestions, then meant nothing but barrenness, and Nevada was a name as yet unknown; some future Congressman, innocent of taste and of Spanish, was to hit upon the absurdity of calling that land of silver and cactus, of the orange and the sage-hen, the land of snow. But imperfect as was the appreciation, at that day, of the possibilities which lay hidden in those sunset regions, there was still enough of instinctive greed in the minds of politicians to make the new realm a subject of lively interest and intrigue. [Transcriber's Note: Lengthy footnote (2) relocated to chapter end.] At the first showing of hands, the South was successful. In the Twenty-ninth Congress this contest had begun over the spoils of a victory not yet achieved. President Polk, foreseeing the probability of an acquisition of territory by treaty, had asked Congress to make an appropriation for that purpose. A bill was at once reported in that sense, appropriating \$30,000 for the expenses of the negotiation and \$2,000,000 to be used in the President's discretion. But before it passed, a number of Northern Democrats [Footnote: Some of the more conspicuous York; Wilmot, of Pennsylvania; among them were Hamlin, of Brinckerhoff, of Ohio, and McClellan-Maine; Preston King, of New York, of Michigan.] had become alarmed as to the disposition that might be made of the territory thus acquired, which was now free soil by Mexican law. After a hasty consultation they agreed upon a proviso to the bill, which was presented by David Wilmot, of Pennsylvania. He was a man of respectable abilities, who then, and long afterwards, held a somewhat prominent position among the public men of his State; but his chief claim to a place in history rests upon these few lines which he moved to add to the first section of the bill under discussion:

Provided, That as an express and fundamental condition to the acquisition of any territory from the Republic of Mexico by the United States, by virtue of any treaty that may be negotiated between them, and to the use by the Executive of the moneys herein appropriated, neither slavery nor involuntary servitude shall exist in any part of said territory, except for crime, whereof the party shall first be duly convicted.

This condition seemed so fair, when first presented to the Northern conscience, that only three members from the free States voted "no" in committee. The amendment was adopted—eighty to sixty-four—and the bill reported to the House. A desperate effort was then made by the pro-slavery members to kill the bill for the purpose of destroying the amendment with it. This failed, [Footnote: In this important and significant vote all the Whigs but one and almost all the Democrats, from the free States, together with Wm. P. Thomasson and Henry Grider, Whigs from Kentucky, voted against killing the amended bill, in all ninety-three. On the other side were all the members from slave- holding States, except Thomasson and Grider, and the following from free States, Douglas and John A. McClernand from Illinois, Petit from Indiana, and Schenek, a Whig, from Ohio, in all seventy-nine.— Greeley's "American Conflict," I. p. 189.] and the bill, as amended, passed the House; but going to the Senate a few hours before the close of the session, it lapsed without a vote.

As soon as the war was ended and the treaty of peace was sent to the Senate, this subject assumed a new interest and importance, and a resolution embodying the principle of the Wilmot proviso was brought before the House by Mr. Harvey Putnam, of New York, but no longer with the same success. The South was now solid against it, and such a disintegration of conscience among Northern Democrats had set in, that whereas only three of them in the last Congress had seen fit to approve the introduction of slavery into free territory, twenty-five now voted with the South against

maintaining the existing conditions there. The fight was kept up during the session in various places; if now and then a temporary advantage seemed gained in the House, it was lost in the Senate, and no permanent progress was made.

What we have said in regard to the general discussion provoked by the Mexican war, appeared necessary to explain the part taken by Mr. Lincoln on the floor. He came to his place unheralded and without any special personal pretensions. His first participation in debate can best be described in his own quaint and simple words: "As to speech-making, by way of getting the hang of the House, I made a little speech two or three days ago on a post-office question of no general interest. I find speaking here and elsewhere about the same thing. I was about as badly scared, and no worse, as I am when I speak in court. I expect to make one within a week or two in which I hope to succeed well enough to wish you to see it." He evidently had the orator's temperament—the mixture of dread and eagerness which all good speakers feel before facing an audience, which made Cicero tremble and turn pale when rising in the Forum. The speech he was pondering was made only four days later, on the 12th of January, and few better maiden speeches—for it was his first formal discourse in Congress—have ever been made in that House. He preceded it, and prepared for it, by the introduction, on the 22d of December, of a series of resolutions referring to the President's persistent assertions that the war had been begun by Mexico, "by invading our territory and shedding the blood of our citizens on our own soil," and calling upon him to give the House more specific information upon these points. As these resolutions became somewhat famous afterwards, and were relied upon to sustain the charge of a lack of patriotism made by Mr. Douglas against their author, it may be as well to give them here, especially as they are the first production of Mr. Lincoln's pen after his entry upon the field of national politics. We omit the preamble, which consists of quotations from the President's message.

Resolved by the House of Representatives, That the President of the United States be respectfully requested to inform this House:

First. Whether the spot on which the blood of our citizens was shed, as in his messages declared, was or was not within the territory of Spain, at least after the treaty of 1819, until the Mexican revolution.

Second. Whether that spot is or is not within the territory which was wrested from Spain by the revolutionary government of Mexico.

Third. Whether that spot is or is not within a settlement of people, which settlement has existed ever since long before the Texas revolution and until its inhabitants fled before the approach of the United States army.

Fourth. Whether that settlement is or is not isolated from any and all other settlements by the Gulf and the Rio Grande on the south and west, and by wide uninhabited regions in the north and east.

Fifth. Whether the people of that settlement, or a majority of them, or any of them, have ever submitted themselves to the government or laws of Texas or of the United States, by consent or by compulsion, either by accepting office, or voting at elections, or paying tax, or serving on juries, or having process served upon them, or in any other way.

Sixth. Whether the people of that settlement did or did not flee from the approach of the United States army, leaving unprotected their homes and their growing crops, *before* the blood was shed, as in the messages stated; and whether the first blood so shed was or was not shed within the inclosure of one of the people who had thus fled from it.

Seventh. Whether our citizens whose blood was shed, as in his messages declared, were or were not at that time armed officers and soldiers, sent into

that settlement by the military order of the President, through the Secretary of War.

Eighth. Whether the military force of the United States was or was not so sent into that settlement after General Taylor had more than once intimated to the War Department that in his opinion no such movement was necessary to the defense or protection of Texas.

It would have been impossible for the President to answer these questions, one by one, according to the evidence in his possession, without surrendering every position he had taken in his messages for the last two years. An answer was probably not expected; the resolutions were never acted upon by the House, the vote on the Ashmun proposition having sufficiently indicated the view which the majority held of the President's precipitate and unconstitutional proceeding. But they served as a text for the speech which Lincoln made in Committee of the Whole, which deserves the attentive reading of any one who imagines that there was anything accidental in the ascendancy which he held for twenty years among the public men of Illinois. The winter was mostly devoted to speeches upon the same subject from men of eminence and experience, but it is within bounds to say there was not a speech made in the House, that year, superior to this in clearness of statement, severity of criticism combined with soberness of style, or, what is most surprising, finish and correctness. In its close, clear argument, its felicity of illustration, its restrained yet burning earnestness, it belongs to precisely the same class of addresses as those which he made a dozen years later. The ordinary Congressman can never conclude inside the limits assigned him; he must beg for unanimous consent for an extension of time to complete his sprawling peroration. But this masterly speech covered the whole ground of the controversy, and so intent was Lincoln on not exceeding his hour that he finished his task, to his own surprise, in forty-five minutes. It is an admirable discourse, and the oblivion which overtook

it, along with the volumes of other speeches made at the same time, can be accounted for only by remembering that the Guadalupe Treaty came suddenly in upon the debate, with its immense consequences sweeping forever out of view all consideration of the causes and the processes which led to the momentous result.

Lincoln's speech and his resolutions were alike inspired with one purpose: to correct what he considered an error and a wrong; to rectify a misrepresentation which he could not, in his very nature, permit to go uncontradicted. It gratified his offended moral sense to protest against the false pretenses which he saw so clearly, and it pleased his fancy as a lawyer to bring a truth to light which somebody, as he thought, was trying to conceal. He certainly got no other reward for his trouble. His speech was not particularly well received in Illinois. His own partner, Mr. Herndon, a young and ardent man, with more heart than learning, more feeling for the flag than for international justice, could not, or would not, understand Mr. Lincoln's position, and gave him great pain by his letters. Again and again Lincoln explained to him the difference between approving the war and voting supplies to the soldiers, but Herndon was obstinately obtuse, and there were many of his mind.

Lincoln's convictions were so positive in regard to the matter that any laxity of opinion among his friends caused him real suffering. In a letter to the Rev. J. M. Peck, who had written a defense of the Administration in reference to the origin of the war, he writes: this "disappoints me, because it is the first effort of the kind I have known, made by one appearing to me to be intelligent, right-minded, and impartial." He then reviews some of the statements of Mr. Peck, proving their incorrectness, and goes on to show that our army had marched under orders across the desert of the Nueces into a peaceful Mexican settlement, frightening away the inhabitants; that Fort Brown was built in a Mexican cotton-field, where a young crop was

growing; that Captain Thornton and his men were captured in another cultivated field. He then asks, how under any law, human or divine, this can be considered "no aggression," and closes by asking his clerical correspondent if the precept, "Whatsoever ye would that men should do to you, do you even so to them," is obsolete, of no force, of no application? This is not the anxiety of a politician troubled about his record. He is not a candidate for reelection, and the discussion has passed by; but he must stop and vindicate the truth whenever assailed. He perhaps does not see, certainly does not care, that this stubborn devotion to mere justice will do him no good at an hour when the air is full of the fumes of gunpowder; when the returned volunteers are running for constable in every county; when so good a Whig as Mr. Winthrop gives, as a sentiment, at a public meeting in Boston, "Our country, however bounded," and the majority of his party are preparing—unmindful of Mr. Polk and all his works—to reap the fruits of the Mexican war by making its popular hero President.

It was fortunate for Mr. Lincoln and for Whigs like him, with consciences, that General Taylor had occupied so unequivocal an attitude in regard to the war. He had not been in favor of the march to the Rio Grande, and had resisted every suggestion to that effect until his peremptory orders came. In regard to other political questions, his position was so undefined, and his silence generally so discreet, that few of the Whigs, however exacting, could find any difficulty in supporting him. Mr. Lincoln did more than tolerate his candidacy. He supported it with energy and cordiality. He was at last convinced that the election of Mr. Clay was impossible, and he thought he could see that the one opportunity of the Whigs was in the nomination of Taylor. So early as April he wrote to a friend: "Mr. Clay's chance for an election is just no chance at all. He might get New York, and that would have elected in 1844, but it will not now because he must now, at the least, lose Tennessee, which he had then, and in addition the fifteen new votes of Florida, Texas, Iowa, and Wisconsin." Later he wrote to the

same friend that the nomination took the Democrats "on the blind side. It turns the war thunder against them. The war is now to them the gallows of Haman, which they built for us, and on which they are doomed to be hanged themselves."

[Sidenote: J.G. Holland, "Life of Lincoln," p. 118.]

At the same time he bated no jot of his opposition to the war, and urged the same course upon his friends. To Linder, of Illinois, he wrote: "In law, it is good policy to never plead what you need not, lest you oblige yourself to prove what you cannot." He then counseled him to go for Taylor, but to avoid approving Polk and the war, as in the former case he would gain Democratic votes and in the latter he would lose with the Whigs. Linder answered him, wanting to know if it would not be as easy to elect Taylor without opposing the war, which drew from Lincoln the angry response that silence was impossible; the Whigs must speak, "and their only option is whether they will, when they speak, tell the truth or tell a foul and villainous falsehood."

[Sidenote: June 7, 1848.]

When the Whig Convention came together in Philadelphia, the differences of opinion on points of principle and policy were almost as numerous as the delegates. The unconditional Clay men rallied once more and gave their aged leader 97 votes to 111 which Taylor received on the first ballot. Scott and Webster had each a few votes; but on the fourth ballot the soldier of Buena Vista was nominated, and Millard Fillmore placed in the line of succession to him. It was impossible for a body so heterogeneous to put forward a distinctive platform of principles. An attempt was made to force an expression in regard to the Wilmot proviso, but it was never permitted to come to a vote. The convention was determined that "Old Rough and Ready," as he was now universally nicknamed, should run upon

his battle-flags and his name of Whig—although he cautiously called himself "not an ultra Whig." The nomination was received with great and noisy demonstrations of adhesion from every quarter. Lincoln, writing a day or two after his return from the convention, said: "Many had said they would not abide the nomination of Taylor; but since the deed has been done they are fast falling in, and in my opinion we shall have a most overwhelming, glorious triumph. One unmistakable sign is that all the odds and ends are with us,—Barnburners, native Americans, Tyler men, disappointed office-seeking Loco-focos, and the Lord knows what. This is important, if in nothing else, in showing which way the wind blows."

General Taylor's chances for election had been greatly increased by what had taken place at the Democratic Convention, a fortnight before. General Cass had been nominated for the Presidency, but his militia title had no glamour of carnage about it, and the secession of the New York Anti-slavery "Barnburners" from the convention was a presage of disaster which was fulfilled in the following August by the assembling of the recusant delegates at Buffalo, where they were joined by a large number of discontented Democrats and "Liberty" men, and the Free-soil party was organized for its short but effective mission. Martin Van Buren was nominated for President, and Charles Francis Adams was associated with him on the ticket. The great superiority of caliber shown in the nominations of the mutineers over the regular Democrats was also apparent in the roll of those who made and sustained the revolt. When Salmon P. Chase, Preston King, the Van Burens, John P. Hale, William Cullen Bryant, David Wilmot, and their like went out of their party, they left a vacancy which was never to be filled.

It was perhaps an instinct rather than any clear spirit of prophecy which drove the antislavery Democrats away from their affiliations and kept the Whigs, for the moment, substantially together. So far as the authorized

utterances of their conventions were concerned, there was little to choose between them. They had both evaded any profession of faith in regard to slavery. The Democrats had rejected the resolution offered by Yancey committing them to the doctrine of "non-interference with the rights of property in the territories," and the Whigs had never allowed the Wilmot proviso to be voted upon. But nevertheless those Democrats who felt that the time had come to put a stop to the aggression of slavery, generally threw off their partisan allegiance, and the most ardent of the antislavery Whigs,—with some exceptions it is true, especially in Ohio and in Massachusetts, where the strength of the "Conscience Whigs," led by Sumner, the Adamses, and Henry Wilson, was important,—thought best to remain with their party. General Taylor was a Southerner and a slaveholder. In regard to all questions bearing upon slavery, he observed a discretion in the canvass which was almost ludicrous. [Transcriber's Note: Lengthy footnote (3) relocated to chapter end.] Yet there was a well-nigh universal impression among the antislavery Whigs that his administration would be under influences favorable to the restriction of slavery. Clay, Webster, and Seward, all of whom were agreed at that time against any extension of the area of that institution, supported him with more or less cordiality. Webster insisted upon it that the Whigs were themselves the best "Free-soilers," and for them to join the party called by that distinctive name would be merely putting Mr. Van Buren at the head of the Whig party. Mr. Seward, speaking for Taylor at Cleveland, took still stronger ground, declaring that slavery "must be abolished;" that "freedom and slavery are two antagonistic elements of society in America;" that "the party of freedom seeks complete and universal emancipation." No one then seems to have foreseen that the Whig party—then on the eve of a great victory—was so near its dissolution, and that the bolting Democrats and the faithful Whigs were alike engaged in laying the foundations of a party which was to glorify the latter half of the century with achievements of such colossal and enduring importance.

There was certainly no doubt or misgiving in the mind of Lincoln as to that future, which, if he could have foreseen it, would have presented so much of terrible fascination. He went into the campaign with exultant alacrity. He could not even wait for the adjournment of Congress to begin his stump-speaking. Following the bad example of the rest of his colleagues, he obtained the floor on the 27th of July, and made a long, brilliant, and humorous speech upon the merits of the two candidates before the people. As it is the only one of Lincoln's popular speeches of that period which has been preserved entire, it should be read by those who desire to understand the manner and spirit of the politics of 1848. Whatever faults of taste or of method may be found in it, considering it as a speech delivered in the House of Representatives, with no more propriety or pertinence than hundreds of others which have been made under like circumstances, it is an extremely able speech, and it is by itself enough to show how remarkably effective he must have been as a canvasser in the remoter districts of his State where means of intellectual excitement were rare and a political meeting was the best-known form of public entertainment.

He begins by making a clear, brief, and dignified defense of the position of Taylor upon the question of the proper use of the veto; he then avows with characteristic candor that he does not know what General Taylor will do as to slavery; he is himself "a Northern man, or rather a Western free-State man, with a constituency I believe to be, and with personal feelings I know to be, against the extension of slavery" (a definition in which his caution and his honesty are equally displayed), and he hopes General Taylor would not, if elected, do anything against its restriction; but he would vote for him in any case, as offering better guarantees than Mr. Cass. He then enters upon an analysis of the position of Cass and his party which is full of keen observation and political intelligence, and his speech goes on to its rollicking close with a constant succession of bright, witty, and striking passages in which the orator's own conviction and enjoyment of an assured

success is not the least remarkable feature. A few weeks later Congress adjourned, and Lincoln, without returning home, entered upon the canvass in New England, [Transcriber's Note: Lengthy footnote (4) relocated to chapter end.] and then going to Illinois, spoke night and day until the election. When the votes were counted, the extent of the defection among the Northern Whigs and Democrats who voted for Van Buren and among the Southern Democrats who had been beguiled by the epaulets of Taylor, was plainly seen. The bolting "Barnburners" had given New York to Taylor; the Free-Soil vote in Ohio, on the other hand, had thrown that State to Cass. Van Buren carried no electors, but his popular vote was larger in New York and Massachusetts than that of Cass. The entire popular vote (exclusive of South Carolina, which chose its electors by the Legislature) was for Taylor 1,360,752; for Cass 1,219,962; for Van Buren 291,342. Of the electors, Taylor had 163 and Cass 137.

[Relocated Footnote (1): The following extract from a letter of Lincoln to his partner, Mr. Herndon, who had criticized his anti-war votes, gives the names of some of the Whig soldiers who persisted in their faith throughout the war: "As to the Whig men who have participated in the war, so far as they have spoken to my hearing, they do is not hesitate to denounce as unjust the President's conduct the beginning of the war. They do not suppose that such denunciation is directed by undying hatred to them, as 'the Register' would have it believed, There are two such Whigs on this floor (Colonel Haskell and Major James). The former fought as a colonel by the side of Colonel Baker, at Cerro Gordo, and stands side by side with me in the vote that you seem dissatisfied with. The latter, the history of whose capture with Cassius Clay you well know, had not arrived here when that vote was given; but, as I understand, he stands ready to give just such a vote whenever an occasion shall present. Baker, too, who is now here, says the truth is undoubtedly that way; and whenever he shall speak out, he will say so. Colonel Doniphan, too, the favorite Whig of Missouri and who overran

all northern Mexico, on his return home, in a public speech at St. Louis, condemned the Administration in relation to the war, if I remember. G. T. M. Davis, who has been through almost the whole war, declares in favor of Mr. Clay;" etc.]

[Relocated Footnote (2): To show how crude and vague were the ideas of even the most intelligent men in relation to this great empire, we give a few lines from the closing page of Edward D. Mansfield's "History of the Mexican War," published in 1849: "But will the greater part of this vast space ever be inhabited by any but the restless hunter and the wandering trapper? Two hundred thousand square miles of this territory, in New California, has been trod by the foot of no civilized being. No spy or pioneer or vagrant trapper has ever returned to report the character and scenery of that waste and lonely wilderness. Two hundred thousand square miles more are occupied with broken mountains and dreary wilds. But little remains then for civilization."]

[Relocated Footnote (3): It is a tradition that a planter once wrote to him: "I have worked hard and been frugal all my life, and the results of my industry have mainly taken the form of slaves, of whom I own about a hundred. Before I vote for President I want to be sure that the candidate I support will not so act as to divest me of my property." To which the general, with a dexterity that would have done credit to a diplomatist, and would have proved exceedingly useful to Mr. Clay, responded, "Sir: I have the honor to inform you that I too have been all my life industrious and frugal, and that the fruits thereof are mainly invested in slaves, of whom I own *three* hundred. Yours, etc."—Horace Greeley, "American Conflict," Volume I., p. 193.]

[Relocated Footnote (4): Thurlow Weed says in his Autobiography, Vol. I., p. 603: "I had supposed, until we now met, that I had never seen Mr.

Lincoln, having forgotten that in the fall of 1848, when he took the stump in New England, he called upon me at Albany, and that we went to see Mr. Fillmore, who was then the Whig candidate for Vice-President." The New York "Tribune," September 14, 1848, mentions Mr. Lincoln as addressing a great Whig meeting in Boston, September 12. The Boston "Atlas" refers to speeches made by him at Dorchester, September 16; at Chelsea September 17; by Lincoln and Seward at Boston, September 22, on which occasion the report says: "Mr. Lincoln, of Illinois, next came forward, and was received with great applause. He spoke about an hour and made a powerful and convincing speech which was cheered to the echo."

Mr. Robert C. Winthrop, Jr., in his recent memoir of the Hon. David Sears, says, the most brilliant of Mr. Lincoln's speeches in this campaign "was delivered at Worcester, September 13, 1848, when, after taking for his text Mr. Webster's remark that the nomination of Martin Van Buren for the Presidency by a professed antislavery party could fitly be regarded only as a trick or a joke, Mr. Lincoln proceeded to declare that of the three parties then asking the confidence of the country, the new one had less of principle than any other, adding, amid shouts of laughter, that the recently constructed elastic Free-Soil platform reminded him of nothing so much as the pair of trousers offered for sale by a Yankee peddler which were 'large enough for any man and small enough for any boy.'"

It is evident that he considered Van Buren, in Massachusetts at least, a candidate more to be feared than Cass, the regular Democratic nominee.]

CHAPTER XVI

A FORTUNATE ESCAPE

When Congress came together again in December, there was such a change in the temper of its members that no one would have imagined, on seeing the House divided, that it was the same body which had assembled there a year before. The election was over; the Whigs were to control the Executive Department of the Government for four years to come; the members themselves were either reflected or defeated; and there was nothing to prevent the gratification of such private feelings as they might have been suppressing during the canvass in the interest of their party. It was not long before some of the Northern Democrats began to avail themselves of this new liberty. They had returned burdened with a sense of wrong. They had seen their party put in deadly peril by reason of its fidelity to the South, and they had seen how little their Southern brethren cared for their labors and sacrifices, in the enormous gains which Taylor had made in the South, carrying eight out of fifteen slave States. They were in the humor to avenge themselves by a display of independence on their own account, at the first opportunity. The occasion was not long in presenting itself. A few days after Congress opened, Mr. Root, of Ohio, introduced a resolution instructing the Committee on Territories to bring in a bill "with as little delay as practicable" to provide territorial governments for California and New Mexico, which should "exclude slavery there-from." This resolution

would have thrown the same House into a panic twelve months before, but now it passed by a vote of 108 to 80—in the former number were all the "Whigs from the North and all the Democrats but eight," and in the latter the entire South and the eight referred to.

The Senate, however, was not so susceptible to popular impressions, and the bill, prepared in obedience to the mandate of the House, never got farther than the desk of the Senate Chamber. The pro-slavery majority in that body held firmly together till near the close of the session, when they attempted to bring in the new territories without any restriction as to slavery, by attaching what is called "a rider" to that effect to the Civil Appropriation Bill. The House resisted, and returned the bill to the Senate with the rider unhorsed. A committee of conference failed to agree. Mr. McClernand, a Democrat from Illinois, then moved that the House recede from its disagreement, which was carried by a few Whig votes, to the dismay of those who were not in the secret, when Richard W. Thompson (who was thirty years afterwards Secretary of the Navy) instantly moved that the House do concur with the Senate, with this amendment, that the existing laws of those territories be for the present and until Congress should amend them, retained. This would secure them to freedom, as slavery had long ago been abolished by Mexico. This amendment passed, and the Senate had to face the many-pronged dilemma, either to defeat the Appropriation Bill, or to consent that the territories should be organized as free communities, or to swallow their protestations that the territories were in sore need of government and adjourn, leaving them in the anarchy they had so feelingly depicted. They chose the last as the least dangerous course, and passed the Appropriation Bill in its original form.

Mr. Lincoln took little part in the discussions incident to these proceedings; he was constantly in his seat, however, and voted generally with his party, and always with those opposed to the extension of slavery.

He used to say that he had voted for the Wilmot proviso, in its various phases, forty-two times. He left to others, however, the active work on the floor. His chief preoccupation during this second session was a scheme which links itself characteristically with his first protest against the proscriptive spirit of slavery ten years before in the Illinois Legislature and his immortal act fifteen years afterwards in consequence of which American slavery ceased to exist. He had long felt in common with many others that the traffic in human beings under the very shadow of the Capitol was a national scandal and reproach. He thought that Congress had the power under the Constitution to regulate or prohibit slavery in all regions under its exclusive jurisdiction, and he thought it proper to exercise that power with due regard to vested rights and the general welfare. He therefore resolved to test the question whether it were possible to remove from the seat of government this stain and offense.

[Sidenote: Gidding's diary, January 8, 9, and 11, 1849: published in the "Cleveland Post," March 31, 1878.]

He proceeded carefully and cautiously about it, after his habit. When he had drawn up his plan, he took counsel with some of the leading citizens of Washington and some of the more prominent members of Congress before bringing it forward. His bill obtained the cordial approval of Colonel Seaton, the Mayor of Washington, whom Mr. Lincoln had consulted as the representative of the intelligent slave-holding citizens of the District, and of Joshua R. Giddings, whom he regarded as the leading abolitionist in Congress, a fact which sufficiently proves the practical wisdom with which he had reconciled the demands of right and expediency. In the meantime, however, Mr. Gott, a member from New York, had introduced a resolution with a rhetorical preamble directing the proper committee to bring in a bill prohibiting the slave-trade in the District. This occasioned great excitement, much caucusing and threatening on the part of the Southern members, but

nothing else. In the opinion of the leading antislavery men, Mr. Lincoln's bill, being at the same time more radical and more reasonable, was far better calculated to effect its purpose. Giddings says in his diary: "This evening (January 11), our whole mess remained in the dining-room after tea, and conversed upon the subject of Mr. Lincoln's bill to abolish slavery. It was approved by all; I believe it as good a bill as we could get at this time, and am willing to pay for slaves in order to save them from the Southern market, as I suppose every man in the District would sell his slaves if he saw that slavery was to be abolished." Mr. Lincoln therefore moved, on the 16th of January, as an amendment to Gott's proposition, that the committee report a bill for the total abolition of slavery in the District of Columbia, the terms of which he gave in full. They were in substance the following:

The first two sections prohibit the bringing of slaves into the district or selling them out of it, provided, however, that officers of the Government, being citizens of slave-holding States, may bring their household servants with them for a reasonable time and take them away again. The third provides a temporary system of apprenticeship and eventual emancipation for children born of slavemothers after January 1, 1850. The fourth provides for the manumission of slaves by the Government on application of the owners, the latter to receive their full cash value. The fifth provides for the return of fugitive slaves from Washington and Georgetown. The sixth submits this bill itself to a popular vote in the District as a condition of its promulgation as law.

These are the essential points of the measure and the success of Mr. Lincoln in gaining the adhesion of the abolitionists in the House is more remarkable than that he should have induced the Washington Conservatives to approve it. But the usual result followed as soon as it was formally introduced to the notice of Congress, It was met by that violent and excited

opposition which greeted any measure, however intrinsically moderate and reasonable, which was founded on the assumption that slavery was not in itself a good and desirable thing. The social influences of Washington were brought to bear against a proposition which the Southerners contended would vulgarize society, and the genial and liberal mayor was forced to withdraw his approval as gracefully or as awkwardly as he might. The prospects of the bill were seen to be hopeless, as the session was to end on the 4th of March, and no further effort was made to carry it through. Fifteen years afterwards, in the stress and tempest of a terrible war, it was Mr. Lincoln's strange fortune to sign a bill sent him by Congress for the abolition of slavery in Washington; and perhaps the most remarkable thing about the whole transaction, was that while we were looking politically upon a new heaven and a new earth,—for the vast change in our moral and economic condition might justify so audacious a phrase,—when there was scarcely a man on the continent who had not greatly shifted his point of view in a dozen years, there was so little change in Mr. Lincoln. The same hatred of slavery, the same sympathy with the slave, the same consideration for the slaveholder as the victim of a system he had inherited, the same sense of divided responsibility between the South and the North, the same desire to effect great reforms with as little individual damage and injury, as little disturbance of social conditions as possible, were equally evident when the raw pioneer signed the protest with Dan Stone at Vandalia, when the mature man moved the resolution of 1849 in the Capitol, and when the President gave the sanction of his bold signature to the act which swept away the slave-shambles from the city of Washington.

[Illustration: JOSHUA R. GIDDINGS.]

His term in Congress ended on the 4th of March, 1849, and he was not a candidate for reelection. A year before he had contemplated the possibility of entering the field again. He then wrote to his friend and partner Herndon:

"It is very pleasant for me to learn from you that there are some who desire that I should be reelected. I most heartily thank them for their kind partiality; and I can say, as Mr. Clay said of the annexation of Texas, that 'personally I would not object' to a reelection, although I thought at the time [of his nomination], and still think, it would be quite as well for me to return to the law at the end of a single term. I made the declaration that I would not be a candidate again, more from a wish to deal fairly with others, to keep peace among our friends, and keep the district from going to the enemy, than for any cause personal to myself, so that, if it should so happen that nobody else wishes to be elected, I could not refuse the people the right of sending me again. But to enter myself as a competitor of others, or to authorize any one so to enter me, is what my word and honor forbid."

But before his first session ended he gave up all idea of going back, and heartily concurred in the nomination of Judge Logan to succeed him. The Sangamon district was the one which the Whigs of Illinois had apparently the best prospect of carrying, and it was full of able and ambitious men, who were nominated successively for the only place which gave them the opportunity of playing a part in the national theater at Washington. They all served with more or less distinction, but for eight years no one was ever twice a candidate. A sort of tradition had grown up, through which a perverted notion of honor and propriety held it discreditable in a member to ask for reelection. This state of things was not peculiar to that district, and it survives with more or less vigor throughout the country to this day, to the serious detriment of Congress. This consideration, coupled with what is called the claim of locality, must in time still further deteriorate the representatives of the States at Washington. To ask in a nominating convention who is best qualified for service in Congress is always regarded as an impertinence; but the question "what county in the district has had the Congressman oftenest" is always considered in order. For such reasons as these Mr. Lincoln refused to allow his name to go before the voters again,

and the next year he again refused, writing an emphatic letter for publication, in which he said that there were many Whigs who could do as much as he "to bring the district right side up."

Colonel Baker had come back from the wars with all the glitter of Cerro Gordo about him, but did not find the prospect of political preferment flattering in Sangamon County, and therefore, with that versatility and sagacity which was more than once to render him signal service, he removed to the Galena district, in the extreme north- western corner of the State, and almost immediately on his arrival there received a nomination to Congress. He was doubly fortunate in this move, as the nomination he was unable to take away from Logan proved useless to the latter, who was defeated after a hot contest. Baker therefore took the place of Lincoln as the only Whig member from Illinois, and their names occur frequently together in the arrangements for the distribution of "Federal patronage" at the close of the Administration of Polk and the beginning of that of Taylor.

[Sidenote: MS letter from Lincoln to Schooler. Feb. 2, 1869.]

During the period while the President-elect was considering the appointment of his Cabinet, Lincoln used all the influence he could bring to bear, which was probably not very much, in favor of Baker for a place in the Government. The Whig members of the Legislatures of Illinois, Iowa, and Wisconsin joined in this effort, which came to nothing. The recommendations to office which Lincoln made after the inauguration of General Taylor are probably unique of their kind. Here is a specimen which is short enough to give entire. It is addressed to the Secretary of the Interior: "I recommend that William Butler be appointed Pension Agent for the Illinois agency when the place shall be vacant. Mr. Hurst, the present incumbent, I believe has performed the duties very well. He is a decided partisan, and I believe expects to be removed. Whether he shall be, I submit

to the Department. This office is not confined to my district, but pertains to the whole State; so that Colonel Baker has an equal right with myself to be heard concerning it. However, the office is located here (at Springfield); and I think it is not probable any one would desire to remove from a distance to take it."

We have examined a large number of his recommendations—for with a complete change of administration there would naturally be great activity among the office-seekers—and they are all in precisely the same vein. He nowhere asks for the removal of an incumbent; he never claims a place as subject to his disposition; in fact, he makes no personal claim whatever; he simply advises the Government, in case a vacancy occurs, who, in his opinion, is the best man to fill it. When there are two applicants, he indicates which is on the whole the better man, and sometimes adds that the weight of recommendations is in favor of the other! In one instance he sends forward the recommendations of the man whom he does not prefer, with an indorsement emphasizing the importance of them, and adding: "From personal knowledge I consider Mr. Bond every way worthy of the office and qualified to fill it. Holding the individual opinion that the appointment of a different gentleman would be better, I ask especial attention and consideration for his claims, and for the opinions expressed in his favor by those over whom I can claim no superiority." The candor, the fairness and moderation, together with the respect for the public service which these recommendations display, are all the more remarkable when we reflect that there was as yet no sign of a public conscience upon the subject. The patronage of the Government was scrambled for, as a matter of course, in the mire into which Jackson had flung it.

For a few weeks in the spring of 1849 Mr. Lincoln appears in a character which is entirely out of keeping with all his former and subsequent career. He became, for the first and only time in his life, an applicant for an

appointment at the hands of the President. His bearing in this attitude was marked by his usual individuality. In the opinion of many Illinoisans it was important that the place of Commissioner of the General Land Office should be given to a citizen of their State, one thoroughly acquainted with the land law in the West and the special needs of that region. A letter to Lincoln was drawn up and signed by some half-dozen of the leading Whigs of the State asking him to become an applicant for that position.

He promptly answered, saying that if the position could be secured for a citizen of Illinois only by his accepting it, he would consent; but he went on to say that he had promised his best efforts to Cyrus Edwards for that place, and had afterwards stipulated with Colonel Baker that if J. L. D. Morrison, another Mexican hero, and Edwards could come to an understanding with each other as to which should withdraw, he would join in recommending the other; that he could not take the place, therefore, unless it became clearly impossible for either of the others to get it. Some weeks later, the impossibility referred to having become apparent, Mr. Lincoln applied for the place; but a suitor for office so laggard and so scrupulous as he, stood very little chance of success in contests like those which periodically raged at Washington during the first weeks of every new administration. The place came, indeed, to Illinois, but to neither of the three we have mentioned. The fortunate applicant was Justin Butterfield, of Chicago, a man well and favorably known among the early members of the Illinois bar, [Transcriber's Note: Lengthy footnote relocated to chapter end.] who, however, devoted less assiduous attention to the law than to the business of office-seeking, which he practiced with fair success all his days.

It was in this way that Abraham Lincoln met and escaped one of the greatest dangers of his life. In after days he recognized the error he had committed, and congratulated himself upon the happy deliverance he had obtained through no merit of his own. The loss of at least four years of the

active pursuit of his profession would have been irreparable, leaving out of view the strong probability that the singular charm of Washington life to men who have a passion for politics might have kept him there forever. It has been said that a residence in Washington leaves no man precisely as it found him. This is an axiom which may be applied to most cities in a certain sense, but it is true in a peculiar degree of our capital.

To the men who go there from small rural communities in the South and the West, the bustle and stir, the intellectual movement, such as it is, the ordinary subjects of conversation, of such vastly greater importance than anything they have previously known, the daily, even hourly combats on the floor of both houses, the intrigue and the struggle of office-hunting, which engage vast numbers besides the office-seekers, the superior piquancy and interest of the scandal which is talked at a Congressional boarding-house over that which seasons the dull days at village-taverns—all this gives a savor to life in Washington the memory of which doubles the tedium of the sequestered vale to which the beaten legislator returns when his brief hour of glory is over. It is this which brings to the State Department, after every general election, that crowd of specters, with their bales of recommendations from pitying colleagues who have been reelected, whose diminishing prayers run down the whole gamut of supplication from St. James to St. Paul of Loando, and of whom at the last it must be said, as Mr. Evarts once said after an unusually heavy day, "Many called, but few chosen." Of those who do not achieve the ruinous success of going abroad to consulates that will not pay their board, or missions where they avoid daily shame only by hiding their penury and their ignorance away from observation, a great portion yield to their fate and join that fleet of wrecks which floats forever on the pavements of Washington.

It is needless to say that Mr. Lincoln received no damage from his term of service in Washington, but we know of nothing which shows so strongly

the perilous fascination of the place as the fact that a man of his extraordinary moral and mental qualities could ever have thought for a moment of accepting a position so insignificant and incongruous as that which he was more than willing to assume when he left Congress. He would have filled the place with honor and credit— but at a monstrous expense. We do not so much refer to his exceptional career and his great figure in history; these momentous contingencies could not have suggested themselves to him. But the place he was reasonably sure of filling in the battle of life should have made a subordinate office in Washington a thing out of the question. He was already a lawyer of skill and reputation; an orator upon whom his party relied to speak for them to the people. An innate love of combat was in his heart; he loved discussion like a medieval schoolman. The air was already tremulous with faint bugle-notes that heralded a conflict of giants on a field of moral significance to which he was fully alive and awake, where he was certain to lead at least his hundreds and his thousands. Yet if Justin Butterfield had not been a more supple, more adroit, and less scrupulous suitor for office than himself, Abraham Lincoln would have sat for four inestimable years at a bureau-desk in the Interior Department, and when the hour of action sounded in Illinois, who would have filled the place which he took as if he had been born for it? Who could have done the duty which he bore as lightly as if he had been fashioned for it from the beginning of time?

His temptation did not end even with Butterfield's success. The Administration of General Taylor, apparently feeling that some compensation was due to one so earnestly recommended by the leading Whigs of the State, offered Mr. Lincoln the governorship of Oregon. This was a place more suited to him than the other, and his acceptance of it was urged by some of his most judicious friends [Footnote: Among others John T. Stuart, who is our authority for this statement.] on the ground that the new Territory would soon be a State, and that he could come back as a

senator. This view of the matter commended itself favorably to Lincoln himself, who, however, gave it up on account of the natural unwillingness of his wife to remove to a country so wild and so remote.

This was all as it should be. The best place for him was Illinois, and he went about his work there until his time should come.

[Relocated Footnote: Butterfield had a great reputation for ready wit and was suspected of deep learning. Some of his jests are still repeated by old lawyers in Illinois, and show at least a well-marked humorous intention. On one occasion he appeared before Judge Pope to ask the discharge of the famous Mormon Prophet, Joe Smith, who was in custody surrounded by his church dignitaries. Bowing profoundly to the court and the ladies who thronged the hall, he said: "I appear before you under solemn and peculiar circumstances. I am to address the Pope, surrounded by angels, in the presence of the holy apostles, in behalf of the Prophet of the Lord." We once heard Lincoln say of Butterfield that he was one of the few Whigs in Illinois who approved the Mexican war. His reason, frankly given, was that he had lost an office in New York by opposing the war of 1812. "Henceforth," he said with cynical vehemence, "I am for war, pestilence, and famine." He was once defending the Shawneetown Bank and advocating the extension of its charter; an opposing lawyer contended that this would be creating a new bank. Butterfield brought a smile from the court and a laugh from the bar by asking "whether when the Lord lengthened the life of Hezekiah he made a new man, or whether it was the same old Hezekiah?"]

CHAPTER XVII

THE CIRCUIT LAWYER

In that briefest of all autobiographies, which Mr. Lincoln wrote for Jesse Fell upon three pages of note-paper, he sketched in these words the period at which we have arrived: "From 1849 to 1854, both inclusive, I practiced law more assiduously than ever before ... I was losing interest in politics, when the repeal of the Missouri Compromise aroused me again." His service in Congress had made him more generally known than formerly, and had increased his practical value as a member of any law firm. He was offered a partnership on favorable terms by a lawyer in good practice in Chicago; but he declined it on the ground that his health would not endure the close confinement necessary in a city office. He went back to Springfield, and resumed at once his practice there and in the Eighth Judicial Circuit, where his occupations and his associates were the most congenial that he could anywhere find. For five years he devoted himself to his work with more energy and more success than ever before.

It was at this time that he gave a notable proof of his unusual powers of mental discipline. His wider knowledge of men and things, acquired by contact with the great world, had shown him a certain lack in himself of the power of close and sustained reasoning. To remedy this defect, he applied himself, after his return from Congress, to such works upon logic and

mathematics as he fancied would be serviceable. Devoting himself with dogged energy to the task in hand, he soon learned by heart six books of the propositions of Euclid, and he retained through life a thorough knowledge of the principles they contain.

[Sidenote: I.N. Arnold in the "History of Sangamon County."]

The outward form and fashion of every institution change rapidly in growing communities like our Western States, and the practice of the law had already assumed a very different degree of dignity and formality from that which it presented only twenty years before. The lawyers in hunting-shirts and mocassins had long since passed away; so had the judges who apologized to the criminals that they sentenced, and charged them "to let their friends on Bear Creek understand it was the law and the jury who were responsible." Even the easy familiarity of a later date would no longer be tolerated. No successor of Judge Douglas had been known to follow his example by coming down from the bench, taking a seat in the lap of a friend, throwing an arm around his neck, and in that intimate attitude discussing, *coram publico*, whatever interested him, David Davis—afterwards of the Supreme Court and of the Senate—was for many years the presiding judge of this circuit, and neither under him nor his predecessor, S. H. Treat, was any lapse of dignity or of propriety possible. Still there was much less of form and ceremony insisted upon than is considered proper and necessary in older communities.

The bar in great measure was composed of the same men who used to follow the circuit on horseback, over roads impassable to wheels, with their scanty wardrobes, their law-books, and their documents crowding each other in their saddle-bags. The improvement of roads which made carriages a possibility had effected a great change, and the coming of the railway had completed the sudden development of the manners and customs of the

modernized community. But they could not all at once take from the bar of the Eighth Circuit its raciness and its individuality. The men who had lived in log-cabins, who had hunted their way through untrodden woods and prairies, who had thought as much about the chances of swimming over swollen fords as of their cases, who had passed their nights—a half-dozen together—on the floors of wayside hostelries, could never be precisely the same sort of practitioners as the smug barristers of a more conventional age and place. But they were not deficient in ability, in learning, or in that most valuable faculty which enables really intelligent men to get their bearings and sustain themselves in every sphere of life to which they may be called. Some of these very colleagues of Lincoln at the Springfield bar have sat in Cabinets, have held their own on the floor of the Senate, have led armies in the field, have governed States, and all with a quiet self-reliance which was as far as possible removed from either undue arrogance or undue modesty. [Footnote: A few of the lawyers who practiced with Lincoln, and have held the highest official positions, are Douglas, Shields, Logan, Stuart, Baker, Samuel H. Treat, Bledsoe, O. H. Browning, Hardin, Lyman Trumbull, and Stephen T. McClernand.]

Among these able and energetic men Lincoln assumed and held the first rank. This is a statement which ought not to be made without authority, and rather than give the common repute of the circuit, we prefer to cite the opinion of those lawyers of Illinois who are entitled to speak as to this matter, both by the weight of their personal and professional character and by their eminent official standing among the jurists of our time. We shall quote rather fully from addresses delivered by Justice David Davis, of the Supreme Court of the United States, and by Judge Drummond, the United States District Judge for Illinois. Judge Davis says:

I enjoyed for over twenty years the personal friendship of Mr. Lincoln. We were admitted to the bar about the same time and traveled for many

years what is known in Illinois as the Eighth Judicial Court. In 1848, when I first went on the bench, the circuit embraced fourteen counties, and Mr. Lincoln went with the Court to every county. Railroads were not then in use, and our mode of travel was either on horseback or in buggies.

This simple life he loved, preferring it to the practice of the law in a city, where, although the remuneration would be greater, the opportunity would be less for mixing with the great body of the people, who loved him, and whom he loved. Mr. Lincoln was transferred from the bar of that circuit to the office of the President of the United States, having been without official position since he left Congress in 1849. In all the elements that constitute the great lawyer he had few equals. He was great both at *nisi prius* and before an appellate tribunal. He seized the strong points of a cause, and presented them with clearness and great compactness. His mind was logical and direct, and he did not indulge in extraneous discussion. Generalities and platitudes had no charms for him. An unfailing vein of humor never deserted him; and he was able to claim the attention of court and jury, when the cause was the most uninteresting, by the appropriateness of his anecdotes. [Footnote: C. P. Linder once said to an Eastern lawyer who expressed the opinion that Lincoln was wasting his time in telling stories to the jury, "Don't lay that flattering unction to your soul. Lincoln is like Tansey's horse, he 'breaks to win.'"—T. W. S. Kidd, in the Lincoln Memorial Album.]

His power of comparison was large, and he rarely failed in a legal discussion to use that mode of reasoning. The framework of his mental and moral being was honesty, and a wrong cause was poorly defended by him. The ability which some eminent lawyers possess, of explaining away the bad points of a cause by ingenious sophistry, was denied him. In order to bring into full activity his great powers, it was necessary that he should be convinced of the right and justice of the matter which he advocated. When

so convinced, whether the cause was great or small, he was usually successful. He read law-books but little, except when the cause in hand made it necessary; yet he was usually self-reliant, depending on his own resources, and rarely consulting his brother lawyers, either on the management of his case or on the legal questions involved.

Mr. Lincoln was the fairest and most accommodating of practitioners, granting all favors which were consistent with his duty to his client, and rarely availing himself of an unwary oversight of his adversary.

He hated wrong and oppression everywhere, and many a man whose fraudulent conduct was undergoing review in a court of justice has writhed under his terrific indignation and rebukes. He was the most simple and unostentatious of men in his habits, having few wants, and those easily supplied. To his honor be it said that he never took from a client, even when his cause was gained, more than he thought the services were worth and the client could reasonably afford to pay. The people where he practiced law were not rich, and his charges were always small. When he was elected President, I question whether there was a lawyer in the circuit, who had been at the bar so long a time, whose means were not larger. It did not seem to be one of the purposes of his life to accumulate a fortune. In fact, outside of his profession, he had no knowledge of the way to make money, and he never even attempted it.

Mr. Lincoln was loved by his brethren of the bar, and no body of men will grieve more at his death, or pay more sincere tributes to his memory. His presence on the circuit was watched for with interest and never failed to produce joy or hilarity. When casually absent, the spirits of both bar and people were depressed. He was not fond of litigation, and would compromise a lawsuit whenever practicable.

No clearer or more authoritative statement of Lincoln's rank as a lawyer can ever be made than is found in these brief sentences, in which the warmth of personal affection is not permitted to disturb the measured appreciation, the habitual reserve of the eminent jurist. But, as it may be objected that the friendship which united Davis and Lincoln rendered the one incapable of a just judgment upon the merits of the other, we will also give an extract from the address delivered in Chicago by one of the ablest and most impartial lawyers who have ever honored the bar and the bench in the West. Judge Drummond says:

With a probity of character known to all, with an intuitive insight into the human heart, with a clearness of statement which was in itself an argument, with uncommon power and felicity of illustration, —often, it is true, of a plain and homely kind,—and with that sincerity and earnestness of manner which carried conviction, he was perhaps one of the most successful jury lawyers we ever had in the State. He always tried a case fairly and honestly. He never intentionally misrepresented the evidence of a witness nor the argument of an opponent. He met both squarely, and if he could not explain the one or answer the other, substantially admitted it. He never misstated the law, according to his own intelligent view of it. Such was the transparent candor and integrity of his nature, that he could not well or strongly argue a side or a cause that he thought wrong. Of course he felt it his duty to say what could be said, and to leave the decision to others; but there could be seen in such cases the inward struggle of his own mind. In trying a case he might occasionally dwell too long upon, or give too much importance to, an inconsiderable point; but this was the exception, and generally he went straight to the citadel of the cause or question, and struck home there, knowing if that were won the outworks would necessarily fall. He could hardly be called very learned in his profession, and yet he rarely tried a cause without fully understanding the law applicable to it; and I have no hesitation in saying he was one of the ablest lawyers I have ever known.

If he was forcible before a jury, he was equally so with the Court. He detected with unerring sagacity the weak points of an opponent's argument, and pressed his own views with overwhelming strength. His efforts were quite unequal, and it might happen that he would not, on some occasions, strike one as at all remarkable. But let him be thoroughly roused, let him feel that he was right, and some principle was involved in his cause, and he would come out with an earnestness of conviction, a power of argument, a wealth of illustration, that I have never seen surpassed.

[Illustration: DAVID DAVIS.]

[Sidenote: Lamon, p. 317.]

This is nothing less than the portrait of a great lawyer, drawn by competent hands, with the lifelong habit of conscientious accuracy. If we chose to continue we could fill this volume with the tributes of his professional associates, ranging all the way from the commonplaces of condolence to the most extravagant eulogy. But enough has been quoted to justify the tradition which Lincoln left behind him at the bar of Illinois. His weak as well as his strong qualities have been indicated. He never learned the technicalities, what some would call the tricks, of the profession. The sleight of plea and demurrer, the legerdemain by which justice is balked and a weak case is made to gain an unfair advantage, was too subtle and shifty for his strong and straightforward intelligence. He met these manoeuvres sufficiently well, when practiced by others, but he never could get in the way of handling them for himself. On the wrong side he was always weak. He knew this himself, and avoided such cases when he could consistently with the rules of his profession. He would often persuade a fair-minded litigant of the injustice of his case and induce him to give it up. His partner, Mr. Herndon, relates a speech in point which Lincoln once made to a man who offered him an objectionable case: "Yes, there is no reasonable doubt

but that I can gain your case for you. I can set a whole neighborhood at loggerheads; I can distress a widowed mother and her six fatherless children, and thereby get for you six hundred dollars, which rightfully belongs, it appears to me, as much to them as it does to you. I shall not take your case, but I will give a little advice for nothing. You seem a sprightly, energetic man. I would advise you to try your hand at making six hundred dollars in some other way." Sometimes, after he had entered upon a criminal case, the conviction that his client was guilty would affect him with a sort of panic. On one occasion he turned suddenly to his associate and said: "Swett, the man is guilty; you defend him, I can't," and so gave up his share of a large fee. The same thing happened at another time when he was engaged with Judge S. C. Parks in defending a man accused of larceny. He said: "If you can say anything for the man, do it, I can't; if I attempt it, the jury will see I think he is guilty, and convict him." Once he was prosecuting a civil suit, in the course of which evidence was introduced showing that his client was attempting a fraud. Lincoln rose and went to his hotel in deep disgust. The judge sent for him; he refused to come. "Tell the judge," he said, "my hands are dirty; I came over to wash them." We are aware that these stories detract something from the character of the lawyer; but this inflexible, inconvenient, and fastidious morality was to be of vast service afterwards to his country and the world.

The Nemesis which waits upon men of extraordinary wit or humor has not neglected Mr. Lincoln, and the young lawyers of Illinois, who never knew him, have an endless store of jokes and pleasantries in his name; some of them as old as Howleglass or Rabelais. [Footnote: As a specimen of these stories we give the following, well vouched for, as apocrypha generally are: Lincoln met one day on the courthouse steps a young lawyer who had lost a case—his only one—and looked very disconsolate. "What has become of your case?" Lincoln asked. "Gone to h—," was the gloomy response. "Well, don't give it up," Lincoln rejoined cheerfully; "you can try

it again there"—a quip which has been attributed to many wits in many ages, and will doubtless make the reputation of jesters yet to be.] But the fact is that with all his stories and jests, his frank companionable humor, his gift of easy accessibility and welcome, he was, even while he traveled the Eighth Circuit, a man of grave and serious temper and of an unusual innate dignity and reserve. He had few or no special intimates, and there was a line beyond which no one ever thought of passing. Besides, he was too strong a man in the court-room to be regarded with anything but respect in a community in which legal ability was the only especial mark of distinction.

Few of his forensic speeches have been preserved, but his contemporaries all agree as to their singular ability and power. He seemed absolutely at home in a court-room; his great stature did not encumber him there; it seemed like a natural symbol of superiority. His bearing and gesticulation had no awkwardness about them; they were simply striking and original. He assumed at the start a frank and friendly relation with the jury which was extremely effective. He usually began, as the phrase ran, by "giving away his case"; by allowing to the opposite side every possible advantage that they could honestly and justly claim. Then he would present his own side of the case, with a clearness, a candor, an adroitness of statement which at once flattered and convinced the jury, and made even the bystanders his partisans. Sometimes he disturbed the court with laughter by his humorous or apt illustrations; sometimes he excited the audience by that florid and exuberant rhetoric which he knew well enough how and when to indulge in; but his more usual and more successful manner was to rely upon a clear, strong, lucid statement, keeping details in proper subordination and bringing forward, in a way which fastened the attention of court and jury alike, the essential point on which he claimed a decision. "Indeed," says one of his colleagues, "his statement often rendered argument unnecessary, and often the court would stop him and say, 'If that is the case, we will hear the other side.'"

[Sidenote: Raymond "Life of Lincoln." p. 32.]

[Sidenote: I.N. Arnold, speech before the State Bar Association, Jan. 7, 1881.]

Whatever doubts might be entertained as to whether he was the ablest lawyer on the circuit, there was never any dissent from the opinion that he was the one most cordially and universally liked. If he did not himself enjoy his full share of the happiness of life, he certainly diffused more of it among his fellows than is in the power of most men. His arrival was a little festival in the county-seats where his pursuits led him to pass so much of his time. Several eye-witnesses have described these scenes in terms which would seem exaggerated if they were not so fully confirmed. The bench and bar would gather at the tavern where he was expected, to give him a cordial welcome; says one writer, "He brought light with him." This is not hard to understand. Whatever his cares, he never inflicted them upon others. He talked singularly well, but never about himself. He was full of wit which never wounded, of humor which mellowed the harshness of that new and raw life of the prairies. He never asked for help, but was always ready to give it. He received everybody's confidence, and rarely gave his own in return. He took no mean advantages in court or in conversation, and, satisfied with the respect and kindness which he everywhere met, he sought no quarrels and seldom had to decline them. He did not accumulate wealth; as Judge Davis said, "He seemed never to care for it." He had a good income from his profession, though the fees he received would bring a smile to the well-paid lips of the great attorneys of to-day. The largest fee he ever got was one of five thousand dollars from the Illinois Central Railway, and he had to bring suit to compel them to pay it. He spent what he received in the education of his children, in the care of his family, and in a plain and generous way of living. One who often visited him writes, referring to "the old-fashioned hospitality of Springfield," "Among others I recall with a sad

pleasure, the dinners and evening parties given by Mrs. Lincoln. In her modest and simple home, where everything was so orderly and refined, there was always on the part of both host and hostess a cordial and hearty Western welcome which put every guest perfectly at ease. Their table was famed for the excellence of many rare Kentucky dishes, and for the venison, wild turkeys, and other game, then so abundant. Yet it was her genial manner and ever-kind welcome, and Mr. Lincoln's wit and humor, anecdote and unrivaled conversation, which formed the chief attraction."

Here we leave him for a while, in this peaceful and laborious period of his life; engaged in useful and congenial toil; surrounded by the love and respect of the entire community; in the fullness of his years and strength; the struggles of his youth, which were so easy to his active brain and his mighty muscles, all behind him, and the titanic labors of his manhood yet to come. We shall now try to sketch the beginnings of that tremendous controversy which he was in a few years to take up, to guide and direct to its wonderful and tragical close.

CHAPTER XVIII

THE BALANCE OF POWER

We shall see in the course of the present work how the life of Abraham Lincoln divides itself into three principal periods, with corresponding stages of intellectual development: the first, of about forty years, ending with his term in Congress; the second, of about ten years, concluding with his final campaign of political speech-making in New York and in New England, shortly before the Presidential nominations of 1860; and the last, of about five years, terminating at his death. We have thus far traced his career through the first period of forty years. In the several stages of frontier experience through which he had passed, and which in the main but repeated the trials and vicissitudes of thousands of other boys and youths in the West, only so much individuality had been developed in him as brought him into the leading class of his contemporaries. He had risen from laborer to student, from clerk to lawyer, from politician to legislator. That he had lifted himself by healthy ambition and unaided industry out of the station of a farm-hand, whose routine life begins and ends in a backwoods log-cabin, to that representative character and authority which seated him in the national Capitol to aid in framing laws for his country, was already an achievement that may well be held to crown honorably a career of forty years.

Such achievement and such distinction, however, were not so uncommon as to appear phenomenal. Hundreds of other boys born in log-cabins had won similar elevation in the manly, practical school of Western public life. Even in ordinary times there still remained within the reach of average intellects several higher grades of public service. It is quite probable that the talents of Lincoln would have made him Governor of Illinois or given him a place in the United States Senate. But the story of his life would not have commanded, as it now does, the unflagging attention of the world, had there not fallen upon his generation the unusual conditions and opportunities brought about by a series of remarkable convulsions in national politics. If we would correctly understand how Lincoln became, first a conspicuous actor, and then a chosen leader, in a great strife of national parties for supremacy and power, we must briefly study the origin and development of the great slavery controversy in American legislation which found its highest activity and decisive culmination in the single decade from 1850 to 1860. But we should greatly err if we attributed the new events in Lincoln's career to the caprice of fortune. The conditions and opportunities of which we speak were broadly national, and open to all without restriction of rank or locality. Many of his contemporaries had seemingly overshadowing advantages, by prominence and training, to seize and appropriate them to their own advancement. It is precisely this careful study of the times which shows us by what inevitable process of selection honors and labors of which he did not dream fell upon him; how, indeed, it was not the individual who gained the prize, but the paramount duty which claimed the man.

It is now universally understood, if not conceded, that the Rebellion of 1861 was begun for the sole purpose of defending and preserving to the seceding States the institution of African slavery and making them the nucleus of a great slave empire, which in their ambitious dreams they hoped would include Mexico, Central America, and the West India Islands, and

perhaps even the tropical States of South America. Both a real and a pretended fear that slavery was in danger lay at the bottom of this design. The real fear arose from the palpable fact, impossible to conceal, that the slave system was a reactionary obstacle in the pathway of modern civilization, and its political, material, philosophical, and religious development. The pretended danger was the permanent loss of political power by the slave States of the Union, as shown in the election of Lincoln to the presidency, which they averred would necessarily throw all the forces of the national life against the "peculiar institution," and crush it under forms of law. It was by magnifying this danger from remote into immediate consequence that they excited the population of the cotton States to resistance and rebellion. Seizing this opportunity, it was their present purpose to establish a slave Confederacy, consisting of the cotton States, which should in due time draw to itself, by an irresistible gravitation of sympathy and interest, first, the border slave States, and, in the further progress of events, the tropical countries towards the equator.

The popular agitation, or war of words between the North and the South on the subject of slavery, which led to the armed insurrection was threefold: First, the economic efforts to prevent the destruction of the monetary value of four millions of human beings held in bondage, who were bought and sold as chattels, and whose aggregate valuation, under circumstances existing at the outbreak of the civil war, was variously computed at \$400,000,000 to \$1,600,000,000; [Footnote: The Convention of Mississippi, which passed the secession ordinance, in its Declaration of Causes placed the total value of their property in slaves at "four billions of money," This was at the rate of a thousand dollars for each slave, an average absurdly excessive, and showing their exaggerated estimate of the monetary value of the institution of slavery.] second, a moral debate as to the abstract righteousness or iniquity of the system; and, third, a political

struggle for the balance of power in government and public policy, by which the security and perpetuity of the institution might be guaranteed.

This sectional controversy over the institution of slavery in its threefold aspect had begun with the very birth of the nation, had continued with its growth, and become intensified with its strength. The year before the *Mayflower* brought the Pilgrims to Plymouth Bock, a Dutch ship landed a cargo of African slaves at Jamestown, in Virginia. During the long colonial period the English Government fostered and forced the importation of slaves to America equally with English goods. In the original draft of the Declaration of Independence, Thomas Jefferson invoked the reprobation of mankind upon the British King for his share in this inhuman traffic. On reflection, however, this was discovered to be but another case of Satan rebuking sin. The blood money which reddened the hands of English royalty stained equally those of many an American rebel. The public opinion of the colonies was already too much debauched to sit in unanimous moral judgment on this crime against humanity. The objections of South Carolina and Georgia sufficed to cause the erasure and suppression of the obnoxious paragraph. Nor were the Northern States guiltless: Newport was yet a great slave-mart, and the commerce of New England drew more advantage from the traffic than did the agriculture of the South.

[Sidenote: J. C. Hurd, "Law of Freedom and Bondage," Vol. I. pp. 228-311.]

All the elements of the later controversy already existed. Slave codes and fugitive-slave laws, abolition societies and emancipation bills, are older than our Constitution; and negro troops fought in the Revolutionary war for American independence. Liberal men could be found in South Carolina who hated slavery, and narrow men in Massachusetts who defended it. But these individual instances of prejudice or liberality were submerged and lost

in the current of popular opinion springing from prevailing interests in the respective localities, and institutions molded principles, until in turn principles should become strong enough to reform institutions. In short, slavery was one of the many "relics of barbarism"—like the divine right of kings, religious persecution, torture of the accused, imprisonment and enslavement for debt, witch-burning, and kindred "institutions"—which were transmitted to that generation from former ages as so many burdens of humanity, for help in the removal of which the new nation was in the providence of God perhaps called into existence. The whole matter in its broader aspects is part of that persistent struggle of the centuries between despotism and individual freedom; between arbitrary wrong, consecrated by tradition and law, and the unfolding recognition of private rights; between the thralldom of public opinion and liberty of conscience; between the greed of gain and the Golden Rule of Christ. Whoever, therefore, chooses to trace the remote origin of the American Rebellion will find the germ of the Union armies of 1861-5 in the cabin of the *Mayflower*, and the inception of the Secession forces between the decks of that Dutch slaver which planted the fruits of her avarice and piracy in the James River colonies in 1619.

So elaborate and searching a study, however, is not necessary to the purposes of this work. A very brief mention of the principal landmarks of the long contest will serve to show the historical relation, and explain the phraseology, of its final issues.

The first of these great landmarks was the Ordinance of 1787. All the States tolerated slavery and permitted the slave-trade during the Revolution. But in most of them the morality of the system was strongly drawn in question, especially by the abolition societies, which embraced many of the most prominent patriots. A public opinion, not indeed unanimous, but largely in the majority, demanded that the "necessary evil" should cease. When the Continental Congress came to the practical work of providing a

government for the "Western lands," which the financial pressure and the absolute need of union compelled New York and Virginia to cede to the general Government, Thomas Jefferson proposed, among other features in his plan and draft of 1784, to add a clause prohibiting slavery in all the North-west territory after the year 1800. A North Carolina member moved to strike out this clause. The form of the question put by the chairman was, "Shall the clause stand?" Sixteen members voted aye and seven members voted no; but under the clumsy legislative machinery of the Confederation these seven noes carried the question, since a majority of States had failed to vote in the affirmative.

Three years later, July 13, 1787, this first ordinance was repealed by a second, establishing our more modern form of territorial government. It is justly famed for many of its provisions; but its chief value is conceded to have been its sixth article, ordaining the immediate and perpetual prohibition of slavery. Upon this all the States present in Congress—three Northern and five Southern—voted in the affirmative; five States were absent, four Northern and one Southern. This piece of legislation is remarkable in that it was an entirely new bill, substituted for a former and altogether different scheme containing no prohibition whatever, and that it was passed through all the forms and stages of enactment in the short space of four days. History sheds little light on the official transaction, but contemporary evidence points to the influence of a powerful lobby.

Several plausible reasons are assigned why the three slave States of Maryland, Virginia, and North Carolina voted for this prohibition. First, the West was competing with the Territory of Maine for settlers; second, the whole scheme was in the interest of the "Ohio Company," a newly formed Massachusetts emigrant aid society which immediately made a large purchase of lands; third, the unsettled regions south of the Ohio River had not yet been ceded to the general Government, and were therefore open to

slavery from the contiguous Southern States; fourth, little was known of the extent or character of the great West; and, therefore, fifth, the Ohio River was doubtless thought to be a fair and equitable dividing line. The ordinance itself provided for the formation of not less than three nor more than five States, and under its shielding provisions Ohio, Indiana, Illinois, Michigan, and Wisconsin were added to the Union with free constitutions.

[Sidenote: "Ellior's Debates," Vol. V., p. 395.]

[Sidenote: Ibid., p. 392.]

It does not appear that sectional motives operated for or against the foregoing enactment; they were probably held in abeyance by other considerations. But it must not be inferred therefrom that the slavery question was absent or dormant in the country. There was already a North and a South. At that very time the constitutional convention was in session in Philadelphia. George Washington and his fellow delegates were grappling with the novel problems of government which the happy issue of the Revolution and the lamentable failure of the Confederation forced upon the country. One of these problems was the presence of over half a million of slaves, nearly all in five Southern States. Should they be taxed? Should they be represented? Should the power to regulate commerce be allowed to control or terminate their importation? Vital questions these, which went not merely to the incidents but the fundamental powers of government. The slavery question seemed for months an element of irreconcilable discord in the convention. The slave-trade not only, but the domestic institution itself, was characterized in language which Southern politicians of later times would have denounced as "fanatical" and "incendiary." Pinckney wished the slaves to be represented equally with the whites, since they were the Southern peasantry. Gouverneur Morris declared that as they were only property they ought not to be represented at all. Both the present and the

future balance of power in national legislation, as resulting from slaves already in, and hereafter to be imported into, old and new States, were debated under various possibilities and probabilities.

Out of these divergent views grew the compromises of the Constitution. 1. The slaves were to be included in the enumeration for representation, *five* blacks to be counted as *three* whites. 2. Congress should have the right to prohibit the slave-trade, but not till the lapse of twenty years. 3. Fugitive slaves should be delivered to their owners. Each State, large or small, was allowed two senators; and the apportionment of representatives gave to the North thirty-five members and fourteen senators, to the South thirty members and twelve senators. But since the North was not yet free from slavery, but only in process of becoming so, and as Virginia was the leading State of the Union, the real balance of power remained in the hands of the South.

The newly formed Constitution went into successful operation. Under legal provisions already made and the strong current of abolition sentiment then existing, all the Eastern and Middle States down to Delaware became free. This gain, however, was perhaps more than numerically counterbalanced by the active importation of captured Africans, especially into South Carolina and Georgia, up to the time the traffic ceased by law in 1808. Jefferson had meanwhile purchased of France the immense country west of the Mississippi known as the Louisiana Territory. The free navigation of that great river was assured, and the importance of the West immeasurably increased. The old French colonies at New Orleans and Kaskaskia were already strong outposts of civilization and the nuclei of spreading settlements. Attracted by the superior fertility of the soil, by the limitless opportunities for speculation, by the enticing spirit of adventure, and pushed by the restless energy inherent in the Anglo-Saxon character,

the older States now began to pour a rising stream of emigration into the West and the South-west.

In this race the free States, by reason of their greater population, wealth, and commercial enterprise, would have outstripped the South but for the introduction of a new and powerful influence which operated exclusively in favor of the latter. This was the discovery of the peculiar adaptation of the soil and climate of portions of the Southern States, combined with cheap slave-labor, to the cultivation of cotton. Half a century of experiment and invention in England had brought about the concurrent improvement of machinery for spinning and weaving, and of the high-pressure engine to furnish motive power. The Revolutionary war was scarcely ended when there came from the mother- country a demand for the raw fiber, which promised to be almost without limit. A few trials sufficed to show Southern planters that with their soil and their slaves they could supply this demand with a quality of cotton which would defy competition, and at a profit to themselves far exceeding that of any other product of agriculture. But an insurmountable obstacle yet seemed to interpose itself between them and their golden harvest. The tedious work of cleaning the fiber from the seed apparently made impossible its cheap preparation for export in large quantities. A negro woman working the whole day could clean only a single pound.

[Illustration: JAMES K. POLK.]

[Sidenote: Memoir of Eli Whitney, "American Journal of Science," 1832.]

It so happened that at this juncture, November, 1792, an ingenious Yankee student from Massachusetts was boarding in the house of friends in Savannah, Georgia, occupying his leisure in reading law. A party of Georgia gentlemen from the interior, making a visit to this family, fell into

conversation on the prospects and difficulties of cotton- culture and the imperative need of a rapidly working cleaning-machine. Their hostess, an intelligent and quick-witted woman, at once suggested an expedient. "Gentlemen," said Mrs. Greene, "apply to my young friend, Mr. Eli Whitney; he can make anything." The Yankee student was sought, introduced, and had the mechanical problem laid before him. He modestly disclaimed his hostess's extravagant praises, and told his visitors that he had never seen either cotton or cotton- seed in his life. Nevertheless, he went to work with such earnestness and success, that in a few months Mrs. Greene had the satisfaction of being able to invite a gathering of gentlemen from different parts of the State to behold with their own eyes the working of the newly invented cotton-gin, with which a negro man turning a crank could clean fifty pounds of cotton per day.

[Sidenote: 1808.]

[Sidenote: Compendium, Eighth Census, p. 13.]

This solution of the last problem in cheap cotton-culture made it at once the leading crop of the South. That favored region quickly drove all competitors out of the market; and the rise of English imports of raw cotton, from thirty million pounds, in 1790 to over one thousand million pounds in 1860, shows the development and increase of this special industry, with all its related interests. [Footnote: The Virginia price of a male "field hand" in 1790 was \$250; in 1860 his value in the domestic market had risen to \$1600.—SHERRARD CLEMENS, speech in H. E. Appendix "Congressional Globe," 1860-1, pp. 104-5.] It was not till fifteen years after the invention of the cotton-gin that the African slave-trade ceased by limitation of law. "Within that period many thousands of negro captives had been added to the population of the South by direct importation, and nearly thirty thousand slave inhabitants added by the acquisition of Louisiana,

hastening the formation of new slave States south of the Ohio River in due proportion." [Transcriber's Note: Lengthy footnote (1) relocated to chapter end.]

It is a curious historical fact, that under the very remarkable material growth of the United States which now took place, the political influence remained so evenly balanced between the North and the South for more than a generation. Other grave issues indeed absorbed the public attention, but the abeyance of the slavery question is due rather to the fact that no considerable advantage as yet fell to either side. Eight new States were organized, four north and four south of the Ohio River, and admitted in nearly alternate order: Vermont in 1791, *free*; Kentucky in 1792, *slave*; Tennessee in 1796, *slave*; Ohio in 1802, *free*; Louisiana in 1812, *slave*; Indiana in 1816, *free*; Mississippi in 1817, *slave*; Illinois in 1818, *free*. Alabama was already authorized to be admitted with slavery, and this would make the number of free and slave States equal, giving eleven States to the North and eleven to the South.

The Territory of Missouri, containing the old French colonies at and near St. Louis, had attained a population of 60,000, and was eager to be admitted as a State. She had made application in 1817, and now in 1819 it was proposed to authorize her to form a constitution. Arkansas was also being nursed as an applicant, and the prospective loss by the North and gain by the South of the balance of power caused the slavery question suddenly to flare up as a national issue. There were hot debates in Congress, emphatic resolutions by State legislatures, deep agitation among the whole people, and open threats by the South to dissolve the Union. Extreme Northern men insisted upon a restriction of slavery to be applied to both Missouri and Arkansas; radical Southern members contended that Congress had no power to impose any conditions on new States. The North had control of the House, the South of the Senate. A middle party thereupon sprang up,

proposing to divide the Louisiana purchase between freedom and slavery by the line of 36 degrees 30', and authorizing the admission of Missouri with slavery out of the northern half. Fastening this proposition upon the bill to admit Maine as a free State, the measure was, after a struggle, carried through Congress (in a separate act approved March 6, 1820), and became the famous Missouri Compromise. Maine and Missouri were both admitted. Each section thereby not only gained two votes in the Senate, but also asserted its right to spread its peculiar polity without question or hindrance within the prescribed limits; and the motto, "No extension of slavery," was postponed forty years, to the Republican campaign of 1860.

From this time forward, the maintenance of this balance of power,—the numerical equality of the slave States with the free,—though not announced in platforms as a party doctrine, was nevertheless steadily followed as a policy by the representatives of the South. In pursuance of this system, Michigan and Arkansas, the former a *free* and the latter a *slave* State, were, on the same day, June 15, 1836, authorized to be admitted. These tactics were again repeated in the year 1845, when, on the 3d of March, Iowa, a *free* State, and Florida, a *slave* State, were authorized to be admitted by one act of Congress, its approval being the last official act of President Tyler. This tacit compromise, however, was accompanied by another very important victory of the same policy. The Southern politicians saw clearly enough that with the admission of Florida the slave territory was exhausted, while an immense untouched portion of the Louisiana purchase still stretched away to the north-west towards the Pacific above the Missouri Compromise line, which consecrated it to freedom. The North, therefore, still had an imperial area from which to organize future free States, while the South had not a foot more territory from which to create slave States.

Sagaciously anticipating this contingency, the Southern States had been largely instrumental in setting up the independent State of Texas, and were

now urgent in their demand for her annexation to the Union. Two days before the signing of the Iowa and Florida bill, Congress passed, and President Tyler signed, a joint resolution, authorizing the acquisition, annexation, and admission of Texas. But even this was not all. The joint resolution contained a guarantee that "new States, of convenient size, not exceeding four in number, in addition to the said State of Texas," and to be formed out of her territory, should hereafter be entitled to admission—the Missouri Compromise line to govern the slavery question in them. The State of Texas was, by a later resolution, formally admitted to the Union, December 29, 1845. At this date, therefore, the slave States gained an actual majority of one, there being fourteen free States and fifteen slave States, with at least equal territorial prospects through future annexation.

If the North was alarmed at being thus placed in a minority, there was ample reason for still further disquietude. The annexation of Texas had provoked the Mexican war, and President Polk, in anticipation of further important acquisition of territory to the South and West, asked of Congress an appropriation of two millions to be used in negotiations to that end. An attempt to impose a condition to these negotiations that slavery should never exist in any territory to be thus acquired was the famous Wilmot Proviso. This particular measure failed, but the war ended, and New Mexico and California were added to the Union as unorganized Territories. Meanwhile the admission of Wisconsin in 1848 had once more restored the equilibrium between the free and the slave States, there being now fifteen of each.

It must not be supposed that the important political measures and results thus far summarized were accomplished by quiet and harmonious legislation. Rising steadily after 1820, the controversy over slavery became deep and bitter, both in Congress and the country. Involving not merely a policy of government, but a question of abstract morals, statesmen,

philanthropists, divines, the press, societies, churches, and legislative bodies joined in the discussion. Slavery was assailed and defended in behalf of the welfare of the state, and in the name of religion. In Congress especially it had now been a subject of angry contention for a whole generation. It obtruded itself into all manner of questions, and clung obstinately to numberless resolutions and bills. Time and again it had brought members into excited discussion, and to the very verge of personal conflict in the legislative halls. It had occasioned numerous threats to dissolve the Union, and in one or more instances caused members actually to retire from the House of Representatives. It had given rise to resolutions of censure, to resignations, and had been the occasion of some of the greatest legislative debates of the nation. It had virtually created and annexed the largest State in the Union. In several States it had instigated abuse, intolerance, persecutions, trials, mobs, murders, destruction of property, imprisonment of freemen, retaliatory legislation, and one well-defined and formidable attempt at revolution. It originated party factions, political schools, and constitutional doctrines, and made and marred the fame of great statesmen.

New Mexico, when acquired, contained one of the oldest towns on the continent, and a considerable population of Spanish origin. California, almost simultaneously with her acquisition, was peopled in the course of a few months by the world-renowned gold discoveries. Very unexpectedly, therefore, to politicians of all grades and opinions, the slavery question was once more before the nation in the year 1850, over the proposition to admit both to the Union as States. As the result of the long conflict of opinion hitherto maintained, the beliefs and desires of the contending sections had by this time become formulated in distinct political doctrines. The North contended that Congress might and should prohibit slavery in all the territories of the Union, as had been done in the Northern half by the Ordinance of 1787 and by the Missouri Compromise. The South declared that any such exclusion would not only be unjust and impolitic, but

absolutely unconstitutional, because property in slaves might enter and must be protected in the territories in common with all other property. To the theoretical dispute was added a practical contest. By the existing Mexican laws slavery was already prohibited in New Mexico, and California promptly formed a free State constitution. Under these circumstances the North sought to organize the former as a Territory, and admit the latter as a State, while the South resisted and endeavored to extend the Missouri Compromise line, which would place New Mexico and the southern half of California under the tutelage and influence of slavery.

These were the principal points of difference which caused the great slavery agitation of 1850. The whole country was convulsed in discussion; and again more open threats and more ominous movements towards disunion came from the South. The most popular statesman of that day, Henry Clay, of Kentucky, a slaveholder opposed to the extension of slavery, now, however, assumed the leadership of a party of compromise, and the quarrel was adjusted and quieted by a combined series of Congressional acts. 1. California was admitted as a free State. 2. The Territories of New Mexico and Utah were organized, leaving the Mexican prohibition of slavery in force. 3. The domestic slave-trade in the District of Columbia was abolished. 4. A more stringent fugitive-slave law was passed. 5. For the adjustment of her State boundaries Texas received ten millions of dollars.

[Sidenote: Greeley, "American Conflict," Vol. I., p. 208.]

These were the famous compromise measures of 1850. It has been gravely asserted that this indemnity of ten millions, suddenly trebling the value of the Texas debt, and thereby affording an unprecedented opportunity for speculation in the bonds of that State, was "the propelling force whereby these acts were pushed through Congress in defiance of the original convictions of a majority of its members." But it must also be

admitted that the popular desire for tranquillity, concord, and union in all sections never exerted so much influence upon Congress as then. This compromise was not at first heartily accepted by the people; Southern opinion being offended by the abandonment of the "property" doctrine, and Northern sentiment irritated by certain harsh features of the fugitive-slave law. But the rising Union feeling quickly swept away all ebullitions of discontent, and during two or three years people and politicians fondly dreamed they had, in current phraseology, reached a "finality" [Transcriber's Note: Lengthy footnote (2) relocated to chapter end.] on this vexed quarrel. The nation settled itself for a period of quiet to repair the waste and utilize the conquests of the Mexican war. It became absorbed in the expansion of its commerce, the development of its manufactures, and the growth of its emigration, all quickened by the riches of its marvelous gold-fields; until unexpectedly and suddenly it found itself plunged once again into political controversies more distracting and more ominous than the worst it had yet experienced.

[Relocated Footnote (1): No word of the authors could add to the force and eloquence of the following from a recent letter of the son of the inventor of the cotton-gin (to the Art Superintendent of "The Century"), stating the claims of his father's memory to the gratitude of the South, hitherto apparently unfelt, and certainly unrecognized:

"NEW HAVEN, CONN.," Dec. 4, 1886. "... I send you a photograph taken from a portrait of my father, painted about the year 1821, by King, of Washington, when my father, the inventor of the cotton-gin, was fifty- five years old. He died January 25, 1825. The cotton-gin was invented in 1793; and though it has been in use for nearly one hundred years, it is virtually unimproved.... Hence the great merit of the South, financially and commercially. It has made England rich, and changed the commerce of the world. Lord Macaulay said of Eli Whitney: 'What Peter the Great did to

make Russia dominant, Eli Whitney's invention of the cotton-gin has more than equaled in its relation to the power and progress of the United States.' He has been the greatest benefactor of the South, but it never has, to my knowledge, acknowledged his benefaction in a public manner to the extent it deserves—no monument has been erected to his memory, no town or city named after him, though the force of his genius has original invention. It has made caused many towns and cities to rise and flourish in the South....

"Yours very truly, E. W. WHITNEY."]

[Relocated Footnote (2): Grave doubts, however, found occasional expression, and none perhaps more forcibly than in the following newspaper epigram—describing "Finality":

To kill twice dead a rattlesnake,
And off his scaly skin to take,
And through his head to drive a stake,
And every bone within him break,
And of his flesh mincemeat to make,
To burn, to sear, to boil, and bake,
Then in a heap the whole to rake,
And over it the besom shake,
And sink it fathoms in the lake—
Whence after all, quite wide awake,
Comes back that very same old snake!]

CHAPTER XIX

THE REPEAL OF THE MISSOURI COMPROMISE

The long contest in Congress over the compromise measures of 1850, and the reluctance of a minority, alike in the North and the South, to accept them, had in reality seriously demoralized both the great political parties of the country. The Democrats especially, defeated by the fresh military laurels of General Taylor in 1848, were much exercised to discover their most available candidate as the presidential election of 1852 approached. The leading names, Cass, Buchanan, and Marcy, having been long before the public, were becoming a little stale. In this contingency, a considerable following grouped itself about an entirely new man, Stephen A. Douglas, of Illinois. Emigrating from Vermont to the West, Douglas had run a career remarkable for political success. Only in his thirty-ninth year, he had served as member of the legislature, as State's Attorney, as Secretary of State, and as judge of the Supreme Court in Illinois, and had since been three times elected to Congress and once to the Senate of the United States. Nor did he owe his political fortunes entirely to accident. Among his many qualities of leadership were strong physical endurance, untiring industry, a persistent boldness, a ready facility in public speaking, unfailing political shrewdness, an unusual power in running debate, with liberal instincts and progressive purposes. It was therefore not surprising that he should attract the admiration and support of the young, the ardent, and especially the restless

and ambitious members of his party. His career in Congress was sufficiently conspicuous. As Chairman of the Committee on Territories in the Senate, he had borne a prominent part in the enactment of the compromise measures of 1850, and had just met and overcome a threatened party schism in his own State, which that legislation had there produced.

In their eagerness to push his claims to the presidency, the partisans of Douglas committed a great error. Rightly appreciating the growing power of the press, they obtained control of the "Democratic Review," a monthly magazine then prominent as a party organ, and published in it a series of articles attacking the rival Democratic candidates in very flashy rhetoric. These were stigmatized as "old fogies," who must give ground to a nominee of "Young America." They were reminded that the party expects a "new man." "Age is to be honored, but senility is pitiable"; "statesmen of a previous generation must get out of the way"; the Democratic party was owned by a set of "old clothes-horses"; "they couldn't pay their political promises in four Democratic administrations"; and the names of Cass and Marcy, Buchanan and Butler, were freely mixed in with such epithets as "pretenders," "hucksters," "intruders," and "vile charlatans."

Such characterization of such men soon created a flagrant scandal in the Democratic party, which was duly aired both in the newspapers and in Congress. It definitely fixed the phrases "old fogy" and "Young America" in our slang literature. The personal friends of Douglas hastened to explain and assert his innocence of any complicity with this political raid, but they were not more than half believed; and the war of factions, begun in January, raged with increasing bitterness till the Democratic National Convention met at Baltimore in June, and undoubtedly exerted a decisive influence over the deliberations of that body.

The only serious competitors for the nomination were the "old fogies" Cass, Marcy, and Buchanan on the one hand, and Douglas, the pet of "Young America," on the other. It soon became evident that opinion was so divided among these four that a nomination could only be reached through long and tedious ballotings. Beginning with some 20 votes, Douglas steadily gained adherents till on the 30th ballot he received 92. From this point, however, his strength fell away. Unable himself to succeed, he was nevertheless sufficiently powerful to defeat his adversaries. The exasperation had been too great to permit a concentration or compromise on any of the "seniors." Cass reached only 131 votes; Marcy, 98; Buchanan, 104; and finally, on the 49th ballot, occurred the memorable nearly unanimous selection of Franklin Pierce—not because of any merit of his own, but to break the insurmountable dead-lock of factional hatred. Young America gained a nominal triumph, old fogedom a real revenge, and the South a serviceable Northern ally. Douglas and his friends were discomfited but not dismayed. Their management had been exceedingly maladroit, as a more modest championship would without doubt have secured him the coveted nomination. Yet sagacious politicians foresaw that on the whole he was strengthened by his defeat. From that time forward he was a recognized presidential aspirant and competitor, young enough patiently to bide his time, and of sufficient prestige to make his flag the rallying point of all the free-lances in the Democratic party.

It is to this presidential aspiration of Mr. Douglas that we must look as the explanation of his agency in bringing about the repeal of the Missouri Compromise. As already said, after some factious opposition the measures of 1850 had been accepted by the people as a finality of the slavery question. Around this alleged settlement, distasteful as it was to many, public opinion gradually crystallized. Both the National Conventions of 1852 solemnly resolved that they would discountenance and resist, in Congress or out of it, whenever, wherever, or however, or under whatever

color or shape, any further renewal of the slavery agitation. This determination was echoed and reechoed, affirmed and reaffirmed, by the recognized organs of the public voice—from the village newspaper to the presidential message, from the country debating school to the measured utterances of senatorial discussion.

[Sidenote: Appendix "Congressional Globe" 1851-2, p. 63.]

[Sidenote: Douglas, Senate speech 1850. Appendix, 1849-50 pp. 369 to 372.]

[Sidenote: Douglas, Springfield speech, Oct. 28, 1849. Illinois "Register."]

In support of this alleged "finality" no one had taken a more decided stand than Senator Douglas himself. Said he: "In taking leave of this subject I wish, to state that I have determined never to make another speech upon the slavery question; and I will now add the hope that the necessity for it will never exist.... So long as our opponents do not agitate for repeal or modification, why should we agitate for any purpose! We claim that the compromise [of 1850] is a final settlement. Is a final settlement open to discussion and agitation and controversy by its friends? What manner of settlement is that which does not settle the difficulty and quiet the dispute? Are not the friends of the compromise becoming the agitators, and will not the country hold us responsible for that which we condemn and denounce in the abolitionists and Free-soldiers? These are matters worthy of our consideration. Those who preach peace should not be the first to commence and reopen an old quarrel." In his Senate speeches, during the compromise debates of 1850, while generally advocating his theory of "non-intervention," he had sounded the whole gamut of the slavery discussion, defending the various measures of adjustment against the attacks of the Southern extremists, and specifically defending the Missouri Compromise.

More than this; he had declared in distinct words that the principle of territorial prohibition was no violation of Southern rights; and denounced the proposition of Calhoun to put a "balance of power" clause into the Constitution as "a retrograde movement in an age of progress that would astonish the world." These repeated affirmations, taken in connection with his famous description of the Missouri Compromise in 1849, in which he declared it to have had "an origin akin to the Constitution," and to have become "canonized in the hearts of the American people as a sacred thing which no ruthless hand would ever be reckless enough to disturb," all seemed, in the public mind, to fix his position definitely; no one imagined that Douglas would so soon become the subject of his own anathemas.

The full personal details of this event are lost to history. We have only a faint and shadowy outline of isolated movements of a few chief actors, a few vague suggestions and fragmentary steps in the formation and unfolding of the ill-omened plot.

As the avowed representative of the restless and ambitious elements of the country, as the champion of "Young America," Douglas had so far as possible in his Congressional career made himself the apostle of modern "progress." He was a believer in "manifest destiny" and a zealous advocate of the Monroe doctrine. He desired—so the newspapers averred—that the Caribbean Sea should be declared an American lake, and nothing so delighted him as to pull the beard of the British lion. These topics, while they furnished themes for campaign speeches, for the present led to no practical legislation. In his position as chairman of the Senate Committee on Territories, however, he had control of kindred measures of present and vital interest to the people of the West; namely, the opening of new routes of travel and emigration, and of new territories for settlement. An era of wonder had just dawned, connecting itself directly with these subjects. The acquisition of California and the discovery of gold had turned the eyes of

the whole civilized world to the Pacific coast. Plains and mountains were swarming with adventurers and emigrants. Oregon, Utah, New Mexico, and Minnesota had just been organized, and were in a feeble way contesting the sudden fame of the Golden State. The Western border was astir, and wild visions of lands and cities and mines and wealth and power were disturbing the dreams of the pioneer in his frontier cabin, and hurrying him off on the long, romantic quest across the continent.

Hitherto, stringent Federal laws had kept settlers and unlicensed traders out of the Indian territory, which lay beyond the western boundaries of Arkansas, Missouri, and Iowa, and which the policy of our early Presidents fixed upon as the final asylum of the red men retreating before the advance of white settlements. But now the uncontrollable stream of emigration had broken into and through this reservation, creating in a few years well-defined routes of travel to New Mexico, Utah, California, and Oregon. Though from the long march there came constant cries of danger and distress, of starvation and Indian massacre, there was neither halting nor delay. The courageous pioneers pressed forward all the more earnestly, and to such purpose that in less than twenty-five years the Pacific Railroad followed Fremont's first exploration through the South Pass.

[Illustration: FRANKLIN PIERCE.]

Douglas, himself a migratory child of fortune, was in thorough sympathy with this somewhat premature Western longing of the people; and as chairman of the Committee on Territories was the recipient of all the letters, petitions, and personal solicitations from the various interests which were seeking their advantage in this exodus toward the setting sun. He was the natural center for all the embryo mail contractors, office-holders, Indian traders, land-sharks, and railroad visionaries whose coveted opportunities lay in the Western territories. It is but just to his fame, however, to say that

he comprehended equally well the true philosophical and political necessities which now demanded the opening of Kansas and Nebraska as a secure highway and protecting bridge to the Rocky Mountains and our new-found El Dorado, no less than as a bond of union between the older States and the improvised "Young America" on the Pacific coast. The subject was not yet ripe for action during the stormy politics of 1850-1, and had again to be postponed for the presidential campaign of 1852. But after Pierce was triumphantly elected, with a Democratic Congress to sustain him, the legislative calm which both parties had adjured in their platforms seemed favorable for pushing measures of local interest. The control of legislation for the territories was for the moment completely in the hands of Douglas. He was himself chairman of the Committee of the Senate; and his special personal friend and political lieutenant in his own State, William A. Richardson, of Illinois, was chairman of the Territorial Committee of the House. He could therefore choose his own time and mode of introducing measures of this character in either house of Congress, under the majority control of his party—a fact to be constantly borne in mind when we consider the origin and progress of "the three Nebraska bills."

[Sidenote: "Globe," Feb. 2, 1853, p. 474.]

[Sidenote: Ibid., Feb. 8, p. 542-544.]

[Sidenote: Ibid., Feb. 10, p. 566.]

[Sidenote: Ibid., Feb. 10, p. 559.]

The journal discloses that Richardson, of Illinois, chairman of the Committee on Territories of the House of Representatives, on February 2, 1853, introduced into the House "A bill to organize the Territory of Nebraska." After due reference, and some desultory debate on the 8th, it was taken up and passed by the House on the 10th. From the discussion we

learn that the boundaries were the Missouri River on the east, the Rocky Mountains on the west, the line of 36 degrees 30' or southern line of Missouri on the south, and the line of 43 degrees, or near the northern line of Iowa, on the north. Several members opposed it, because the Indian title to the lands was not yet extinguished, and because it embraced reservations pledged to Indian occupancy in perpetuity; also on the general ground that it contained but few white inhabitants, and its organization was therefore a useless expense. Howard, of Texas, made the most strenuous opposition, urging that since it contained but about six hundred souls, its southern boundary should be fixed at 39 degrees 30', not to trench upon the Indian reservations. Hall, of Missouri, replied in support of the bill: "We want the organization of the Territory of Nebraska not merely for the protection of the few people who reside there, but also for the protection of Oregon and California in time of war, and the protection of our commerce and the fifty or sixty thousand emigrants who annually cross the plains." He added that its limits were purposely made large to embrace the great lines of travel to Oregon, New Mexico, and California; since the South Pass was in 42 degrees 30', the Territory had to extend to 43 degrees north.

[Sidenote: "Globe," Feb. 8, 1858, p. 543.]

[Sidenote: Ibid., Feb. 10, 1853, p. 565.]

The incident, however, of special historical significance had occurred in the debate of the 8th, when a member rose and said: "I wish to inquire of the gentleman from Ohio [Mr. Giddings], who, I believe, is a member of the Committee on Territories, why the Ordinance of 1787 is not incorporated in this bill? I should like to know whether he or the committee were intimidated on account of the platforms of 1852?" To which Mr. Giddings replied that the south line of the territory was 36 degrees 30', and was already covered by the Missouri Compromise prohibition. "This law stands

perpetually, and I do not think that this act would receive any increased validity by a reenactment. There I leave the matter. It is very clear that the territory included in this treaty [ceding Louisiana] must be forever free unless the law be repealed." With this explicit understanding from a member of the committee, apparently accepted as conclusive by the whole House, and certainly not objected to by the chairman, Mr. Richardson, who was carefully watching the current of debate, the bill passed on the 10th, ninety-eight yeas to forty-three nays. Led by a few members from that region, in the main the West voted for it and the South against it; while the greater number, absorbed in other schemes, were wholly indifferent, and probably cast their votes upon personal solicitation.

On the following day the bill was hurried over to the Senate, referred to Mr. Douglas's committee, and by him reported back without amendment, on February 17th; but the session was almost ended before he was able to gain the attention of the Senate for its discussion. Finally, on the night before the inauguration of President Pierce, in the midst of a fierce and protracted struggle over the appropriation bills, while the Senate was without a quorum and impatiently awaiting the reports of a number of conference committees, Douglas seized the opportunity of the lull to call up his Nebraska bill. Here again, as in the House, Texas stubbornly opposed it. Houston undertook to talk it to death in a long speech; Bell protested against robbing the Indians of their guaranteed rights. The bill seemed to have no friend but its author when, perhaps to his surprise, Senator D. R. Atchison, of Missouri, threw himself into the breach.

[Sidenote: "Globe," March 3, 1853, p. 1113.]

Prefacing his remarks with the statement that he had formerly been opposed to the measure, he continued: "I had two objections to it. One was that the Indian title in that territory had not been extinguished, or at least a

very small portion of it had been. Another was the Missouri Compromise, or, as it is commonly called, the Slavery Restriction. It was my opinion at that time—and I am not now very clear on that subject—that the law of Congress, when the State of Missouri was admitted into the Union, excluding slavery from the territory of Louisiana north of 36 degrees 30', would be enforced in that territory unless it was specially rescinded; and whether that law was in accordance with the Constitution of the United States or not, it would do its work, and that work would be to preclude slaveholders from going into that territory. But when I came to look into that question, I found that there was no prospect, no hope, of a repeal of the Missouri Compromise excluding slavery from that territory.... I have always been of opinion that the first great error committed in the political history of this country was the Ordinance of 1787, rendering the North-west Territory free territory. The next great error was the Missouri Compromise. But they are both irremediable.... We must submit to them. I am prepared to do it. It is evident that the Missouri Compromise cannot be repealed. So far as that question is concerned, we might as well agree to the admission of this territory now as next year, or five or ten years hence."

[Sidenote: "Globe," March 3, 1853, p. 1117.]

Mr. Douglas closed the debate, advocating the passage of the bill for general reasons, and by his silence accepting Atchison's conclusions; but as the morning of the 4th of March was breaking, an unwilling Senate laid the bill on the table by a vote of twenty-three to seventeen, here, as in the House, the West being for and the South against the measure. It is not probable, however, that in this course the South acted with any mental reservation or sinister motive. The great breach of faith was not yet even meditated. Only a few hours afterwards, in a dignified and stately national ceremonial, in the midst of foreign ministers, judges, senators, and representatives, the new President of the United States delivered to the

people his inaugural address. High and low were alike intent to discern the opening political currents of the new Administration, but none touched or approached this particular subject. The aspirations of "Young America" were not towards a conquest of the North, but the enlargement of the South. A freshening breeze filled the sails of "annexation" and "manifest destiny." In bold words the President said: "The policy of my Administration will not be controlled by any timid forebodings of evil from expansion. Indeed, it is not to be disguised that our attitude as a nation and our position on the globe render the acquisition of certain possessions not within our jurisdiction eminently important for our protection, if not in the future essential for the preservation of the rights of commerce and the peace of the world." Reaching the slavery question, he expressed unbounded devotion to the Union, and declared slavery recognized by the Constitution, and his purpose to enforce the compromise measures of 1850, adding, "I fervently trust that the question is at rest, and that no sectional or ambitious or fanatical excitement may again threaten the durability of our institutions, or obscure the light of our prosperity."

[Sidebar: Senate Report, No. 15, 1st Session, 33d Congress.]

When Congress met again in the following December (1853), the annual message of President Pierce was, upon this subject, but an echo of his inaugural, as his inaugural had been but an echo of the two party platforms of 1852. Affirming that the compromise measures of 1850 had given repose to the country, he declared, "That this repose is to suffer no shock during my official term, if I have the power to avert it, those who placed me here may be assured." In this spirit, undoubtedly, the Democratic party and the South began the session of 1853-4; but unfortunately it was very soon abandoned. The people of the Missouri and Iowa border were becoming every day more impatient to enter upon an authorized occupancy of the new lands which lay a day's journey to the west. Handfuls of squatters here and

there had elected two territorial delegates, who hastened to Washington with embryo credentials. The subject of organizing the West was again broached; an Iowa Senator introduced a territorial bill. Under the ordinary routine it was referred to the Committee on Territories, and on the 4th day of January Douglas reported back his second Nebraska bill, still without any repeal of the Missouri Compromise. His elaborate report accompanying this second bill, shows that the subject had been most carefully examined in committee. The discussion was evidently exhaustive, going over the whole history, policy, and constitutionality of prohibitory legislation. Two or three sentences are quite sufficient to present the substance of the long and wordy report. First, that there were differences and doubts; second, that these had been finally settled by the compromise measures of 1850; and, therefore, third, the committee had adhered not only to the spirit but to the very phraseology of that adjustment, and refused either to affirm or repeal the Missouri Compromise.

[Sidenote: Senator Benjamin Senate Debate, May 8, 1860. "Globe," p. 1966.]

[Sidenote: Ibid.]

[Sidenote: Douglas, pamphlet in reply to Judge Black, October, 1859, p. 6.]

This was the public and legislative agreement announced to the country. Subsequent revelations show the secret and factional bargain which that agreement covered. Not only was this territorial bill searchingly considered in committee, but repeated caucuses were held by the Democratic leaders to discuss the party results likely to grow out of it. The Southern Democrats maintained that the Constitution of the United States recognized their right and guaranteed them protection to their slave property, if they chose to carry it into Federal Territories. Douglas and other Northern Democrats

contended that slavery was subject to local law, and that the people of a Territory, like those of a State, could establish or prohibit it. This radical difference, if carried into party action, would lose them the political ascendancy they had so long maintained, and were then enjoying. To avert a public rupture of the party, it was agreed "that the Territories should be organized with a delegation by Congress of all the power of Congress in the Territories, and that the extent of the power of Congress should be determined by the courts." If the courts should decide against the South, the Southern Democrats would accept the Northern theory; if the courts should decide in favor of the South, the Northern Democrats would defend the Southern view. Thus harmony would be preserved, and party power prolonged. Here we have the shadow of the coming Dred Scott decision already projected into political history, though the speaker protests that "none of us knew of the existence of a controversy then pending in the Federal courts that would lead almost immediately to the decision of that question." This was probably true; for a "peculiar provision" was expressly inserted in the committee's bill, allowing appeals to the Supreme Court of the United States in all questions involving title to slaves, without reference to the usual limitations in respect to the value of the property, thereby paving the way to an early adjudication by the Supreme Court.

[Sidenote: "Globe," Jan. 15, 1854, p. 175.]

Thus the matter rested till the 16th of January, when Senator Dixon, of Kentucky, apparently acting for himself alone, offered an amendment in effect repealing the Missouri Compromise. Upon this provocation, Senator Sumner, of Massachusetts, the next day offered another amendment affirming that it was not repealed by the bill. Commenting on these propositions two days later, the Administration organ, the "Washington Union," declared they were both "false lights," to be avoided by all good Democrats. By this time, however, the subject of "repeal" had become

bruited about the Capitol corridors, the hotels, and the caucus rooms of Washington, and newspaper correspondents were on the *qui vive* to obtain the latest developments concerning the intrigue. The secrets of the Territorial Committee leaked out, and consultations multiplied. Could a repeal be carried? Who would offer it and lead it? What divisions or schisms would it carry into the ranks of the Democratic party, especially in the pending contest between the "Hards" and "Softs" in New York? What effect would it have upon the presidential election of 1856? Already the "Union" suggested that it was whispered that Cass was willing to propose and favor such a "repeal." It was given out in the "Baltimore Sun" that Cass intended to "separate the sheep from the goats." Both statements were untrue; but they perhaps had their intended effect, to arouse the jealousy and eagerness of Douglas. The political air of Washington was heavy with clouds and mutterings, and clans were gathering for and against the ominous proposition.

So far as history has been allowed a glimpse into these secret communings, three principal personages were at this time planning a movement of vast portent. These were Stephen A. Douglas, chairman of the Senate Committee on Territories; Archibald Dixon, Whig Senator from Kentucky; and David R. Atchison, of Missouri, then president *pro tempore* of the Senate, and acting Vice-President of the United States. "For myself," said the latter in explaining the transaction, 'I am entirely devoted to the interest of the South, and I would sacrifice everything but my hope of heaven to advance her welfare.' He thought the Missouri Compromise ought to be repealed; he had pledged himself in his public addresses to vote for no territorial organization that would not virtually annul it; and with this feeling in his heart he desired to be the chairman of the Senate Committee on Territories when a bill was introduced. With this object in view, he had a private interview with Mr. Douglas, and informed him of what he desired—the introduction of a bill for Nebraska like what [*sic*] he had promised to

vote for, and that he would like to be the chairman of the Committee on Territories in order to introduce such a measure; and, if he could get that position, he would immediately resign as president of the Senate. Judge Douglas requested twenty-four hours to consider the matter, and if at the expiration of that time he could not introduce such a bill as he (Mr. Atchison) proposed, he would resign as chairman of the Territorial Committee in Democratic caucus, and exert his influence to get him (Atchison) appointed. At the expiration of the given time, Senator Douglas signified his intention to introduce such a bill as had been spoken of." [Footnote: Speech at Atchison City, September, 1854, reported in the "Parkville Luminary."]

Senator Dixon is no less explicit in his description of these political negotiations. "My amendment seemed to take the Senate by surprise, and no one appeared more startled than Judge Douglas himself. He immediately came to my seat and courteously remonstrated against my amendment, suggesting that the bill which he had introduced was almost in the words of the territorial acts for the organization of Utah and New Mexico; that they being a part of the compromise measures of 1850 he had hoped that I, a known and zealous friend of the wise and patriotic adjustment which had then taken place, would not be inclined to do anything to call that adjustment in question or weaken it before the country.

"I replied that it was precisely because I had been and was a firm and zealous friend of the Compromise of 1850 that I felt bound to persist in the movement which I had originated; that I was well satisfied that the Missouri Restriction, if not expressly repealed, would continue to operate in the territory to which it had been applied, thus negating the great and salutary principle of *non-intervention* which constituted the most prominent and essential feature of the plan of settlement of 1850. We talked for some time amicably, and separated. Some days afterwards Judge Douglas came to my

lodgings, whilst I was confined by physical indisposition, and urged me to get up and take a ride with him in his carriage. I accepted his invitation, and rode out with him. During our short excursion we talked on the subject of my proposed amendment, and Judge Douglas, to my high gratification, proposed to me that I should allow him to take charge of the amendment and ingraft it on his territorial bill. I acceded to the proposition at once, whereupon a most interesting interchange occurred between us.

"On this occasion Judge Douglas spoke to me in substance thus: 'I have become perfectly satisfied that it is my duty, as a fair-minded national statesman, to cooperate with you as proposed, in securing the repeal of the Missouri Compromise restriction. It is due to the South; it is due to the Constitution, heretofore palpably infringed; it is due to that character for consistency which I have heretofore labored to maintain. The repeal, if we can effect it, will produce much stir and commotion in the free States of the Union for a season. I shall be assailed by demagogues and fanatics there without stint or moderation. Every opprobrious epithet will be applied to me. I shall be probably hung in effigy in many places. It is more than probable that I may become permanently odious among those whose friendship and esteem I have heretofore possessed. This proceeding may end my political career. But, acting under the sense of the duty which animates me, I am prepared to make the sacrifice. I will do it.'

"He spoke in the most earnest and touching manner, and I confess that I was deeply affected. I said to him in reply: 'Sir, I once recognized you as a demagogue, a mere party manager, selfish and intriguing. I now find you a warm-hearted and sterling patriot. Go forward in the pathway of duty as you propose, and though all the world desert you, I never will.'" [Footnote: Archibald Dixon to H. S. Foote, October 1, 1858. "Louisville Democrat" of October 3, 1858.]

[Sidenote: "Globe," Feb. 15, 1864, p. 421.]

Such is the circumstantial record of this remarkable political transaction left by two prominent and principal instigators, and never denied nor repudiated by the third. Gradually, as the plot was developed, the agreement embraced the leading elements of the Democratic party in Congress, reenforced by a majority of the Whig leaders from the slave States. A day or two before the final introduction of the repeal, Douglas and others held an interview with President Pierce, [Transcriber's Note: Lengthy footnote (1) relocated to chapter end.] and obtained from him in writing an agreement to adopt the movement as an Administration measure. Fortified with this important adhesion, Douglas took the fatal plunge, and on January 23 introduced his third Nebraska bill, organizing two territories instead of one, and declaring the Missouri Compromise "inoperative." But the amendment—monstrous Caliban of legislation as it was—needed to be still further licked into shape to satisfy the designs of the South and appease the alarmed conscience of the North. Two weeks later, after the first outburst of debate, the following phraseology was substituted: "Which being inconsistent with the principle of non-intervention by Congress with slavery in the States and Territories, as recognized by the legislation of 1850 (commonly called the Compromise measures), is hereby declared inoperative and void; it being the true intent and meaning of this act not to legislate slavery into any Territory or State, nor to exclude it therefrom, but to leave the people thereof perfectly free to form and regulate their domestic institutions in their own way, subject only to the Constitution"—a change which Benton truthfully characterized as "a stump speech injected into the belly of the Nebraska bill." [Transcriber's Note: Lengthy footnote (2) relocated to chapter end.]

The storm of agitation which this measure aroused dwarfed all former ones in depth and intensity. The South was nearly united in its behalf, the

North sadly divided in opposition. Against protest and appeal, under legislative whip and spur, with the tempting smiles and patronage of the Administration, after nearly a four months' parliamentary struggle, the plighted faith of a generation was violated, and the repealing act passed—mainly by the great influence and example of Douglas, who had only five years before so fittingly described the Missouri Compromise as being "akin to the Constitution," and "canonized in the hearts of the American people as a sacred thing which no ruthless hand would ever be reckless enough to disturb."

[Relocated Footnote (1): Jefferson Davis, who was a member of President Pierce's Cabinet (Secretary of War), thus relates the incident: "On Sunday morning, the 22d of January, 1854, gentlemen of each committee {House and Senate Committees on Territories} called at my house, and Mr. Douglas, chairman of the Senate Committee, fully explained the proposed bill, and stated their purpose to them through my aid, to obtain an interview on that day with the President, to ascertain whether the bill would meet his approbation. The President was known to be rigidly opposed to the reception of visits on Sunday for the discussion of any political subject; but in this case it was urged as necessary, in order to enable the committee to make their report the next day. I went with them to the Executive Mansion, and, leaving them in the reception-room, sought the President in his private apartments, and explained to him the occasion of the visit. He thereupon met the gentlemen, patiently listened to the reading of the bill and their explanations of it, decided that it rested upon sound constitutional principles, and recognized in it only a return to that rule which had been infringed by the Compromise of 1820, and the restoration of which had been foreshadowed by the legislation of 1850. This bill was not, therefore, as has been improperly asserted, a measure inspired by Mr. Pierce or any of his Cabinet."—Davis, "Rise and Fall of the Confederate Government," Vol. I., p. 28.]

[Relocated Footnote (2): We have the authority of ex-Vice-President Hannibal Hamlin for stating that Mr. Douglas (who was on specially intimate terms with him) told him that the language of the final amendment to the Kansas-Nebraska bill repealing the Missouri Compromise was written by President Franklin Pierce. Douglas was apprehensive that the President would withdraw or withhold from him a full and undivided Administration support, and told Mr. Hamlin that he intended to get from him something in black and white which would hold him. A day or two afterwards Douglas, in a confidential conversation, showed Mr. Hamlin the draft of the amendment in Mr. Pierce's own handwriting.]

CHAPTER XX

THE DRIFT OF POLITICS

The repeal of the Missouri Compromise made the slavery question paramount in every State of the Union. The boasted finality was a broken reed; the life-boat of compromise a hopeless wreck. If the agreement of a generation could be thus annulled in a breath, was there any safety even in the Constitution itself? This feeling communicated itself to the Northern States at the very first note of warning, and every man's party fealty was at once decided by his toleration of or opposition to slavery. While the fate of the Nebraska bill hung in a doubtful balance in the House, the feeling found expression in letters, speeches, meetings, petitions, and remonstrances. Men were for or against the bill—every other political subject was left in abeyance. The measure once passed, and the Compromise repealed, the first natural impulse was to combine, organize, and agitate for its restoration. This was the ready-made, common ground of cooperation.

It is probable that this merely defensive energy would have been overcome and dissipated, had it not at this juncture been inspirited and led by the faction known as the Free-soil party of the country, composed mainly of men of independent anti-slavery views, who had during four presidential campaigns been organized as a distinct political body, with no near hope of success, but animated mainly by the desire to give expression to their deep

personal convictions. If there were demagogues here and there among them, seeking merely to create a balance of power for bargain and sale, they were unimportant in number, and only of local influence, and soon became deserters. There was no mistaking the earnestness of the body of this faction. A few fanatical men, who had made it the vehicle of violent expressions, had kept it under the ban of popular prejudice. It had long been held up to public odium as a revolutionary band of "abolitionists." Most of the abolitionists were doubtless in this party, but the party was not all composed of abolitionists. Despite objurgation and contempt, it had become since 1840 a constant and growing factor in politics. It had operated as a negative balance of power in the last three presidential elections, causing by its diversion of votes, and more especially by its relaxing influence upon parties, the success of the Democratic candidate, James K. Polk, in 1844, the Whig candidate, General Taylor, in 1848, and the Democratic nominee, Franklin Pierce, in 1852.

This small party of antislavery veterans, over 158,000 voters in the aggregate, and distributed in detachments of from 3000 to 30,000 in twelve of the free States, now came to the front, and with its newspapers and speakers trained in the discussion of the subject, and its committees and affiliations already in action and correspondence, bore the brunt of the fight against the repeal. Hitherto its aims had appeared Utopian, and its resolves had been denunciatory and exasperating. Now, combining wisdom with opportunity, it became conciliatory, and, abating something of its abstractions, made itself the exponent of a demand for a present and practical reform—a simple return to the ancient faith and landmarks. It labored specially to bring about the dissolution of the old party organizations and the formation of a new one, based upon the general policy of resisting the extension of slavery. Since, however, the repeal had shaken but not obliterated old party lines, this effort succeeded only in favorable localities.

[Illustration: HISTORICAL MAP OF THE UNITED STATES IN 1854
SHOWING THE
VARIOUS ACCESSIONS OF TERRITORY ETC.

NOTE. *The number under the name of a State indicates the date of its admission into the Union The Boundary between the United States and Mexico previous to 1845 & 1848 is indicated thus + + +]*

For the present, party disintegration was slow; men were reluctant to abandon their old-time principles and associations. The united efforts of Douglas and the Administration held the body of the Northern Democrats to his fatal policy, though protests and defections became alarmingly frequent. On the other hand, the great mass of Northern Whigs promptly opposed the repeal, and formed the bulk of the opposition, nevertheless losing perhaps as many pro-slavery Whigs as they gained antislavery Democrats. The real and effective gain, therefore, was the more or less thorough alliance of the Whig party and the Free-soil party of the Northern States: wherever that was successful it gave immediate and available majorities to the opposition, which made their influence felt even in the very opening of the popular contest following the Congressional repeal.

It happened that this was a year for electing Congressmen. The Nebraska bill did not pass till the end of May, and the political excitement was at once transferred from Washington to every district of the whole country. It may be said with truth that the year 1854 formed one continuous and solid political campaign from January to November, rising in interest and earnestness from first to last, and engaging in the discussion more fully than had ever occurred in previous American history all the constituent elements of our population.

In the Southern States the great majority of people welcomed, supported, and defended the repeal of the Missouri Compromise, it being consonant

with their pro-slavery feelings, and apparently favorable to their pro-slavery interests. The Democratic party in the South, controlling a majority of slave States, was of course a unit in its favor. The Whig party, however, having carried two slave States for Scott in 1852, and holding a strong minority in the remainder, was not so unanimous. Seven Southern Representatives and two Southern Senators had voted against the Nebraska bill, and many individual voters condemned it as an act of bad faith—as the abandonment of the accepted "finality," and as the provocation of a dangerous antislavery reaction. But public opinion in that part of the Union was fearfully tyrannical and intolerant; and opposition dared only to manifest itself to Democratic party organization—not to these Democratic party measures. The Whigs of the South were therefore driven precipitately to division. Those of extreme pro-slavery views, like Dixon, of Kentucky,—who, when he introduced his amendment, declared, "Upon the question of slavery I know no Whiggery and no Democracy,"—went boldly and at once over into the Democratic camp, while those who retained their traditional party name and flag were sundered from their ancient allies in the Northern States by the impossibility of taking up the latter's antislavery war-cry.

At this juncture the political situation was further complicated by the sudden rise of an additional factor in politics, the American party, popularly called the "Know-Nothings." Essentially, it was a revival of the extinct "Native-American" faction, based upon a jealousy of and discrimination against foreign-born voters, desiring an extension of their period of naturalization, and their exclusion from office; also based upon a certain hostility to the Roman Catholic religion. It had been reorganized as a secret order in the year 1853; and seizing upon the political disappointments following General Scott's overwhelming defeat for the presidency in 1852, and profiting by the disintegration caused by the Nebraska bill, it rapidly gained recruits both North and South. Operating in entire secrecy, the country was startled by the sudden appearance in one locality after another,

on election day, of a potent and unsuspected political power, which in many instances pushed both the old organizations not only to disastrous but even to ridiculous defeat. Both North and South its forces were recruited mainly from the Whig party, though malcontents from all quarters rushed to group themselves upon its narrow platform, and to participate in the exciting but delusive triumphs of its temporary and local ascendancy.

When, in the opening of the anti-Nebraska contest, the Free-soil leaders undertook the formation of a new party to supersede the old, they had, because of their generally democratic antecedents, with great unanimity proposed that it be called the "Republican" party, thus reviving the distinctive appellation by which the followers of Jefferson were known in the early days of the republic. Considering the fact that Jefferson had originated the policy of slavery restriction in his draft of the ordinance of 1784, the name became singularly appropriate, and wherever the Free-soilers succeeded in forming a coalition it was adopted without question. But the refusal of the Whigs in many States to surrender their name and organization, and more especially the abrupt appearance of the Know-Nothings on the field of parties, retarded the general coalition between the Whigs and the Free-soilers which so many influences favored. As it turned out, a great variety of party names were retained or adopted in the Congressional and State campaigns of 1854, the designation of "anti-Nebraska" being perhaps the most common, and certainly for the moment the most serviceable, since denunciation of the Nebraska bill was the one all-pervading bond of sympathy and agreement among men who differed very widely on almost all other political topics. This affiliation, however, was confined exclusively to the free States. In the slave States, the opposition to the Administration dared not raise the anti-Nebraska banner, nor could it have found followers; and it was not only inclined but forced to make its battle either under the old name of Whigs, or, as became more

popular, under the new appellation of "Americans," which grew into a more dignified synonym for Know-Nothings.

Thus confronted, the Nebraska and anti-Nebraska factions, or, more philosophically speaking, the pro-slavery and antislavery sentiment of the several American States, battled for political supremacy with a zeal and determination only manifested on occasions of deep and vital concern to the welfare of the republic. However languidly certain elements of American society may perform what they deem the drudgery of politics, they do not shrink from it when they hear warning of real danger. The alarm of the nation on the repeal of the Missouri Compromise was serious and startling. All ranks and occupations therefore joined with a new energy in the contest it provoked. Particularly was the religious sentiment of the North profoundly moved by the moral question involved. Perhaps for the first time in our modern politics, the pulpit vied with the press, and the Church with the campaign club, in the work of debate and propagandism.

The very inception of the struggle had provoked bitter words. Before the third Nebraska bill had yet been introduced into the Senate, the then little band of "Free-Soilers" in Congress—Chase, Sumner, Giddings, and three others—had issued a newspaper address calling the repeal "a gross violation of a sacred pledge"; "a criminal betrayal of precious rights"; "an atrocious plot," "designed to cover up from public reprehension meditated bad faith," etc. Douglas, seizing only too gladly the pretext to use denunciation instead of argument, replied in his opening speech, in turn stigmatizing them as "abolition confederates" "assembled in secret conclave" "on the holy Sabbath while other Senators were engaged in divine worship"—"plotting," "in the name of the holy religion"; "perverting," and "calumniating the committee"; "appealing with a smiling face to his courtesy to get time to circulate their document before its infamy could be exposed," etc.

[Sidenote: "Globe" March 14, 1854, p. 617.]

[Sidenote: Ibid., p. 618.]

The key-notes of the discussion thus given were well sustained on both sides, and crimination and recrimination increased with the heat and intensity of the campaign. The gradual disruption of parties, and the new and radical attitudes assumed by men of independent thought, gave ample occasion to indulge in such epithets as "apostates," "renegades," and "traitors." Unusual acrimony grew out of the zeal of the Church and its ministers. The clergymen of the Northern States not only spoke against the repeal from their pulpits, but forwarded energetic petitions against it to Congress, 3050 clergymen of New England of different denominations joining their signatures in one protest. "We protest against it," they said, "as a great moral wrong, as a breach of faith eminently unjust to the moral principles of the community, and subversive of all confidence in national engagements; as a measure full of danger to the peace and even the existence of our beloved Union, and exposing us to the righteous judgment of the Almighty." In return, Douglas made a most virulent onslaught on their political action. "Here we find," he retorted, "that a large body of preachers, perhaps three thousand, following the lead of a circular which was issued by the abolition confederates in this body, calculated to deceive and mislead the public, have here come forward with an atrocious falsehood, and an atrocious calumny against this Senate, desecrated the pulpit, and prostituted the sacred desk to the miserable and corrupting influence of party politics." All his newspapers and partisans throughout the country caught the style and spirit of his warfare, and boldly denied the moral right of the clergy to take part in politics otherwise than by a silent vote. But they, on the other hand, persisted all the more earnestly in justifying their interference in moral questions wherever they appeared, and were clearly sustained by the public opinion of the North.

Though the repeal was forced through Congress under party pressure, and by the sheer weight of a large Democratic majority in both branches, it met from the first a decided and unmistakable popular condemnation in the free States. While the measure was yet under discussion in the House in March, New Hampshire led off by an election completely obliterating the eighty-nine Democratic majority in her Legislature. Connecticut followed in her footsteps early in April. Long before November it was evident that the political revolution among the people of the North was thorough, and that election day was anxiously awaited merely to record the popular verdict already decided.

The influence of this result upon parties, old and new, is perhaps best illustrated in the organization of the Thirty-fourth Congress, chosen at these elections during the year 1854, which witnessed the repeal of the Missouri Compromise. Each Congress, in ordinary course, meets for the first time about one year after its members are elected by the people, and the influence of politics during the interim needs always to be taken into account. In this particular instance this effect had, if anything, been slightly reactionary, and the great contest for the Speakership during the winter of 1855-6 may therefore be taken as a fair manifestation of the spirit of politics in 1854.

The strength of the preceding House of Representatives, which met in December, 1853, had been: Whigs, 71; Free-soilers, 4; Democrats, 159—a clear Democratic majority of 84. In the new Congress there were in the House, as nearly as the classification could be made, about 108 anti-Nebraska members, nearly 40 Know-Nothings, and about 75 Democrats; the remaining members were undecided. The proud Democratic majority of the Pierce election was annihilated.

But as yet the new party was merely inchoate, its elements distrustful, jealous, and discordant; the feuds and battles of a quarter of a century were not easily forgotten or buried. The Democratic members, boldly nominating Mr. Richardson, the House leader on the Nebraska bill, as their candidate for Speaker, made a long and determined push for success. But his highest range of votes was about 74 to 76; while through 121 ballotings, continuing from December 3 to January 23, the opposition remained divided, Mr. Banks, the anti- Nebraska favorite, running at one time up to 106—within seven votes of an election. At this point, Richardson, finding it a hopeless struggle, withdrew his name as a candidate, and the Democratic strength was transferred to another, but with no better prospects. Finally, seeing no chance of otherwise terminating the contest, the House yielded to the inevitable domination of the slavery question, and resolved, on February 2, by a vote of 113 to 104, to elect under the plurality rule after the next three ballotings. Under this rule, notwithstanding the most strenuous efforts to rescind it, Nathaniel P. Banks, of Massachusetts, was chosen Speaker by 103 votes, against 100 votes for William Aiken, of South Carolina, with thirty scattering. The "ruthless" repeal of the Missouri Compromise had effectually broken the legislative power of the Democratic party.

CHAPTER XXI

LINCOLN AND TRUMBULL

[Sidenote: 1854.]

To follow closely the chain of events, growing out of the repeal of the Missouri Compromise at Douglas's instigation, we must now examine its effect upon the political fortunes of that powerful leader in his own State.

The extreme length of Illinois from north to south is 385 miles; in geographical situation it extends from the latitude of Massachusetts and New York to that of Virginia and Kentucky. The great westward stream of emigration in the United States had generally followed the parallels of latitude. The pioneers planted their new homes as nearly as might be in a climate like the one they had left. In process of time, therefore, northern Illinois became peopled with settlers from Northern or free States, bringing their antislavery traditions and feelings; southern Illinois, with those from Southern or slave States, who were as naturally pro-slavery. The Virginians and Kentuckians readily became converts to the thrift and order of free society; but as a class they never gave up or conquered their intense hatred of antislavery convictions based on merely moral grounds, which they indiscriminately stigmatized as "abolitionism." Impelled by this hatred the lawless element of the community was often guilty of persecution and violence in minor forms, and in 1837, as already related, it prompted the

murder of Lovejoy in the city of Alton by a mob, for persisting in his right to publish his antislavery opinions. This was its gravest crime. But a narrow spirit of intolerance extending even down to the rebellion kept on the statute books a series of acts prohibiting the settlement of free blacks in the State.

It was upon this field of radically diverse sentiment that in the year 1854 Douglas's sudden project of repeal fell like a thunderbolt out of a clear sky. A Democratic Governor had been chosen two years before; a Democratic Legislature, called together to consider merely local and economic questions, was sitting in extra session at Springfield. There was doubt and consternation over the new issue. The Governor and other prudent partisans avoided a public committal. But the silence could not be long maintained. Douglas was a despotic party leader, and President Pierce had made the Nebraska bill an Administration question. Above all, in Illinois, as elsewhere, the people at once took up the discussion, and reluctant politicians were compelled to avow themselves. The Nebraska bill with its repealing clause had been before the country some three weeks and was yet pending in Congress when a member of the Illinois Legislature introduced resolutions indorsing it. Three Democratic State Senators, two from northern and one from central Illinois, had the courage to rise and oppose the resolutions in vigorous and startling speeches. They were N. B. Judd, of Chicago, B. C. Cook, of La Salle, and John M. Palmer, of Macoupin. This was an unusual party phenomenon and had its share in hastening the general agitation throughout the State. Only two or three other members took part in the discussion; the Democrats avoided the issue; the Whigs hoped to profit by the dissension. There was the usual rush of amendments and of parliamentary strategy, and the indorsing resolutions, which finally passed in both Houses in ambiguous language and by a diminished vote were shorn of much of their political significance.

Party organization was strong in Illinois, and for the greater part, as the popular discussion proceeded, the Democrats sustained and the Whigs opposed the new measure. In the northern counties, where the antislavery sentiment was general, there were a few successful efforts to disband the old parties and create a combined opposition under the new name of Republicans. This, it was soon apparent, would make serious inroads on the existing Democratic majority. But an alarming counter-movement in the central counties, which formed the Whig stronghold, soon began to show itself. Douglas's violent denunciation of "abolitionists" and "abolitionism" appealed with singular power to Whigs from slave States. The party was without a national leader; Clay had died two years before, and Douglas made skillful quotations from the great statesman's speeches to bolster up his new propagandism. In Congress only a little handful of Southern Whigs opposed the repeal, and even these did not dare place their opposition on antislavery grounds. And especially the familiar voice and example of the neighboring Missouri Whigs were given unhesitatingly to the support of the Douglas scheme. Under these combined influences one or two erratic but rather prominent Whigs in central Illinois declared their adherence to Nebraskaism, and raised the hope that the Democrats would regain in the center and south all they might lose in the northern half of the State.

[Illustration: LYMAN TRUMBULL]

One additional circumstance had its effect on public opinion. As has been stated, in the opposition to Douglas's repeal the few avowed abolitionists and the many pronounced Free-soilers, displaying unwonted activity, came suddenly into the foreground to rouse and organize public opinion, making it seem for the moment that they had really assumed leadership and control in politics. This class of men had long been held up to public odium. Some of them had, indeed, on previous occasions used intemperate and offensive language; but more generally they were denounced upon a gross

misrepresentation of their utterance and purpose. It so happened that they were mostly of Democratic antecedents, which gave them great influence among antislavery Democrats, but made their advice and arguments exceedingly distasteful in strong Whig counties and communities. The fact that they now became more prudent, conciliatory, and practical in their speeches and platforms did not immediately remove existing prejudices against them. A few of these appeared in Illinois. Cassius M. Clay published a letter in which he advocated the fusion of anti-Nebraska voters upon "Benton, Seward, Hale, or any other good citizen," and afterwards made a series of speeches in Illinois. When he came to Springfield, the Democratic officers in charge refused him the use of the rotunda of the House, a circumstance, however, which only served to draw him a larger audience in a neighboring grove. Later in the summer Joshua B. Giddings and Salmon P. Chase, of Ohio, made a political tour through the State, and at Springfield the future Secretary and Chief-Justice addressed an unsympathetic audience of a few hundreds in the dingy little court-house, almost unheralded, save by the epithets of the Democratic newspapers. A few local speakers of this class, of superior address and force, now also began to signalize themselves by a new-born zeal and an attractive eloquence. Conspicuous among these was Owen Lovejoy, of northern Illinois, brother of the man who, for opinion's sake, had been murdered at Alton.

While thus in the northern half of Illinois the public condemnation of Douglas's repeal was immediate and sweeping, the formation of opposition to it was tentative and slow in the central and southern counties, where, among Whigs of Southern birth, it proceeded rather upon party feeling than upon moral conviction. The new question struck through party lines in such a manner as to confuse and perplex the masses. But the issue would not be postponed. The Congressional elections were to be held in the autumn, and the succession of events rather than the leadership of politicians gradually shaped the campaign.

After a most exciting parliamentary struggle the repeal was carried through Congress in May. Encouraged by this successful domination over Representatives and Senators, Douglas prepared to force its acceptance by the people. "I hear men now say," said he, "that they are willing to acquiesce in it.... It is not sufficient that they shall not seek to disturb Nebraska and Kansas, but they must acquiesce also in the principle." [Footnote: Douglas's speech before the Union Democratic Club of New York, June 3, 1854. New York "Herald," June 5, 1854.] In the slave States this was an easy task. The most prominent Democrat who had voted against the Nebraska bill was Thomas H. Benton. The election in Missouri was held in August, and Benton was easily beaten by a Whig who was as fierce for repeal as Douglas himself. In the free States the case was altogether different. In Illinois the Democrats gradually, but at last with a degree of boldness, shouldered the dangerous dogma. The main body of the party rallied under Douglas, excepting a serious defection in the north; on the other hand, the Whigs in a body declared against him, but were weakened by a scattering desertion in the center and south. Meanwhile both retained their distinctive party names and organizations.

Congress adjourned early in August, but Douglas delayed his return to Illinois. The 1st of September had come, when it was announced he would return to his home in Chicago. This was an anti-slavery city, and the current of popular condemnation and exasperation was running strongly against him. Public meetings of his own former party friends had denounced him. Street rowdies had burned him in effigy. The opposition papers charged him with skulking and being afraid to meet his constituents. On the afternoon of his coming many flags in the city and on the shipping in the river and harbor were hung at half- mast. At sunset sundry city bells were tolled for an hour to signify the public mourning at his downfall. When he mounted the platform at night to address a crowd of some five thousand listeners he

was surrounded by a little knot of personal friends, but the audience before him was evidently cold if not actively hostile.

He began his speech, defending his course as well as he could. He claimed that the slavery question was forever settled by his great principle of "popular sovereignty," which took it out of Congress and gave it to the people of the territories to decide as they pleased. The crowd heard him in sullen silence for three-quarters of an hour, when their patience gave out, and they began to ply him with questions. He endured their fire of interrogatory for a little while till he lost his own temper. Excited outcry followed angry repartee. Thrust and rejoinder were mingled with cheers and hisses. The mayor, who presided, tried to calm the assemblage, but the passions of the crowd would brook no control. Douglas, of short, sturdy build and imperious and controversial nature, stood his ground courageously, with flushed and lowering countenance hurling defiance at his interrupters, calling them a mob, and shaking his fist in their faces; in reply the crowd groaned, hooted, yelled, and made the din of Pandemonium. The tumultuous proceeding continued until half-past ten o'clock at night, when the baffled orator was finally but very reluctantly persuaded by his friends to give up the contest and leave the stand. It was trumpeted abroad by the Democratic newspapers that "in the order-loving, law-abiding, abolition-ridden city of Chicago, Illinois's great statesman and representative in the United States Senate was cried down and refused the privilege of speaking"; and as usual the intolerance produced its natural reaction.

Since Abraham Lincoln's return to Springfield from his single term of service in Congress, 1847 to 1849, though by no means entirely withdrawn from politics, his campaigning had been greatly diminished. The period following had for him been years of work, study, and reflection. His profession of law had become a deeper science and a higher responsibility.

His practice, receiving his undivided attention, brought him more important and more remunerative cases. Losing nothing of his genial humor, his character took on the dignity of a graver manhood. He was still the center of interest of every social group he encountered, whether on the street or in the parlor. Serene and buoyant of temper, cordial and winning of language, charitable and tolerant of opinion, his very presence diffused a glow of confidence and kindness. Wherever he went he left an ever-widening ripple of smiles, jests, and laughter. His radiant good-fellowship was beloved and sought alike by political opponents and partisan friends. His sturdy and delicate integrity, recognized far and wide, had long since won him the blunt but hearty sobriquet of "Honest Old Abe." But it became noticeable that he was less among the crowd and more in the solitude of his office or his study, and that he seemed ever in haste to leave the eager circle he was entertaining.

It is in the midsummer of 1854 that we find him reappearing upon the stump in central Illinois. The rural population always welcomed his oratory, and he never lacked invitations to address the public. His first speeches on the new and all-absorbing topic were made in the neighboring towns, and in the counties adjoining his own. Towards the end of August the candidates for Congress in that district were, in Western phrase, "on the track." Richard Yates, afterwards one of the famous "war governors," sought a reelection as a Whig. Thomas L. Harris as a Douglas-Democrat strove to supplant him. Local politics became active, and Lincoln was sent for from all directions to address the people. When he went, however, he distinctly announced that he did not purpose to take up his time with this personal and congressional controversy. His intention was to discuss the principles of the Nebraska Bill.

Once launched upon this theme, men were surprised to find him imbued with an unwonted seriousness. They heard from his lips fewer anecdotes

and more history. Careless listeners who came to laugh at his jokes were held by the strong current of his reasoning and the flashes of his earnest eloquence, and were lifted up by the range and tenor of his argument into a fresher and purer political atmosphere. The new discussion was fraught with deeper questions than the improvement of the Sangamon, protective tariffs, or the origin of the Mexican war. Down through incidents of, legislation, through history of government, even underlying cardinal maxims of political philosophy, it touched the very bedrock of primary human rights. Such a subject furnished material for the inborn gifts of the speaker, his intuitive logic, his impulsive patriotism, his pure and poetical conception of legal and moral justice.

Douglas, since his public rebuff at Chicago on September 1, had begun, after a few days of delay and rest, a tour of speech-making southward through the State. At these meetings he had at least a respectful hearing, and as he neared central Illinois the reception accorded him became more enthusiastic. The chief interest of the campaign finally centered in a sort of political tournament which took place at the capital, Springfield, during the first week of October; the State Agricultural Fair having called together great crowds, and among them the principal politicians of Illinois. This was Lincoln's home, in a strong Whig county, and in a section of the State where that party had hitherto found its most compact and trustworthy forces. As yet Lincoln had made but a single speech there on the Nebraska question. Of the Federal appointments under the Nebraska bill, Douglas secured two for Illinois, one of which, the office of surveyor-general of Kansas, was given to John Calhoun, the same man who, in the pioneer days twenty years before, was county surveyor in Sangamon and had employed Abraham Lincoln as his deputy. He was also the same who three years later received the sobriquet of "John Candlebox Calhoun," having acquired unenviable notoriety from his reputed connection with the "Cincinnati Directory" and "Candlebox" election frauds in Kansas, and with the famous Lecompton

Constitution. Calhoun was still in Illinois doing campaign work in propagating the Nebraska faith. He was recognized as a man of considerable professional and political talent, and had made a speech in Springfield to which Lincoln had replied. It was, however, merely a casual and local affair and was not described or reported by the newspapers.

The meetings at the State Fair were of a different character. The audiences were composed of leading men from nearly all the counties of the State. Though the discussion of party questions had been going on all summer with more or less briskness, yet such was the general confusion in politics that many honest and intelligent voters and even leaders were still undecided in their opinions. The fair continued nearly a week. Douglas made a speech on the first day, Tuesday, October 3. Lincoln replied to him on the following day, October 4. Douglas made a rejoinder, and on that night and the succeeding day and night a running fire of debate ensued, in which John Calhoun, Judge Trumbull, Judge Sidney Breese, Colonel E. D. Taylor, and perhaps others, took part.

Douglas's speech was doubtless intended by him and expected by his friends to be the principal and the conclusive argument of the occasion. But by this time the Whig party of the central counties, though shaken by the disturbing features of the Nebraska question, had nevertheless reformed its lines, and assumed the offensive to which its preponderant numbers entitled it, and resolved not to surrender either its name or organization. In Sangamon County, its strongest men, Abraham Lincoln and Stephen T. Logan, were made candidates for the Legislature. The term of Douglas's colleague in the United States Senate, General James Shields, was about to expire, and the new Legislature would choose his successor. To the war of party principles was therefore added the incentive of a brilliant official prize. The Whigs were keenly alive to this chance and its influence upon their possible ascendancy in the State.

Lincoln's Whig friends had therefore seen his reappearance in active discussion with unfeigned pleasure. Of old they knew his peculiar hold and influence upon the people and his party. His few speeches in the adjoining counties had shown them his maturing intellect, his expanding power in debate. Acting upon himself, this renewed practice on the stump crystallized his thought and brought method to his argument. The opposition newspapers had accused him of "mousing about the libraries in the State House." The charge was true. Where others were content to take statements at second hand, he preferred to verify citations as well as to find new ones. His treatment of his theme was therefore not only bold but original.

By a sort of common consent his party looked to him to answer Douglas's speech. This was no light task, and no one knew it better than Lincoln. Douglas's real ability was, and remains, unquestioned. In many qualities of intellect he was truly the "Little Giant" which popular fancy nicknamed him. It was no mere chance that raised the Vermont cabinet-maker's apprentice from a penniless stranger in Illinois in 1833 to a formidable competitor for supreme leadership in the great Democratic party of the nation in 1852. When after the lapse of a quarter of a century we measure him with the veteran chiefs whom he aspired to supplant, we see the substantial basis of his confidence and ambition. His great error of statesmanship aside, he stands forth more than the peer of associates who underrated his power and looked askance at his pretensions. In the six years of perilous party conflict which followed, every conspicuous party rival disappeared in obscurity, disgrace, or rebellion. Battling while others feasted, sowing where others reaped, abandoned by his allies and persecuted by his friends, Douglas alone emerged from the fight with loyal faith and unshaken courage, bringing with him through treachery, defeat, and disaster the unflinching allegiance and enthusiastic admiration of nearly three-fifths of the rank and file of the once victorious army of Democratic

voters at the north. He had not only proved himself their most gallant chief, but as a final crown of merit he led his still powerful contingent of followers to a patriotic defense of the Constitution and government which some of his compeers put into such mortal jeopardy.

We find him here at the beginning of this severe conflict in the full flush of hope and ambition. He was winning in personal manner, brilliant in debate, aggressive in party strategy. To this he added an adroitness in evasion and false logic perhaps never equaled, and in his defense of the Nebraska measure this questionable but convenient gift was ever his main reliance. Besides, his long official career gave to his utterances the stamp and glitter of oracular statesmanship. But while Lincoln knew all Douglas's strong points he was no less familiar with his weak ones. They had come to central Illinois about the same time, and had in a measure grown up together. Socially they were on friendly terms; politically they had been opponents for twenty years. At the bar, in the Legislature, and on the stump they had often met and measured strength. Each therefore knew the temper of the other's steel no less than every joint in his armor.

It was a peculiarity of the early West—perhaps it pertains to all primitive communities—that the people retained a certain fragment of the chivalric sentiment, a remnant of the instinct of hero-worship. As the ruder athletic sports faded out, as shooting-matches, wrestling- matches, horse-races, and kindred games fell into disuse, political debate became, in a certain degree, their substitute. But the principle of championship, while it yielded high honor and consideration to the victor, imposed upon him the corresponding obligation to recognize every opponent and accept every challenge. To refuse any contest, to plead any privilege, would be instant loss of prestige. This supreme moment in Lincoln's career, this fateful turning of the political tide, found him fully prepared for the new battle, equipped by reflection and research to permit himself to be pitted against the champion

of Democracy—against the very author of the raging storm of parties; and it displays his rare self-confidence and consciousness of high ability, to venture to attack such an antagonist.

[Sidenote: Correspondence of the "Missouri Republican," October 6, 1854.]

Douglas made his speech, according to notice, on the first day of the fair, Tuesday, October 3. "I will mention," said he, in his opening remarks, "that it is understood by some gentlemen that Mr. Lincoln, of this city, is expected to answer me. If this is the understanding, I wish that Mr. Lincoln would step forward and let us arrange some plan upon which to carry out this discussion." Mr. Lincoln was not there at the moment, and the arrangement could not then be made. Unpropitious weather had brought the meeting to the Representatives' Hall in the State House, which was densely packed. The next day found the same hall filled as before to hear Mr. Lincoln. Douglas occupied a seat just in front of him, and in his rejoinder he explained that "my friend Mr. Lincoln expressly invited me to stay and hear him speak to-day, as he heard me yesterday, and to answer and defend myself as best I could. I here thank him for his courteous offer." The occasion greatly equalized the relative standing of the champions. The familiar surroundings, the presence and hearty encouragement of his friends, put Lincoln in his best vein. His bubbling humor, his perfect temper, and above all the overwhelming current of his historical arraignment extorted the admiration of even his political enemies. "His speech was four hours in length" wrote one of these, "and was conceived and expressed in a most happy and pleasant style, and was received with abundant applause. At times he made statements which brought Senator Douglas to his feet, and then good-humored passages of wit created much interest and enthusiasm." All reports plainly indicate that Douglas was astonished and disconcerted at this unexpected strength of argument, and

that he struggled vainly through a two hours' rejoinder to break the force of Lincoln's victory in the debate. Lincoln had hitherto been the foremost man in his district. That single effort made him the leader on the new question in his State.

The fame of this success brought Lincoln urgent calls from all the places where Douglas was expected to speak. Accordingly, twelve days afterwards, October 16, they once more met in debate, at Peoria. Lincoln, as before, gave Douglas the opening and closing speeches, explaining that he was willing to yield this advantage in order to secure a hearing from the Democratic portion of his listeners. The audience was a large one, but not so representative in its character as that at Springfield. The occasion was made memorable, however, by the fact that when Lincoln returned home he wrote out and published his speech. We have therefore the revised text of his argument, and are able to estimate its character and value. Marking as it does with unmistakable precision a step in the second period of his intellectual development, it deserves the careful attention of the student of his life.

After the lapse of more than a quarter of a century the critical reader still finds it a model of brevity, directness, terse diction, exact and lucid historical statement, and full of logical propositions so short and so strong as to resemble mathematical axioms. Above all it is pervaded by an elevation of thought and aim that lifts it out of the commonplace of mere party controversy. Comparing it with his later speeches, we find it to contain not only the argument of the hour, but the premonition of the broader issues into which the new struggle was destined soon to expand.

The main, broad current of his reasoning was to vindicate and restore the policy of the fathers of the country in the restriction of slavery; but running

through this like a thread of gold was the demonstration of the essential injustice and immorality of the system. He said:

This declared indifference but, as I must think, covert zeal for the spread of slavery, I cannot but hate. I hate it because of the monstrous injustice of slavery itself. I hate it because it deprives our republican example of its just influence in the world; enables the enemies of free institutions with plausibility to taunt us as hypocrites; causes the real friends of freedom to doubt our sincerity; and especially because it forces so many really good men among ourselves into an open war with the very fundamental principles of civil liberty, criticizing the Declaration of Independence and insisting that there is no right principle of action but self-interest.

* * * * *

The doctrine of self-government is right,—absolutely and eternally right,—but it has no just application as here attempted. Or perhaps I should rather say that whether it has such just application, depends upon whether a negro is not, or is, a man. If he is not a man, in that case he who is a man may as a matter of self-government do just what he pleases with him. But if the negro is a man, is it not to that extent a total destruction of self-government to say that he too shall not govern himself? When the white man governs himself, that is self-government; but when he governs himself and also governs another man, that is more than self-government—that is despotism.

* * * * *

What I do say is, that no man is good enough to govern another man without that other's consent.

* * * * *

The master not only governs the slave without his consent, but he governs him by a set of rules altogether different from those which he prescribes for himself. Allow all the governed an equal voice in the government; that, and that only, is self-government.

* * * * *

Slavery is founded in the selfishness of man's nature—opposition to it, in his love of justice. These principles are an eternal antagonism; and when brought into collision so fiercely as slavery extension brings them, shocks and throes and convulsions must ceaselessly follow. Repeal the Missouri Compromise—repeal all compromise—repeal the Declaration of Independence—repeal all past history—still you cannot repeal human nature.

* * * * *

I particularly object to the new position which the avowed principle of this Nebraska law gives to slavery in the body politic. I object to it because it assumes that there can be moral right in the enslaving of one man by another. I object to it as a dangerous dalliance for a free people,—a sad evidence that feeling prosperity, we forget right,—that liberty as a principle we have ceased to revere.

* * * * *

Little by little, but steadily as man's march to the grave, we have been giving up the old for the new faith. Near eighty years ago we began by declaring that all men are created equal; but now from that beginning we have run down to the other declaration that for some men to enslave others is a "sacred right of self-government." These principles cannot stand together. They are as opposite as God and mammon.

* * * * *

Our Republican robe is soiled and trailed in the dust. Let us repurify it. Let us turn and wash it white, in the spirit if not the blood of the Revolution. Let us turn slavery from its claims of "moral right" back upon its existing legal rights, and its arguments of "necessity." Let us return it to the position our fathers gave it, and there let it rest in peace. Let us readopt the Declaration of Independence, and the practices and policy which harmonize with it. Let North and South—let all Americans—let all lovers of liberty everywhere—join in the great and good work. If we do this, we shall not only have saved the Union, but we shall have so saved it, as to make and to keep it forever worthy of the saving. We shall have so saved it that the succeeding millions of free, happy people, the world over, shall rise up and call us blessed to the latest generations.

[Sidenote: 1864.]

The election which, occurred on November 7 resulted disastrously for Douglas. It was soon found that the Legislature on joint ballot would probably give a majority for Senator against Shields, the incumbent, or any other Democrat who had supported the Nebraska bill. Who might become his successor was more problematical. The opposition majority was made up of anti-Nebraska Democrats, of what were then called "abolitionists" (Lovejoy had been elected among these), and finally of Whigs, who numbered by far the largest portion. But these elements, except on one single issue, were somewhat irreconcilable. In this condition of uncertainty a host of candidates sprung up. There was scarcely a member of Congress from Illinois—indeed, scarcely a prominent man in the State of any party—who did not conceive the flattering dream that he himself might become the lucky medium of compromise and harmony.

Among the Whigs, though there were other aspirants, Lincoln, whose speeches had contributed so much to win the election, was the natural and most prominent candidate. According to Western custom, he addressed a short note to most of the Whig members elect and to other influential members of the party asking their support. Generally the replies were not only affirmative but cordial and even enthusiastic. But a dilemma now arose. Lincoln had been chosen one of the members from Sangamon County by some 650 majority. The Constitution of Illinois contained a clause disqualifying members of the Legislature and certain other designated officials from being elected to the Senate. Good lawyers generally believed this provision repugnant to the Constitution of the United States, and that the qualifications of Senators and Representatives therein prescribed could be neither increased nor diminished by a State. But the opposition had only a majority of one or two. If Lincoln resigned his membership in the Legislature this might destroy the majority. If he refused to resign, such refusal might carry some member to the Democrats.

[Illustration: OWEN LOVEJOY.]

At last, upon full deliberation, Lincoln resigned his seat, relying upon the six or seven hundred majority in Sangamon County to elect another Whig. It was a delusive trust. A reaction in the Whig ranks against "abolitionism" suddenly set in. A listless apathy succeeded the intense excitement and strain of the summer's canvass. Local rivalries forced the selection of an unpopular candidate. Shrewdly noting all these signs the Democrats of Sangamon organized what is known in Western politics as a "still-hunt." They made a feint of allowing the special election to go by default. They made no nomination. They permitted an independent Democrat, known under the sobriquet of "Steamboat Smith," to parade his own name. Up to the very day of election they gave no public sign, although they had in the utmost secrecy instructed and drilled their precinct squads. On the morning

of election the working Democrats appeared at every poll, distributing tickets bearing the name of a single candidate not before mentioned by any one. They were busy all day long spurring up the lagging and indifferent, and bringing the aged, the infirm, and the distant voters in vehicles. Their ruse succeeded. The Whigs were taken completely by surprise, and in a remarkably small total vote, McDaniels, Democrat, was chosen by about sixty majority. The Whigs in other parts of the State were furious at the unlooked-for result, and the incident served greatly to complicate the senatorial canvass.

Nevertheless it turned out that even after this loss the opposition to Douglas would have a majority on joint ballot. But how unite this opposition made up of Whigs, of Democrats, and of so-called abolitionists? It was just at that moment in the impending revolution of parties when everything was doubt, distrust, uncertainty. Only the abolitionists, ever aggressive on all slavery issues, were ready to lead off in new combinations, but nobody was willing to encounter the odium of acting with them. They, too, were present at the State Fair, and heard Lincoln reply to Douglas. At the close of that reply, and just before Douglas's rejoinder, Lovejoy had announced to the audience that a Republican State Convention would be immediately held in the Senate Chamber, extending an invitation to delegates to join in it. But the appeal fell upon unwilling ears. Scarcely a corporal's guard left the discussion. The Senate Chamber presented a discouraging array of empty benches. Only some twenty-six delegates were there to represent the whole State of Illinois. Nothing daunted, they made their speeches and read their platform to each other. [Transcriber's Note: Lengthy footnote (1) relocated to chapter end.] Particularly in their addresses they praised Lincoln's great speech which they had just heard, notwithstanding his declarations differed so essentially from their new-made creed. "Ichabod raved," said the Democratic organ in derision, "and Lovejoy swelled, and all indorsed the sentiments of that speech." Not

content with this, without consent or consultation, they placed Lincoln's name in the list of their State Central Committee.

[Sidenote: Lincoln to Coddington, Nov. 27, 1854. MS.]

Matters remained in this attitude until their chairman called a meeting and notified Lincoln to attend. In reply he sent the following letter of inquiry: "While I have pen in hand allow me to say that I have been perplexed to understand why my name was placed on that committee. I was not consulted on the subject, nor was I apprised of the appointment until I discovered it by accident two or three weeks afterwards. I suppose my opposition to the principle of slavery is as strong as that of any member of the Republican party; but I had also supposed that the extent to which I feel authorized to carry that opposition practically was not at all satisfactory to that party. The leading men who organized, that party were present on the 4th of October at the discussion between Douglas and myself at Springfield and had full opportunity to not misunderstand my position. Do I misunderstand them?"

Whether this letter was ever replied to is uncertain, though improbable. No doubt it led to conferences during the meeting of the Legislature, early in the year 1855, when the senatorial question came on for decision. It has been suggested that Lincoln made dishonorable concessions of principle to get the votes of Lovejoy and his friends. The statement is too absurd to merit serious contradiction. The real fact is that Mr. Giddings, then in Congress, wrote to Lovejoy and others to support Lincoln. Various causes delayed the event, but finally, on February 8, 1855, the Legislature went into joint ballot. A number of candidates were put in nomination, but the contest narrowed itself down to three. Abraham Lincoln was supported by the Whigs and Free-soilers; James Shields by the Douglas-Democrats. As between these two, Lincoln would easily have succeeded, had not five anti-

Nebraska Democrats refused under any circumstances to vote for him or any other Whig, [Footnote: "All that remained of the anti- Nebraska force, excepting Judd, Cook, Palmer, Baker, and Allen, of Madison, and two or three of the secret Matteson men, would go into caucus, and I could get the nomination of that caucus. But the three Senators and one of the two Representatives above named 'could never vote for a Whig,' and this incensed some twenty Whigs to 'think' they would never vote for the man of the five."—Lincoln to the Hon. E. B. Washburne, February 9, 1855. MS.] and steadily voted during six ballots for Lyman Trumbull. The first vote stood: Lincoln, 45; Shields, 41; Trumbull, 5; scattering, 8. Two or three Whigs had thrown away their votes on this first ballot, and though they now returned and adhered to him, the demoralizing example was imitated by various members of the coalition. On the sixth ballot the vote stood: Lincoln, 36; Shields, 41; Trumbull, 8; scattering, 13.

At this stage of the proceedings the Douglas-Democrats executed a change of front, and, dropping Shields, threw nearly their full strength, 44 votes, for Governor Joel A. Matteson. The maneuver was not unexpected, for though the Governor and the party newspapers had hitherto vehemently asserted he was not a candidate, the political signs plainly contradicted such statement. Matteson had assumed a quasi-independent position; kept himself non-committal on Nebraska, and opposed Douglas's scheme of tonnage duties to improve Western rivers and harbors. Like the majority of Western men he had risen from humble beginnings, and from being an emigrant, farmer, merchant, and manufacturer, had become Governor. In office he had devoted himself specially to the economical and material questions affecting Illinois, and in this role had a wide popularity with all classes and parties.

The substitution of his name was a promising device. The ninth ballot gave him 47 votes. The opposition under the excitement of non-partisan

appeals began to break up. Of the remaining votes Lincoln received 15, Trumbull 35, scattering, 1. In this critical moment Lincoln exhibited a generosity and a sagacity above the range of the mere politician's vision. He urged upon his Whig friends and supporters to drop his own name and join without hesitation or conditions in the election of Trumbull. [Transcriber's Note: Lengthy footnote (2) relocated to chapter end.] This was putting their fidelity to a bitter trial. Upon every issue but the Nebraska bill Trumbull still avowed himself an uncompromising Democrat. The faction of five had been stubborn to defiance and disaster. They would compel the mountain to go to Mahomet. It seemed an unconditional surrender of the Whig party. But such was Lincoln's influence upon his adherents that at his request they made the sweeping sacrifice, though with lingering sorrow. The proceedings had wasted away a long afternoon of most tedious suspense. Evening had come; the gas was lighted in the hall, the galleries were filled with eager women, the lobbies were packed with restless and anxious men. All had forgotten the lapse of hours, their fatigue and their hunger, in the absorption of the fluctuating contest. The roll-call of the tenth ballot still showed 15 votes for Lincoln, 36 for Trumbull, 47 for Matteson. Amid an excitement which was becoming painful, and in a silence where spectators scarcely breathed, Judge Stephen T. Logan, Lincoln's nearest and warmest friend, arose and announced the purpose of the remaining Whigs to decide the contest, whereupon the entire fifteen changed their votes to Trumbull. This gave him the necessary number of fifty-one, and elected him a Senator of the United States.

At that early day an election to the United States Senate must have seemed to Lincoln a most brilliant political prize, the highest, perhaps, to which he then had any hopes of ever attaining. To school himself to its loss with becoming resignation, to wait hopefully during four years for another opportunity, to engage in the dangerous and difficult task of persuading his friends to leave their old and join a new political party only yet dimly

foreshadowed, to watch the chances of maintaining his party leadership, furnished sufficient occupation for the leisure afforded by the necessities of his law practice. It is interesting to know that he did more; that amid the consideration of mere personal interests he was vigilantly pursuing the study of the higher phases of the great moral and political struggle on which the nation was just entering, little dreaming, however, of the part he was destined to act in it. A letter of his written to a friend in Kentucky in the following year shows us that he had nearly reached a maturity of conviction on the nature of the slavery conflict—his belief that the nation could not permanently endure half slave and half free—which he did not publicly express until the beginning of his famous senatorial campaign of 1858:

[Sidenote: MS.]

SPRINGFIELD, ILLS., August 15, 1855
Hon. GEO. ROBERTSON, Lexington, Ky.

MY DEAR SIR: The volume you left for me has been received. I am really grateful for the honor of your kind remembrance, as well as for the book. The partial reading I have already given it has afforded me much of both pleasure and instruction. It was new to me that the exact question which led to the Missouri Compromise had arisen before it arose in regard to Missouri, and that you had taken so prominent a part in it. Your short but able and patriotic speech on that occasion has not been improved upon since by those holding the same views; and, with all the lights you then had, the views you took appear to me as very reasonable.

You are not a friend of slavery in the abstract. In that speech you spoke of "the peaceful extinction of slavery" and used other expressions indicating your belief that the thing was, at some time, to have an end. Since then we have had thirty-six years of experience; and this experience has

demonstrated, I think, that there is no peaceful extinction of slavery in prospect for us. The signal failure of Henry Clay and other good and great men, in 1849, to effect anything in favor of gradual emancipation in Kentucky, together with a thousand other signs, extinguishes that hope utterly. On the question of liberty, as a principle, we are not what we have been. When we were the political slaves of King George, and wanted to be free, we called the maxim that "all men are created equal" a self-evident truth; but now when we have grown fat, and have lost all dread of being slaves ourselves, we have become so greedy to be *masters* that we call the same maxim "a self-evident lie." The Fourth of July has not quite dwindled away; it is still a great day for burning fire-crackers!

That spirit which desired the peaceful extinction of slavery has itself become extinct with the occasion and the *men* of the Revolution. Under the impulse of that occasion, nearly half the States adopted systems of emancipation at once; and it is a significant fact that not a single State has done the like since. So far as peaceful, voluntary emancipation is concerned, the condition of the negro slave in America, scarcely less terrible to the contemplation of a free mind, is now as fixed and hopeless of change for the better as that of the lost souls of the finally impenitent. The Autocrat of all the Russias will resign his crown and proclaim his subjects free republicans, sooner than will our American masters voluntarily give up their slaves.

Our political problem now is, "Can we as a nation continue together *permanently—forever*—half slave, and half free?" The problem is too mighty for me. May God in his mercy superintend the solution. Your much obliged friend, and humble servant,

A. LINCOLN.

The reader has doubtless already noted in his mind the curious historical coincidence which so soon followed the foregoing speculative affirmation. On the day before Lincoln's first inauguration as President of the United States, the "Autocrat of all the Russias," Alexander II., by imperial decree emancipated his serfs; while six weeks after the inauguration, the "American masters," headed by Jefferson Davis, began the greatest war of modern times, to perpetuate and spread the institution of slavery.

[Relocated Footnote (1): Their resolutions were radical for that day, but not so extreme as was generally feared. On the slavery question they declared their purpose:

To restore Kansas and Nebraska to the position of free territories; that as the Constitution of the United States vests in the States and not in Congress the power to legislate for the rendition of fugitives from labor, to repeal and entirely abrogate the fugitive slave law; to restrict slavery to those States in which it exists; to prohibit the admission of any more slave States; to abolish slavery in the District of Columbia; to exclude slavery from all territories over which the general Government has exclusive jurisdiction, and finally to resist the acquirement of any more territories unless slavery shall have been therein forever prohibited.]

[Relocated Footnote (2): "In the meantime our friends, with a view of detaining our expected bolters, had been turning from me to Trumbull till he had risen to 35 and I had been reduced to 15. These would never desert me except by my direction; but I became satisfied that if we could prevent Matteson's election one or two ballots more, we could not possibly do so a single ballot after my friends should begin to return to me from Trumbull. So I determined to strike at once; and accordingly advised my remaining friends to go for him, which they did, and elected him on that, the tenth ballot. Such is the way the thing was done. I think you would have done the

same under the circumstances, though Judge Davis, who came down this morning, declares he never would have consented to the 47 [opposition] men being controlled by the five. I regret my defeat moderately, but am not nervous about it."—Lincoln to Washburne, February 9, 1855. MS.]

CHAPTER XXII

THE BORDER RUFFIANS

[Sidenote: May 30, 1854.]

The passage of the Nebraska bill and the hurried extinction of the Indian title opened nearly fifteen million acres of public lands to settlement and purchase. The whole of this vast area was yet practically tenantless. In all of Kansas there were only three military posts, eight or ten missions or schools attached to Indian reservations, and some scores of roving hunters and traders or squatters in the vicinity of a few well-known camping stations on the two principal emigrant and trading routes, one leading southward to New Mexico, the other northward towards Oregon. But such had been the interest created by the political excitement, and so favorable were the newspaper reports of the location, soil, and climate of the new country, that a few months sufficed to change Kansas from a closed and prohibited Indian reserve to the emigrant's land of promise.

Douglas's oracular "stump speech" in the Nebraska bill transferred the struggle for slavery extension from Congress to the newly organized territories. "Come on, then, gentlemen of the slave States," said Seward in a Senate discussion; "since there is no escaping your challenge, I accept it in behalf of Freedom. We will engage in competition for the virgin soil of Kansas, and God give the victory to the side that is stronger in numbers as it

is in right." With fifteen millions in the North against ten millions in the South, the result could not be in doubt.

[Sidenote: 1854.]

Feeling secure in this evident advantage, the North, in general, trusted to the ordinary and natural movement of emigration. To the rule, however, there were a few exceptions. Some members of Congress, incensed at the tactics of the Nebraska leaders, formed a Kansas Aid Society in Washington City and contributed money to assist emigrants. [Footnote: Testimony of the Hon. Daniel Mace, page 829, House Report No. 200, 1st Session, 34th Congress. "Howard Report."] Beyond this initiatory step they do not seem to have had any personal participation in it, and its office and working operations were soon transferred to New York. Sundry similar organizations were also formed by private individuals. The most notable of these was a Boston company chartered in April, named "The Massachusetts Emigrant Aid Company." The charter was soon abandoned, and the company reorganized June 13th, under private articles of association; [Footnote: E. E. Hale, "Kansas and Nebraska," p. 229. It was once more incorporated February 21, 1855, under the name of "The New England Emigrant Aid Company."] and in this condition it became virtually the working agency of philanthropic citizens of New England, headed by Eli Thayer. There were several auxiliary societies and a few independent associations. But from what then and afterwards came to light, it appears that Mr. Thayer's society was the only one whose operations reached any degree of success deserving historical notice.

This company gave publicity, through newspaper advertisements and pamphlets, of its willingness to organize emigrants into companies, to send them to Kansas in charge of trustworthy agents, and to obtain transportation for them at reduced rates. It also sent machinery for a few saw-mills, the

types and presses for two or three newspapers, and erected a hotel or boarding-house to accommodate newcomers. It purchased and held only the land necessary to locate these business enterprises. It engaged in no speculation, paid no fare of any emigrants, and expressly disavowed the requirement of any oath or pledge of political sentiment or conduct. All these transactions were open, honest, and lawful, carefully avoiding even the implication of moral or political wrong.

Under the auspices of this society a pioneer company of about thirty persons arrived in Kansas in July, 1854, and founded the town of Lawrence. Other parties followed from time to time, sending out off-shoots, but mainly increasing the parent settlement, until next to Fort Leavenworth, the principal military post, Lawrence became the leading town of the Territory. The erection of the society hotel, the society saw-mills, and the establishment of a newspaper also gave it leadership in business and politics as well as population. This humane and praiseworthy enterprise has been gravely charged with the origin and responsibility of the political disorders which followed in Kansas. Nothing could be further from the truth. Before it had assisted five hundred persons to their new homes, the Territory had by regular and individual immigration, mainly from the Western States, acquired a population of 8601 souls, as disclosed by the official census taken after the first summer's arrivals, and before those of the second had begun. It needs only this statement to refute the political slander so industriously repeated in high places against the Lawrence immigrants.

Deeper causes than the philanthropy or zeal of a few Boston enthusiasts were actively at work. The balance of power between the free and slave States had been destroyed by the admission of California. To restore that balance the South had consummated the repeal of the Missouri Compromise as a first and indispensable step. The second equally indispensable step was to seize the political control of the new Territory.

Kansas lay directly west of the State of Missouri. For a frontier State, the pro-slavery sentiment of Missouri was very pronounced, especially along the Kansas border. The establishment of slavery in this new region had formed the subject of public and local discussion before the Nebraska bill, and Senator Atchison had promised his western Missouri constituents to labor for such a result. From the time the unlooked-for course of Senator Douglas made it a practical possibility, Atchison was all zeal and devotion to this object, which he declared was almost as dear to him as his hope of heaven. When it finally became a question to be decided perhaps by a single frontier election, his zeal and work in that behalf were many times multiplied.

Current reports and subsequent developments leave no doubt that this Senator, being then acting Vice-President of the United States, [Footnote: By virtue of his office as President *pro tempore* of the United States Senate. The Vice-Presidency was vacant; William R. King, chosen with President Pierce, had died.] immediately after the August adjournment of Congress hurried away to his home in Platte County, Missouri, and from that favorable situation personally organized a vast conspiracy, running through nearly all the counties of his State adjoining the Kansas border, to decide the slavery question for Kansas by Missouri votes. Secret societies under various names, such as "Blue Lodges," "Friends' Society," "Social Band," "Sons of the South," were organized and affiliated, with all the necessary machinery of oaths, grips, signs, passwords, and badges. The plan and object of the movement were in general kept well concealed. Such publicity as could not be avoided served rather to fan the excitement, strengthen the hesitating, and frown down all dissent and opposition. Long before the time for action arrived, the idea that Kansas must be a slave State had grown into a fixed and determined public sentiment.

The fact is not singular if we remember the peculiar situation of that locality. It was before the great expansion of railroads, and western Missouri could only be conveniently approached by the single commercial link of steamboat travel on the turbid and dangerous Missouri River. Covering the rich, alluvial lands along the majestic but erratic stream lay the heavy slave counties of the State, wealthy from the valuable slave products of hemp and tobacco. Slave tenure and slavery traditions in Missouri dated back a full century, to the remote days when the American Bottom opposite St. Louis was one of the chief bread and meat producing settlements of New France, sending supplies northward to Mackinaw, southward to New Orleans, and eastward to Fort Duquesne. When in 1763 "the Illinois" country passed by treaty under the British flag, the old French colonists, with their slaves, almost in a body crossed the Mississippi into then Spanish territory, and with fresh additions from New Orleans founded St. Louis and its outlying settlements; and these, growing with a steady thrift, extended themselves up the Missouri River.

Slavery was thus identified with the whole history and also with the apparent prosperity of the State; and it had in recent times made many of these Western counties rich. The free State of Iowa lay a hundred miles to the north, and the free State of Illinois two hundred to the east; a wall of Indian tribes guarded the west. Should all this security be swept away, and their runaways find a free route to Canada by simply crossing the county line? Should the price of their personal "chattels" fall one-half for want of a new market? With nearly fifteen million acres of fresh land to choose from for the present outlay of a trifling preemption fee, should not the poor white compel his single "black boy" to follow him a few miles west, and hoe his tobacco for him on the new fat bottom-lands of the Kaw River?

[Speech in Platte County. Wm. Phillips, "Conquest of Kansas," p. 48]

Even such off-hand reasoning was probably confined to the more intelligent. For the greater part these ignorant but stubborn and strong-willed frontiersmen were moved by a bitter hatred of "abolitionism," because the word had now been used for half a century by partisans high and low—Governors, Senators, Presidents—as a term of opprobrium and a synonym of crime. With these as fathers of the faith and the Vice-President of the United States as an apostle to preach a new crusade, is it astonishing that there was no lack of listeners, converts, and volunteers? Senator Atchison spoke in no ambiguous words. "When you reside in one day's journey of the Territory," said he, "and when your peace, your quiet, and your property depend upon your action, you can without an exertion send five hundred of your young men who will vote in favor of your institutions. Should each county in the State of Missouri only do its duty, the question will be decided quietly and peaceably at the ballot-box. If we are defeated, then Missouri and the other Southern States will have shown themselves recreant to their interests and will deserve their fate."

Western water transportation found its natural terminus where the Kaw or Kansas River empties into the Missouri. From this circumstance that locality had for years been the starting-point for the overland caravans or wagon-trains. Fort Leavenworth was the point of rendezvous for those going to California and Oregon; Independence the place of outfit for those destined to Santa Fe. Grouped about these two points were half a dozen heavy slaveholding counties of Missouri,—Platte, Clay, Bay, Jackson, Lafayette, Saline, and others. Platte County, the home of Senator Atchison, was their Western outpost, and lay like an outspread fan in the great bend of the Missouri, commanding from thirty to fifty miles of river front. Nearly all of Kansas attainable by the usual water transportation and travel lay immediately opposite. A glance at the map will show how easily local sentiment could influence or dominate commerce and travel on the Missouri River. In this connection the character of the population must be

taken into account. The spirit of intolerance which once pervaded all slaveholding communities, in whatever State of the Union, was here rampant to an unusual degree. The rural inhabitants were marked by the strong characteristics of the frontier,—fondness of adventure, recklessness of exposure or danger to life, a boastful assertion of personal right, privilege, or prowess, a daily and hourly familiarity with the use of fire-arms. These again were heightened by two special influences—the presence of Indian tribes whose reservations lay just across the border, and the advent and preparation of each summer's emigration across the great plains. The "Argonauts of '49" were not all gamblers and cut-throats of border song and story. Generally, however, they were men of decision and will, all mere drift-wood in the great current of gold-seekers being soon washed ashore and left behind. Until they finished their last dinner at the Planter's House in St. Louis, the fledgelings of cities, the lawyers, doctors, merchants, and speculators, were in or of civilization. Perhaps they even resisted the contamination of cards and drink, profanity and revolver salutations, while the gilded and tinselled Missouri River steamboat bore them for three days against its muddy current and boiling eddies to meet their company and their outfit.

[Illustration: DAVID R. ATCHISON.]

But once landed at Independence or Leavenworth, they were of the frontier, of the wilderness, of the desert. Here they donned their garments of red flannel and coarse cloth or buckskin, thrust the legs of their trousers inside the tops of their heavy boots, and wore their bowie-knife or revolver in their outside belt. From this departure all were subject to the inexorable equality of the camp. Eating, sleeping, standing guard, tugging at the wheel or defending life and property,— there was no rank between captain and cook, employer and employed, savant and ignoramus, but the distribution of duty and the assignment of responsibility. Toil and exposure, hunger and

thirst, wind and storm, danger in camp quarrel or Indian ambush, were the familiar and ordinary vicissitudes of a three months' journey in a caravan of the plains.

All this movement created business for these Missouri River towns. Their few inhabitants drove a brisk trade in shirts and blankets, guns and powder, hard bread and bacon, wagons and live stock. Petty commerce busies itself with the art of gain rather than with the labor of reform. Indian and emigrant traders did not too closely scan their sources of profit. The precepts of the divine and the penalties of the human law sat lightly upon them. As yet many of these frontier towns were small hamlets, without even a pretext of police regulations. Passion, therefore, ran comparatively a free course, and the personal redress of private wrongs was only held in check by the broad and acknowledged right of self-defense. Since 1849 and 1850, when the gold fever was at its height, emigration across the plains had slackened, and the eagerness for a revival of this local traffic undoubtedly exerted its influence in procuring the opening of the territories in 1854. The noise and excitement created by the passage of the Kansas- Nebraska Act awakened the hope of frontier traders and speculators, who now greedily watched all the budding chances of gain. Under such circumstances these opportunities to the shrewd, to the bold, and especially to the unscrupulous, are many. Cheap lands, unlimited town lots, eligible trading sites, the multitude of franchises and privileges within the control of a territorial legislature, the offices to be distributed under party favoritism, offer an abundant lure to enterprise and far more to craft.

It was to such a population and under such a condition of things that Senator Atchison went to his home in Platte County in the summer of 1854 to preach his pro-slavery crusade against Kansas. His personal convictions, his party faith, his senatorial reflection, and his financial fortunes, were all involved in the scheme. With the help of the Stringfellows and other

zealous co-workers, the town of Atchison was founded and named in his honor, and the "Squatter Sovereign" newspaper established, which displayed his name as a candidate for the presidency. The good-will of the Administration was manifested by making one of the editors postmaster at the new town.

President Pierce appointed as Governor of Kansas Territory Andrew H. Keeder, a member of his own party, from the free State of Pennsylvania. He had neither prominent reputation nor conspicuous ability, though under trying circumstances he afterwards showed diligence, judgment, integrity, and more than ordinary firmness and independence. It is to be presumed that his fitness in a partisan light had been thoroughly scrutinized by both President and Senate. Upon the vital point the investigation was deemed conclusive. "He was appointed," the "Washington Union" naively stated when the matter was first called in question, "under the strongest assurance that he was strictly and honestly a national man. We are able to state further, on very reliable authority, that whilst Governor Reeder was in Washington, at the time of his appointment, he conversed with Southern gentlemen on the subject of slavery, and assured them that he had no more scruples in buying a slave than a horse, and regretted that he had not money to purchase a number to carry with him to Kansas." With him were appointed three Federal judges, a secretary, a marshal, and an attorney for the Territory, all doubtless considered equally trustworthy on the slavery question. The organic act invested the governor with very comprehensive powers to initiate the organization of the new Territory. Until the first legislature should be duly constituted, he had authority to fix election days, define election districts, direct the mode of returns, take a census, locate the temporary seat of government, declare vacancies, order new elections to fill them, besides the usual and permanent powers of an executive.

[Sidenote: Ex-Governor Reeder's Testimony, "Howard Report," pp. 933-985.]

Arriving at Leavenworth in October, 1854, Governor Reeder was not long in discovering the designs of the Missourians. He was urged to order the immediate election of a territorial legislature. The conspirators had already spent some months in organizing their "Blue Lodges," and now desired at once to control the political power of the Territory. But the Governor had too much manliness to become the mere pliant tool they wished to make him. He resented their dictation; he made a tour of inspection through the new settlements; and, acting on his own judgment, on his return issued a proclamation for a simple election of a delegate to Congress. At the appearance of this proclamation Platte County took alarm, and held a meeting on the Kansas side of the river, to intimidate him with violent speeches and a significant memorial. The Governor retorted in a letter that the meeting was composed of Missourians, and that he should resist outside interference from friend, foe, or faction. [Footnote: Governor Reeder to Gwiner and others, Nov. 21, 1854; copied into "National Era," Jan. 4, 1855.] Pocketing this rebuff as best they might, Senator Atchison and his "Blue Lodges" nevertheless held fast to their purpose. Paper proclamations and lectures on abstract rights counted little against the practical measures they had matured. November 29th, the day of election for delegate, finally arrived, and with it a formidable invasion of Missouri voters at more than half the polling places appointed in the Governor's proclamation.

In frontier life it was an every-day experience to make excursions for business or pleasure, singly or in parties, requiring two or three consecutive days, perhaps a night or two of camping out, for which saddle-horses and farm-wagons furnished ready transportation; and nothing was more common than concerted neighborhood efforts for improvement, protection,

or amusement. On such occasions neighborly sentiment and comity required every man to drop his axe, or unhitch from the plow in the furrow, to further the real or imaginary weal of the community. In urgent instances non-compliance was fatal to the peace and comfort and sometimes to the personal safety of the settler. The movement described above had been in active preparation for weeks, controlled by strong and secret combinations, and many unwilling participants were doubtless swept into it by an excited public opinion they dared not resist.

A day or two before the election the whole Missouri border was astir. Horses were saddled, teams harnessed, wagons loaded with tents, forage, and provisions, bowie-knives buckled on, revolvers and rifles loaded, and flags and inscriptions flung to the breeze by the more demonstrative and daring. Crossing the river-ferries from the upper counties, and passing unobstructed over the State line by the prairie- roads and trails from the lower, many of them camped that night at the nearest polls, while others pushed on fifty or a hundred miles to the sparsely settled election districts of the interior. As they passed along, the more scrupulous went through the empty form of an imaginary settlement, by nailing a card to a tree, driving a stake into the ground, or inscribing their names in a claim register, prepared in haste by the invading party. The indifferent satisfied themselves with mere mental resolves to become settlers. The utterly reckless silenced all scruples in profanity and drunkenness.

[Sidenote: Nov. 29, 1854.]

On election morning the few real squatters of Kansas, endowed with Douglas's delusive boon of "popular sovereignty," witnessed with mixed indignation and terror acts of summary usurpation. Judges of election were dispossessed and set aside by intimidation or stratagem, and pro- slavery judges substituted without the slightest regard to regularity or law; judges'

and voters' oaths were declared unnecessary, or explained away upon newly-invented phrases and absurd subtleties. "Where there's a will, there's a way," in wrong and crime, as well as in honest purpose and deed; and by more dishonest devices than we can stop fully to record the ballot-boxes were filled, through invasion, false swearing, riot, and usurpation, with ballots for Whitfield, the pro-slavery candidate for delegate to Congress, at nine out of the seventeen polling places—showing, upon a careful scrutiny afterwards made by a committee of Congress, an aggregate of 1729 illegal votes, and only 1114 legal ones.

This mockery of an election completed, the valiant Knights of the Blue Lodge, the fraternal members of the Social Band, the philanthropic groups of the Friends' Society, and the chivalric Sons of the South returned to their axe and plow, society lodge and bar-room haunt, to exult in a victory for Missouri and slavery over the "Abolition hordes and nigger thieves of the Emigrant Aid Society." The "Border Ruffians" of Missouri had written their preliminary chapter in the annals of Kansas. The published statements of the Emigrant Aid Society show that up to the date of election it had sent only a few hundred men, women, and children to the Territory. Why such a prodigious effort was deemed necessary to overcome the votes and influence of this paltry handful of "paupers who had sold themselves to Eli Thayer and Co." was never explained.

CHAPTER XXIII

THE BOGUS LAWS

As the event proved, the invasion of border ruffians to decide the first election in Kansas had been entirely unnecessary. Even without counting the illegal votes, the pro-slavery candidate for delegate was chosen by a plurality. He had held the office of Indian Agent, and his acquaintance, experience, and the principal fact that he was the favorite of the conspirators gave him an easy victory. Governor Reeder issued his certificate of election without delay, and Whitfield hurried away to Washington to enjoy his new honors, taking his seat in the House of Representatives within three weeks after his election. Atchison, however, did not follow his example. Congress met on the first Monday of December, and the services of the Acting Vice- President were needed in the Senate Chamber. But of such importance did he deem the success of the conspiracy in which he was the leader, that a few weeks before the session he wrote a short letter to the Senate, giving notice of his probable absence and advising the appointment of a new presiding officer.

[Sidenote: Reeder Testimony, Howard Report, p. 934.]

[Sidenote: Howard Report, p. 9.]

As a necessary preliminary to organizing the government of the Territory, Governor Reeder, under the authority of the organic act, proceeded to take a census of its inhabitants. This work, carried on and completed in the months of January and February, 1855, disclosed a total population of 8601 souls, of whom 2905 were voters. With this enumeration as a definite guide, the Governor made an apportionment, established election districts, and, appointing the necessary officers to conduct it, fixed upon the 30th of March, 1855, as the day for electing the territorial legislature. Governor Reeder had come to Kansas an ardent Democrat, a firm friend of the Pierce Administration, and an enthusiastic disciple of the new Democratic dogma of "Popular Sovereignty." But his short experience with Atchison's Border Ruffians had already rudely shaken his partisanship. The events of the November election exposed the designs of the pro-slavery conspiracy, and no course was left him but to become either its ally or its enemy.

[Sidenote: Reeder instructions, Howard Report, pp. 107, 935.]

In behalf of justice, as well as to preserve what he still fondly cherished as a vital party principle, he determined by every means in his power to secure a fair election. In his appointment of election officers, census-takers, justices of the peace, and constables, he was careful to make his selections from both factions as fairly as possible, excepting that, as a greater and necessary safeguard against another invasion, he designated in the several election districts along the Missouri border two "free-State" men and one pro-slavery man to act as judges at each poll. He prescribed distinct and rigid rules for the conduct of the election; ordering among other things that the judges should be sworn, that constables should attend and preserve order, and that voters must be actual residents to the exclusion of any other home.

All his precautions came to nought. This election of a territorial legislature, which, as then popularly believed, might determine by the enactment of laws whether Kansas should become a free or a slave State, was precisely the coveted opportunity for which the Border Ruffian conspiracy had been organized. Its interference in the November election served as a practical experiment to demonstrate its efficiency and to perfect its plans. The alleged doings of the Emigrant Aid Societies furnished a convenient and plausible pretext; extravagant rumors were now circulated as to the plans and numbers of the Eastern emigrants; it was industriously reported that they were coming twenty thousand strong to control the election; and by these misrepresentations the whole border was wrought up into the fervor of a pro-slavery crusade.

[Sidenote: 1855.]

[Sidenote: Howard Report, pp. 9 to 44.]

[Sidenote: Howard Report, p. 30.]

[Sidenote: Ibid., p. 34.]

When the 30th of March, election day, finally arrived, the conspiracy had once more mustered its organized army of invasion, and five thousand Missouri Border Ruffians, in different camps, bands, and squads, held practical possession of nearly every election district in the Territory. Riot, violence, intimidation, destruction of ballot-boxes, expulsion and substitution of judges, neglect or refusal to administer the prescribed oaths, *viva voce* voting, repeated voting on one side, and obstruction and dispersion of voters on the other, were common incidents; no one dared to resist the acts of the invaders, since they were armed and commanded in frontier if not in military fashion, in many cases by men whose names then or after-wards were prominent or notorious. Of the votes cast, 1410 were

upon a subsequent examination found to have been legal, while 4908 were illegal. Of the total number, 5427 votes were given to the pro-slavery and only 791 to the free-State candidates. Upon a careful collation of evidence the investigating committee of Congress was of the opinion that the vote would have returned a free-State legislature if the election had been confined to the actual settlers; as conducted, however, it showed a nominal majority for every pro-slavery candidate but one.

Governor Reeder had feared a repetition of the November frauds; but it is evident that he had no conception of so extensive an invasion. It is probable, too, that information of its full enormity did not immediately reach him. Meanwhile the five days prescribed in his proclamation for receiving notices of contest elapsed. The Governor had removed his executive office to Shawnee Mission. At this place, and at the neighboring town of Westport, Missouri, only four miles distant, a majority of the persons claiming to have been elected now assembled and became clamorous for their certificates. [Footnote: Testimony of Ex-Governor Reeder, Howard Report, pp. 935-9; also Stringfellow's testimony, p. 855.] A committee of their number presented a formal written demand for the same; they strenuously denied his right to question the legality of the election, and threats against the Governor's life in case of his refusal to issue them became alarmingly frequent. Their regular consultations, their open denunciations, and their hints at violence, while they did not entirely overawe the Governor, so far produced their intended effect upon him that he assembled a band of his personal friends for his own protection. On the 6th of April, one week after election, the Governor announced his decision upon the returns. On one side of the room were himself and his armed adherents; on the other side the would-be members in superior numbers, with their pistols and bowie-knives. Under this virtual duress the Governor issued certificates of election to all but about one-third of the claimants; and the returns in these cases he rejected, not because of alleged force or fraud,

but on account of palpable defects in the papers. [Transcriber's Note: Lengthy footnote relocated to chapter end.]

The issue of certificates was a fatal error in Governor Reeder's action. It endowed the notoriously illegal Legislature with a technical authority, and a few weeks later, when he went to Washington city to invoke the help of the Pierce Administration against the usurpation, it enabled Attorney-General Cushing (if current report was true) to taunt him with the reply: "You state that this Legislature is the creature of force and fraud; which shall we believe—your official certificate under seal, or your subsequent declarations to us in private conversation?"

[Sidenote: April 16, 1855.]

The question of the certificates disposed of, the next point of interest was to determine at what place the Legislature should assemble. Under the organic act the Governor had authority to appoint the first meeting, and it soon became known that his mind was fixed upon the embryo town of Pawnee, adjoining the military post of Fort Riley, situated on the Kansas River, 110 miles from the Missouri line. Against this exile, however, Stringfellow and his Border Ruffian lawmakers protested in an energetic memorial, asking to be called together at the Shawnee Mission, supplemented by the private threat that even if they convened at Pawnee, they would adjourn and come back the day after. If the Governor harbored any remaining doubt that this bogus Legislature intended to assume and maintain the mastery, it speedily vanished. Their hostility grew open and defiant; they classed him as a free-State man, an "abolitionist," and it became only too evident that he would gradually be shorn of power and degraded from the position of Territorial Executive to that of a mere puppet. Having nothing to gain by further concession, he adhered to his original plan, issued his proclamation convening the Legislature at Pawnee on the

first Monday in July, and immediately started for Washington to make a direct appeal to President Pierce.

[Sidenote: "Squatter Sovereign," June 5, 1855.]

How Governor Reeder failed in this last hope of redress and support, how he found the Kansas conspiracy as strong at Washington as on the Missouri border, will appear further along. On the 2d of July the Governor and the Legislature met at the town of Pawnee, where he had convoked them—a magnificent prairie site, but containing as yet only three buildings, one to hold sessions in, and two to furnish food and lodging. The Governor's friends declared the accommodations ample; the Missourians on the contrary made affidavit that they were compelled to camp out and cook their own rations. The actual facts had little to do with the predetermination of the members. Stringfellow had written in his paper, the "Squatter Sovereign," three weeks before: "We hope no one will be silly enough to suppose the Governor has power to compel us to stay at Pawnee during the entire session. We will, of course, have to 'trot' out at the bidding of his Excellency,—but we will trot him back next day at our bidding."

[Sidenote: "House Journal Kansas Territory," 1855, p. 12.]

[Sidenote: "Journal of Council, Kansas Territory," p. 12.]

[Sidenote: "House Journal Kansas Territory," 1855, p. 29.]

The prediction was literally fulfilled. Both branches organized without delay, the House choosing John H. Stringfellow for Speaker. Before the Governor's message was delivered on the following day, the House had already passed, under suspended rules, "An act to remove the seat of government temporarily to the Shawnee Manual Labor School," which act the Council as promptly concurred in. The Governor vetoed the bill, but it

was at once passed over his veto. By the end of the week the Legislature had departed from the budding capital to return no more.

[Sidenote: Ibid., p. 30.]

The Governor was perforce obliged to follow his migratory Solons, who adhered to their purpose despite his public or private protests, and who reassembled at Shawnee Mission, or more correctly the Shawnee Manual Labor School, on the 16th of July. Shawnee Mission was one of our many national experiments in civilizing Indian tribes. This philanthropic institution, nourished by the Federal treasury, was presided over by the Rev. Thomas Johnson. The town of Westport, which could boast of a post office, lay only four miles to the eastward, on the Missouri side of the State line, and was a noted pro-slavery stronghold. There were several large brick buildings at the Mission capable of accommodating the Legislature with halls and lodging-rooms; its nearness to an established post office, and its contiguity to Missouri pro-slavery sentiment were elements probably not lost sight of. Mr. Johnson, who had formerly been a Missouri slaveholder, was at the March election chosen a member of the Territorial Council, which in due time made him its presiding officer; and the bogus Legislature at Shawnee Mission was therefore in a certain sense under its own "vine and fig-tree."

[Illustration: ANDREW H. REEDER.]

[Sidenote: "Squatter Sovereign," July 17, 1855.]

[Sidenote: Ibid., June 19, 1855.]

[Sidenote: "House Journal Kansas Territory," 1856, p. 12.]

The two branches of the Legislature, the Council with the Rev. Thomas Johnson as President, and the House with Stringfellow of the "Squatter Sovereign" as Speaker, now turned their attention seriously to the pro-slavery work before them. The conspirators were shrewd enough to realize their victory. "To have intimated one year ago," said the Speaker in his address of thanks, "that such a result would be wrought out, one would have been thought a visionary; to have predicted that to-day a legislature would assemble, almost unanimously pro-slavery, and with myself for Speaker, I would have been thought mad." The programme had already been announced in the "Squatter Sovereign" some weeks before. "The South must and will prevail. If the Southern people but half do their duty, in less than nine months from this day Kansas will have formed a constitution and be knocking at the door for admission.... In the session of the United States Senate in 1856, two Senators from the slave-holding State of Kansas will take their seats, and abolitionism will be forever driven from our halls of legislation." Against this triumphant attitude Governor Reeder was despondent and powerless. The language of his message plainly betrayed the political dilemma in which he found himself. He strove as best he might to couple together the prevailing cant of office-holders against "the destructive spirit of abolitionism" and a comparatively mild rebuke of the Missouri usurpation. [Footnote: Its phraseology was adroit enough to call forth a sneering compliment from Speaker Stringfellow, who wrote to the "Squatter Sovereign": "On Tuesday the Governor sent in his message, which you will find is very well calculated to have its effect with the Pennsylvania Democracy. If he was trustworthy I would" be disposed to compliment the most of it, "but knowing how corrupt the author is, and that it is only designed for political effect in Pennsylvania, he not expecting to remain long with us, I will pass it by."—"Squatter Sovereign," July 17, 1855.]

[Sidenote: "House Journal Kansas Territory," 1855. Appendix, p. 10.]

Nevertheless, the Governor stood reasonably firm. He persisted in declaring that the Legislature could pass no valid laws at any other place than Pawnee, and returned the first bill sent him with a veto message to that effect. To this the Legislature replied by passing the bill over his veto, and in addition formally raising a joint committee "to draw up a memorial to the President of the United States respectfully demanding the removal of A. H. Reeder from the office of governor"; and, as if this indignity were not enough, holding a joint session for publicly signing it. The memorial was promptly dispatched to Washington by special messenger; but on the way this envoy read the news of the Governor's dismissal by the President.

This event appeared definitely to sweep away the last obstacle in the path of the conspirators. The office of acting governor now devolved upon the secretary of the Territory, Daniel Woodson, a man who shared their views and was allied to their schemes. With him to approve their enactments, the parliamentary machinery of the "bogus" Legislature was complete and effective. They had at the very beginning summarily ousted the free-State members chosen at the supplementary election on May 22, and seated the pro-slavery claimants of March 30; and the only two remaining free-State members resigned in utter disgust to avoid giving countenance to the flagrant usurpation by their presence. No one was left even to enter a protest.

[Sidenote: Report Judiciary Com., "House Journal Kansas Territory," 1855. Appendix, p. 14.]

This, then, was the perfect flower of Douglas's vaunted experiment of "popular sovereignty"—a result they professed fully to appreciate. "Hitherto," said the Judiciary Committee of the House in a long and grandiloquent report, "Congress have retained to themselves the power to mold and shape all the territorial governments according to their own

peculiar notions, and to restrict within very limited and contracted bounds both the natural as well as the political rights of the bold and daring pioneer and the noble, hard-fisted squatter." But by this course, the argument of the committee continued, "the pillars which uphold this glorious union of States were shaken until the whole world was threatened with a political earthquake," and, "the principle that the people are capable of self-government would have been forever swallowed up by anarchy and confusion," had not the Kansas-Nebraska bill "delegated to the people of these territories the right to frame and establish their own form of government."

[Sidenote: Report Judiciary Com., "House Journal Kansas Territory," 1855. Appendix, p. 18.]

[Sidenote: Ibid., p. 18.]

What might not be expected of lawmakers who begin with so ambitious an exordium, and who lay the cornerstone of their edifice upon the solid rock of political principle? The anti-climax of performance which followed would be laughably absurd, were it not marked by the cunning of a well-matured political plot. Their first step was to recommend the repeal of "all laws whatsoever, which may have been considered to have been in force" in the Territory on the 1st day of July, 1855, thus forever quieting any doubt "as to what is and what is not law in this Territory"; secondly, to substitute a code about which there should be no question, by the equally ingenious expedient of copying and adopting the Revised Statutes of Missouri.

[Sidenote: Ibid., p. 14.]

These enactments were made in due form; but the bogus Legislature did not seem content to let its fame rest on this single monument of self-government. Casting their eyes once more upon the broad expanse of

American politics, the Judiciary Committee reported: "The question of slavery is one that convulses the whole country, from the boisterous Atlantic to the shores of the mild Pacific. This state of things has been brought about by the fanaticism of the North and East, while up to this time the people of the South, and those of the North who desire the perpetuation of this Union and are devoted to the laws, have been entirely conservative. But the time is coming—yea, it has already arrived—for the latter to take a bold and decided stand that the Union and law may not be trampled in the dust," etc., etc.

[Sidenote: "Statutes Territory of Kansas," 1855, p. 715.]

The "Revised Statutes of Missouri," recommended in bulk, and adopted with hasty clerical modifications, [Footnote: To guard more effectually against clerical errors, the Legislature enacted: "Sec. 1. Wherever the word 'State' occurs in any act of the present legislative assembly, or any law of this Territory, in such construction as to indicate the locality of the operation of such act or laws, the same shall in every instance be taken and understood to mean 'Territory,' and shall apply to the Territory of Kansas."— "Statutes of Kansas," 1855, p. 718.] already contained the usual slave-code peculiar to Southern States. But in the plans and hopes of the conspirators, this of itself was insufficient. In order to "take a bold stand that the Union and law might not be trampled in the dust," they with great painstaking devised and passed "an act to punish offenses against slave property."

It prescribed the penalty of death, not merely for the grave crime of inciting or aiding an insurrection of slaves, free negroes, or mulattoes, or circulating printed matter for such an object, but also the same extreme punishment for the comparatively mild offense of enticing or decoying away a slave or assisting him to escape; for harboring or concealing a

fugitive slave, ten years' imprisonment; for resisting an officer arresting a fugitive slave, two years' imprisonment.

If such inflictions as the foregoing might perhaps be tolerated upon the plea that a barbarous institution required barbarous safeguards, what ought to be said of the last three sections of the act which, in contempt of the Declaration of Independence and the Constitution of the United States, annulled the freedom of speech and the freedom of the press, and invaded even the right of individual conscience?

[Sidenote: "Statutes Territory of Kansas," 1855, p. 516.]

To write, print, or circulate "any statements, arguments, opinions, sentiment, doctrine, advice, or innuendo, calculated to produce a disorderly, dangerous, or rebellious disaffection among the slaves of the Territory, or to induce such slaves to escape from the service of their masters, or to resist their authority," was pronounced a felony punishable by five years' imprisonment. To deny the right of holding slaves in the Territory, by speaking, writing, printing, or circulating books, or papers, was likewise made a felony, punishable by two years' imprisonment. Finally it was enacted that "no person who is conscientiously opposed to holding slaves, or who does not admit the right to hold slaves in this Territory, shall sit as a juror on the trial of any prosecution for any violation of any of the sections of this act." Also, all officers were, in addition to their usual oath, required to swear to support and sustain the Kansas-Nebraska Act and the Fugitive-Slave Law.

[Sidenote: "Journal of Council Kansas Territory," 1855 p. 248.]

The spirit which produced these despotic laws also governed the methods devised to enforce them. The Legislature proceeded to elect the principal officers of each county, who in turn were empowered by the laws to appoint

the subordinate officials. All administration, therefore, emanated from that body, reflected its will, and followed its behest. Finally, the usual skeleton organization of a territorial militia was devised, whose general officers were in due time appointed by the acting Governor from prominent and serviceable pro-slavery members of the Legislature.

[Sidenote: "Statutes Territory of Kansas," 1855, p. 332.]

Having secured their present domination, they sought to perpetuate their political ascendancy in the Territory. They ingeniously prolonged the tenure of their various appointees, and to render their success at future elections easy and certain they provided that candidates to be eligible, and judges of election, and voters when challenged, must swear to support the Fugitive-Slave Law. This they knew would virtually disfranchise many conscientious antislavery men; while, on the other hand, they enacted that each inhabitant who had paid his territorial tax should be a qualified voter for all elective officers. Under so lax a provision Missouri invaders could in the future, as they had in the past, easily give an apparent majority at the ballot-box for all their necessary agents and ulterior schemes.

In a technical sense the establishment of slavery in Kansas was complete. There were by the census of the previous February already some two hundred slaves in the Territory. Under the sanction of these laws, and before they could by any possibility be repealed, some thousands might be expected, especially by such an organized and united effort as the South could make to maintain the vantage ground already gained. Once there, the aggressiveness of the institution might be relied on to protect itself, since all experience had shown that under similar conditions it was almost ineradicable.

[Sidenote: Colfax, Speech in H.R., June 21, 1856.]

After so much patriotic endeavor on the part of these Border Ruffian legislators "that the Union and law may not be trampled in the dust," it cannot perhaps be wondered at that they began to look around for their personal rewards. These they easily found in the rich harvest of local monopolies and franchises which lay scattered in profusion on this virgin field of legislation, ready to be seized and appropriated without dispute by the first occupants. There were charters for railroads, insurance companies, toll-bridges, ferries, coal-mines, plank roads, and numberless privileges and honors of present or prospective value out of which, together with the county, district, and military offices, the ambitious members might give and take with generous liberality. One-sixth of the printed laws of the first session attest their modest attention to this incidental squatters' dowry. One of the many favorable opportunities in this category was the establishment of the permanent territorial capital, authorized by the organic act, where the liberal Federal appropriation for public buildings should be expended. For this purpose, competition from the older towns yielding gracefully after the first ballot, an entirely new site on the open prairie overlooking the Kansas River some twelve miles west of Lawrence was agreed upon. The proceedings do not show any unseemly scramble over the selection, and no tangible record remains of the whispered distribution of corner lots and contracts. It is only the name which rises into historical notice.

[Sidenote: "House Journal Kansas Territory," 1855. Appendix, p. 3.]

One of the actors in the political drama of Kansas was Samuel Dexter Lecompte, Chief-Justice of the Territory. He had been appointed from the border State of Maryland, and is represented to have been a diligent student, a respectable lawyer, a prominent Democratic politician, and possessed of the personal instincts and demeanor of a gentleman. Moved by a pro-slavery sympathy that was sincere, Judge Lecompte lent his high authority to the interests of the conspiracy against Kansas. He had already rendered

the bogus Legislature the important service of publishing an extra-judicial opinion, sustaining their adjournment from Pawnee to Shawnee Mission. Probably because they valued his official championship and recognized in him a powerful ally in politics, they made him a member of several of their private corporations, and gave him the honor of naming their newly founded capital Lecompton. But the intended distinction was transitory. Before the lapse of a single decade, the town for which he stood sponsor was no longer the capital of Kansas.

[Relocated Footnote: Namely, because of a *viva voce* vote certified instead of a ballot, and because the prescribed oath and the words "lawful resident voters" had been openly erased from the printed forms. In six districts the Governor ordered a supplementary election, which was duly held on the 22d of May following. When that day arrived, the Border Ruffians, proclaiming the election to be illegal, by their default allowed free-State men to be chosen in all the districts except that of Leavenworth, where the invasion and tactics of the March election were repeated now for the third time and the same candidates voted for.—Howard Report, pp. 35-36. Indeed, the Border Ruffian habit of voting in Kansas had become chronic, and did not cease for some years, and sometimes developed the grimmest humors. In the autumn of that same year an election for county-seat took place in Leavenworth County by the accidental failure of the Legislature to designate one. Leavenworth city aspired to this honor and polled six hundred votes; but it had an enterprising rival in Kickapoo city, ten miles up the river, and another, Delaware city, eight miles down stream. Both were paper towns—"cottonwood towns," in border slang—of great expectations; and both having more unscrupulous enterprise than voters, appealed to Platte County to "come over." This was an appeal Platte County could never resist, and accordingly a chartered ferry-boat brought voters all election day from the Missouri side, until the Kickapoo tally-lists scored 850. Delaware city, however, was not to be thus easily crushed. She, too,

not only had her chartered ferry-boat, but kept her polls open for three days in succession, and not until her boxes contained nine hundred ballots (of which probably only fifty were legal) did the steam whistle scream victory! When the "returning board" had sufficiently weighed this complicated electoral contest, it gravely decided that keeping the polls open for three days was "an unheard of irregularity." (J. N. Holloway, "History of Kansas," pp. 192-4.) This was exquisite irony; but a local court on appeal seriously giving a final verdict for Delaware, the transaction became a perennial burlesque on "Squatter Sovereignty."]

CHAPTER XXIV

THE TOPEKA CONSTITUTION

[Sidenote: "House Journal Kansas Territory," 1855. p. 30; "Council Journal," 1855, p. 253.]

The bogus Legislature adjourned late on the night of the 30th of August, 1855. They had elaborately built up their legal despotism, commissioned trusty adherents to administer it, and provided their principal and undoubted partisans with military authority to see that it was duly executed. Going still a step further, they proposed so to mold and control public opinion as to prevent the organization of any party or faction to oppose their plans. In view of the coming presidential campaign, it was the fashion in the States for Democrats to style themselves "National Democrats"; and a few newspapers and speakers in Kansas had adopted the prevailing political name. To stifle any such movement, both houses of the Legislature on the last night of their session adopted a concurrent resolution declaring that the proposition to organize a National Democratic party, having already misled some of their friends, would divide pro-slavery Whigs from Democrats and weaken their party one-half; that it was the duty of the pro-slavery, Union-loving men of Kansas "to know but one issue, slavery; and that any party making or attempting to make any other is and should be held as an ally of abolitionism and disunion."

Had the conspiracy been content to prosecute its designs through moderate measures, it would inevitably have fastened slavery upon Kansas. The organization of the invasion in western Missouri, carried on under pre-acknowledged leadership, in populous counties, among established homes, amid well-matured confidence growing out of long personal and political relationship, would have been easy even without the powerful bond of secret association. On the other hand, the union of the actual inhabitants of Kansas, scattered in sparse settlements, personal strangers to each other, coming from widely separated States, and comprising radically different manners, sentiments, and traditions, and burdened with the prime and unyielding necessity of protecting themselves and their families against cold and hunger, was in the very nature of the case slow and difficult. But the course of the Border Ruffians created, in less than six weeks, a powerful and determined opposition, which became united in support of what is known as the Topeka Constitution.

It is noteworthy that this free-State movement originated in Democratic circles, under Democratic auspices. The Republican party did not yet exist. The opponents of the Kansas-Nebraska Act were distributed among Whigs, Know-Nothings, and Free-soilers in the States, and had no national affiliation, although they had won overwhelming triumphs in a majority of the Congressional districts in the fall elections of 1854. Nearly if not quite all the free-State leaders originally went to Kansas as friends of President Pierce, and as believers in the dogma of "Popular Sovereignty."

Now that this usurping Legislature had met, contemptuously expelled the free-State members, defied the Governor's veto, set up its ingeniously contrived legal despotism, and commissioned its partisan followers to execute and administer it, the situation became sufficiently grave to demand defensive action. The real settlers were Democrats, it was true; they had voted for Pierce, shouted for the platform of '52, applauded the Kansas-

Nebraska Act, and emigrated to the Territory to enjoy the new political gospel of popular sovereignty. But the practical Democratic beatitudes of Kansas were not calculated to strengthen the saints or confirm them in the faith. A Democratic invasion had elected a Democratic Legislature, which enacted laws, under whose arbitrary "non-intervention" a Democratic court might fasten a ball and chain to their ankles if they should happen to read the Declaration of Independence to a negro, or carry Jefferson's "Notes on Virginia" in their carpet-bags.

The official resolution which the bogus Legislature proclaimed as a final political test left no middle ground between those who were for slavery and those who were against slavery—those who were for the bogus laws in all their enormity, and those who were against them—and all who were not willing to become active co-workers with the conspiracy were forced to combine in self-defense.

It was in the town of Lawrence that the free-State movement naturally found its beginning. The settlers of the Emigrant Aid Society were comparatively few in number; but, supported by money, saw-mills, printing-presses, boarding-houses, they became from the very first a compact, self-reliant governing force. A few preliminary meetings, instigated by the disfranchised free-State members of the Legislature, brought together a large mass convention. The result of its two days' deliberations was a regularly chosen delegate convention held at Big Springs, a few miles west of Lawrence, on the 5th of September, 1855. More important than all, perhaps, was the presence and active participation of ex-Governor Reeder himself, who wrote the resolutions, addressed the convention in a stirring and defiant speech, and received by acclamation their nomination for territorial delegate.

The platform adopted repudiated in strong terms the bogus Legislature and its tyrannical enactments, and declared "that we will endure and submit to these laws no longer than the best interests of the Territory require, as the least of two evils, and will resist them to a bloody issue as soon as we ascertain that peaceable remedies shall fail." It also recommended the formation of volunteer companies and the procurement of arms. The progressive and radical spirit of the convention is illustrated in its endorsement of the free-State movement, against the report of its own committee.

[Sidenote: Howard Report, pp. 48-58.]

The strongest point, however, made by the convention was a determination, strictly adhered to for more than two years, to take no part in any election under the bogus territorial laws. As a result Whitfield received, without competition, the combined pro-slavery and Border Ruffian vote for delegate on the first of October, a total of 2721 ballots. Measures had meanwhile been perfected by the free-State men to elect delegates to a constitutional convention. On the 9th of October, at a separate election, held by the free-State party alone, under self-prescribed formalities and regulations, these were duly chosen by an aggregate vote of 2710, ex-Governor Reeder receiving at the same polls 2849 votes for delegate.

[Sidenote: "Globe," March 24, 1856, p. 698.]

By this series of political movements, carried out in quiet and orderly proceedings, the free-State party was not only fully constituted and organized, but was demonstrated to possess a decided majority in the Territory. Still following out the policy agreed upon, the delegates chosen met at Topeka on the 23d of October, and with proper deliberation and decorum framed a State constitution, which was in turn submitted to a vote of the people. Although this election was held near midwinter (Dec. 15,

1855), and in the midst of serious disturbances of the peace arising from other causes, it received an affirmative vote of 1731, showing a hearty popular endorsement of it. Of the document itself no extended criticism is necessary. It prohibited slavery, but made reasonable provision for existing property-rights in slaves actually in the Territory. In no sense a radical, subversive, or "abolition" production, the Topeka Constitution was remarkable only as being the indignant protest of the people of the Territory against the Missouri usurpation. [Footnote: Still another election was January 15, 1856, to choose held by the free-State party on State officers to act under the new organization, at which Charles Robinson received 1296 votes for governor, out of a total of 1706, and Mark W. Delahay for Representative in Congress, 1828. A legislature elected at the same time, met, according to the terms of the newly framed constitution, on the 4th of March, organized, and elected Andrew H. Reeder and James H. Lane United States Senators.] The new constitution was transmitted to Congress and was formally presented as a petition to the Senate by General Cass, on March 24, 1856, [Transcriber's Note: Lengthy footnote (1) relocated to chapter end.] and to the House some days later.

[Sidenote: February 22, 1856.]

The Republican Senators in Congress (the Republican party had been definitely organized a few weeks before at Pittsburg) now urged the immediate reception of the Topeka Constitution and the admission of Kansas as a free State, citing the cases of Michigan, Arkansas, Florida, and California as justifying precedents. [Footnote: They based their appeal more especially upon the opinion of the Attorney-General in the case of Arkansas, that citizens of Territories possess the constitutional right to assemble and petition Congress for the redress of grievances; that the form of the petition is immaterial; and that, "as the power of Congress over the whole subject is plenary, they may accept any constitution, however

framed, which in their judgment meets the sense of the people to be affected by it."] For the present, however, there was no hope of admission to the Union with the Topeka Constitution. The Pierce Administration, under the domination of the Southern States, had deposed Governor Reeder. Both in his annual message and again in a special message, the President denounced the Topeka movement as insurrectionary.

[Sidenote: Senate Report No. 34, 1st Session, 34th Congress, p. 32.]

In the Senate, too, the application was already prejudged; the Committee on Territories through Douglas himself as chairman, in a long partisan report, dismissed it with the assertion "that it was the movement of a political party instead of the whole body of the people of Kansas, conducted without the sanction of law, and in defiance of the constituted authorities, for the avowed purpose of overthrowing the territorial government established by Congress." In the mouth of a consistent advocate of "Popular Sovereignty," this argument might have had some force; but it came with a bad grace from Douglas, who in the same report indorsed the bogus Legislature and sustained the bogus laws upon purely technical assumptions. Congress was irreconcilably divided in politics. The Democrats had an overwhelming majority in the Senate; the opposition, through the election of Speaker Banks, possessed a working control of the House. Some months later, after prolonged debate, the House passed a bill for the admission of Kansas under the Topeka Constitution; but as the Senate had already rejected it, the movement remained without practical result. [Transcriber's Note: Lengthy footnote (2) relocated to chapter end.]

The staple argument against the Topeka free-State movement, that it was a rebellion against constitutional authority, though perhaps correct as a mere theory was utterly refuted by the practical facts of the case. The Big Springs resolutions, indeed, counseled resistance to a "bloody issue"; but this was

only to be made after "peaceable remedies shall fail." The free-State leaders deserve credit for pursuing their peaceable remedies and forbearing to exercise their asserted right to resistance with a patience unexampled in American annals. The bogus territorial laws were defied by the newspapers and treated as a dead letter by the mass of the free-State men; as much as possible they stood aloof from the civil officers appointed by and through the bogus Legislature, recorded no title papers, began no lawsuits, abstained from elections, and denied themselves privileges which required any open recognition of the alien Missouri statutes. Lane and others refused the test oath, and were excluded from practice as attorneys in the courts; free-State newspapers were thrown out of the mails as incendiary publications; sundry petty persecutions were evaded or submitted to as special circumstances dictated. But throughout their long and persistent non-conformity, for more than two years, they constantly and cheerfully acknowledged the authority of the organic act, and of the laws of Congress, and even counseled and endured every forced submission to the bogus laws. Though they had defiant and turbulent spirits in their own ranks, who often accused them of imbecility and cowardice, they maintained a steady policy of non-resistance, and, under every show of Federal authority in support of the bogus laws, they submitted to obnoxious searches and seizures, to capricious arrest and painful imprisonment, rather than by resistance to place themselves in the attitude of deliberate outlaws. [Footnote: See Governor Robinson's message to the free-State Legislature, March 4, 1856. Mrs. S. T. L. Robinson, "Kansas," pp. 352, 364.]

[Illustration: James H. Lane.]

[Sidenote: February 11, 1856. "Statutes at Large," Vol. XI., p. 791.]

They were destined to have no lack of provocation. Since the removal of Reeder, all the Federal officials of the Territory were affiliated with the pro-

slavery Missouri cabal. Both to secure the permanent establishment of slavery in Kansas, and to gratify the personal pride of their triumph, they were determined to make these recusant free-State voters "bow down to the cap of Gessler." Despotism is never more arrogant than in resenting all slights to its personal vanity. As a first and necessary step, the cabal had procured, through its powerful influence at Washington, a proclamation from the President commanding "all persons engaged in unlawful combinations against the constituted authority of the Territory of Kansas or of the United States to disperse," etc. The language of the proclamation was sufficiently comprehensive to include Border Ruffians and emigrant aid societies, as well as the Topeka movement, and thus presented a show of impartiality; but under dominant political influences the latter was its evident and certain object.

With this proclamation as a sort of official fulcrum, Chief-Justice Lecompte delivered at the May term of his court a most extraordinary charge to the grand jury. He instructed them that the bogus Legislature, being an instrument of Congress, and having passed laws, "these laws are of United States authority and making." Persons resisting these laws must be indicted for high treason. If no resistance has been made, but combinations formed for the purpose of resisting them, "then must you still find bills for constructive treason, as the courts have decided that the blow need not be struck, but only the intention be made evident." [Footnote: J. H. Gihon, "Governor Geary's Administration," p. 77; also compare two copies of the indictments, printed at full length in Phillips, "Conquest of Kansas," pp. 351-4.] Indictments, writs, and the arrest of many prominent free-State leaders followed as a matter of course. All these proceedings, too, seemed to have been a part of the conspiracy. Before the indictments were found, and in anticipation of the writs, Robinson, the free-State Governor-elect, then on his way to the East, was arrested while traveling on a Missouri River steamboat, at Lexington in that State, detained, and finally sent back

to Kansas under the Governor's requisition. Upon this frivolous charge of constructive treason he and others were held in military custody nearly four months, and finally, at the end of that period, discharged upon bail, the farce of longer imprisonment having become useless through other events.

Apprehending fully that the Topeka movement was the only really serious obstacle to their success, the pro-slavery cabal, watching its opportunity, matured a still more formidable demonstration to suppress and destroy it. The provisional free-State Legislature had, after organizing on the 4th of March, adjourned, to reassemble on the 4th of July, 1856, in order to await in the meantime the result of their application to Congress. As the national holiday approached, it was determined to call together a mass meeting at the same time and place, to give both moral support and personal protection to the members. Civil war, of which further mention will be made in the next chapter, had now been raging for months, and had in its general results gone against the free-State men. Their leaders were imprisoned or scattered, their presses destroyed, their adherents dispirited with defeat. Nevertheless, as the day of meeting approached, the remnant of the provisional Legislature and some six to eight hundred citizens gathered at Topeka, though without any definite purpose or pre-arranged plan.

Governor Shannon, the second of the Kansas executives, had by this time resigned his office, and Secretary Woodson was again acting Governor. Here was a chance to put the free-State movement pointedly under the ban of Federal authority which the cabal determined not to neglect. Reciting the President's proclamation of February, Secretary Woodson now issued his own proclamation forbidding all persons claiming legislative power and authority as aforesaid from assembling, organizing, or acting in any legislative capacity whatever. At the hour of noon on the 4th of July several companies of United States dragoons, which were brought into camp near town in anticipation of the event, entered Topeka in military array, under

command of Colonel E. V. Sumner. A line of battle was formed in the street, cannon were planted, and the machinery of war prepared for instant action. Colonel Sumner, a most careful and conscientious officer and a free-State man at heart, with due formality, with decision and firmness, but at the same time openly expressing the painful nature of his duty, commanded the provisional Legislature, then about to assemble, to disperse. The members, not yet organized, immediately obeyed the order, having neither the will nor the means to resist it. There was no tumult, no violence, but little protest even in words; but the despotic purpose, clothed in forms of law, made a none the less profound impression upon the assembled citizens, and later, when the newspapers spread the report of the act, upon the indignant public of the Northern States. From this time onward, other events of paramount historical importance supervene to crowd the Topeka Constitution out of view. In a feeble way the organization still held together for a considerable length of time. About a year later the provisional Legislature again went through the forms of assembling, and although Governor Walker was present in Topeka, there were no proclamations, no dragoons, no cannon, because the cabal was for the moment defeated and disconcerted and bent upon other and still more desperate schemes. The Topeka Constitution was never received nor legalized; its officers never became clothed with official authority; its scrip was never redeemed; yet in the fate of Kansas and in the annals of the Union at large it was a vital and pivotal transaction, without which the great conflict between freedom and slavery, though perhaps neither avoided nor delayed, might have assumed altogether different phases of development.

[Relocated Footnote (1): Later, on April 7, General Cass presented to the Senate another petition, purporting to be the Topeka Constitution, which had been handed him by J. H. Lane, president of the convention which framed it and Senator-elect under it ("Cong. Globe," 1856; April 7, p. 826). This paper proved to be a clerk's copy, with erasures and interlineations and

signatures in one handwriting, which being questioned as probably spurious, Lane afterwards supplied the original draft prepared by the committee and adopted by the convention, though without signatures; also adding his explanatory affidavit ("Cong. Globe," App. 1856, pp. 378-9), to the effect that, the committee had devolved upon him the preparation of the formal copy, but that the original signatures had been mislaid. The official action of the Senate appears to have concerned itself exclusively with the copy presented by General Cass on March 24. Lane's copies served only as text for angry debate. As the Topeka Constitution had no legal origin or quality, technical defeats were of little consequence, especially in view of the action by the free-State voters of Kansas at their voluntary elections for delegates on October 9, and to ratify it on December 15, 1856.]

[Relocated Footnote (2): Nevertheless, the efforts of the free-State party tinder this combination were not wholly barren. The contest between Whitfield and Reeder for a seat in the House as territorial delegate not only provoked searching discussion, but furnished the occasion for sending an investigating committee to Kansas, attended by the contestants in person. This committee with a fearless diligence collected in the Territory, as well as from the border counties of Missouri, a mass of sworn testimony amounting to some 1200 printed pages, and which exposed the Border Ruffian invasions and the Missouri usurpation in all their monstrous iniquity, and officially revealed to the astounded North, for the first time and nearly two years after its beginning, the full proportions of the conspiracy which held sway in Kansas.]

CHAPTER XXV

CIVIL WAR IN KANSAS

Out of the antagonistic and contending factions mentioned in the last two chapters, the bogus Legislature and its Border-Ruffian adherents on the one hand, and the framers and supporters of the Topeka Constitution on the other, grew the civil war in Kansas. The bogus Legislature numbered thirty-six members. These had only received, all told, 619 legal bond fide Kansas votes; but, what answered their purposes just as well, 4408 Missourians had cast their ballots for them, making their total constituency (if by discarding the idea of a State line we use the word in a somewhat strained sense) 5427. This was at the March election, 1855. Of the remaining 2286 actual Kansas voters disclosed by Seeder's census, only 791 cast their ballots. That summer's emigration, however, being mainly from the free States, greatly changed the relative strength of the two parties. At the election of October 1, 1855, in which the free-State men took no part, Whitfield, for delegate, received 2721 votes, Border Ruffians included. At the election for members of the Topeka Constitutional Convention, a week later, from which the pro-slavery men abstained, the free-State men cast 2710 votes, while Reeder, their nominee for delegate, received 2849. For general service, therefore, requiring no special effort, the numerical strength of the factions was about equal; while on extraordinary occasions the two thousand Border- Ruffian reserve lying a little farther back from the State line could at any time easily

turn the scale. The free-State men had only their convictions, their intelligence, their courage, and the moral support of the North; the conspiracy had its secret combination, the territorial officials, the Legislature, the bogus laws, the courts, the militia officers, the President, and the army. This was a formidable array of advantages; slavery was playing with loaded dice.

With such a radical opposition of sentiment, both factions were on the alert to seize every available vantage ground. The bogus laws having been enacted, and the free-State men having, at the Big Springs Convention, resolved on the failure of peaceable remedies to resist them to a "bloody issue," the conspiracy was not slow to cover itself and its projects with the sacred mantle of authority. Opportunely for them, about this time Governor Shannon, appointed to succeed Reeder, arrived in the Territory. Coming by way of the Missouri River towns, he fell first among Border-Ruffian companionship and influences; and perhaps having his inclinations already molded by his Washington instructions, his early impressions were decidedly adverse to the free-State cause. His reception speech at Westport, in which he maintained the legality of the Legislature, and his determination to enforce their laws, delighted his pro-slavery auditors. To further enlist his zeal in their behalf, a few weeks later they formally organized a "law-and-order party" by a large public meeting held at Leavenworth. All the territorial dignitaries were present; Governor Shannon presided; John Calhoun, the Surveyor-General, made the principal speech, a denunciation of the "abolitionists" supporting the Topeka movement; Chief-Justice Lecompte dignified the occasion with approving remarks. With public opinion propitiated in advance, and the Governor of the Territory thus publicly committed to their party, the conspirators felt themselves ready to enter upon the active campaign to crush out opposition, for which they had made such elaborate preparations.

Faithful to their legislative declaration they knew but one issue, slavery. All dissent, all non-compliance, all hesitation, all mere silence even, were in their stronghold towns, like Leavenworth, branded as "abolitionism," declared to be hostility to the public welfare, and punished with proscription, personal violence, expulsion, and frequently death. Of the lynchings, the mobs, and the murders, it would be impossible, except in a very extended work, to note the frequent and atrocious details. The present chapters can only touch upon the more salient movements of the civil war in Kansas, which happily were not sanguinary; if, however, the individual and more isolated cases of bloodshed could be described, they would show a startling aggregate of barbarity and loss of life for opinion's sake. Some of these revolting crimes, though comparatively few in number, were committed, generally in a spirit of lawless retaliation, by free- State men.

Among other instrumentalities for executing the bogus laws, the bogus Legislature had appointed one Samuel J. Jones sheriff of Douglas County, Kansas Territory, although that individual was at the time of his appointment, and long afterwards, United States postmaster of the town of Westport, Missouri. Why this Missouri citizen and Federal official should in addition be clothed with a foreign territorial shrievalty of a county lying forty or fifty miles from his home is a mystery which was never explained outside a Missouri Blue Lodge.

[Sidenote: Wm. Phillips, "Conquest of Kansas," p. 152, *et seq.*]

A few days after the "law-and-order" meeting in Leavenworth, there occurred a murder in a small settlement thirteen miles west of the town of Lawrence. The murderer, a pro-slavery man, first fled, to Missouri, but returned to Shawnee Mission and sought the official protection of Sheriff Jones; no warrant, no examination, no commitment followed, and the criminal remained at large. Out of this incident, the officious sheriff

managed most ingeniously to create an embroilment with the town of Lawrence, Buckley, who was alleged to have been accessory to the crime, obtained a peace-warrant against Branson, a neighbor of the victim. With this peace-warrant in his pocket, but without showing or reading it to his prisoner, Sheriff Jones and a posse of twenty-five Border Ruffians proceeded to Branson's house at midnight and arrested him. Alarm being given, Branson's free-State neighbors, already exasperated at the murder, rose under the sudden instinct of self-protection and rescued Branson from the sheriff and his posse that same night, though without other violence than harsh words.

[Sidenote: Shannon, proclamation, November 29, 1855. Senate Ex. Doc., 3d Sess. 34th Cong., Vol. II., p. 56.]

[Sidenote: Phillips, p. 168.]

Burning with the thirst of personal revenge, Sheriff Jones now accused the town of Lawrence of the violation of law involved in this rescue, though the people of Lawrence immediately and earnestly disavowed the act. But for Sheriff Jones and his superiors the pretext was all-sufficient. A Border-Ruffian foray against the town was hastily organized. The murder occurred November 21; the rescue November 26. November 27, upon the brief report of Sheriff Jones, demanding a force of three thousand men "to carry out the laws," Governor Shannon issued his order to the two major-generals of the skeleton militia, "to collect together as large a force as you can in your division, and repair without delay to Leecompton, and report yourself to S. J. Jones, sheriff of Douglas County." [Footnote: Governor Shannon, order to Richardson, November 27, 1855. Same order to Strickler, same date. Senate Executive Documents, 3d Sess. 34th Cong., Vol. II., p. 53.] The Kansas militia was a myth; but the Border Ruffians, with their backwoods rifles and shotguns, were a ready resource. To these an urgent appeal for help was

made; and the leaders of the conspiracy in prompt obedience placarded the frontier with inflammatory handbills, and collected and equipped companies, and hurried them forward to the rendezvous without a moment's delay. The United States Arsenal at Liberty, Missouri, was broken into and stripped of its contents to supply cannon, small arms, and ammunition. In two days after notice a company of fifty Missourians made the first camp on Wakarusa Creek, near Franklin, four miles from Lawrence. In three or four days more an irregular army of fifteen hundred men, claiming to be the sheriff's posse, was within striking distance of the town. Three or four hundred of these were nominal residents of the Territory; [Footnote: Shannon, dispatch, December 11, 1855, to President Pierce. Senate Ex. Doc., 3d Sess. 34th Cong., Vol. II., p. 63.] all the remainder were citizens of Missouri. They were not only well armed and supplied, but wrought up to the highest pitch of partisan excitement. While the Governor's proclamation spoke of serving writs, the notices of the conspirators sounded the note of the real contest. "Now is the time to show game, and if we are defeated this time, the Territory is lost to the South," said the leaders. There was no doubt of the earnestness of their purpose. Ex-Vice-President Atchison came in person, leading a battalion of two hundred Platte County riflemen.

News of this proceeding reached the people of Lawrence little by little, and finally, becoming alarmed, they began to improvise means of defense. Two abortive imitations of the Missouri Blue Lodges, set on foot during the summer by the free-State men, provoked by the election invasion in March, furnished them a starting-point for military organization. A committee of safety, hurriedly instituted, sent a call for help from Lawrence to other points in the Territory, "for the purpose of defending it from threatened invasion by armed men now quartered in its vicinity." Several hundred free-State men promptly responded to the summons. The Free-State Hotel served as barracks. Governor Robinson and Colonel Lane were appointed to command. Four or five small redoubts, connected by rifle-pits, were hastily

thrown up; and by a clever artifice they succeeded in bringing a twelve-pound brass howitzer from its storage at Kansas City. Meantime the committee of safety, earnestly denying any wrongful act or purpose, sent an urgent appeal for protection to the commander of the United States forces at Fort Leavenworth, another to Congress, and a third to President Pierce.

Amid all this warlike preparation to keep the peace, no very strict military discipline could be immediately enforced. The people of Lawrence, without any great difficulty, obtained daily information concerning the hostile camps. They, on the other hand, professing no purpose but that of defense and self-protection, were obliged to permit free and constant ingress to their beleaguered town. Sheriff Jones made several visits unmolested on their part, and without any display of writs or demand for the surrender of alleged offenders on his own. One of the rescuers even accosted him, conversed with him, and invited him to dinner. These free visits had the good effect to restrain imprudence and impulsiveness on both sides. They could see that a conflict meant serious results. With the advantage of its defensive position, Lawrence was as strong as the sheriff's mob. On one point especially the Border Ruffians had a wholesome dread. Yankee ingenuity had invented a new kind of breech-loading gun called "Sharps rifle." It was, in fact, the best weapon of its day. The free-State volunteers had some months before obtained a partial supply of them from the East, and their range, rapidity, and effectiveness had been not only duly set forth but highly exaggerated by many marvelous stories throughout the Territory and along the border. The Missouri backwoods-men manifested an almost incredible interest in this wonderful gun. They might be deaf to the "equalities" proclaimed in the Declaration of Independence or blind to the moral sin of slavery, but they comprehended a rifle which could be fired ten times a minute and kill a man at a thousand yards.

The arrivals from Missouri finally slackened and ceased. The irregular Border-Ruffian squads were hastily incorporated into the skeleton "Kansas militia." The "posse" became some two thousand strong, and the defenders of Lawrence perhaps one thousand.

[Sidenote: Richardson to Shannon, December 3, 1855; Phillips, p. 186.]

[Sidenote: Anderson to Richardson; Phillips, p. 210.]

Meanwhile a sober second thought had come to Governor Shannon. To retrieve somewhat the precipitancy of his militia orders and proclamations, he wrote to Sheriff Jones, December 2, to make no arrests or movements unless by his direction. The firm defensive attitude of the people of Lawrence had produced its effect. The leaders of the conspiracy became distrustful of their power to crush the town. One of his militia generals suggested that the Governor should require the "outlaws at Lawrence and elsewhere" to surrender the Sharps rifles; another wrote asking him to call out the Government troops at Fort Leavenworth. The Governor, on his part, becoming doubtful of the legality of employing Missouri militia to enforce Kansas laws, was also eager to secure the help of Federal troops. Sheriff Jones began to grow importunate. In the Missouri camp while the leaders became alarmed the men grew insubordinate. "I have reason to believe," wrote one of their prominent men, "that before to-morrow morning the black flag will be hoisted, when nine out of ten will rally round it, and march without orders upon Lawrence. The forces of the Lecompton camp fully understand the plot and will fight under the same banner."

[Sidenote: Sumner to Shannon. December 1, 1855; Phillips, p. 184.]

After careful deliberation Colonel Sumner, commanding the United States troops at Fort Leavenworth, declined to interfere without explicit orders from the War Department. These failing to arrive in time, the

Governor was obliged to face his own dilemma. He hastened to Lawrence, which now invoked his protection. He directed his militia generals to repress disorder and check any attack on the town. Interviews were held with the free-State commanders, and the situation was fully discussed. A compromise was agreed upon, and a formal treaty written out and signed. The affair was pronounced to be a "misunderstanding"; the Lawrence party disavowed the Branson rescue, denied any previous, present, or prospective organization for resistance, and under sundry provisos agreed to aid in the execution of "the laws" when called upon by "proper authority." Like all compromises, the agreement was half necessity, half trick. Neither party was willing to yield honestly nor ready to fight manfully. The free-State men shrank from forcible resistance to even bogus laws. The Missouri cabal, on the other hand, having three of their best men constantly at the Governor's side, were compelled to recognize their lack of justification. They did not dare to ignore upon what a ridiculously shadowy pretext the Branson peace-warrant had grown into an army of two thousand men, and how, under the manipulation of Sheriff Jones, a questionable affidavit of a pro-slavery criminal had been expanded into the *casus belli* of a free-State town. They consented to a compromise "to cover a retreat."

[Sidenote: Shannon to President Pierce, December 11, 1855, Senate Ex. Doc., 3d Sess. 34th Cong. Vol. II., pp. 63-5.]

When Governor Shannon announced that the difficulties were settled, the people of Lawrence were suspicious of their leaders, and John Brown manifested his readiness to head a revolt. But his attempted speech was hushed down, and the assurance of Robinson and Lane that they had made no dishonorable concession finally quieted their followers. There were similar murmurs in the pro-slavery camps. The Governor was denounced as a traitor, and Sheriff Jones declared that "he would have wiped out Lawrence." Atchison, on the contrary, sustained the bargain, explaining that

to attack Lawrence under the circumstances would ruin the Democratic cause. "But," he added with a significant oath, "boys, we will fight some time!" Thirteen of the captains in the Wakarusa camp were called together, and the situation was duly explained. The treaty was accepted, though the Governor confessed "there was a silent dissatisfaction" at the result. He ordered the forces to disband; prisoners were liberated, and with the opportune aid of a furious rain-storm the Border-Ruffian army gradually melted away. Nevertheless the "Wakarusa war" left one bitter sting to rankle in the hearts of the defenders of Lawrence, a free-State man having been killed by a pro-slavery scouting party.

The truce patched up by this Lawrence treaty was of comparatively short duration. The excitement which had reigned in Kansas during the whole summer of 1855, first about the enactments of the bogus Legislature, and then in regard to the formation of the Topeka Constitution, was now extended to the American Congress, where it raged for two long months over the election of Speaker Banks. In Kansas during the same period the vote of the free-State men upon the Topeka Constitution and the election for free-State officers under it, kept the Territory in a ferment. During and after the contest over the speakership at Washington, each State Legislature became a forum of Kansas debate. The general public interest in the controversy was shown by discussions carried on by press, pulpit, and in the daily conversation and comment of the people of the Union in every town, hamlet, and neighborhood. No sooner did the spring weather of 1856 permit, than men, money, arms, and supplies were poured into the Territory of Kansas from the North.

[Sidenote: J.N. Holloway, "History of Kansas," pp. 275, 276.]

In the Southern States also this propagandism was active, and a number of guerrilla leaders with followers recruited in the South, and armed and

sustained by Southern contributions and appropriations, found their way to Kansas in response to urgent appeals of the Border chiefs. Buford, of Alabama; Titus, of Florida; Wilkes, of Virginia; Hampton, of Kentucky; Treadwell, of South Carolina, and others, brought not only enthusiastic leadership, but substantial assistance. Both the factions which had come so near to actual battle in the "Wakarusa war," though nominally disbanded, in reality continued their military organizations,—the free-State men through apprehension of danger, the Border Ruffians because of their purpose to crush out opposition. Strengthened on both sides with men, money, arms, and supplies, the contest was gradually resumed with the opening spring.

The vague and double-meaning phrases of the Lawrence agreement furnished the earliest causes of a renewal of the quarrel. "Did you not pledge yourselves to assist me as sheriff in the arrest of any person against whom I might have a writ?" asked Sheriff Jones of Robinson and Lane in a curt note. "We may have said that we would assist any proper officer in the service of any legal process," they replied, standing upon their interpretation. This was, of course, the original controversy—slavery burning to enforce her usurpation, freedom determined to defend her birthright. Sheriff Jones had his pockets always full of writs issued in the spirit of persecution, but was often baffled by the sharp wits and ready resources of the free-State people, and sometimes defied outright. Little by little, however, the latter became hemmed and bound in the meshes of the various devices and proceedings which the territorial officials evolved from the bogus laws. President Pierce, in his special message of January 24, declared what had been done by the Topeka movement to be "of a revolutionary character" which would "become treasonable insurrection if it reach the length of organized resistance."

Following this came his proclamation of February 11, leveled against "combinations formed to resist the execution of the territorial laws." Early

in May, Chief-Justice Lecompte held a term of his court, during which he delivered to the grand jury his famous instructions on constructive treason. Indictments were found, writs issued, and the principal free-State leaders arrested or forced to flee from the Territory. Governor Robinson was arrested without warrant on the Missouri River, and brought back to be held in military custody till September. [Transcriber's Note: Lengthy footnote relocated to chapter end.] Lane went East and recruited additional help for the contest. Meanwhile Sheriff Jones, sitting in his tent at night, in the town of Lawrence, had been wounded by a rifle or pistol in the attempt of some unknown person to assassinate him. The people of Lawrence denounced the deed; but the sheriff hoarded up the score for future revenge. One additional incident served to precipitate the crisis. The House of Representatives at Washington, presided over by Speaker Banks, and under control of the opposition, sent an investigating committee to Kansas, consisting of Wm. A. Howard, of Michigan, John Sherman, [Footnote: Owing to the illness of Mr. Howard, chairman of the committee, the long and elaborate majority report of this committee was written by John Sherman. Its methodical analysis and powerful presentation of evidence made it one of the most popular and convincing documents ever issued.] of Ohio, and Mordecai Oliver, of Missouri, which, by the examination of numerous witnesses, was probing the Border-Ruffian invasions, the illegality of the bogus Legislature, and the enormity of the bogus laws to the bottom.

[Sidenote: Howard Report, p. 66.]

Ex-Governor Reeder was in attendance on this committee, supplying data, pointing out from personal knowledge sources of information, cross-examining witnesses to elicit the hidden truth. To embarrass this damaging exposure, Judge Lecompte issued a writ against the ex- Governor on a frivolous charge of contempt. Claiming but not receiving exemption from the committee, Beeder on his personal responsibility refused to permit the

deputy marshal to arrest him. The incident was not violent, nor even dramatic. No posse was summoned, no further effort made, and Reeder, fearing personal violence, soon fled in disguise. But the affair was magnified as a crowning proof that the free-State men were insurrectionists and outlaws.

It must be noted in passing that by this time the Territory had by insensible degrees drifted into the condition of civil war. Both parties were zealous, vigilant, and denunciatory. In nearly every settlement suspicion led to combination for defense, combination to some form of oppression or insult, and so on by easy transition to arrest and concealment, attack and reprisal, expulsion, theft, house-burning, capture, and murder. From these, again, sprang barricaded and fortified dwellings, camps and scouting parties, finally culminating in roving guerrilla bands, half partisan, half predatory. Their distinctive characters, however, display one broad and unflinching difference. The free-State men clung to their prairie towns and prairie ravines with all the obstinacy and courage of true defenders of their homes and firesides. The pro-slavery parties, unmistakable aliens and invaders, always came from, or retired across, the Missouri line. Organized and sustained in the beginning by voluntary contributions from that and distant States, they ended by levying forced contributions, by "pressing" horses, food, or arms from any neighborhood they chanced to visit. Their assumed character changed with their changing opportunities or necessities. They were squads of Kansas militia, companies of "peaceful emigrants," or gangs of irresponsible outlaws, to suit the chance, the whim, or the need of the moment.

[Sidenote: Memorial, Senate Ex. Doc., 3d Sess. 34th Cong. Vol. II., p. 74.]

[Sidenote: Phillips, pp. 289-90.]

[Sidenote: Memorial, Senate Ex. Doc., 3d Sess. 34th Cong. Vol. II., p. 75.]

Since the unsatisfactory termination of the "Wakarusa war," certain leaders of the conspiracy had never given up their project of punishing the town of Lawrence. A propitious moment for carrying it out seemed now to have arrived. The free-State officers and leaders were, thanks to Judge Lecompte's doctrine of constructive treason, under indictment, arrest, or in flight; the settlers were busy with their spring crops; while the pro-slavery guerrillas, freshly arrived and full of zeal, were eager for service and distinction. The former campaign against the town had failed for want of justification; they now sought a pretext which would not shame their assumed character as defenders of law and order. In the shooting of Sheriff Jones in Lawrence, and in the refusal of ex-Governor Beeder to allow the deputy-marshal to arrest him, they discovered grave offenses against the territorial and United States laws. Determined also no longer to trust Governor Shannon, lest he might again make peace, United States Marshal Donaldson issued a proclamation on his own responsibility, on May 11, 1856, commanding "law-abiding citizens of the Territory" "to be and appear at Lecompton, as soon as practicable and in numbers sufficient for the proper execution of the law." Moving with the promptness and celerity of preconcerted plans, ex-Vice-President Atchison, with his Platte County Rifles and two brass cannon, the Kickapoo Rangers from Leavenworth and Weston, Wilkes, Titus, Buford, and all the rest of the free lances in the Territory, began to concentrate against Lawrence, giving the marshal in a very few days a "posse" of from 500 to 800 men, armed for the greater part with United States muskets, some stolen from the Liberty arsenal on their former raid, others distributed to them as Kansas militia by the territorial officers. The Governor refused to interfere to protect the threatened town, though an urgent appeal to do so was made to him by its citizens, who after stormy and divided councils resolved on a policy of non-resistance.

[Sidenote: Memorial, Senate Ex. Doc., 3d Sess. 34th Cong. Vol. II., p. 77.]

They next made application to the marshal, who tauntingly replied that he could not rely on their pledges, and must take the liberty to execute his process in his own time and manner. The help of Colonel Sumner, commanding the United States troops, was finally invoked, but his instructions only permitted him to act at the call of the Governor or marshal. [Footnote: Sumner to Shannon, May 12, 1856. Senate Ex. Doc., No. 10, 3d Sess. 34th Cong. Vol. V., p. 7.] Private persons who had leased the Free-State Hotel vainly besought the various authorities to prevent the destruction of their property. Ten days were consumed in these negotiations; but the spirit of vengeance refused to yield. When the citizens of Lawrence rose on the 21st of May they beheld their town invested by a formidable military force.

During the forenoon the deputy-marshal rode leisurely into the town attended by less than a dozen men, being neither molested nor opposed. He summoned half a dozen citizens to join his posse, who followed, obeyed, and assisted him. He continued his pretended search and, to give color to his errand, made two arrests. The Free-State Hotel, a stone building in dimensions fifty by seventy feet, three stories high and handsomely furnished, previously occupied only for lodging-rooms, on that day for the first time opened its table accommodations to the public, and provided a free dinner in honor of the occasion. The marshal and his posse, including Sheriff Jones, went among other invited guests and enjoyed the proffered hospitality. As he had promised to protect the hotel, the reassured citizens began to laugh at their own fears. To their sorrow they were soon undeceived. The military force, partly rabble, partly organized, had meanwhile moved into the town.

To save his official skirts from stain, the deputy-marshal now went through the farce of dismissing his entire posse of citizens and Border Ruffians, at which juncture Sheriff Jones made his appearance, claiming the "posse" as his own. He planted a company before the hotel, and demanded a surrender of the arms belonging to the free- State military companies. Refusal or resistance being out of the question, half a dozen small cannon were solemnly dug up from their concealment and, together with a few Sharps rifles, formally delivered. Half an hour later, turning a deaf ear to all remonstrance, he gave the proprietors until 5 o'clock to remove their families and personal property from the Free-State Hotel. Atchison, who had been haranguing the mob, planted his two guns before the building and trained them upon it. The inmates being removed, at the appointed hour a few cannon balls were fired through the stone walls. This mode of destruction being slow and undramatic, and an attempt to blow it up with gunpowder having proved equally unsatisfactory, the torch was applied, and the structure given to the flames. [Footnote: Memorial, Senate Executive Document, 3d Session 34th Congress. Volume II, pp. 73-85.] Other squads had during the same time been sent to the several printing-offices, where they broke the presses, scattered the type, and demolished the furniture. The house of Governor Robinson was also robbed and burned. Very soon the mob was beyond all control, and spreading itself over the town engaged in pillage till the darkness of night arrested it. Meanwhile the chiefs sat on their horses and viewed the work of destruction.

[Sidenote: House Reports, 2d Sess., 36th Cong., Vol. III, part 1, p. 39.]

[Sidenote: Holloway, p. 351.]

[Sidenote: Memorial to the President.]

If we would believe the chief actors, this was the "law and order party," executing the mandates of justice. Part and parcel of the affair was the

pretense that this exploit of prairie buccaneering had been authorized by Judge Leecompte's court, the officials citing in their defense a presentment of his grand jury, declaring the free-State newspapers seditious publications, and the Free-State Hotel a rebellious fortification, and recommending their *abatement* as nuisances. The travesty of American government involved in the transaction is too serious for ridicule. In this incident, contrasting the creative and the destructive spirit of the factions, the Emigrant Aid Society of Massachusetts finds its most honorable and triumphant vindication. The whole proceeding was so childish, the miserable plot so transparent, the outrage so gross, as to bring disgust to the better class of Border Ruffians who were witnesses and accessories. The free-State men have recorded the honorable conduct of Colonel Zadock Jackson, of Georgia, and Colonel Jefferson Buford, of Alabama, as well as of the prosecuting attorney of the county, each of whom denounced the proceedings on the spot.

[Relocated Footnote: Governor Robinson being on his way East, the steamboat on which he was traveling stopped at Lexington, Missouri. An unauthorized mob induced the Governor, with that persuasiveness in which the Border Ruffians had become adepts, to leave the boat, detaining him at Lexington on the accusation that he was fleeing from an indictment. In a few days an officer came with a requisition from Governor Shannon, and took the prisoner by land to Westport, and afterwards from there to Kansas City and Leavenworth. Here he was placed in the custody of Captain Martin, of the Kickapoo Rangers, who proved a kind jailer, and materially assisted in protecting him from the dangerous intentions of the mob which at that time held Leavenworth under a reign of terror.

Mrs. Robinson, who has kindly sent us a sketch of the incident, writes: "On the night of the 28th [of May] for greater security General Richardson of the militia slept in the same bed with the prisoner, while Judge Lecompte and Marshal Donaldson slept just outside of the door of the prisoner's room.

Captain Martin said: 'I shall give you a pistol to help protect yourself if worse comes to worst!' In the early morning of the next day, May 29, a company of dragoons with one empty saddle came down from the fort, and while the pro-slavery men still slept, the prisoner and his escort were on their way across the prairies to Lecompton in the charge of officers of the United States Army. The Governor and other prisoners were kept on the prairie near Lecompton until the 10th of September, 1856, when all were released."]

END OF VOL. I.

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